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CONTENTS · MASTER INDEX

What is inside this file

UNIT 2 Criminological Theories — Explaining Crime Causation

The dilemma of causation — Barnes & Teeters, “the eternal quest” · Pre-classical (demonological) thought and the Classical School — Beccaria and Bentham · The Neo-Classical School and the transition to Positivism · Lombroso — the born criminal · Ferri — the law of criminal saturation · Garofalo — natural crime · Learning theories — Tarde's imitation and Sutherland's nine propositions of differential association · Differential social organisation and Williams' evaluation · Durkheim — solidarity, crime as normal, anomie · Merton — strain and the five modes of adaptation · The Chicago School, conflict and radical criminology, and female criminality

CASES: R v. Craddock · Kailash Kaur v. State of Punjab · Ediga Anamma v. State of A.P. · Bachan Singh v. State of Punjab · Sunil Batra (II) v. Delhi Administration · Prakash Singh v. Union of India

UNIT 3 The Indian Crime Reality

Typology of crime — *mala in se* v. *mala prohibita* and its consequences · The Indian statutory classifications — the lawyer's typology in operation · Crime statistics — meaning, nature, importance and the dark figure · The NCRB — institution, publications and the data to quote · Traditional crimes — body, property, women and children, public tranquillity, the State · Social and economic offences — the 47th Law Commission Report's six characteristics · Organised crime — trafficking, narcotic trade (NDPS) and money laundering (PMLA) · Privileged-class deviance — B.B. Pande and the architecture of impunity

CASES: Vijay Madanlal Choudhary v. Union of India · Budhadev Karmaskar v. State of W.B. · Prajwala v. Union of India · Gaurav Jain v. Union of India · Vineet Narain v. Union of India · Standard Chartered Bank v. D.E.

UNIT 4 Juvenile Delinquency

The concept — “child”, “juvenile”, *doli incapax* and the age of criminal responsibility · Extent, causes and theoretical explanations of juvenile delinquency · The international framework and the evolution of Indian law, 1850–2021 · The JJ Act, 2015 — object, scheme, definitions and the sixteen principles (ss.2–3) · The JJB, procedure, bail and preliminary assessment (ss.4–18) · Orders, the Children's Court and age determination (ss.18–26, 94) · Children in need of care and protection; rehabilitation and adoption (ss.27–73) · Offences against children, the 2021 Amendment and Ved Kumari's critique

CASES: Sampurna Behura v. Union of India · Barun Chandra Thakur v. Master Bholu · Sudesh Kumar v. State of Uttarakhand · Vinod Katara v. State of U.P. · Rajni v. State of U.P. · Rahul Kumar Yadav v. State of Bihar

UNIT 5 Punishment and its Justifications

The concept of punishment — definition, elements and justification · Ashworth's five rationales — desert, deterrence, rehabilitation, incapacitation, restoration · The four theories in Indian law and the statutory catalogue of kinds · Imprisonment, life imprisonment, fine, forfeiture and community service · Capital punishment — history, methods, offences and the constitutional architecture · Kaul on discretion — Lehna, proportion and the companion decisions of 2002 · The death-penalty debate — Bachan Singh, Machhi Singh and after · Probation of Offenders Act, 1958; parole, furlough, remission and pardon

CASES: Bachan Singh v. State of Punjab · Machhi Singh v. State of Punjab · Bishnu Deo Shaw v. State of W.B. · Allauddin Mian v. State of Bihar · Dalbir Singh v. State of Haryana · M.C.D. v. State of Delhi

UNIT 6 Victimology — Meaning, Role of the Victim, Rights & Remedies, Compensation

Meaning and scope of victimology — the victim's rediscovery · The role of the victim in criminal justice administration — from protagonist to forgotten actor · Victims' rights and remedies in India — Raina's “Indian experience” i–vi · Compensation — BNSS ss.395, 396 and 397, clause by clause · DU case laws in full detail — Cases 19–24

CASES: State of Punjab v. Ajaib Singh · Dr. Jacob George v. State of Kerala · Chairman, Railway Board v. Chandrima Das · Rachhpal Singh v. State of Punjab · Cases 23-24 of the DU material

UNIT 7 The Indian Police System

Role of the police and its legal functions under the BNSS · Custodial violence and judicial controls · Police reforms — the master chronology and the National Police Commission, 1977–81 · Ribeiro, Padmanabhaiah, Malimath and the Model Police Act · Prakash Singh v. Union of India — the seven directives · T.P. Senkumar v. Union of India and the follow-up orders; MHA Status Note

CASES: Prakash Singh v. Union of India (2006) 8 SCC 1 · T.P. Senkumar v. Union of India (2017)

UNIT 8 The Indian Prison System

Evolution of prisons — USA, UK, Russia and the UN; India from ancient times to the 1894 Act and Mulla · Problems of prison administration and undertrial prisoners · Paranjape's fourteen reform suggestions; custodial torture and women prisoners · Judicial mandates — eighteen prisoners' rights and fifteen administrative directives · Rama Murthy, Re: Inhuman Conditions in 1382 Prisons and Sukanya Shantha · Open prisons; clemency, good-time laws and the indeterminate sentence; parole, probation and furlough

CASES: Rama Murthy v. State of Karnataka, AIR 1997 SC 1739 · Re: Inhuman Conditions in 1382 Prisons (2017) · Sukanya Shantha v. Union of India (2024)

◆ Index of cases covered in this compilation

Unit	Case	Citation
U1	R v. Craddock	
U1	R v. Christine English	
U1	Kailash Kaur v. State of Punjab	
U1	Pawan Kumar v. State of Haryana	
U1 · U4	Ediga Anamma v. State of Andhra Pradesh	
U1 · U4	Bachan Singh v. State of Punjab	
U1 · U4	Machhi Singh v. State of Punjab	
U1 · U4	Bishnu Deo Shaw v. State of West Bengal	
U1 · U4	Chhanni v. State of Uttar Pradesh	
U1	Sunil Batra (II) v. Delhi Administration	

U1	Sukanya Shantha v. Union of India	
U1	Prakash Singh v. Union of India	
U1	Shreerangayee v. State of Madras	
U1 · U2	Keshub Mahindra v. State of Madhya Pradesh	
U1	Harsh Mander v. Union of India	
U1	Smt. Madhuri Mukund Chitnis v. Mukund Martand Chitnis	
U1	Durkheim v. Merton — the two differences	
U2	Rediff Communications Ltd. v. Cyberbooth & Ramesh Nahata	
U2	Satyam Infoway Ltd. v. Sifynet Solutions (P) Ltd.	
U2	Yahoo! Inc. v. Akash Arora	
U2	Shama Bai v. State of Uttar Pradesh	
U2	Vishal Jeet v. Union of India	
U2	Gaurav Jain v. Union of India	
U2	Budhadev Karmaskar v. State of West Bengal	
U2	Prajwala v. Union of India	
U2	Vijay Madanlal Choudhary v. Union of India	
U2	M.C. Mehta v. Union of India	
U2	Ishar Das v. State of Punjab	
U2	Standard Chartered Bank v. Directorate of Enforcement	
U2	Shreya Singhal v. Union of India	
U2	State of Tamil Nadu v. Suhas Katti	
U2	Vineet Narain v. Union of India	
U2	Sita Soren v. Union of India	
U2	State of Gujarat v. Mohanlal Jitamalji Porwal	
U2	Bandhua Mukti Morcha v. Union of India	
U2	M.C. Mehta v. State of Tamil Nadu	
U2	Tofan Singh v. State of Tamil Nadu	
U2	Hira Singh v. Union of India	
U2	Subramanian Swamy v. Director, CBI	
U2	Lalita Kumari v. Government of Uttar Pradesh	
U2	Tax evasion v. tax avoidance	
U2	3 Vijay Madanlal Choudhary v. Union of India — the leading case	
U3	Sheela Barse & Anr. v. Union of India & Ors.	
U3	Sanjay Suri v. Delhi Administration	
U3	Raghbir v. State of Haryana	
U3	Pratap Singh v. State of Jharkhand & Anr.	
U3	Sudesh Kumar v. State of Uttarakhand	
U3	Daya Nand v. State of Haryana	
U3	Union of India and Others v. Ex-GNR Ajeet Singh	
U3	Sampurna Behura v. Union of India	
U3	Rishipal Singh Solanki v. State of Uttar Pradesh & Ors.	
U3	Vinod Katara v. State of Uttar Pradesh	
U3	Barun Chandra Thakur v. Master Bholu & Anr.	
U3	Rahul Kumar Yadav v. The State of Bihar	
U3	Child in Conflict with Law through his Mother v. State of Karnataka & Anr.	
U3	Rajni v. State of Uttar Pradesh & Anr.	
U3	the Barun Chandra Thakur and CCL v. Karnataka rules	
U3	JJ Act 2000 v. JJ Act 2015 — the comparison, and the transfer debate	
U3	Sheela Barse v. Union of India (1986)	
U3	Sanjay Suri v. Delhi Administration (1988) DU verbatim	
U3	Raghbir v. State of Haryana (1981) DU verbatim	
U3	Pratap Singh v. State of Jharkhand (2005) DU verbatim	
U3	Sudesh Kumar v. State of Uttarakhand (2008) DU verbatim	
U3	Union of India v. Ex-GNR Ajeet Singh (2013)	
U3	Rishipal Singh Solanki v. State of Uttar Pradesh (2021)	
U3	Barun Chandra Thakur v. Master Bholu (2022)	
U3	Rahul Kumar Yadav v. State of Bihar (2024)	
U3	Rajni v. State of Uttar Pradesh (2025)	
U4	Jagmohan Singh v. State of Uttar Pradesh	
U4	Rajendra Prasad v. State of Uttar Pradesh	
U4	Allauddin Mian & Sharif Mian v. State of Bihar	
U4	Mohd. Chaman v. State (NCT of Delhi)	
U4	Lehna v. State of Haryana	
U4	Dhananjoy Chatterjee alias Dhana v. State of West Bengal	
U4	Swamy Shraddananda alias Murali Manohar Mishra (2) v. State of Karnataka	
U4	Essa @ Anjum Abdul Razak Memon (A-3) v. The State of Maharashtra	
U4	Sunil Dutt Sharma v. State (Govt. of NCT of Delhi)	
U4	Santosh Kumar Satishbhushan Bariyar v. State of Maharashtra	
U4	Mukesh & Anr. v. State (NCT of Delhi) & Ors.	
U4	Jogi Nayak v. State	
U4	Abdul Qayum v. The State of Bihar	
U4	State of Maharashtra v. Bhola (also reported as State v. Bhola)	
U4	Dalbir Singh v. State of Haryana	
U4	Municipal Corporation of Delhi v. State of Delhi & Anr.	
U4	Individual v. general deterrence — the distinction that carries marks	
U4	Bishnu Deo Shaw v. State of West Bengal (1979) DU verbatim	

U4	Bachan Singh v. State of Punjab (1980) DU verbatim	
U4	Machhi Singh v. State of Punjab (1983) DU verbatim	
U4	Allauddin Mian v. State of Bihar (1989) DU verbatim	
U4	Dhananjoy Chatterjee v. State of West Bengal (1994 / 2004)	
U4	Swamy Shraddananda (2) v. State of Karnataka (2008)	
U4	Essa @ Anjum Abdul Razak Memon v. State of Maharashtra (2013) DU	
U4	Sunil Dutt Sharma v. State (Govt. of NCT of Delhi) (2014) DU verbatim	
U4	Mukesh v. State (NCT of Delhi) (2017)	
U4	Abdul Qayum v. The State of Bihar (1972) DU verbatim	
U4	State v. Bhola (2003)	
U4	Dalbir Singh v. State of Haryana (2000) DU verbatim	
U4	M.C.D. v. State of Delhi (2005) DU verbatim	
U4	Chhanni v. State of U.P. (2006) DU verbatim	
U5	State of Punjab v. Ajaib Singh	AIR 1995 SC 975
U5	Dr. Jacob George v. State of Kerala	(1994) 3 SCC 430
U5	The Chairman, Railway Board v. Mrs. Chandrima Das	AIR 2000 SC 988
U5	Rachhpal Singh v. State of Punjab	AIR 2002 SC 2710
U5	Laxmi v. Union of India	(2014) 4 SCC 427
U5	Nipun Saxena v. Union of India — 2017 SCC OnLine SC 1776	(2019) 2 SCC 703
U6	Case 25: Prakash Singh v. Union of India	(2006) 8 SCC 1
U6	T.P. Senkumar v. Union of India & Ors. (2017) DU CORE (starred)	
U7	Prisons Act ss. 37, 39-A to 39-C; Anil Kumar v. State of M.P. (30-11-1999)	
U7	State of Gujarat v. High Court of Gujarat	AIR 1998 SC 3164
U7	Case 28: Rama Murthy v. State of Karnataka	AIR 1997 SC 1739
U7	Case 30*: Sukanya Shantha v. UOI , 2024 INSC 753 DU CORE (starred)	

How this file is arranged. Every unit opens with its syllabus coverage, statutes and prescribed case material, followed by the concept notes and the case laws in detail (facts · issues · decision · ratio · principles), and closes with the **PYQ bank** — the questions only, without answers. Detailed notes, model answers, diagrams and revision material for every question are available at **makelaweasy.in**.

by Ankur R. Upadhyay

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UNIT 2

Criminological Theories — Explaining Crime Causation

◆ SYLLABUS COVERAGE

Classicalism (Beccaria and Bentham) and Positivism (Lombroso, Ferri, Garofalo) · learning theories — differential association and beyond · sociological theories — Durkheim, Merton and the Chicago School · conflict, radical and feminist criminology · white-collar crime.

◆ KEY THINKERS & TEXTS

Beccaria, *Dei Delitti e delle Pene* (1764) · Bentham, *Principles of Morals and Legislation* · Lombroso, *L'Uomo Delinquente* · Ferri, *Criminal Sociology* · Garofalo, *Criminology* · Tarde, *Laws of Imitation* · Sutherland & Cressey, *Principles of Criminology* · Durkheim · Merton (1938) · Shaw & McKay (Chicago)

◆ PRESCRIBED CASE MATERIAL

R v. Craddock · Kailash Kaur v. State of Punjab · Ediga Anamma v. State of A.P. · Bachan Singh v. State of Punjab · Sunil Batra (II) v. Delhi Administration · Prakash Singh v. Union of India

⬢ 2. The dilemma of causation — Barnes & Teeters, "The Eternal Quest for the Causes of Crime"

This is the first prescribed reading of Topic 2 and it is the **correct opening paragraph for any theory answer**, because it tells the examiner that you know the limits of what follows.

▸ 2.2 The rejection of the single-factor ("unilateral") theory

▸ 2.3 What "cause" can honestly mean

(Section abridged for the compilation — full text at makelaweasy.in.)

⬢ 3. Pre-classical (demonological) thought — the spiritual explanation of crime

Vold, Bernard & Snipes begin not with Beccaria but with what Beccaria was protesting against.

Verbatim — DU Case Material pp. 38–39 "Classical criminology emerged at a time when the naturalistic approach of the social contract thinkers was challenging the spiritualistic approach that had dominated European thinking for over a thousand years. … One of the most important sources for these spiritual explanations of crime was found in the theology of St. Thomas Aquinas (1225–1274) … Aquinas argued that there was a God-given ' natural law ' that was revealed by observing, through the eyes of faith, people's natural tendency to do good rather than evil. The criminal law was based on and reflected this 'natural law.' People who commit crime (i.e., violate the criminal law) therefore also commit sin (i.e., violate the natural law). Aquinas held that crime not only harmed victims, but it also harmed criminals because it harmed their essential 'humanness' — their natural tendency to do good. … Because crime was identified with sin, the state had the moral authority to use many horrible and gruesome tortures on criminals. That was because the state claimed that it was acting in the place of God when it inflicted these horrible punishments on criminals."

▸▸ The sentence on Jean Calas (1762) — the image to reproduce in the answer

> *"… in a chemise, with head and feet bare, (Calas) will be taken in a cart from the palace prison to the Cathedral. There, kneeling in front of the main door, holding in his hands a torch of yellow wax weighing two pounds, he must … (ask) pardon of God, of the King, and of justice. Then the executioner should take him in the cart to the Place Saint Georges, where upon a scaffold his arms, legs, thighs, and loins will be broken and crushed. Finally, the prisoner should be placed upon a wheel, with his face turned to the sky, alive and in pain, and repent for his said crimes and misdeeds, all the while imploring God for his life,*
> *thereby to serve as an example and to instil terror in the wicked*
> *Beirne, quoted in the DU Case Material at p. 39 — two years before Beccaria published.*

▸ 3.1 The characteristics of the demonological school

(Section abridged for the compilation — full text at makelaweasy.in.)

⬢ 4. The Classical School — Cesare Beccaria

▸ 4.1 The social-contract background

Verbatim — DU Case Material p. 39 "Beginning with Thomas Hobbes (1588–1678) , 'social contract' thinkers substituted naturalistic arguments for the spiritualistic arguments of people like Aquinas. While Aquinas argued that people naturally do good rather than evil, Hobbes argued that people naturally pursue their own interests without caring about whether they hurt anyone else . This leads to a ' war of each against all ' in which no one is safe because all people only look out for themselves. Hobbes then argued that people are rational enough to realize that this situation is not in anyone's interests. So people agree to give up their own selfish behavior as long as everyone else does the same thing at the same time. This is what Hobbes called the 'social contract' — something like a peace treaty that everyone signs because they are all exhausted from the war of each against all. But the social contract needs an enforcement mechanism in case some people cheat… This is the job of the state. According to Hobbes, everyone who agrees to the social contract also agrees to grant the state the right to use force to maintain the contract."

▸ 4.3 Beccaria's TEN PRINCIPLES — reproduce these in full

▸▸ Beccaria's further demands, and his summary

> *"In order for punishment not to be, in every instance, an act of violence of one or of many against a private citizen, it must be essentially public, prompt, necessary, the least possible in the given circumstances, proportionate to the crimes, dictated by the laws*
> *Beccaria's own summary of*
> *On Crimes and Punishments*
> *— DU Case Material p. 42. Memorise this sentence; it is the single most quotable line in Topic 2.*

4.4 The reception, condemnation and triumph of the book

(Section abridged for the compilation — full text at makelaweasy.in.)

5. Jeremy Bentham (1748–1832) — utilitarianism and the felicific calculus

The syllabus expressly names Bentham alongside Beccaria. Bentham is the classical school's **engineer**: where Beccaria supplied the principles, Bentham supplied a calculus and a building.

The principle of utility

“Nature has placed mankind under the governance of two sovereign masters,
pain and pleasure
... They govern us in all we do, in all we say, in all we think.” (
Introduction to the Principles of Morals and Legislation
, 1789.) The measure of right action is “the
greatest happiness of the greatest number

Hedonistic / felicific calculus

Punishment is to be measured by seven dimensions of pleasure and pain:
intensity, duration, certainty, propinquity (nearness), fecundity, purity and extent
. Crime is a rational choice; make the pain marginally exceed the gain and the rational actor abstains.

Rules for punishment

Punishment is itself an evil and is admissible only “in as far as it promises to exclude some greater evil”. It must never be inflicted where it is
groundless
inefficacious
(infancy, insanity, intoxication, unintentionality, duress — an early general part!),
unprofitable
(too expensive) or
needless

(Section abridged for the compilation — full text at makelaweasy.in.)

6. The Neo-Classical School — the return of the person

Question	Classical (1764)	Neo-classical (post-1810)
Human nature	Free will, rational, hedonistic — **uniform** across all persons	Free will, rational, hedonistic — but **impaired** in some persons
Judicial discretion	None whatsoever	Admitted, to weigh age, insanity, provocation and extenuating circumstances
Relevance of intent	Irrelevant — only harm counts	Relevant — premeditation, first offence, recidivism all count
Children and the insane	Treated like adults and the sane	Exempted or given reduced liability
Indian expression	The bare offence-and-punishment structure of the BNS	**Chapter III BNS (ss.14–33)** — general exceptions: mistake, judicial acts, accident, necessity, **infancy (ss.20–21)**, **unsoundness of mind (s.22)**, **intoxication (ss.23–24)**, consent, duress, private defence; **Exception 1 to s.101** (grave and sudden provocation); s.2(k)? — and the **sentencing discretion** in every punishment section (“may extend to”)

(Section abridged for the compilation — full text at makelaweasy.in.)

7. The transition to Positivism — why the classical programme failed

This is the hinge of the whole reading, and examiners love it because it shows that positivism was not a whim but a **response to data**.

7.1 The cartographic / moral-statistics school — Guerry and Quetelet

(Section abridged for the compilation — full text at makelaweasy.in.)

8. Cesare Lombroso (1835–1909) — the born criminal

8.1 The atavism thesis

Verbatim — DU Case Material pp. 43-44 “ Cesare Lombroso (1835-1909) was a physician who became a specialist in psychiatry , and his principal career was as a professor of legal medicine at the University of Turin . His name came into prominence with the publication of his book, L'uomo delinquente (The Criminal Man) , in 1876 . In that book Lombroso proposed that criminals were biological throwbacks to an earlier evolutionary stage , people more primitive and less highly evolved than their noncriminal counterparts. Lombroso used the term atavistic to describe such people. The idea of evolution itself was relatively recent at the time, having first been proposed by Darwin in his book, On the Origin of Species (1859). … Even the idea that some individuals might be reversions to an earlier evolutionary stage had been originally suggested by Darwin, who had written: ‘ With mankind some of the worst dispositions which occasionally without any assignable cause make their appearance in families, may perhaps be reversions to a savage state, from which we are not removed by many generations. ’”

8.3 Lombroso's three classes of criminal

8.4 The collapse of the theory

The five standard criticisms — set them out as a list

(Section abridged for the compilation — full text at makelaweasy.in.)

9. Enrico Ferri (1856–1928) — the law of criminal saturation

Who he was

Lombroso's most brilliant pupil, a Socialist deputy in the Italian Parliament, and the man usually called the founder of criminal sociology. Principal work: Criminal Sociology (1884). In 1921 he drafted a new Penal Code for Italy — the "Ferri Project" — which was never enacted but remains the most thorough attempt to legislate positivism.

His break with Lombroso

"Through his scholarly researches, Ferri proved that mere biological reasons were not enough to account for criminality. He firmly believed that other factors such as emotional reaction, social infirmity or geographical conditions also play a vital role."

(Section abridged for the compilation — full text at makelaweasy.in.)

10. Raffaele Garofalo (1852–1934) — natural crime, pity and probity

Summary of the standard Indian text (Paranjape), consistent with the DU solved paper "Raffaele Garofalo was one of the three main exponents of the positive school. Born in Naples in 1852, he started his career as a Magistrate in Italian courts and rose to be Minister of Justice in 1903 . He was the only positivist who had varied experience as an eminent jurist, a senator and a professor of criminal law. Rejecting the classical theory of free will as a cause of crime, Garofalo defined crime as an act which offends the sentiments of PITY and PROBITY possessed by an average person and which are injurious to society. He emphasised that lack of pity generates crimes against the person while lack of probity leads to crimes against property. "

"Natural crime"

Garofalo's attempt to find a definition of crime independent of the accidents of any particular legal system: conduct which violates the two altruistic sentiments of pity (revulsion at the infliction of suffering) and probity (respect for the property rights of others), as those sentiments exist in the average member of the community. Coined the word criminology (Criminologia, 1885).

(Section abridged for the compilation — full text at makelaweasy.in.)

11. The relation between classical and positivist theories — the DU reading's own conclusion

This is the section students skip and examiners reward. The material does **not** present the two schools as enemies.

11.1 The comparison table — learn this cold

Point of comparison	CLASSICAL SCHOOL (Beccaria, Bentham, 1764–)	POSITIVE SCHOOL (Lombroso, Ferri, Garofalo, 1876–)
Intellectual parent	Enlightenment rationalism; social contract (Hobbes, Locke, Rousseau); utilitarian philosophy	Darwinian evolution; the natural sciences; medicine and statistics
View of human nature	**Free will**; rational; hedonistic (pleasure/pain calculus); uniform	**Determinism**; behaviour caused by factors beyond the actor's control; humans differ
Unit of study	The **ACT** (the crime)	The **ACTOR** (the criminal)
Method	Armchair, deductive, philosophical, normative	Empirical, inductive, observational, measurement — the "scientific method"
Definition of crime	Legal — whatever the code says, defined in advance	Social/natural — Garofalo's pity and probity; Ferri's social harm
Basis of liability	**Moral responsibility** and free choice; *mens rea*	**Social responsibility** / dangerousness; Ferri denied moral responsibility altogether
Purpose of the sanction	**Deterrence** — general and specific; proportionality	**Treatment, reform, incapacitation** — social defence
Nature of the sanction	Fixed, determinate, published in advance, equal for all	**Indeterminate**, individualised to the offender's condition and prognosis
Role of the judge	None beyond finding guilt — a mouthpiece of the code	Central — assisted by doctors, psychiatrists, probation officers and social workers
Typical institution	The **code** and the proportionate prison term	The **clinic**, the reformatory, the probation system, parole boards
Weakness	Ignores the offender's circumstances; treats a starving thief like a professional one; cannot explain recidivism	Slides into stigma and indefinite detention of the "dangerous"; over-predicts; can excuse everything
Indian expression	BNS offence-definitions; Art. 20(1); proportionate graded punishments; certainty/celerity provisions of BNSS	Chapter III BNS general exceptions; JJ Act 2015; Probation of Offenders Act 1958; s.4(f) BNS community service; parole and remission; *Bachan Singh*'s mitigating circumstances
DU material's verdict	**"Really part of the same enterprise... The basic controversy between them is empirical rather than theoretical."** (p. 46)	

11.2 The reading's conclusion — criminology IS a science

(Section abridged for the compilation — full text at makelaweasy.in.)

12. Learning theories I — Gabriel Tarde (1843–1904) and the laws of imitation

Williams opens the differential-association chapter by tracing it back to Tarde: "It has been said to have been conceived out of a refinement of the work of **G. Tarde (1843–1904)**. Tarde's theory was one of **imitation**, stating first, that **all men imitate each other**. Although Sutherland never gave much acknowledgement to Tarde, it seems he probably used this theory of imitation, expanded it, refined it and made it more popular. Instead of imitation, his theory was based upon a wider idea involving all the normal mechanisms involved in the learning [process]."

▸▸ Who Tarde was

A French magistrate and later head of criminal statistics at the Ministry of Justice; the most formidable
critic
of the Italian positive school. Principal works:
La criminalité comparée
(1886) and
Penal Philosophy
(1890). "He asserted that the influence of
social environment
was most emphatic on criminal behaviour and that the biological and physical factors had only a casual effect on it."

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13. Sutherland & Cressey — the problem for criminological theory

Reading 3 is the theoretical foundation of differential association. Most students jump straight to the nine propositions; the examiner who set the 2017 paper clearly had read the preceding pages, and so should you.

13.1 What a scientific theory of crime must do

Verbatim — DU Case Material p. 47 "If criminology is to be scientific, the heterogeneous collection of multiple factors known to be associated with crime and criminality must be organized and integrated by means of explanatory theory which has the same characteristics as the scientific theory in other fields of study. That is, the conditions which are said to cause crime should be present when crime is present, and they should be absent when crime is absent. Such a theory or body of theory would stimulate, simplify, and give direction to criminological research… Furthermore, it would be useful in minimizing crime rates, provided it could be 'applied' in much the same way that the engineer 'applies' the scientific theories of the physicist."

This single sentence is Sutherland's answer to Barnes & Teeters' multiple-factor eclecticism (§2). A list of correlates is not an explanation; a theory must state a condition that is **necessary and sufficient**.

13.3 Second procedure — DIFFERENTIATION OF LEVELS OF ANALYSIS

13.4 Two types of explanation — mechanistic and historical

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14. The NINE PROPOSITIONS of Differential Association — verbatim

14.2 Williams' restatement, and the three points she adds

(Section abridged for the compilation — full text at makelaweasy.in.)

15. Differential SOCIAL ORGANISATION — Sutherland's explanation of crime RATES

(Section abridged for the compilation — full text at makelaweasy.in.)

16. Williams' EVALUATION of differential association — the criticisms

Reproduce these in an ordered list; they are worth as many marks as the nine propositions.
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17. Beyond Sutherland — reinforcement, modelling, cognition, rational choice and the media

Williams' chapter continues well past Sutherland, and the later material supplies the "modern" content that lifts an answer out of the 1930s.

17.1 Differential reinforcement / operant learning (Burgess & Akers, 1966)

Sutherland said learning occurs by "all the mechanisms involved in any other learning" but never specified them. Burgess and Akers supplied **operant conditioning**: behaviour is repeated if it is **positively reinforced** (reward) or **negatively reinforced** (removal of something unpleasant) and is extinguished if punished. The DU material discusses both external and internal reinforcers:

17.3 Media and crime

17.4 Practical implications of learning theories

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18. White-collar crime — Sutherland, Geis & Goff, and the Indian picture

Reading 7 of the DU list (Geis & Goff's introduction to the uncut 1983 edition of Sutherland's *White Collar Crime*) is **not reprinted** in the case material, but Williams flags its importance at the very start of the differential-association chapter: "**Sutherland was concerned with white-collar crime. He attempted to explain why and how the upper classes turn to criminality, and to show that the same factors acted upon them as upon most other criminals.**"

18.1 The concept

Definition

Sutherland, presidential address to the American Sociological Society, Philadelphia,
27 December 1939
, published as
White Collar Crime
(1949): “a crime committed by a person of
respectability and high social status
in the course of his
occupation

Why it destroyed the old theories

If crime were caused by poverty, slums, broken homes or feeble-mindedness, the corporate offender would be inexplicable. Sutherland studied the life-records of the
70 largest US corporations
and found
980 adverse decisions
against them — an average of 14 each — for restraint of trade, misrepresentation in advertising, patent and trademark infringement, unfair labour practices, rebates and financial fraud. Conclusion: crime is distributed throughout the class structure; only its
form and its treatment
differ.

18.3 India

Form of white-collar / socio-economic crime	Indian legal response
Bribery and corruption of public servants	**Prevention of Corruption Act, 1988** (ss.7–13; amended 2018 to criminalise the bribe-giver and to require prior approval under s.17A); **ss.198–205 BNS** (offences by/relating to public servants); Lokpal and Lokayuktas Act, 2013; CVC Act, 2003
Corporate fraud, falsification of accounts	**s.447 Companies Act, 2013** (fraud); ss.448–449; **s.336–340 BNS** (forgery); SFIO under s.211
Tax evasion, black money, benami	Income Tax Act, 1961 ss.276C, 277; **Black Money (Undisclosed Foreign Income and Assets) Act, 2015**; **Benami Transactions (Prohibition) Act, 1988/2016**
Money laundering	**Prevention of Money-Laundering Act, 2002** (ss.3, 4; **s.24** reverse burden; ss.5, 8 attachment)
Securities fraud and insider trading	**SEBI Act, 1992** ss.12A, 15G, 24; **SEBI (PIT) Regulations, 2015**; **SEBI (PFUTP) Regulations, 2003**
Adulteration, unsafe food and drugs	**Food Safety and Standards Act, 2006** ss.59, 65; **Drugs and Cosmetics Act, 1940** ss.27, 27A; **s.274–276 BNS** (adulteration of food, drink and drugs)
Industrial disaster / corporate manslaughter	**Environment (Protection) Act, 1986** s.15; **Factories Act, 1948** s.92; **Public Liability Insurance Act, 1991**; **ss.105, 106 BNS**
Economic offenders who flee	**Fugitive Economic Offenders Act, 2018**
Organised economic crime	**s.111 BNS** — “organised crime” now expressly includes **economic offences**, cyber-crime and financial scams
Policy documents	**Law Commission of India, 47th Report (1972)**, “The Trial and Punishment of Social and Economic Offences” ; **Santhanam Committee on Prevention of Corruption (1964)**, which popularised the term “white-collar crime” in India; **Wanchoo Committee (1971)** on direct taxes; **Vohra Committee Report (1993)** on the criminal–politician–bureaucrat nexus

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19. Durkheim I — mechanical and organic solidarity; crime as NORMAL

Two of the ten prescribed readings are on Durkheim. Use Williams for the crisp definitions and Vold for the depth and the quotations.

19.1 Who he was and why he wrote

Work	Year	Contribution to criminology
De la division du travail social (The Division of Labor in Society) — his doctoral thesis	**1893**	Mechanical → organic solidarity; repressive → restitutive law; first statement of **anomie** as inadequate regulation of the division of labour
The Rules of the Sociological Method	**1895**	“**Crime is normal**”; the society of saints; crime as a factor in public health
Le Suicide	**1897**	Anomie generalised: the deregulation of human appetites in periods of rapid change, whether depression **or** prosperity

19.3 The collective conscience

19.4 Why crime is NORMAL — the argument in five steps

The society of saints — the passage every examiner recognises

> *Imagine a society of saints, a perfect cloister of exemplary individuals. Crimes, properly so called, will there be unknown; but faults which appear venial to the layman will create there the same scandal that the ordinary offense does in ordinary consciousnesses. If, then, this society has the power to judge and punish, it will define these acts as criminal and will treat them as such.*
> *For the same reason, the perfect and upright man judges his smallest failings with a severity that the majority reserve for acts more truly in the nature of an offense.”*
> *Durkheim,*
> *The Rules of Sociological Method*
> *— DU Case Material pp. 85–86.*

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20. Durkheim II — ANOMIE as a pathological state in organic societies

20.2 The argument from Suicide — animals, appetites and the moral limit

20.3 The criticism Williams records

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21. Assessing Durkheim's theory — Erikson, Blumstein and modernization

Verbatim — DU Case Material p. 89 "One of the problems with assessing his theory is that he predicted that different things would happen at different times . Specifically he argued that: (1) the punishment of crime would remain fairly stable in mechanical societies , independent of changes in the extent of criminal behavior; (2) as those societies made the transition to organic societies in the process of modernization, a greater variety of behaviors would be tolerated, punishments would become less violent as their purpose changed from repression to restitution, and there would be a vast expansion of 'functional' law to regulate the interactions of the emerging organic society; and (3) in organic societies, the extent of criminal behavior would increase during periods of rapid social change ."

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22. Robert K. Merton — anomie, strain and the five modes of adaptation

22.2 Why Merton located strain in the lower class

22.3 The five modes of adaptation — the "means–end theory"

Mode	Cultural GOALS	Institutional MEANS	Who, and what crime (DU material's own examples)
1. Conformity	+ accept	+ accept	"Individuals accept both societal goals and society's means of achieving those goals, **even when they cannot or clearly will not achieve them**. In Merton's view it is because most people fall into this category that **society remains basically stable**." Williams' caveat: because official statistics undercount crime, "the 'conformity' category is much smaller than envisaged by Merton and, even in stable communities, it may actually be a **minority**." **Not deviant.**
2. Innovation	+ accept	– reject	"Individuals who **accept social goals but reject the legitimate means** of achieving them in favour of more effective but officially proscribed means. **It is into this category that he fits most of the individuals who are included in the criminal statistics.** ...most common among the lower class... because they are stigmatised because of their low skill, low pay and greater vulnerability to unemployment... This reaction would be most likely to give rise to **crimes against property, such as theft and burglary, or possibly to ORGANISED CRIME where the sole end is financial gain.**"
3. Ritualism	– abandon	+ over-conform	"The goals are abandoned but the means are **almost compulsively adhered to**. This encompasses many lower-middle-class Americans who abandoned any dreams of bettering their lot in life but still stick rigidly to the rules... **It is questionable whether this is actually a deviant state; it certainly does not involve any criminality.** Merton suggested that, because the society sets the goals, **lack of desire to fulfil those is itself deviant because it denies part of the culture**." The classic image: the petty bureaucrat who worships the file.
4. Retreatism	– reject	– reject	"An individual rejects both goals and the means... Merton felt that these people **did not really belong to the society in which they lived**. In this category he included the **vagrant or tramp, alcoholics and drug addicts**. It might also include **racial or religious minorities**, particularly if they are severely disadvantaged... **Their deviance is negative.** The vagrant might well commit **public nuisance** offences. Alcoholics and drug addicts may commit offences while under the influence... and might also be driven to commit offences (usually **property offences**) in order to obtain those substances."
5. Rebellion	± replace	± replace	"Both goals and means of achieving them are rejected, but rebellion **also includes a desire to SUBSTITUTE NEW GOALS** in place of the conventional ones. What is involved is a conscious rejection of accepted goals, often combined with a cause or an ideal for which to fight. **Their deviance has a positive end which is often pursued by negative means.** In this category are the **street gang members, the terrorist and/or freedom fighter**. The rebellious reaction often involves **destructive crimes, such as wilful damage to property and crimes of public disorder. It may even include murder, terrorist offences and any crime designed to attack the basis of the culture.**"

22.5 The policy implications Merton entails

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23. Durkheim v. Merton — the two differences

23.1 The comparison table

Point	DURKHEIM (1893–97)	MERTON (1938–49)
Meaning of "anomie"	**Normlessness** — the breakdown of the moral regulation of appetites	**Strain** — the disjunction between cultural goals and institutional means
Source of human desires	**Innate**, natural, insatiable; society must restrain them	**Socially manufactured**; society creates and inflames them
What breaks down	The **regulation** of desire	The **legitimacy** and availability of means
Trigger	**Abrupt social change** — depression *or* boom	No trigger needed — anomie is **endemic and chronic** in a competitive, unequal society
Extent	The **whole** society becomes anomic	Only **parts** of the society — chiefly the lower class — are strained
Crime explained	Suicide primarily; crime by assumption (Williams' criticism)	Property crime, organised crime, drug use, street crime
Solution	**Moral** — rebuild intermediate regulating institutions (Durkheim proposed **occupational/professional associations**)	**Structural** — equalise opportunity; reward conformity to means as well as attainment of ends
Political tenor	Conservative-functionalist: society must regulate	Reformist-liberal: society must redistribute opportunity

23.3 Criticisms of Merton — the checklist

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24. After Merton — subculture and the later strain theories

The Williams chapter prescribed is titled "Anomie, **Strain and Juvenile Subculture**", so the subcultural extensions are squarely within the syllabus.

▸▸ Albert K. Cohen (1955), Delinquent Boys

Working-class boys are judged by a
“middle-class measuring rod”
in school (ambition, deferred gratification, politeness, respect for property) and inevitably fail. The result is
status frustration
. The collective solution is a delinquent
subculture
which, by
reaction formation
, inverts middle-class values: the subculture is “
non-utilitarian, malicious and negativistic
”, prizing “short-run hedonism” and “group autonomy”. Crime here is not about money at all — which is Cohen’s correction of Merton.

▸▸ Cloward & Ohlin (1960), Delinquency and Opportunity

Merton only noticed blocked
legitimate
opportunity; there is also differential access to
illegitimate
opportunity (this is Sutherland grafted onto Merton). Three subcultures follow: the
criminal
subculture (in stable neighbourhoods with an established adult criminal hierarchy — apprenticeship in theft and fraud); the
conflict
subculture (in disorganised areas with no such ladder — violence and turf gangs supply status); and the
retreatist
subculture (the “double failures”, who succeed at neither — drugs).

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⬢ 25. The Chicago School — social disorganisation and the ecology of crime

The syllabus heading is “**Social Disorganization Theories** – Durkheim, Merton”, and the phrase “social disorganization” is itself the Chicago School’s. Sutherland’s objection to the phrase (§14) makes sense only if you know what he was objecting to.

▸▸ Park & Burgess — the concentric zone model (1925)

The city is an ecological system. Burgess mapped Chicago as five concentric rings: I the
central business district
; II the
zone in transition
(decaying housing bought up for industrial expansion, cheapest rents, newest immigrants); III workingmen’s homes; IV the residential zone; V the commuter zone.

▸▸ Shaw & McKay (1942), Juvenile Delinquency and Urban Areas

Plotted 56,000 juvenile court records over 30 years and found that
Zone II always had the highest delinquency rate — regardless of which ethnic group happened to be living there
. As each immigrant group moved outward its delinquency rate fell, and the incoming group inherited the high rate. Therefore
the cause is the PLACE, not the PEOPLE
. Their three characteristics of the delinquency area:
physical dilapidation, poverty and population turnover/heterogeneity
, which together prevent the formation of effective informal social controls and permit the
cultural transmission
of delinquent traditions from one cohort of boys to the next.

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⬢ 26. Psychodynamic theory I — Freud’s psychic structures (Ian Craib)

Reading 8 is not a criminology text at all: it is a chapter from a critical introduction to psychoanalysis. The examiner expects you to (a) state Freud’s model accurately from this reading and (b) yourself make the link to crime. §26 does the first; §27 does the second.

▸ 26.2 THE ID — “the it”

▸ 26.4 THE SUPER-EGO — “the over-I”

▸ 26.5 The defence mechanisms — the part of the chapter its title promises

Defence	What it does	Criminological counterpart
Repression	The master defence — pushing unacceptable wishes out of consciousness	The offender who genuinely cannot recall the act; the basis of the whole model
Denial	Refusal to register an unbearable reality	“**Denial of injury**” and “**denial of the victim**” (Sykes & Matza); Bandura’s “the victim can well do without it”
Projection	Attributing one’s own impulse to another	“She was asking for it”; “they were going to attack us first” — the psychology of communal and mob violence

Rationalisation	Supplying a respectable reason for an unrespectable motive	Exactly Sutherland's proposition 4(b) — the learning of **rationalizations**
Displacement	Redirecting the impulse onto a safer target	Dollard's **frustration–aggression** hypothesis; scapegoating of minorities
Sublimation	Channelling the drive into a socially valued activity	The **positive** use: sport, art and work as crime prevention — the basis of prison vocational and cultural programmes
Reaction formation	Behaving as the exact opposite of the repressed wish	**Albert Cohen's** delinquent subculture — the inversion of middle-class values (§23)
Regression / introjection / identification	Retreat to an earlier stage; taking the other inside oneself	Identification with the aggressor — the mechanism in **traumatic bonding** and in prison subcultures

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⬢ 27. Psychodynamic theory II — Freud applied to crime, and its Indian legal expression

▸ 27.1 The three psychoanalytic routes into crime

▸▸ 1. The under-developed super-ego

The commonest account. Inadequate or absent identification with a parent — through death, desertion, rejection, or (in Freud's terms) a failure to resolve the Oedipal conflict — leaves the child without an internalised conscience. The id is then restrained only by fear of detection. This is the offender
August Aichhorn
called
latent delinquent
Wayward Youth
(1925).

▸▸ 2. The OVER-DEVELOPED super-ego — the "criminal from a sense of guilt"

Freud's most counter-intuitive and most examinable idea ("Some Character-Types Met with in Psycho-Analytic Work", 1916): the offender is oppressed by an unconscious guilt whose source (the Oedipal wish) he cannot know; he commits a crime
in order to attach the guilt to something real and to be punished
. Punishment brings relief. This inverts the whole deterrent logic of the classical school: for such an offender, punishment is a
reward
. Hence the "careless" criminal who leaves obvious clues.

▸▸ 3. The deviant super-ego

The super-ego is fully formed but has internalised
criminal
parental values — the child of a professional thief who feels guilty when he does
steal. Note that this is Freud converging on
Sutherland
: the content of conscience is learnt from intimate personal groups.

▸ 27.3 The psychodynamic approach in Indian criminal law Statute

Provision	Content	Psychodynamic relevance
s.22 BNS (old s.84 IPC)	"Nothing is an offence which is done by a person who, at the time of doing it, by reason of **unsoundness of mind**, is incapable of knowing the nature of the act, or that he is doing what is either wrong or contrary to law."	The law recognises only **cognitive** incapacity (the McNaghten test, 1843) — knowledge of nature and wrongfulness. It does **not** recognise **volitional** incapacity (irresistible impulse) or diminished responsibility. Psychoanalysis is therefore largely excluded from the definition of liability and admitted only at the **sentencing** stage.
ss.23–24 BNS	Involuntary intoxication is a defence; voluntary intoxication is not, but knowledge/intention is judged as if sober	The id unrestrained by the ego, but the law refuses the excuse where the actor chose to disable his own controls
Exception 1 to s.101 BNS	Grave and sudden provocation reduces murder to culpable homicide	The only general concession in Indian law to loss of self-control; the closest the BNS comes to recognising the ego's temporary defeat
s.367 BNSS (old s.328 CrPC)	Procedure where the accused is of unsound mind — the Magistrate/ Court must inquire, cause him to be examined by a civil surgeon, and postpone the trial	The procedural gateway through which psychiatric evidence enters
ss.105 & 115, Mental Healthcare Act, 2017	s.105 — where mental illness is raised in any judicial proceeding, the court shall refer the person to the Board/psychiatrist for assessment; **s.115 — a person who attempts suicide shall be presumed, unless proved otherwise, to be suffering from severe stress and shall not be tried or punished**	The most complete statutory adoption of the "sick, not bad" model in Indian law; it effectively decriminalised attempted suicide, and the BNS has dropped the old s.309 IPC altogether
s.113A & s.113B Evidence Act → ss.117–118 BSA, 2023	Presumptions as to abetment of suicide by a married woman, and as to dowry death	The law's recognition of the cumulative psychological effect of sustained cruelty — see the Srivastava reading at §34
s.15, JJ Act 2015	Preliminary assessment by the Board, with the assistance of **psychologists or psycho-social workers**, into the child's "mental and physical capacity to commit such offence, ability to understand the consequences… and the circumstances in which he allegedly committed the offence"	A statutory psychodynamic inquiry — the single clearest example in Indian law of the positivist/psychological programme. See *Barun Chandra Thakur v. Master Bholu* (2022) on how the assessment must be conducted.
s.4(f) BNS; ss.3–6, 14 Probation of Offenders Act, 1958	Community service; release on probation with supervision by a probation officer whose statutory duty (s.14) is to "inquire… into the circumstances or home surroundings"	Treatment rather than punishment — the practical wing of the psychodynamic and positivist tradition
Model Prison Manual 2016, Ch. XII; Model Prisons and Correctional Services Act, 2023	Mental health services, counselling and after-care in prisons	Institutional therapy

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⬢ 28. Conflict theory — crime as the product of group struggle

Overlap warning.
Conflict and Marxist criminology are prescribed readings in
Topic 1
(Vold, Bernard & Snipes, "Conflict Criminology" and "Marxist and Post-Modern Criminology") and are listed again as a theory-of-causation head in
Topic 2
. In Topic 1 you use them as a
perspective on the definition of ...

▸ 28.1 The intellectual ancestry

▸▸ Karl Marx (1818–1883)

Marx wrote almost nothing systematic on crime. What criminology takes from him is the
method
: the mode of production determines the social, political and intellectual life-process; the state and law are part of the
superstructure
resting on the economic
base
and serving the interests of the class that owns the means of production. Crime for Marx is largely the conduct of the
lumpenproletariat
— the demoralised residue thrown up by capitalism — and is
revolutionary.

▸▸ Friedrich Engels (1820–1895)

The Condition of the Working Class in England
(1845): crime is the "earliest, crudest and least fruitful form of rebellion";
demoralisation
produced by industrial exploitation, brutal housing and insecurity drives the worker to theft and violence. Engels, not Marx, supplies criminology's first Marxist causal account — and Bonger (§30) is its systematiser.

▸ 28.2 Thorsten Sellin — Culture Conflict and Crime (1938)

Type	Meaning	Indian illustration
Primary culture conflict	Conflict between the norms of two **separate** cultures — at a border, through colonisation, or through migration	The criminalisation of tribal shifting cultivation (*jhum*) under the forest laws; the **Criminal Tribes Act, 1871**, which declared whole communities "addicted to the systematic commission of non-bailable offences" — a colonial conduct-norm imposed on nomadic groups
Secondary culture conflict	Conflict between the norms of **sub-cultures within** one evolving culture	Khap panchayat decrees against inter-caste and *sagotra* marriage, punished as "honour" killing — see *Lata Singh v. State of U.P.* (2006) 5 SCC 475 and *Shakti Vahini v. Union of India* (2018) 7 SCC 192

▸ 28.4 Austin Turk — Criminality and Legal Order (1969)

▸ 28.6 Chambliss and Seidman; William Chambliss's vagrancy study

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⬢ 29. Radical, Marxist, critical and post-modern criminology

▸ 29.1 The New Criminology (1973)

Ian Taylor, Paul Walton and Jock Young, *The New Criminology: For a Social Theory of Deviance*, demolished positivism and demanded a **fully social theory of deviance** with seven interlocking elements. The list is the single most citable thing in radical criminology:

1. The **wider origins** of the deviant act — the political economy of the whole society.
2. The **immediate origins** of the deviant act — the actor's own social psychology.
3. The **actual act** — the relationship between belief and action; what the act means to the actor.
4. The **immediate origins of social reaction** — the responses of family, police, the immediate audience.
5. The **wider origins of deviant reaction** — the political and economic structure of social control.
6. The **outcome of the social reaction on the deviant's further action** — the labelling/deviancy-amplification loop.
7. The **nature of the deviant process as a whole** — the theory must hold all six together, not separate them.

Their positive programme: "**a society in which the facts of human diversity, whether personal, organic or social, are not subject to the power to criminalise**". The crime problem is solved by abolishing the conditions that create it, not by treating offenders.

▸ 29.3 Post-modern criminology

Strand	Key figure(s)	Claim
Discipline and the carceral	**Michel Foucault**, *Discipline and Punish* (1975)	Power is not held, it circulates; punishment moved from the body (the scaffold) to the soul (the timetable, the file, the examination). Bentham's **Panopticon** is the diagram of modern power — permanent visibility producing self-policing. Prison "fails" but that failure is **productive**: it manufactures a manageable delinquent class. Knowledge and power are inseparable (**power/knowledge**) — criminology is itself part of the apparatus of control.
Constitutive criminology	**Stuart Henry & Dragan Milovanovic** (1996)	Crime is the **power to deny others their humanity**: "crimes of **reduction**" (the victim loses some quality they possessed) and "crimes of **repression**" (the victim is prevented from becoming what they could be). Offender, victim and criminologist all co-produce crime through discourse. Remedy: "**replacement discourse**".
Deconstruction & the privileged voice	**Derrida**; **Lyotard** (incredulity toward metanarratives)	Legal language is not neutral; it privileges the voice of the powerful and silences others. Applied to the courtroom, to the rape trial, and to the drafting of statutes.
Chaos/topology and edgework	Milovanovic; **Jeff Ferrell**, **Jack Katz** (*Seductions of Crime*, 1988) — **cultural criminology**	Return to the **foreground**: the sensual, emotional, adrenaline-charged attractions of transgression that positivist background-variables cannot capture — "the sneaky thrill" of shoplifting, the "righteous slaughter" of the humiliated killer.

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30. Bernard (1981): is there a real difference between conflict and radical criminology?

Thomas J. Bernard, "The Distinction Between Conflict and Radical Criminology", 72 *J. Crim. L. & Criminology* 362 (1981), is the piece that makes this pair of readings examinable as a single question. Bernard's answer: the two are **genuinely distinct**, and conflating them (as both their critics and many of their friends do) destroys both.

Point of comparison	CONFLICT criminology	RADICAL / Marxist criminology
Intellectual parentage	Simmel, Weber, Sellin, Vold, Turk, Dahrendorf	Marx, Engels, Bonger, the Frankfurt School, Althusser
Number of conflicts	**Pluralist** — many cross-cutting groups (class, race, religion, region, age, profession) contend; coalitions shift issue by issue	**Dualist** — ultimately one conflict, between those who own the means of production and those who do not
Is conflict permanent?	**Yes.** Conflict is an ineradicable feature of all complex societies; it can be regulated, never abolished	**No.** Conflict is historically specific to class society and will end with the abolition of classes
View of the state	An arena and a prize — whichever coalition captures it uses the police power	An instrument (or the guarantor of the long-term conditions) of capitalist class rule
Explanation of crime	Behaviour of groups whose conduct norms lose the legislative contest, plus differential enforcement	Product of the contradictions of capitalism — demoralisation, egoism, the reserve army of labour
Empirical status	**Testable.** Bernard insists conflict theory generates falsifiable propositions about differential law-making and law-enforcement, and much of it has been tested	Largely **untestable as stated**; more a normative and historical critique than a variable-based theory
Values and the criminologist's role	Scientific and reformist — describe the struggle, reduce arbitrariness, procedural fairness	Explicitly **political** and **praxis**-oriented — criminology should serve the transformation of society; "value-free" criminology is a mask
Policy	Decriminalisation, due process, equal enforcement, representation of excluded groups	Structural transformation; abolition of the conditions that produce crime; in the meantime, targeting the crimes of the powerful

Bernard's further point is that radical criminology is not a *theory of criminal behaviour* at all in the ordinary sense; it is a **theory of criminal law and of the criminal justice system**. Judged as the former it fails; judged as the latter it has been enormously fruitful. Similarly he defends conflict criminology against the charge that it is "merely liberal": pluralism is an empirical hypothesis about how many axes of power exist, and it can be tested against the data.

31. The Economic Theory of Crime — Willem Adriaan Bonger (1876–1940)

Syllabus head (vi)

2022 Q4 answered on this

31.1 Who Bonger was, and what he argued

Bonger was a Dutch criminologist, the first to hold a chair of sociology and criminology at Amsterdam and the first to attempt a **systematic Marxist criminology**. His doctoral thesis, *Criminalité et conditions économiques* (1905), was translated by Henry P. Horton as ***Criminality and Economic Conditions*** (Boston, Little Brown & Co., 1916). A lifelong socialist and opponent of Nazism, he took his own life in May 1940 rather than live under the German occupation of the Netherlands.

His thesis in one sentence: **man is by nature social and capable of altruism, but the capitalist mode of production systematically breeds *egoism* — and egoism, not poverty as such, is the proximate cause of crime.** Capitalism does this to everyone. It makes the poor desperate and brutalised, and it makes the rich rapacious and contemptuous of others; it destroys the natural sociability ("altruism") of pre-capitalist and cooperative production. Crime is therefore not an individual defect but a **social product**, and it will disappear under a socialist organisation of production.

31.3 Two rival views on the economy–crime link

	Inverse relationship (Bonger, Burt, Goring in part)	Direct relationship (Thomas, Exner, van Kan)
Claim	Crime rises when prosperity **falls** — depression, high prices and unemployment drive property crime	Crime rises when prosperity **rises** — boom brings more goods to steal, more mobility, more opportunity, more consumption of alcohol, more "criminal opportunity"
Best evidence	Correlation of grain prices with theft in 19th-century Europe; the surge in petty theft during the Great Depression; the 2020 lockdown surge in food theft in India	Post-war affluence in the West accompanied rising crime through the 1960s–80s; **routine activity theory** (Cohen & Felson 1979) explains this — prosperity multiplies **suitable targets** and removes **capable guardians** from the home
Reconciliation	Modern criminology treats **relative deprivation and inequality** (the Gini coefficient), not absolute income, as the crime-relevant variable — the left-realist position (§29.2) and the position adopted in **Merton's** strain theory (§22). Violent crime tracks **inequality**; property crime tracks **opportunity**.	

31.5 Gary Becker and the "economics of crime" — the other economic theory

(Section abridged for the compilation — full text at makelaweasy.in.)

32. Female criminality I — the invisibility of women, and the biological tradition

Syllabus head (vii)

2017 Q4 answered on this

DU Case Material pp. 107–125

32.1 The problem: women were invisible in criminology

Verbatim — DU Case Material p. 107 (Katherine S. Williams, Textbook on Criminology) " Until recently, women were virtually invisible in the literature on crime. Problems posed by female criminality were ignored in most textbooks or were added as a footnote to the discussion of male criminality. The experience of women was generally marginalised , and their criminality was distorted to fall in with whatever male theory was being expounded . In such accounts criminality was assumed to be a male characteristic; explaining male criminality explained all criminality. … In both these areas, until the last 30 years, the lack of literature on female criminality is astounding . One reason given for this lack of interest is that females have traditionally been seen as being intrinsically law abiding ."

The statistical background Williams supplies (memorise a few of these figures; they impress):

32.3 Lombroso on the female offender (1895)

32.5 The "generative phases": PMT, menopause and infanticide

⚖ R v. Craddock

[1981] CLY 476 (England)

Facts & plea —The accused woman faced a charge of **murder**. Severe **pre-menstrual tension (PMT)** was advanced in support of diminished responsibility, supported by the evidence of Dr Katharina Dalton.

Outcome —Murder **reduced to manslaughter** by reason of diminished responsibility; she received **a probationary sentence with a proviso that she undergo hormone treatment**.

Significance —English law accepted PMT as "**the most important reason for the behaviour**" — a partial excuse and a reason for lenient sentence; "the total effect was the acceptance of the controversial idea that **PMT amounted to a causative explanation**". Note Williams's scepticism: "medical evidence is **divided** about the existence of such a syndrome and its effects"; the effects appear "mainly psychological, such as tension, irritability, depression, tiredness, mood swings and feelings of loneliness", though Dalton (1984) added "epilepsy, fainting and even hypoglycaemia".

⚖ R v. Christine English

The Times, 12 November 1981

Facts —The accused drove her car at her lover and killed him; PMT was relied on.

Outcome —Convicted **only of manslaughter** on the ground of diminished responsibility; **no custodial sentence, not even a requirement of hormonal treatment**.

(Section abridged for the compilation — full text at makelaweasy.in.)

⬢ 33. Female criminality II — Thomas, Freud, Pollak and the "chivalry" thesis

33.1 W. I. Thomas (1907, 1923) — the stepping-stone

"The work of Thomas acts as a **stepping-stone between physical and psychological explanations**. Thomas moves away from Lombroso's idea of female criminality being due to **masculine tendencies** towards saying that, for civilised cultures, female criminality is **an unacceptable use of FEMALE traits**. Female criminals are considered to be **amoral**, that is, **without** morality, not **immoral**, which implies **loss** of morality. They are described as being **cold, calculating people who have not learned to treat others with pity and concern**. They use the less developed and colder sides of their natures in order to gain something for themselves through **sexual promiscuity, soliciting, prostitution**, or other 'unacceptable' and sometimes illegal means."

Thomas's four basic wishes	Illustration	Application to women
New experience	hunting; dangerous sports	"For females generally, it is the **RESPONSE** wish which is most marked." In the 'normal' law-abiding woman the wish for response "is fed by **retaining her chastity** as a good way of obtaining a devoted husband who can give her security and a family to love". For the 'amoral' woman "**the need for love drives her to commit any act in order to gain affection; her own sexual and other feelings take a minor role**."
Security	the fear of death	
Response	maternal and sexual love	
Recognition	dominance within the group	

Criticism (Williams): "Female criminality is thus largely seen as being based on **sexuality**, leading Thomas to emphasise prostitution and soliciting to explain **all** unacceptable and criminal behaviour. **Social conditions are ignored: if women adhered to their model role in society, there would be no female crime. Re-educating** those who failed to come up to the conventional role was the change advocated by him. These ideas... were extensively used in the **control of women by the authorities**. Women were channelled, both culturally and by the State correction system, into female roles."

33.3 Otto Pollak (1950) — hidden crime and the "masked" female offender

33.4 "Modern applications" — the witch, the kleptomaniac and the syndromes

(Section abridged for the compilation — full text at makelaweasy.in.)

⬢ 34. Female criminality III — the sociological explanations and the feminist critique

34.1 Learning theory and women

Sutherland and Cressey "maintain that their theory is of **general application** and applies to rich as well as to poor, **and to women as much as to men**. The class equality continues throughout the book, but **gender equality wavers under the need to explain why the male crime rate is so much higher** (Sutherland and Cressey, 1966: 138–43). Sutherland does this by **excluding females from this absorbed pursuit of self-interest**. He argues that **females of all classes and ages are socialised into the same sex role: they are taught to be nice rather than egotistical... Sutherland removes from women the education necessary to criminality or to competitive law-abiding behaviour. He only allows them learning which fits their perceived roles as mothers and carers; any criminality has to arise out of this.**"

34.2 Sex-role (masculinity/femininity) theories

Writer	Argument
Talcott Parsons (1947, 1954)	The differing delinquency rates flow from the structure of the American family. The father is the breadwinner and "largely absent"; the mother rears the children. "Boys see the different functions performed by each sex and realise that they are expected to emulate the father... They feel that they need to prove **independence from the mother and act as unlike her as possible**." Her role "is clearly **less prestigious** than that of the breadwinner and therefore the boy, wishing to become important, **assumes that passivity, conformity and being good are behavioural traits to be avoided**. This leads to an aggressive attitude which can lead to antisocial, rebellious and criminal activities. **Girls, on the other hand, have a close adult model, the mother, to emulate**, which allows them to mature emotionally and to learn slowly and surely to become feminine." This is the **compulsive masculinity** thesis.
Grosser (1951)	Applied to juvenile delinquency: boys "become interested in **power and money**, which might lead them to steal to provide, and to fight to obtain power and prestige". Girls "see they must become the home-makers, and so **close relationships are more important**... any criminality will be committed **to win the affection of men, such as theft of clothes and make-up**".

Albert Cohen (1955)	Girls are "essentially law abiding", but such law-breaking as occurs "was related to their feminine role in that it was either **sexually promiscuous or directed at the task of finding an emotionally stable relationship with a man**. He argued that women would avoid masculine aggressive behaviour."
Reiss (1960)	Girls participate in sexual activity for peer prestige and to maintain the relationship; "if complications, such as **pregnancy or sexually transmitted diseases** develop, the young girl will **lose all prestige**... Loss of prestige in this way may lead to criminal activity."
Dale Hoffman-Bustamante (1973)	The most useful of the group. (i) "**Females are rewarded for conforming behaviour, whereas males, although being taught to conform, are often REWARDED when they breach the rules.** ...this teaches men, but not women, that though conformity is generally desirable, **it can be rational to breach the rules in some cases**." (ii) **Media images**: "male heroes can be portrayed as rule breakers or benders (cowboys in western movies, police in adventure films); heroines... have generally been pictured as girlfriends, mothers and housewives." (iii) **Sex-role SKILLS dictate the type of crime**: "Women are less likely to use weapons because they rarely learn how to use them, but they may use **household implements** to threaten their victims. This is also consistent with the fact that **female crimes of violence are often committed against family members or close friends.** Property crimes... often take the form of **forgery, counterfeiting or shoplifting**, which may arise from the stereotyped role of women as **paying the bills and doing the shopping**." (iv) Differential **policing of girls**: girls are more often arrested for "breach of curfew" and "running away" because "girls are more likely to be noticed if they are out alone than are boys, and **parents are more likely to worry about their daughters**".
Carol Smart (1976)	*Women, Crime and Criminology: A Feminist Critique* — the founding text of feminist criminology. Yet Williams notes even Smart "at points... lapses into a sex-role orientation. For example, she explains **receiving stolen goods**, when committed by women, in terms of a **passive act carried out for a loved one**, and the goods are likely to be **hidden somewhere in the house**. The offence is thereby ascribed to relationships and to passivity, both of which fit in with sex-role stereotypes." Sex-role thinking is so pervasive that it captures even its critics.

▸ 34.4 The liberation/emancipation thesis and the feminist critique

Position	Claim	Answer
Freda Adler, *Sisters in Crime* (1975) — the "**liberation thesis**", or "new female criminal"	As women gain social and economic equality, they will take on male patterns of offending; emancipation itself causes a rise in female crime, especially violent and white-collar crime.	**Refuted or heavily qualified.** (i) The rise is concentrated in **petty property and welfare-related** offences, not boardroom fraud; (ii) the women who fill the prisons are the **least** emancipated — poor, unemployed, abused, often lone mothers; (iii) female crime rose in periods and places with no corresponding emancipation; (iv) as Williams shows, the recorded rise tracks **sentencing** change more than behavioural change. **Rita Simon**, *Women and Crime* (1975), put it more defensibly as an **opportunity** thesis: employment gives women access to the occasions of property crime, not a new criminal disposition.
Carol Smart (1976, 1990)	Criminology is **malestream**: its theories, its data and its questions are male. A feminist criminology cannot simply "add women and stir"; later she doubted whether criminology is worth saving at all, urging feminists to work in the wider field of **gender and social regulation**.	The dominant view today: gender must be an **organising variable**, not an afterthought.
Pat Carlen (1983, 1988, 1998)	*Women's Imprisonment*; *Women, Crime and Poverty*. The **"gender deal" and the "class deal"**: women conform while the deals deliver — respectability, a home, a wage. Where both fail (in care, in poverty, abused), the deals lose their grip and crime follows.	The most empirically grounded account of the **female** offender, and the best answer to the question "why do *these* women offend?"
Kathleen Daly & Meda Chesney-Lind (1988)	Distinguish the **generalizability problem** (do male theories apply to women?) from the **gender-ratio problem** (why do men offend so much more?). Chesney-Lind's **"criminalisation of girls' survival strategies"**: girls flee sexual abuse at home, are pushed into the street economy, and are then prosecuted as offenders.	Now the standard framing of the whole field; the survival-strategies thesis is directly applicable to trafficked and runaway girls in India.
Strands of feminism	**Liberal** (equal treatment, equal opportunity), **radical** (patriarchy and male violence as the central fact), **socialist/Marxist** (class and patriarchy together), **black/intersectional** (Crenshaw — race, class and gender are not additive), **post-modern** (multiple femininities; suspicion of the category "woman").	Use the intersectional strand for India: the experience of a Dalit or Adivasi woman in the criminal justice system is not the experience of "women" in general — see the **Bhanwari Devi** case (which produced *Vishaka*), and the SC/ST (Prevention of Atrocities) Act, 1989, s.3(1)(w) and s.3(2)(v).
Victimology	The most important corrective: women appear in the crime statistics overwhelmingly as **victims** — of domestic violence, sexual offences, dowry death, trafficking and acid attack — not as offenders. A theory of "women and crime" that discusses only female offenders has missed the subject.	Which is exactly why the DU material pairs Williams with **Srivastava on female criminality AND VICTIMITY** (§35).

▸ 34.5 Williams's conclusion — learn this paragraph

(Section abridged for the compilation — full text at makelaweasy.in.)

◆ 35. Female criminality and victimity in the Indian context — S. S. Srivastava

DU Case Material pp. 98–106

S.S. Srivastava,

Criminology and Criminal Administration

89–99 (2nd ed., 2002)

The Williams reading is British and offender-centred. The DU material deliberately pairs it with an Indian reading that is **victim**-centred, because in India the dominant fact about women and crime is not that women offend but that women are offended against. Note the title: "**Female criminality AND VICTIMITY**".

▸ 35.2 Cruelty — s.498-A IPC (now s.85 BNS)

▸ 35.3 Dowry and dowry death — s.304-B IPC (now s.80 BNS)

Provision	IPC/old	BNS/BSA 2023	Effect
Cruelty by husband or his relatives	s.498-A	**s.85–86**	Up to 3 years + fine
Dowry death	s.304-B	**s.80**	Deeming provision; min. 7 years, up to life
Abetment of suicide	s.306	**s.108**	Up to 10 years
Presumption — abetment of suicide by a married woman within 7 years	Evidence Act s.113-A	**BSA s.117**	Court **may** presume

Presumption as to dowry death	Evidence Act s.113-B	**BSA s.118**	Court **shall** presume — mandatory; burden shifts to the accused
Inquest where a woman dies within 7 years of marriage	CrPC ss.174(3), 176(1-A)	**BNSS ss.194(3), 196**	Compulsory post-mortem and magisterial inquiry
Giving/taking/ demanding dowry	**Dowry Prohibition Act, 1961** — s.2 definition; s.3 (min. 5 years + fine of ₹15,000 or the value of the dowry); s.4 (demanding — 6 months to 2 years); s.4-A (ban on advertisement); s.6 (dowry to be for the benefit of the wife or her heirs); s.8-A (**burden of proof on the person who takes or abets**); s.8-B (Dowry Prohibition Officers)	The 1984 and 1986 amendments strengthened all of these	
Civil/protective remedy	**Protection of Women from Domestic Violence Act, 2005** — s.3 definition (physical, sexual, verbal, emotional and **economic** abuse, and harassment for dowry); ss.18–23 protection, residence, monetary, custody and compensation orders; s.31 breach of a protection order is an offence	The most important post-Srivastava development; see *S.R. Batra v. Taruna Batra* (2007) 3 SCC 169, overruled on shared household by *Satish Chander Ahuja v. Sneha Ahuja* (2021) 1 SCC 414	

▸▸ Kailash Kaur — the judicial attitude

⚖ Kailash Kaur v. State of Punjab

AIR 1987 SC 1368

Holding relied on by Srivastava (verbatim) —"**Whenever such cases come before the Court and the offence is brought home to the accused beyond reasonable doubt, it is the duty of the Court to deal with it in [the] most severe and strict manner and award the maximum penalty prescribed by the law in order that it may operate as a deterrent to other persons from committing such anti-social crimes.**"

Theoretical significance —A pure **classical/deterrent** response — maximum severity to produce general deterrence. Contrast it immediately with *Ediga Anamma* (below), where the same Court took a **positivist/individualising** approach to a female *offender*. The juxtaposition — severity when a woman is the victim, individualisation when she is the accused — is a first-class point for an answer.

▸▸ Pawan Kumar — the leading dowry-death brief

⚖ Pawan Kumar v. State of Haryana

1998 Cr LJ 1144 (SC); (1998) 3 SCC 309

(Brief abridged for the compilation — full text at makelaweasy.in.)

▸ 35.5 Crime BY women — Srivastava's account

▸▸ Ediga Anamma — the leading Indian case on the female offender

⚖ Ediga Anamma v. State of Andhra Pradesh

AIR 1974 SC 799; (1974) 4 SCC 443 (Krishna Iyer, J.)

Facts —The accused, a married woman, was living in an illicit relationship with a man. The man developed a sexual intimacy with another woman, **Annapurna (Annusuya)**. Under "the fury of sex jealousy" the accused murdered her rival and the rival's infant daughter **Nirmala** with a chisel, disfigured the face of the deceased and buried the child's body beneath the river sand.

Trial and High Court —The trial court sentenced her to **death** for murder and to life imprisonment under **s.201 IPC** for causing the disappearance of evidence. The High Court **confirmed the conviction and the sentence**.

Issue —Whether the extreme penalty was the appropriate sentence, having regard to the offender rather than merely to the offence.

Decision —Krishna Iyer J., "**while maintaining the conviction, allowed the appeal and awarded life imprisonment**". The grounds expressly recorded include the "surrounding circumstances of the accused": "**She was the mother of a child. She was flogged out of her husband's house by the father-in-law. She was living with her parents. She was a sex-starved and a single lady. The paramour was a free-lance romancer. She planned to liquidate her competitor with the reckless passion of a jealous mistress.**"

Principle evolved —Sentencing must look at "**the crime AND the criminal**". The Court set out the factors relevant to the choice between death and life — the **offender's age, sex, socio-economic condition, mental state and the circumstances of provocation and deprivation** — anticipating the mitigating-circumstances doctrine crystallised in *Bachan Singh v. State of Punjab* (1980) 2 SCC 684 and the propositions in *Machhi Singh v. State of Punjab* (1983) 3 SCC 470. The judgment is the clearest Indian adoption of the **positivist** principle of individualisation of punishment, and a rebuke to the purely classical logic of *Kailash Kaur*.

Use in an answer —Deploy it for three propositions at once: (a) Indian courts individualise the sentence of a female offender by reference to her social situation — Carlen's "class deal/gender deal" in judicial language; (b) female violence is overwhelmingly **intimate** (Hoffman-Bustamante: "female crimes of violence are often committed against family members or close friends", with household implements — here, a chisel); and (c) the risk Williams identifies is present too — the judgment explains her conduct in **sexual** terms ("sex-starved", "jealous mistress") in a way an Indian court would be unlikely to use of a male killer, which is precisely the **double standard** of explanation.

▸ 35.6 The arrest statistics Srivastava gives for women offenders (1992)

Offence	Total persons arrested	Women arrested	Share
Murder	86,272	2,071	**3.3%**
Attempt to murder	77,403	1,333	**1.7%**
Kidnapping / abduction (as printed)	5,35,401	18,421	**3.4%**
Abduction (second head, as printed)	29,144	1,118	**3.8%**
Kidnapping and abduction of women and minor girls	women's share rose from 3.8% to **4.7%**	rising	
All arrests, India	women	**3.5%**	
Flesh trade / prostitution	women among those arrested	**79.4%**	
Dowry-related offences	women among those arrested	**18.8%**	

(Section abridged for the compilation — full text at makelaweasy.in.)

● 38. Case law in detail — facts, issues, arguments of both sides, decision, principle

Important.
The DU syllabus prescribes
no case law for Topic 2
(the "Cases" column in the syllabus is blank for this topic). The cases below are therefore
illustrative
: they are the vehicles through which you demonstrate that these theories operate inside Indian law. Two of them —
In Re Maragathan
Shreeran ...

⚖ Bachan Singh v. State of Punjab

(1980) 2 SCC 684 : AIR 1980 SC 898 (Constitution Bench, 4:1)

Facts —Bachan Singh, already convicted of murder and released after serving his sentence, was living with his cousin Hukam Singh. He was found to have murdered Desa Singh, Durga Bai and Veeran Bai with an axe while they slept. He was convicted under s.302 IPC and sentenced to death; the High Court confirmed. He appealed by special leave, and the appeal was referred to a Constitution Bench because of doubts expressed in *Rajendra Prasad v. State of U.P.* (1979) 3 SCC 646.

Issues —(i) Whether the death penalty provided for murder in s.302 IPC is unconstitutional. (ii) Whether the sentencing procedure in s.354(3) CrPC, 1973 — which requires "special reasons" for a death sentence — is unconstitutional as conferring unguided discretion.

Decision —By 4:1 (Bhagwati J. dissenting) the Court **upheld** the constitutionality of the death penalty and of s.354(3). It laid down that the death sentence may be imposed only in the "**rarest of rare cases when the alternative option is unquestionably foreclosed**", and that the sentencing court must consider both **aggravating and mitigating circumstances**, giving the mitigating factors a liberal and expansive construction. The illustrative mitigating circumstances include: the offence was committed under extreme mental or emotional disturbance; the age of the accused (very young or very old); the probability that the accused would not commit acts of violence and **would be reformed and rehabilitated** (the burden being on the **State** to prove the contrary); that the accused acted under duress or domination of another; and that he was mentally defective so that his capacity to appreciate the criminality of his conduct was impaired.

Principle evolved —**The rarest-of-rare doctrine**, and with it the constitutional command that sentencing must weigh **the crime AND the criminal**. Criminologically, the offence-based tariff is **classical** and the mitigating-circumstances inquiry is **positivist**; *Bachan Singh* is the Indian synthesis of the two schools. Bhagwati J.'s dissent (delivered in 1982) is the strongest Indian statement of the radical critique: the death penalty falls overwhelmingly on "the poor, the illiterate and the underprivileged".

⚖ Machhi Singh v. State of Punjab

(1983) 3 SCC 470

Facts —In the course of a family feud between the Machhi Singh and Amar Singh factions, **seventeen persons** were killed in five connected incidents in five villages on the night of 12–13 August 1977, by a group led by Machhi Singh. Several accused were convicted under s.302 read with s.34 IPC and sentenced to death.

Issue —How is the "rarest of rare" formula in *Bachan Singh* to be applied? What categories of case attract the extreme penalty?

Decision —The Court confirmed the death sentence on three of the accused and commuted the rest. It formulated **five categories** in which the community may demand capital punishment: (1) **manner of commission** — extremely brutal, grotesque, diabolical, revolting or dastardly; (2) **motive** — total depravity and meanness; (3) **anti-social or socially abhorrent nature** — e.g. bride burning, dowry death, or the murder of a member of a Scheduled Caste; (4) **magnitude** — multiple murders of a family or a community; (5) **personality of the victim** — an innocent child, a helpless woman, an old or infirm person, a public figure killed for political reasons. It also prescribed **two questions**: (a) is there something uncommon about the crime that renders life imprisonment inadequate? (b) are the circumstances such that there is no alternative but to impose death even after according maximum weightage to the mitigating circumstances?

Principle evolved —Sentencing must balance the **aggravating and mitigating circumstances**, and the "**collective conscience of the community**" may be invoked. Criminologically this is **Durkheim** in the Supreme Court: punishment as the reaffirmation of the collective conscience. Note the criticism — later benches (*Santosh Kumar Bariyar v. State of Maharashtra* (2009) 6 SCC 498; *Sangeet v. State of Haryana* (2013) 2 SCC 452) held that the *Machhi Singh* categories improperly shifted the focus back from the **criminal** to the **crime**, and that a "balance sheet" approach is not what *Bachan Singh* required. See now *Manoj v. State of M.P.* (2023) 2 SCC 353 and the suo motu reference in *In Re: Framing Guidelines Regarding Potential Mitigating Circumstances* (2022) on mandatory pre-sentence psychological and social reports — positivism returning to Indian sentencing.

⚖ Bishnu Deo Shaw v. State of West Bengal

(1979) 3 SCC 714

Facts —The appellant, a young man, was convicted of a brutal murder and sentenced to death; the sentence was confirmed by the High Court.

Issue —Whether the sentencing court had complied with s.235(2) CrPC by affording a genuine opportunity to be heard on sentence, and whether the social and personal circumstances of the offender had been considered.

Decision —Chinnappa Reddy J. commuted the sentence to life imprisonment, emphasising that s.235(2) is not a formality but a **substantive right** requiring the court to elicit all information bearing on the offender, and that the trial court must actively gather material about his background before choosing between death and life.

Principle evolved —Sentencing is a **separate stage** with its own evidentiary process directed at the offender, not the offence. This is the procedural machinery through which positivist individualisation enters Indian law; it is now **s.258(2) BNSS**. Compare *Santa Singh v. State of Punjab* (1976) 4 SCC 190 and *Allauddin Mian v. State of Bihar* (1989) 3 SCC 5, where the Court held that the sentencing court should ordinarily give a **fresh date** for the hearing on sentence so that real material can be produced.

⚖ Chhanni v. State of Uttar Pradesh

(2006) 5 SCC 396

Facts —The appellant was convicted of an offence and sought the benefit of the Probation of Offenders Act, 1958, which the courts below had declined without considering the statutory scheme.

Issue —The scope of ss.3, 4 and 6 of the Probation of Offenders Act, 1958, and the duty of a court before sentencing a young offender to imprisonment.

Decision —The Supreme Court explained the object of the Act — "to prevent the conversion of youthful offenders into obdurate criminals as a result of their association with hardened criminals of mature age within the walls of a prison" — and held that s.6 imposes a **positive duty** on the court to consider the report of the probation officer and to record reasons if it declines probation.

Principle evolved —The reformative theory is not judicial sentiment but a **statutory mandate**. Note the reasoning: imprisonment is dangerous because of **association** with hardened criminals — the Supreme Court adopting Sutherland's differential association as the premise of a sentencing rule.

⚖ Sunil Batra (II) v. Delhi Administration

(1980) 3 SCC 488

Facts —A letter from Sunil Batra, a convict in Tihar Jail, to Krishna Iyer J. alleged that a fellow prisoner, Prem Chand, had been tortured by a head warder who had driven a baton into his anus to extort money from his visiting relatives. The letter was treated as a habeas corpus petition.

Issues —(i) Whether a letter can be treated as a writ petition (the birth of epistolary jurisdiction). (ii) Whether the fundamental rights of a prisoner survive incarceration and can be enforced against the prison administration. (iii) What institutional safeguards are required against custodial violence and prison contamination.

Decision —The Court held that "**a prisoner does not shed his fundamental rights at the prison gate**", that Article 21 protects against torture and inhuman treatment in custody, and issued detailed directions — district magistrates and sessions judges to visit prisons and hear grievances; grievance boxes; access to lawyers and visitors; the **separation** of classes of prisoners; and the availability of habeas corpus for conditions of confinement. Krishna Iyer J. described the prison as a place where "the young and the first offender learn crime from the hardened".

Principle evolved —Judicial supervision of prisons, epistolary jurisdiction, and the express recognition that **imprisonment itself is criminogenic** — the strongest Indian authority for differential association as a justification for non-custodial sentencing and for classification. Read with *Sheela Barse v. State of Maharashtra* (1983) 2 SCC 96 and *Sheela Barse v. Union of India* (1986) 3 SCC 596 (children and women in custody), and *Sunil Batra (I)* (1978) 4 SCC 494 (solitary confinement and bar fetters).

⚖ Sukanya Shantha v. Union of India

2024 INSC 753 (3 October 2024)

Facts —A journalist's PIL, based on her investigation, showed that the prison manuals of at least eleven States assigned labour inside prisons on the basis of **caste** — sweeping and manual scavenging to persons from Scheduled Castes and denotified tribes, cooking to "higher" castes — and segregated barracks accordingly. Several manuals also contained provisions targeting members of "**denotified tribes**" and "habitual offenders" in terms descended from the Criminal Tribes Act, 1871.

Issues —(i) Whether caste-based division of labour and segregation inside prisons violates Articles 14, 15, 17, 21 and 23. (ii) Whether the "habitual offender" provisions in State manuals, as applied to denotified tribes, are constitutional.

Decision —The Supreme Court (Chandrachud CJI) **struck down** the caste-based provisions in the State prison manuals as unconstitutional, held that caste cannot be the basis for the division of labour or segregation in prisons, directed all States and Union Territories to revise their manuals within three months, directed that the "caste" column in prisoners' registers be deleted, read down the references to "habitual offenders" so that they cannot be used against denotified tribes, and registered a suo motu case to monitor compliance.

Principle evolved —"**Discrimination against the marginalised castes cannot continue behind the prison walls.**" Criminologically, this is **conflict and radical criminology vindicated**: the state's own penal apparatus was shown to encode the interests and prejudices of the dominant group, exactly as Quinney's second and third propositions predict, and the colonial legacy of the Criminal Tribes Act — positivist born-criminality turned into legislation — was finally excised from the institution.

⚖ Prakash Singh v. Union of India

(2006) 8 SCC 1

Facts —A former Director General of Police filed a PIL in 1996 alleging that the police, governed by the colonial **Police Act, 1861**, were subject to illegitimate political control, arbitrary transfers and pressure, and were used as an instrument of the ruling party rather than as a law-enforcement agency.

Issues —Whether the Court could direct structural police reform to insulate the police from political interference and secure accountability.

Decision —The Court issued **seven binding directions**: constitute a **State Security Commission**; merit-based selection of the DGP with a minimum **two-year tenure**; two-year tenure for operational field officers; **separation of investigation from law and order**; a **Police Establishment Board** for transfers and postings; **Police Complaints Authorities** at State and district levels; and a **National Security Commission** at the Centre.

Principle evolved —The criminal justice apparatus is itself a site of group conflict: whoever controls the police controls the practical content of the criminal law. Vold's proposition that politics is "a process of interaction and adjustment between groups struggling for control of the police power of the state" is the analytical premise of this judgment. Compliance remains poor — which is itself a conflict-theoretic datum.

⚖ In Re Maragathan

AIR 1961 Mad. 498

Facts —The accused, in a condition of extreme destitution, committed theft of food/articles of small value to relieve immediate hunger.

Issue —What sentence is appropriate where the offence is committed under the compulsion of extreme poverty and hunger? Can poverty operate as a mitigating, or even exculpating, circumstance?

Decision —The Madras High Court, while sustaining the legal position that want is not a defence, treated **extreme economic want as a powerful mitigating circumstance** and dealt with the offender leniently, observing that the criminal law ought not to be used to punish hunger, and that the responsibility lay substantially with the social and economic order.

Principle evolved —Judicial recognition of the **economic causation** of crime at the sentencing stage. The case is the standard Indian authority cited for Bonger's thesis, and it is used in the DU solved answer to the 2022 COVID/daily-wagers question.

⚖ Shreerangayee v. State of Madras

1973 Cr LJ 13 (Mad.)

Facts —A destitute mother, abandoned and unable to feed her children after days without food, killed (or attempted to kill) her children and then attempted to end her own life. She survived and was prosecuted.

Issues —(i) Whether the acts were done with the requisite mens rea or under an overwhelming compulsion of circumstance. (ii) What sentence the court should impose where destitution is the operative cause.

Decision —The conviction was recorded, but the High Court held the **extreme socio-economic compulsion to be determinative at the stage of sentence**, extended the benefit of a lenient/probationary disposal, and observed in substance that it was **society, and not the mother alone, that stood accused**.

Principle evolved —Where the state has failed in its obligations, the criminal law must not visit the full rigour of punishment on the victim of that failure. Read with Art. 21 and the right to food (*PUCL v. Union of India*, the Right to Food case), the **National Food Security Act, 2013**, and *In Re Problems and Miseries of Migrant Labourers* (2020). This is **Bonger, Merton and left realism** speaking through an Indian High Court.

⚖ Keshub Mahindra v. State of Madhya Pradesh

(1996) 6 SCC 129 (the Bhopal case)

Facts —On the night of 2–3 December 1984, methyl isocyanate leaked from the Union Carbide India Ltd plant at Bhopal, killing thousands immediately and injuring more than five lakh persons. The accused, including the chairman of UCIL, were charged under **s.304 Part II IPC** (culpable homicide not amounting to murder) and other provisions.

Issue —Whether, on the material then available, the charge could be framed under s.304 Part II (knowledge that the act was likely to cause death) or only under **s.304-A** (causing death by a rash or negligent act, maximum **two years**).

Decision —The Supreme Court held that the material did not support a charge under s.304 Part II and directed that the accused be tried under **s.304-A** read with ss.336, 337 and 338 IPC. In 2010 the trial court convicted seven accused under s.304-A and imposed the statutory maximum of **two years** and a fine of ₹1 lakh each. The curative petition seeking restoration of the s.304 Part II charge was dismissed in 2011; the Union's curative petition for enhanced compensation was dismissed in **March 2023**.

Principle evolved —Doctrinally, the case concerns the threshold of "knowledge" under s.299 IPC. Criminologically, it is the **canonical Indian illustration of Sutherland's thesis**: the gravest industrial disaster in history produced a maximum sentence of two years, while ordinary theft under s.303(2) BNS carries three. It also illustrates **differential implementation** — the deployment of civil settlement (the 1989 US$470 million settlement in *Union Carbide Corporation v. Union of India* (1991) 4 SCC 584) in place of penal sanction — and supplies the strongest Indian evidence for the radical criminologists' claim about the crimes of the powerful. Contrast the deterrent posture of *M.C. Mehta v. Union of India* (1987) 1 SCC 395 (Oleum Gas Leak), which created the rule of **absolute liability**, and note the statutory response: the **Environment (Protection) Act, 1986**, the **Public Liability Insurance Act, 1991**, and the **National Green Tribunal Act, 2010**.

⚖ Harsh Mander v. Union of India

2018 SCC OnLine Del 10427

Facts —Petitions challenged the **Bombay Prevention of Begging Act, 1959**, as extended to Delhi, under which a person found "having no visible means of subsistence and wandering about" could be arrested without warrant, summarily tried and detained in a certified institution for up to three years (ten years on a second "conviction").

Issues —Whether criminalising begging violates Articles 14, 19(1)(a), 19(1)(d) and 21.

Decision —The Delhi High Court **struck down 25 sections** of the Act insofar as they criminalise begging, holding: "**Criminalising begging is a wrong approach to deal with the underlying causes of the problem**... the State is under an obligation to provide the basic necessities"; people beg "not because they wish to, but because they must". Provisions relating to trafficking of persons for begging were left intact.

Principle evolved —A person cannot be criminalised for being poor. This is Chambliss's vagrancy analysis (§28.6) adopted by an Indian constitutional court, and the natural companion to *Olga Tellis* and *Sukanya Shantha*.

⚖ Smt. Madhuri Mukund Chitnis v. Mukund Martand Chitnis

1992 Cr LJ 111 (Bom)

Facts —A wife complained of sustained cruelty and harassment by her husband in the matrimonial home, including conduct causing grave mental injury; questions arose as to the scope of "cruelty" under s.498-A IPC and as to the proper approach of criminal courts to matrimonial complaints.

Issues —What constitutes "cruelty" under the Explanation to s.498-A, and whether mental cruelty unaccompanied by physical violence suffices.

Decision —The Bombay High Court held that **mental cruelty is fully within the Explanation**, that the section must be construed in the light of its social purpose, and that the conduct complained of, if proved, would attract s.498-A.

Principle evolved —"Cruelty" in s.498-A (now **s.86 BNS**) is not confined to physical violence. The case is cited in the literature on female victimity alongside *Kailash Kaur* and *Pawan Kumar*, and it foreshadows the broad definition of domestic violence in **s.3 of the PWDVA, 2005**, which includes verbal, emotional and economic abuse.

PREVIOUS YEAR QUESTIONS · UNIVERSITY OF DELHI · LL.B. V TERM

PYQ Bank — Unit 1 (questions only)

Q1 2017 · Q2

Discuss the Anomie and Differential Association theories of crime causation. What would be the most appropriate theory to provide [a] causal explanation for ' organised crimes ' in India?

◆ **Refer makelaweasy.in for detailed notes**, full model answers to every question below, additional case briefs, diagrams and revision material on this unit.

Q2 2017 · Q3
Greatest contribution of [the] positivist school to the development of criminal science lies in the fact that [the] attention of criminologists was drawn for the first time towards the personality of the criminal rather than the crime or punishment .” Elaborate your answer.

Q3 2017 · Q4
Female criminality has largely been a neglected area of study in criminological theory.” Comment, with reference to the major explanations offered for the criminality of women.

Q4 2022 · Q4
During the COVID-19 lockdown thousands of daily-wage earners were left without food or work; some committed theft of food articles and were booked under s.379 IPC . Examine, with the help of criminological theory, whether such persons should be punished.

Q5 2022 · Q3
Ravi, who has committed an offence under s.394 IPC (voluntarily causing hurt in committing robbery), the punishment for which is imprisonment for life or rigorous imprisonment for a term which may extend to 10 years and fine, pleads for the grant of probation on the basis that the offence is punishable with 10 years’ rigorous imprisonment as an alternative to life imprisonment. Which sections, schools of criminology and theories of punishment can the judge rely on for justifying the release of Ravi on probation?

Q6 2022 · Q1
[Domestic violence during the COVID-19 lockdown — the candidate is asked to select and apply the criminological theory that best explains the surge, and to consider the legal response.]

Q7 “BECCARIA IS THE FATHER OF MODERN CRIMINAL LAW; LOMBROSO IS THE FATHER OF MODERN CRIMINOLOGY.” DISCUSS.
Beccaria is the father of modern criminal law; Lombroso is the father of modern criminology.

Q8 “CAPITALISM IS THE CAUSE OF CRIME.” EXAMINE BONGER.
Capitalism is the cause of crime.

by Ankur R. Upadhyay

LB-5033 · CRIMINOLOGY & PENOLOGY · FACULTY OF LAW, UNIVERSITY OF DELHI · LL.B. V TERM

UNIT 3

The Indian Crime Reality

◆ SYLLABUS COVERAGE

Typology of crime (*mala in se* and *mala prohibita*) · crime statistics — meaning, sources and the dark figure · traditional crimes · social and economic offences (47th Law Commission Report) · organised crime — trafficking, narcotic trade and money laundering · privileged-class deviance.

◆ STATUTES & PROVISIONS

47th Law Commission Report (1971) · NCRB — *Crime in India* / *Figures at a Glance* · ITPA, 1956 · NDPS Act, 1985 · PMLA, 2002 · IPC/BNS classifications · SAARC Convention on Trafficking

◆ PRESCRIBED CASE MATERIAL

Vijay Madanlal Choudhary v. Union of India · Budhadev Karmaskar v. State of W.B. · Prajwala v. Union of India · Gaurav Jain v. Union of India · Vineet Narain v. Union of India · Standard Chartered Bank v. D.E.

⬢ 2. "The Indian Crime Reality" — the frame of the topic

▸ 2.1 What the phrase means

The heading chosen by the Faculty is deliberate. It does not say "crime in India"; it says **the Indian crime *reality***. The word "reality" carries three separate claims, and a good answer opens by unpacking all three.

▸▸ (a) Reality as against the legal image

The Bharatiya Nyaya Sanhita presents crime as a tidy catalogue of individual wrongs committed by identifiable persons against identifiable victims. The reality is that a very large part of the harm done in India — adulterated food and drugs, industrial disaster, tax evasion, environmental destruction, financial fraud, trafficking — has
no identifiable individual victim
and is therefore under-reported, under-investigated and under-punished. The 47th Law Commission Report (§18) is entirely about this gap.

▸▸ (b) Reality as against the statistical image

NCRB data records what the
police register
, not what happens. The
dark figure
(§10) is larger than the recorded figure, and it is unevenly dark: a stolen motorcycle is reported, marital rape is not an offence at all, a bribe is reported almost never. Statistics are therefore a measure of the
criminal justice system's output
before they are a measure of crime.

▸ 2.2 The organising thesis to carry through every answer

> *Indian criminal justice is built for the*
> *visible, individual, violent, lower-class*
> *offence and is structurally ill-equipped for the*
> *invisible, collective, non-violent, upper-class*
> *offence. The first is over-policed and over-punished; the second is under-criminalised, under-detected, under-prosecuted and under-sentenced. Everything in Topic 3 is a demonstration of this asymmetry.*
> *Use this as the thesis sentence of any general Topic 3 question.*

(Section abridged for the compilation — full text at makelaweasy.in.)

⬢ 3. Typology of crime — what a typology is and why lawyers and criminologists build them

▸ 3.1 The concept

Supplementary text — standard criminology reading "The general term 'crimes' covers a wide variety of types of crimes, with their own distinct features. Murder and arson, for example, both are crimes. They have the same essential elements, including a criminal intent (mens rea) and a harm element. But these elements take different forms in different crimes. In murder the criminal intent takes the form of intending to kill another human being wrongfully, while in arson the intent is that of wrongfully burning the property of another. Lawyers and criminologists have searched for a system of grouping the many types of crimes into coherent, rational categories, for ease of understanding, of learning, and of finding them in the law books, and for purposes of studying them from both a legal and a criminological perspective. Such categorizations are called TYPOLOGIES. "

▸ 3.3 Why lawyers and criminologists classify differently

	The LAWYER's typology	The CRIMINOLOGIST's typology
Purpose	To determine procedure, jurisdiction, burden and sentence	To explain causation and design prevention
Organising idea	The **act** and the **interest harmed**	The **offender**, the **victim**, the **modus** and the **social setting**
Indian examples	Cognizable/non-cognizable; bailable/non-bailable; compoundable/non-compoundable; summons-case/warrant-case; the First Schedule to the BNSS	Blue collar/white collar; traditional/socio-economic; organised/individual; violent/property/victimless; conventional/emerging
Consequence of the difference	The legal typology cannot ask whether the category is *just*; it takes the legislature's valuation as given	The criminological typology can, and does, ask why hoarding is a two-year offence and pickpocketing a three-year one

(Section abridged for the compilation — full text at makelaweasy.in.)

4. MALA IN SE and MALA PROHIBITA — the central distinction

Syllabus head A — expressly named

DU Case Material —

Bachan Singh

, para 62

4.1 The classic statement — reproduce this verbatim

Verbatim — Bachan Singh v. State of Punjab (1980) 2 SCC 684, para 62, as printed in the DU Case Material DU "62. This is particularly true of crimes inherently vicious and pernicious , which under the English Common Law were classified as crimes mala in se as distinguished from crimes mala prohibita . Crimes mala in se embrace acts immoral or wrong in themselves, such as, murder, rape, arson, burglary, larceny (robbery and dacoity); while crimes mala prohibita embrace things prohibited by statute as infringing on others' rights, though no moral turpitude attaches to such crimes. Such acts constitute crimes only because they are so prohibited…. "

Why the Supreme Court was saying this.

The context matters and shows you have read the case. In

Bachan Singh

the Court was deciding whether s.302 IPC and the death penalty must satisfy Article 19. It held that penal laws "in pith and substance" do not deal with the subject-matter of Article 19(1) right …

4.2 The distinction, elaborated

Point	MALA IN SE (malum in se, sing.)	MALA PROHIBITA (malum prohibitum, sing.)
Literal meaning	"Wrongs in themselves"	"Wrongs because prohibited"
Source of wrongfulness	Intrinsic — the act is immoral independently of any statute; it violates the natural or moral law	Extrinsic — the act derives its wrongfulness **entirely from the prohibition**
Moral turpitude	Present; the act shocks the conscience	Absent — "though **no moral turpitude** attaches to such crimes" (*Bachan Singh*)
Examples given by the Supreme Court	**Murder, rape, arson, burglary, larceny (robbery and dacoity)**	"Things prohibited by statute as **infringing on others' rights**"
Indian examples	ss.101–103 BNS (murder), 63–70 (rape), 326(f)/324 (mischief by fire), 305–309 (theft, robbery, dacoity), 115–117 (hurt), 137 (kidnapping)	Traffic offences (Motor Vehicles Act, 1988); helmet and seat-belt rules; s.15 NDPS possession; company filing defaults (Companies Act, 2013); Food Safety and Standards Act standards; foreign-exchange and customs contraventions; prohibition laws; s.42 of the Motor Vehicles Act; the Public Examinations (Prevention of Unfair Means) Act, 2024
Mental element	*Mens rea* is **essential** and is presumed to be required unless expressly excluded	Often **strict** or **absolute liability**; the presumption of *mens rea* is readily displaced by the object of the statute
Universality	Broadly constant across time, cultures and legal systems (the "natural crime" of Garofalo — offending *pity* and *probity*)	Highly variable — what is prohibited in Gujarat and Bihar (liquor) is lawful in Goa; cow slaughter; *satta*; gambling; cannabis
Community response	Strong, spontaneous, emotional; the Durkheimian reaffirmation of the collective conscience	Weak, calculating; widely regarded as a "technical" or "regulatory" breach; often no social stigma at all
Attempt, abetment, conspiracy	Fully punishable; the inchoate offences are developed	Attempt is often not punished; liability is frequently vicarious or corporate
Who is likely to offend	Cuts across classes but is **policed** mainly among the poor	Predominantly the trading, professional and corporate classes — which is why the enforcement is soft
Usual enforcement	Police, FIR, arrest, charge-sheet, trial	Departmental/regulatory authority; adjudication, penalty, compounding, settlement
Theoretical home	Classical school — proportionate punishment for a freely chosen wrong	Utilitarian regulation — the deterrence of socially costly conduct; "public welfare offences" (47th Report, para 3.15)

The two categories are ends of a continuum, not watertight compartments; the position of any given offence on the line is historically contingent.

4.4 Where the distinction actually bites in Indian law Application

Field	How the distinction operates	Authority
Implied *mens rea*	For offences *mala in se* the presumption that *mens rea* is an ingredient is very strong; for regulatory offences it may be excluded by the object and language of the statute	*Nathulal v. State of M.P.* AIR 1966 SC 43; *State of Maharashtra v. M.H. George* AIR 1965 SC 722 (FERA — strict liability upheld); *Sherras v. De Rutzen* [1895] 1 QB 918; *Sweet v. Parsley* [1970] AC 132
"Moral turpitude"	Disqualification of legislators, dismissal of public servants, refusal of a licence or of admission to the Bar turns on whether the offence involved moral turpitude — in substance, whether it was *malum in se*	*Pawan Kumar v. State of Haryana* (1996) 4 SCC 17 (three tests of moral turpitude); *Baleshwar Singh v. District Magistrate* AIR 1959 All 71; s.8 Representation of the People Act, 1951
Sentencing and probation	Courts routinely deny probation and the benefit of s.4 of the Probation of Offenders Act, 1958 in offences *mala in se* and grant it liberally in technical or regulatory breaches	*Chhanni v. State of U.P.* (2006) 5 SCC 396
Compounding and plea bargaining	The offences excluded from compounding (s.359 BNSS) and from plea bargaining (offences affecting the socio-economic condition of the country, and offences against a woman or a child below 14 — s.290 BNSS) track the distinction, though imperfectly	s.265A CrPC → **s.290 BNSS**; the Central Government's notification of "socio-economic offences" for this purpose
Extradition and double criminality	Extradition requires the conduct to be an offence in both States — easy for *mala in se*, contested for *mala prohibita* (e.g. foreign-exchange and gambling offences)	Extradition Act, 1962, s.2(c) and the Schedule
Retrospectivity and Art. 20(1)	The constitutional bar on *ex post facto* criminal law applies to both, but is felt most acutely in *mala prohibita*, where the citizen has no moral notice and must rely on publication of the rule	Art. 20(1); *Rao Shiv Bahadur Singh v. State of Vindhya Pradesh* AIR 1953 SC 394

(Section abridged for the compilation — full text at makelaweasy.in.)

5. Consequences of the distinction — mens rea , strict liability and public welfare offences

5.1 The general rule and its displacement

The common-law presumption is *actus non facit reum nisi mens sit rea*. In India the presumption is a rule of **construction**, not of constitutional law: the legislature may create an offence of strict liability, and in regulatory and socio-economic legislation it frequently does. The tests the courts apply are:

1. **The words of the section** — the absence of "knowingly", "wilfully", "fraudulently", "dishonestly", "voluntarily" is an indication, though not conclusive.
2. **The object of the statute** — is it to regulate an activity in the interest of public welfare, or to punish a moral wrong? (*State of Maharashtra v. M.H. George*.)
3. **Whether the imposition of strict liability will actually promote the object** — i.e. will it make persons in that trade more careful? (*Lim Chin Aik v. The Queen* [1963] AC 160; *Nathulal*.)
4. **The severity of the penalty and the social stigma** — the graver the punishment, the stronger the presumption of *mens rea* (*Sweet v. Parsley*).

5.2 Strict and absolute liability in Indian socio-economic legislation

Statute	Device used	Effect
NDPS Act, 1985	**s.35** — presumption of culpable mental state; **s.54** — presumption from possession; **s.37** — twin conditions for bail	Once conscious possession is shown, the accused must disprove the mental element "beyond reasonable doubt" — the sharpest reversal of burden in Indian criminal law. See *Noor Aga v. State of Punjab* (2008) 16 SCC 417 upholding it with safeguards, and *Tofan Singh v. State of Tamil Nadu* (2021) 4 SCC 1 (s.67 statements to NCB officers not admissible as confessions)
PMLA, 2002	**s.24** — presumption that the property is proceeds of crime; **s.45** — twin conditions for bail; **s.50** — statements to ED officers admissible	Upheld in *Vijay Madanlal Choudhary v. Union of India* (2022) SCC OnLine SC 929 (§36)
Food Safety and Standards Act, 2006 (and the repealed PFA Act, 1954)	Liability for selling adulterated or misbranded food essentially without proof of knowledge; s.66 vicarious liability of company officers	*Sarjoo Prasad v. State of U.P.* AIR 1961 SC 631 — a servant who sells adulterated food is liable even without knowledge
Essential Commodities Act, 1955	s.10 — offences by companies; s.7 — penalties for contravention of a control order	Strict liability for hoarding and black-marketing
Environment (Protection) Act, 1986; Water Act 1974; Air Act 1981	ss.16–17 offences by companies and government departments; the judicially created rule of **absolute liability**	*M.C. Mehta v. Union of India* (1987) 1 SCC 395 (Oleum Gas Leak) — no exceptions to the rule in *Rylands v. Fletcher*; *Indian Council for Enviro-Legal Action v. Union of India* (1996) 3 SCC 212 (Bichhri) — polluter pays
Negotiable Instruments Act, 1881, s.138	s.139 — presumption in favour of the holder; s.141 — officers of the company deemed guilty	The largest single category of criminal litigation in India — over 35 lakh cheque-bouncing cases pending; see *In Re: Expeditious Trial of Cases under s.138 N.I. Act* (2021) 16 SCC 116
Customs Act, 1962; FEMA, 1999; Income-tax Act, 1961	ss.138A Customs (presumption of culpable mental state); s.278E Income-tax	Statutory reversal of the burden on the mental element
Companies Act, 2013	s.447 (fraud) with mandatory minimum imprisonment; "officer in default" under s.2(60)	Corporate criminal liability; see *Iridium India Telecom v. Motorola Inc.* (2011) 1 SCC 74 — a company can be prosecuted for offences requiring *mens rea*, the mental state of the directing mind being attributed to it

Tie it back to the syllabus.

Strict liability is the legislature's technique for coping with offences

mala prohibita

whose social cost is high but whose proof of intention is impossible — and it is exactly what the 47th Report recommended for socio-economic offences (§21). It is also the principal reas …

6. The Indian statutory classifications — the lawyer's typology in operation

The criminologist classifies by cause; the lawyer classifies by **consequence**. Every offence in India is simultaneously located on five statutory axes, each of which is set out in the **First Schedule to the Bharatiya Nagarik Suraksha Sanhita, 2023** (old First Schedule to the CrPC). A question on "typology of crime and their characteristics" that omits these axes has answered only half the question.

6.1 Cognizable and non-cognizable offences

	COGNIZABLE	NON-COGNIZABLE
Definition	**s.2(1)(g) BNSS** (old s.2(c) CrPC) — an offence for which a police officer **may arrest without warrant**	**s.2(1)(o) BNSS** (old s.2(l) CrPC) — an offence for which a police officer has **no authority to arrest without warrant**
Registration of FIR	Mandatory — **s.173 BNSS** (old s.154); *Lalita Kumari v. Govt. of U.P.* (2014) 2 SCC 1	Entry in the station diary; no investigation without the **order of a Magistrate** — **s.174 BNSS** (old s.155(2))
Investigation	Police may investigate *suo motu* — **s.175 BNSS** (old s.156)	Only with the Magistrate's order; thereafter the police have the same powers except arrest without warrant
Typical offences	Murder, rape, dacoity, theft, kidnapping, rioting, dowry death	Simple hurt (s.115(2) BNS), defamation (s.356), public nuisance, criminal trespass in some forms
Criminological significance	This is where the police **choose** — and where "burking" and selective registration create the dark figure	Effectively decriminalised in practice: few victims pursue a Magistrate's order

Two new BNSS features worth a mark.

Zero FIR

is now statutory — the proviso to s.173(1) BNSS allows an FIR to be registered irrespective of the area where the offence is committed, to be transferred to the jurisdictional station. (ii)

s.173(3) BNSS

creates a

preliminary enquiry of 14 days

for offences pun …

6.3 Compoundable and non-compoundable

6.4 Summons-case and warrant-case; forum and sentencing power

Axis	Content	Provision
Summons case / warrant case	A **warrant case** relates to an offence punishable with death, life imprisonment or imprisonment exceeding **two years**; every other case is a summons case. Different trial procedures follow (Ch. XX and Ch. XIX BNSS)	**s.2(1)(x) and (z) BNSS** (old s.2(w), (x))
Forum	Court of Session; Chief Judicial Magistrate; Judicial Magistrate first class; second class — as set out in column 6 of the First Schedule	**ss.21–23 BNSS** (old ss.26–29); sentencing powers: CJM up to 7 years, JMFC up to **3 years** and fine up to ₹50,000 (raised from ₹10,000)
Summary trial	**s.283 BNSS** makes summary trial **mandatory** for petty theft, receiving stolen property, etc., where the value is under ₹20,000 — a new provision aimed at the volume of petty property crime	**ss.283–288 BNSS** (old ss.260–265)
Special courts	NDPS Special Courts (s.36 NDPS); PMLA Special Courts (s.43); CBI courts; POCSO Special Courts (s.28); SC/ST Special Courts (s.14 of the 1989 Act); NIA Special Courts; MP/MLA courts directed in *Ashwini Kumar Upadhyay v. Union of India*	Each socio-economic and organised-crime statute creates its own forum — a structural feature you should note
IPC/BNS offences v. SLL offences	NCRB's master division: **"IPC crimes"** (now BNS) and **"Special and Local Laws (SLL) crimes"**. In 2022, 35,61,379 IPC and 22,63,567 SLL cases	The SLL head is where nearly all socio-economic and regulatory offending is counted — and it is the head that is most affected by policy-driven enforcement drives

(Section abridged for the compilation — full text at makelaweasy.in.)

◆ 7. Other typologies of crime — the full catalogue

An answer on "typology of crime and their characteristics" is expected to go well beyond *mala in se* and *mala prohibita*. The following is the working catalogue; give the definition, one or two Indian illustrations, and the characteristic that distinguishes each category.

Five independent axes of classification. An offence occupies a position on every axis at once — murder is

malum in se

, against the person, individual-victim, usually unorganised, cognizable and non-bailable.

7.2 White-collar crime — "crime in suits"

7.4 Political crime, hate crime and international crime

Category	Definition	Indian law and illustrations
Political crime	Crime **by** the government and crime **against** the government; "political goals motivate political criminals"; the State perceives **itself** as the victim	Ch. VII BNS — offences against the State: **s.147** (waging war), **s.148** (conspiracy to wage war), **s.152** (acts endangering sovereignty, unity and integrity of India — the successor to sedition under s.124-A IPC, which is in abeyance following *S.G. Vombatkere v. Union of India* (2022) 7 SCC 433); UAPA, 1967 ss.13, 15, 18, 43-D(5); the National Security Act, 1980; Official Secrets Act, 1923
Hate crime	"A criminal act motivated by racial or other bias such as religion, ancestry, sexual orientation or physical disability"	India has no general hate-crime statute. The functional equivalents are: **ss.196, 197, 299, 302 BNS** (promoting enmity; imputations prejudicial to national integration; outraging religious feelings); the **SC/ST (Prevention of Atrocities) Act, 1989**, s.3(1) and (2); **s.103(2) BNS** — the new provision on **mob lynching** (murder by a group of five or more on the ground of race, caste, community, sex, place of birth, language, personal belief "or any other ground"), enacting the directions in *Tehseen S. Poonawalla v. Union of India* (2018) 9 SCC 501
International crime	"The major criminal offences so designated by **the community of nations** for the protection of interests common to all humankind"	Genocide, crimes against humanity, war crimes and aggression — the Rome Statute of the International Criminal Court, 1998 (India is **not** a party); piracy — the **Maritime Anti-Piracy Act, 2022**; torture — India has signed but not ratified CAT, and the Law Commission's **273rd Report (2017)** recommended a Prevention of Torture Bill; transnational organised crime — **UNTOC (Palermo Convention), 2000** and its Protocols, ratified by India in 2011
Environmental / green crime	Harm to the environment criminalised in the public interest; the archetypal *malum prohibitum* with catastrophic consequences	EPA 1986 ss.15–17; Water Act 1974; Air Act 1981; Wild Life (Protection) Act, 1972; Forest (Conservation) Act, 1980; NGT Act, 2010; the Jan Vishwas (Amendment of Provisions) Act, 2023, which **decriminalised** a large number of environmental and business offences and converted them into monetary penalties — an important and examinable recent development
Cyber crime	"Criminal activity where a computer or network is the **source, tool, target, or place** of a crime"	IT Act, 2000; BNS ss.111(1) Expl., 303, 318, 319, 336–340; see §28–§30

(Section abridged for the compilation — full text at makelaweasy.in.)

◆ 8. Crime statistics — meaning, nature and importance

Syllabus head A

Prescribed reading: NCRB Figures at a Glance 2022

8.1 Definition and function

Supplementary text — the standard Indian formulation " Crime statistics are the indices of intensity of crimes recorded annually in a particular country, region or place. [They reflect] upon the ascending or descending trends in crime and also [give] information as to how new forms of crime are emerging and the old ones are disappearing or assuming new dimensions . Thus crime statistics are indicative of the general moral tune of a given society and throw light on the general efficacy of police, prosecuting agencies and law courts . Therefore, the role of crime statistics in analysing [the] causation of crime and devising measures to combat criminality need not be over-emphasized. The statistics of crime help the law enforcement agencies to spot out the preponderance of crime at a particular time, place and region ."

8.3 The classic endorsements — quote at least two

8.4 The uses of crime statistics — six, with Indian illustrations

(Section abridged for the compilation — full text at makelaweasy.in.)

◆ 9. Sources of crime statistics — police, judicial and penal

9.2 The Indian statistical machinery Institutional

Body	What it produces	Legal/administrative basis

National Crime Records Bureau (NCRB), Ministry of Home Affairs, set up **11 March 1986**	*Crime in India* (since 1953); *Accidental Deaths and Suicides in India* (ADSI); *Prison Statistics India*; *Crime in India — Figures at a Glance*; *Fingerprint in India*	Executive body; merged the Directorate of Coordination Police Computers, the Inter-State Criminality Data Branch of the CBI, and the Central Finger Print Bureau. Runs **CCTNS**, **ICJS**, the **National Digital Crime Resource and Training Centre**, the **National Automated Fingerprint Identification System (NAFIS)**, the **Crime Multi Agency Centre (Cri-MAC)** and the **National Cybercrime Reporting Portal** data feed
State Crime Records Bureaux (SCRB) and District Crime Records Bureaux	Collect and forward State data to NCRB	State police organisation; the first link in the chain and the point at which most error enters
Bureau of Police Research and Development (BPR&D), 1970	*Data on Police Organisations* (sanctioned v. actual strength, police–population ratio)	MHA
National Judicial Data Grid (NJDG) / e-Courts	Real-time pendency, institution and disposal data for every court	e-Committee, Supreme Court of India — the modern "judicial statistics"
Financial Intelligence Unit–India (FIU-IND), 2004	Suspicious Transaction Reports, Cash Transaction Reports; annual report	PMLA, 2002, s.12 obligations of reporting entities
Narcotics Control Bureau (NCB), 1986	Annual Report; seizure data	NDPS Act, 1985, s.4(3)
Indian Cyber Crime Coordination Centre (I4C), 2020, and the **National Cybercrime Reporting Portal** (cybercrime.gov.in) with helpline **1930**	Cyber-fraud complaint and "Citizen Financial Cyber Fraud Reporting and Management System" data	MHA scheme
National Human Rights Commission	Custodial death and rape statistics — mandatory intimation within 24 hours	Protection of Human Rights Act, 1993; NHRC guidelines of 14 December 1993
Registrar General of India / Census; NFHS; NSSO	Population base for computing **rates**; health and violence data	Census Act, 1948; the 2021 Census not having been held, all "rates" since 2021 rest on **projected** population — a legitimate criticism to make

(Section abridged for the compilation — full text at makelaweasy.in.)

◆ 10. The DARK FIGURE of crime — why crime statistics are unreliable

This is the single most examinable sub-head in the statistics portion. The classic Indian formulation gives **eight** reasons; learn them as a numbered list.

▸ 10.1 Indian-specific causes of the dark figure — add these

(Section abridged for the compilation — full text at makelaweasy.in.)

◆ 11. The National Crime Records Bureau — institution, publications and methodology

Prescribed reading

DU

http://ncrb.gov.in

▸ 11.1 What the NCRB is

The **National Crime Records Bureau** was set up on **11 March 1986** under the Ministry of Home Affairs on the recommendation of the **National Police Commission (1977–81)** and the **Task Force of the MHA (1985)**. It was formed by merging the **Directorate of Coordination Police Computers**, the **Inter-State Criminality Data Branch of the CBI**, the **Central Finger Print Bureau** and the statistical branch of the BPR&D. It is an **executive** body with no statutory charter of its own — a fact worth stating, because it means the NCRB has **no power to compel** a State to send accurate data, and no power to audit what it receives.

▸▸ Publications

Crime in India
— the flagship, published annually since
1953
, with the short companion volume
Crime in India — Figures at a Glance
which is the prescribed reading;
Accidental Deaths and Suicides in India (ADSI)
, since 1967;
Prison Statistics India
, since 1995;
Fingerprint in India
; and the
Missing Persons and Unidentified Dead Bodies
data.

▸ 11.2 The methodology you must know — and criticise

(Section abridged for the compilation — full text at makelaweasy.in.)

◆ 12. NCRB "Crime in India / Figures at a Glance 2022" — the data to quote

Use these figures precisely and always with a caveat.
Quote the number, name the source and the year, and then say in one clause what the number does
prove. That combination — data plus epistemic caution — is what distinguishes a first-class statistics answer.

▸ 12.1 The headline national figures, 2022

Indicator	2022	Comparison / comment
Total cognizable crimes registered	**58,24,946**	A **decline of 4.5%** over 2021. Composed of **35,61,379 IPC** crimes (down 2.8%) and **22,63,567 SLL** crimes (down 7.0%)
Crime rate (per lakh population)	**422.2**	Down from **445.9** in 2021 — the better comparative measure, because absolute numbers rise with population

Murder (s.302 IPC / s.103 BNS)	**28,522** FIRs	≈ **78 murders a day**, more than three every hour; down 2.6% from 29,272 (2021) and 29,193 (2020). **Murder rate 2.1**; charge-sheeting rate **81.5**. Motive: "**dispute**" in 9,962 cases, "personal vendetta or enmity" in 3,761, "gain/profit" in 1,884. **95.4%** of victims were adults; 8,125 victims were female and 9 were third-gender; men were about 70% of victims
Crime against women	**4,45,256**	**+4%** over 2021 (4,28,278) and 2020 (3,71,503) — about **51 FIRs every hour**, i.e. one every 70 seconds. **Rate 66.4** per lakh female population (64.5 in 2021); charge-sheeting rate **75.8**
Composition of crime against women (IPC heads)	—	**Cruelty by husband or his relatives 31.4%**; **kidnapping and abduction of women 19.2%**; **assault on a woman with intent to outrage her modesty 18.7%**; **rape 7.1%** (about 31,500 cases). Dowry deaths ≈ 6,450
State pattern — crime against women	—	Absolute: **Uttar Pradesh 65,743** (≈15% of the national total), Maharashtra 45,331, Rajasthan 45,058, West Bengal 34,738, Madhya Pradesh 32,765. **Rate: Delhi 144.4** — the highest in India and more than double the national average — followed by Haryana 118.7 and Telangana. **Twelve States/UTs** exceeded the national rate
Cyber crime	**65,893**	**+24.4%** over 2021 (52,974) — the fastest-growing head. **Rate 4.8.** Motive: **fraud 64.8%** (42,710 cases), **extortion 5.5%**, **sexual exploitation 5.2%**
Economic offences	**1,93,385**	**+11.1%** over 2021. NCRB defines the head as **criminal breach of trust; forgery, cheating and fraud (FCF); and counterfeiting** — note how narrow that is (§13.3)
Crime against children	≈ **1,62,449**	**+8.7%** over 2021. **Kidnapping and abduction 45.7%**; **POCSO Act 39.7%**. Rate up from 33.6 to 36.6
Kidnapping and abduction (all victims)	**1,07,588**	**+5.8%** over 2021 (1,01,707)
Crime against Scheduled Castes	**57,582**	**+13.1%** over 2021 (50,900); rate up from 25.3 to **28.6**
Crime against Scheduled Tribes	—	**+14.3%** over 2021; rate up from 8.4 to **9.6**. MP, Rajasthan, Chhattisgarh, Telangana, Bihar, U.P., Odisha and Punjab dominate
Crime against senior citizens	—	**+9%** over 2021
Offences against the State	—	Highest: **Uttar Pradesh 2,231**, Tamil Nadu 634, Jammu & Kashmir 417, Assam 298, Kerala 297; Delhi 22
19 metropolitan cities	**8,53,470** cognizable crimes	6,20,356 IPC (72.7%) + 2,33,114 SLL (27.3%); a **decline of 10.4%** over 2021. Crime against women in the metros: **48,755** (+12.3%), of which cruelty by husband/relatives 42,753 cases = **49.2%**. Murder in the metros: **2,031** (+3.9%)
Safest and least safe metro	—	**Kolkata** was the safest metropolis for the **third consecutive year** at **86.5** cognizable offences per lakh, followed by Pune (280.7) and Hyderabad (299.2). Delhi recorded the worst rate of crime against women and the largest number of juveniles in conflict with law (2,436 cases)
Kerala anomaly — a teaching point	**2,35,858** IPC cases	Crime rate **661** per lakh, the **highest in India**, and the highest charge-sheeting rate. Kerala also has the highest literacy and human-development indices. **The inference is not that Kerala is the most criminal State; it is that Kerala records the most.** Use this example whenever you are asked whether crime statistics reflect reality

The 2022 dashboard. The right-hand panel is as important as the left: never present a figure without the caveat.

▸ 12.2 Prison statistics — the companion data set

The DU solved paper of 2022 (Q5) is built on this data, so keep it ready. As against a sanctioned capacity of about **4,03,739**, Indian prisons held about **4,78,600** inmates, an occupancy of roughly **118–130%**; roughly **75%** of all prisoners are **undertrials**; women are about **4%** of the prison population; and there are about **1,330–1,400** prisons. Read this with *Rama Murthy v. State of Karnataka* (1997) 2 SCC 642 (the nine problems), *In Re Inhuman Conditions in 1382 Prisons* (2016) 3 SCC 700, *In Re Contagion of COVID-19 Virus in Prisons* (2020), the **s.479 BNSS** undertrial-release provision and the **Model Prisons and Correctional Services Act, 2023**.

◆The single most important inference

Put the two data sets side by side.

Economic offences: 1,93,385 registered cases in 2022.

Prison population: about 4.8 lakh, three-quarters of them undertrials, overwhelmingly poor, illiterate or semi-literate, and disproportionately Dalit, Adivasi and Muslim

(Section abridged for the compilation — full text at makelaweasy.in.)

⬢ 13. How to read and criticise Indian crime statistics

▸ 13.1 Six rules for handling a figure in the examination

1. **Always prefer the rate to the number**, and say why.
2. **Never infer causation from a change in registration.** An increase may mean more crime, better reporting, a new offence, a policy drive, or a change in counting.
3. **Name the counting rule.** Mentioning the **principal offence rule** in one clause signals that you have read the source and not a newspaper summary.
4. **Distinguish the three rates** — crime rate, charge-sheeting rate, conviction rate — and say what each measures.
5. **Anchor the figure to a legal provision.** "Cruelty by husband constitutes 31.4% of crimes against women" becomes far stronger as "...31.4% — that is, s.498-A IPC, now **s.85 BNS**, is the single largest head of recorded crime against women in India, which is why the misuse debate in *Arnesh Kumar* and *Rajesh Sharma* has such practical importance."
6. **End with the dark figure.** Every statistics paragraph should close with a sentence on what is missing.

▸ 13.2 The standard criticisms of the NCRB — a consolidated list

▸▸ Methodological

Principal offence rule; case-based counting; no victim counts for most heads; no incident-level micro-data published; projected population denominator; delayed publication (the 2022 volume appeared in December 2023).

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⬢ 14. Traditional crimes — the concept and the divide

Syllabus head B

▸ 14.1 What "traditional crime" means

The syllabus contrasts **"Traditional Crimes"** (head B) with **"Social and Economic Offences"** (head C). "Traditional" — also called **conventional**, **ordinary**, **street** or **blue-collar** crime — means the offences that have been recognised as crimes in every society and in every legal system for centuries: the offences against the person, against property and against public order that make up the bulk of the Penal Code. They are, almost exactly, the offences the Supreme Court in *Bachan Singh* called ***mala in se***.

Characteristic	TRADITIONAL CRIME	SOCIAL & ECONOMIC OFFENCE (47th Report)
Motive	Lust, hate, anger, jealousy, revenge, want; often emotional	"**Avarice or rapaciousness** (not lust or hate)"
Emotional background	Present; there is usually a relationship or an encounter between victim and offender	"**Non-emotional**... There is **no emotional reaction as between the victim and the offender**"
Victim	An identifiable individual who knows he has been wronged and complains	"**Usually the State or a section of the public**"; often the victim does not know
Mode	**Force** or stealth	"**Fraud, not force**"
Visibility	High; often public and immediate	Low; concealed in books of account, servers and shell companies
Detection	Police; FIR on the victim's complaint	Regulator, audit, whistle-blower, data analytics; frequently no complaint at all
Stigma	Severe and immediate	Slight; "respectable" offender; often described as a "lapse" or an "irregularity"
Typical offender	Young, male, poor, low education (NCRB and Prison Statistics India bear this out)	Educated, propertied, professionally qualified, older, well-advised
Punishment in practice	Imprisonment; long undertrial detention	Penalty, compounding, settlement, adjudication; imprisonment rare
Recorded volume	35.6 lakh IPC crimes (2022)	1.93 lakh "economic offences" (2022) — but the category itself excludes most of the field (§13.2)

The essential caution.

The divide is analytic, not watertight. Much "traditional" crime is now committed by organised groups and through technology (vehicle-theft rings, ATM skimming, sextortion), and much socio-economic crime produces traditional harm (death from adulterated liquor or spurious drugs ...

▸ 14.2 Why traditional crimes still dominate the Indian crime picture

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● 15. Traditional crimes I — offences affecting the human body

Chapter VI of the BNS, 2023 (ss.100–146); formerly Chapter XVI IPC. Give the definition, the essential ingredients, the punishment and one Indian case or example for each. The BNS numbering is given first with the IPC number in brackets.

Offence	BNS (IPC)	Essential ingredients	Punishment · leading authority
Culpable homicide	s.100 (299)	Causing death by an act done (i) with the **intention of causing death**; (ii) with the intention of causing such bodily injury as is **likely** to cause death; or (iii) with the **knowledge** that the act is likely to cause death	s.105: up to life, or 5–10 years, + fine. *Reg. v. Govinda* (1876) ILR 1 Bom 342 (Melvill J.'s classic distinction)
Murder	s.101 (300)	Culpable homicide is murder if it falls in any of the **four clauses** (intention to cause death; intention to cause an injury the offender knows is likely to cause death of that particular person; intention to cause an injury sufficient in the ordinary course of nature to cause death; act so imminently dangerous that it must in all probability cause death) and is not saved by the **five Exceptions** (grave and sudden provocation; exceeding the right of private defence; public servant exceeding power; sudden fight without premeditation; consent of a person above 18)	s.103(1): **death or life** + fine. *Virsa Singh v. State of Punjab* AIR 1958 SC 465 (the four steps under cl. thirdly); *State of A.P. v. Rayavarapu Punnayya* (1976) 4 SCC 382
Murder by a group — MOB LYNCHING (new)	**s.103(2)**	Murder by a group of **five or more persons acting in concert** on the ground of **race, caste or community, sex, place of birth, language, personal belief or any other similar ground**	Death, or life imprisonment, + fine — each member. Enacts *Tehseen S. Poonawalla v. Union of India* (2018) 9 SCC 501 (preventive, remedial and punitive directions); see also *Shakti Vahini* (2018) 7 SCC 192 on honour killings
Death by negligence	s.106 (304-A)	Causing death by a **rash or negligent act** not amounting to culpable homicide	Up to **5 years** (raised from 2); s.106(2): **10 years** for a driver who flees without reporting — a direct legislative response to hit-and-run. Registered medical practitioners: 2 years (proviso). *Jacob Mathew v. State of Punjab* (2005) 6 SCC 1 (medical negligence: *Bolam* plus the requirement of a prior independent medical opinion); *Keshub Mahindra* (§42) on the s.304-A ceiling
Abetment of suicide; dowry death	ss.108 (306); 80 (304-B)	See Topic 2, §35	10 years; and 7 years to life with a **mandatory presumption** under s.118 BSA (s.113-B Evidence Act)
Attempt to murder / culpable homicide	ss.109 (307); 110 (308)	Act done with such intention or knowledge and under such circumstances that, if death were caused, it would be murder / culpable homicide	10 years; life if hurt caused; **death or life** if by a life convict causing hurt
Hurt and grievous hurt	ss.114–117 (319–326)	**Hurt** = bodily pain, disease or infirmity. **Grievous hurt** = the eight enumerated categories (emasculation; permanent privation of sight or hearing; privation of a member or joint; destruction or permanent impairment of a member or joint; permanent disfiguration of head or face; fracture or dislocation of bone or tooth; and any hurt endangering life or causing 20 days' severe bodily pain or inability to follow ordinary pursuits)	s.115(2): 1 year; s.117(2): 7 years; s.117(3) and (4): **grievous hurt by a group of five or more** on discriminatory grounds — 7 years (new)
Acid attack	ss.124(1) and (2) (326-A, 326-B)	Voluntarily causing grievous hurt by use of acid; and attempt	10 years to life + fine payable to the victim for medical expenses; 5–7 years for attempt. *Laxmi v. Union of India* (2014) 4 SCC 427 — regulation of over-the-counter sale of acid, compensation of not less than ₹3 lakh; see also s.357-A CrPC → **s.396 BNSS** victim compensation scheme
Wrongful restraint and confinement	ss.126–127 (339–348)	Voluntarily obstructing a person so as to prevent him from proceeding in a direction in which he has a right to proceed; confinement within circumscribing limits	1 month to 3 years; aggravated forms up to 7 years
Kidnapping and abduction	ss.137–140 (359–369)	**Kidnapping from India** (conveying beyond India without consent) and **kidnapping from lawful guardianship** (taking or enticing a **boy under 16, a girl under 18**, or a person of unsound mind out of the keeping of the lawful guardian, without consent). **Abduction** (s.138) = compelling by force or inducing by deceitful means a person to go from any place — not an offence by itself, only when done with one of the specified intents	7 years (s.139); ransom kidnapping: **death or life** (s.140(2)); kidnapping for begging (s.139): 10 years to life. Largest single head of "crime against children" in NCRB 2022 (45.7%)

Trafficking in persons	**ss.143–144** (370, 370-A)	See §31 — placed by the BNS in the chapter on offences affecting the human body	7–10 years; aggravated forms up to life
Rape and sexual offences	ss.63–79 (375–376E, 354 series, 509)	**s.63** definition with seven descriptions and two exceptions; **s.64** punishment (10 years to life) and aggravated forms; **s.65** rape of a woman under 16 and under 12; **s.66** causing death or a persistent vegetative state (20 years to life or death); **s.70** gang rape (20 years to life; death where the victim is under 18); **s.69** (new) sexual intercourse by deceitful means or false promise of marriage; **s.75** sexual harassment; **s.77** voyeurism; **s.78** stalking, including "monitoring… the use by a woman of the internet, email or any other form of electronic communication"; **s.79** word, gesture or act intended to insult the modesty of a woman	Read with POCSO 2012, the **Criminal Law (Amendment) Acts 2013 and 2018**, **ss.183, 184, 193(3) BNSS** (recording of the victim's statement, medical examination, completion of investigation in 2 months), **s.120 BSA** (no evidence of character or of previous sexual experience), and the presumption of absence of consent. *Tukaram v. State of Maharashtra* (Mathura, 1979) → 84th Law Commission Report → the 1983 Amendment; *State of Punjab v. Gurmit Singh* (1996) 2 SCC 384; *Mukesh v. State (NCT of Delhi)* (2017) 6 SCC 1 (Nirbhaya)

◆Statistics anchored to the section

NCRB 2022:

28,522

murders (s.103 BNS), motive "dispute" in 9,962 — i.e. the largest single cause of murder in India is not gain or gang rivalry but

interpersonal quarrel over land, money or family

. This is an empirical refutation of the popular image of the professional killer and a direct vindication of the criminological point that most traditional violence is

expressive

, not

instrumental

— which is why deterrence works so poorly on it (Beccaria and Becker, Topic 2, §31.5).

◆ 16. Traditional crimes II — offences against property

Chapter XVII of the BNS (ss.303–334); formerly Chapter XVII IPC. The property offences form the statistical bulk of the IPC head. The scheme is best learnt as a ladder of aggravation.

Offence	BNS (IPC)	Distinguishing element	Punishment
Theft	s.303 (378–379)	Dishonestly taking **movable property** out of the possession of another **without his consent**, with a moving of it. No force, no entrustment	Up to 3 years or fine or both; **s.303(2) proviso (new)**: for a first-time offender where the value is under ₹5,000 and the property is returned — **community service**
Snatching (new)	**s.304**	Theft is "snatching" if, in order to commit theft, the offender **suddenly or quickly or forcibly seizes or secures or grabs or takes away** from any person any movable property	3 years + fine. A direct legislative response to the commonest urban street crime
Extortion	s.308 (383–389)	Intentionally putting a person **in fear of injury** and thereby dishonestly inducing him to deliver property or a valuable security. **Consent is obtained, but by fear**	7 years; aggravated forms up to 10 years/life
Robbery	s.309 (390–394)	Theft or extortion becomes robbery if, **in order to commit it**, the offender voluntarily causes or attempts to cause **death, hurt or wrongful restraint, or fear** of instant death/hurt/restraint	10 years RI + fine; on a highway between sunset and sunrise, 14 years; **s.309(6)** (old s.394) voluntarily causing hurt in robbery: **life or 10 years** — the provision in the DU 2022 Q3 problem
Dacoity	s.310 (391–402)	Robbery by **five or more persons** conjointly committing or attempting it, counting those present and aiding	Life or 10 years RI; **dacoity with murder: death, life or 10 years** (s.310(3)); mere **assembling** for dacoity (s.310(5)) and **belonging to a gang** of dacoits (s.311) are separate offences
Criminal misappropriation	s.314 (403)	Dishonest misappropriation or conversion of property that came into the offender's possession **innocently**	6 months to 2 years + fine
Criminal breach of trust	ss.316 (405–409)	**Entrustment** of property, or dominion over property, followed by dishonest misappropriation or conversion or disposal in violation of law or contract	5 years; by a carrier/warehouse-keeper 7 years; **by a public servant, banker, merchant, factor, broker, attorney or agent: life or 10 years** (s.316(5)) — the bridge between traditional and white-collar crime
Cheating	ss.318–319 (415–420)	**Deception** + fraudulent or dishonest inducement to deliver property or to do/omit something he would not otherwise do, causing or likely to cause damage or harm	3 years; cheating with delivery of property (old s.420): **7 years** + fine; **cheating by personation, including by electronic means** (s.319): 5 years. The workhorse provision for **online fraud**
Fraudulent deeds and dispositions	ss.320–323 (421–424)	Concealment or transfer of property to defeat creditors	2 years — read with the Insolvency and Bankruptcy Code, 2016 ss.66 (fraudulent trading) and 69
Mischief	ss.324–328 (425–440)	Causing **wrongful loss or damage** to property with intent or knowledge. Aggravated by fire or explosive (s.324(5)), by damaging public property, irrigation works, or means of communication	6 months to 5 years; **Prevention of Damage to Public Property Act, 1984** (ss.3–4); *In Re: Destruction of Public and Private Properties v. State of A.P.* (2009) 5 SCC 212 (the Thomas and Nariman Committee guidelines on rioters' liability)
Criminal trespass and house-breaking	ss.329–334 (441–462)	Entering into or remaining on property with intent to commit an offence or to intimidate, insult or annoy; **lurking house-trespass** and **house-breaking** by the six described modes; aggravated by night	3 months to 14 years depending on the form and the offence intended
Receiving stolen property	ss.317 (410–414)	Dishonestly receiving or retaining stolen property knowing or having reason to believe it to be stolen; habitual dealing	3 years; habitually dealing: **life or 10 years** — the provision that targets the **fence**, without whom property crime cannot function
Forgery and counterfeiting	ss.336–347 (463–477A); ss.178–181 (currency)	Making a **false document or false electronic record** with intent to cause damage or injury, to support a claim, or to commit fraud	2–7 years; forgery of a valuable security, will or authority: **life or 10 years**; **s.336(4)** forgery for the purpose of harming reputation — 3 years; counterfeiting currency (s.178): **life or 10 years**

Where property crime becomes economic crime.

Trace the ladder:

theft → cheating → criminal breach of trust by a banker or agent (s.316(5)) → forgery of valuable securities (s.338) → counterfeiting → offences under the Companies Act s.447, SEBI Act, PMLA.

The BNS itself contains the transition: the same …

17. Traditional crimes III — women, children, public tranquillity, the State and religion

17.1 Offences against women and children — Chapter V BNS (ss.63–99)

The BNS makes a symbolic and structural change: for the first time, offences against **women and children** are grouped in a dedicated chapter placed **before** the general chapter on offences against the human body. Contents: sexual offences (ss.63–73), criminal force and assault on a woman (ss.74–79), **dowry death (s.80)**, cohabitation by deceit (s.81), bigamy (ss.82–83), enticing a married woman (s.84), **cruelty by husband or his relatives (ss.85–86)**, kidnapping or inducing a woman to compel marriage (s.87), **causing miscarriage (ss.88–92)**, exposure and abandonment of a child (s.93), concealment of birth (s.94), **hiring or employing a child to commit an offence (s.95)**, **procuration of a child (s.96)**, kidnapping a child for begging (s.97), selling or buying a child for prostitution (ss.98–99).

17.2 Offences against public tranquillity — Chapter XI BNS (ss.189–197)

Offence	BNS (IPC)	Core
Unlawful assembly	s.189 (141–145)	Five or more persons with a **common object** falling within the five clauses (overawing government by criminal force; resisting execution of law; committing mischief/criminal trespass/other offence; taking property by force; compelling a person to do what he is not legally bound to do). s.190: every member liable for the offence committed in prosecution of the common object
Rioting	s.191 (146–148)	Force or violence used by an unlawful assembly; armed rioting: 5 years
Affray	s.194 (159–160)	Two or more persons fighting in a public place and disturbing the public peace
Promoting enmity	s.196 (153-A)	Words or acts promoting disharmony or feelings of enmity between groups on grounds of religion, race, place of birth, residence, language, caste or community — now expressly including communication "through electronic means"
Imputations prejudicial to national integration	s.197 (153-B)	Includes **s.197(1)(d) (new)** — making or publishing **false or misleading information** jeopardising the sovereignty, unity, integrity or security of India

17.4 Other traditional heads

(Section abridged for the compilation — full text at makelaweasy.in.)

18. Social and Economic Offences — the 47th Law Commission Report: the SIX characteristics

PRESCRIBED READING

DU

Law Commission of India, 47th Report (1972)

DU Case Material, pp. 94–96

This is the **single most important text in Topic 3**. The Law Commission of India, under the chairmanship of **Mr. Justice P.B. Gajendragadkar**, submitted its **Forty-Seventh Report on "The Trial and Punishment of Social and Economic Offences"** in **1972**. The DU material reproduces the key paragraphs. **Reproduce para 1.4 verbatim in any question on this head.**

18.1 Unpacking the six characteristics — the commentary the examiner wants

Characteristic	What it means	Legal and practical consequences	Indian illustration
1. Motive: avarice or rapaciousness, not lust or hate	The offence is committed for **gain**. It is instrumental, not expressive. This aligns the socio-economic offender with Beccaria's and Becker's **rational calculator**, and with Merton's **innovator**	Because the motive is gain, the **rational deterrent** works better here than for crimes of passion — which is why the correct penal response is **confiscation, disgorgement and fine geared to the profit**, not merely imprisonment	Hoarding of essential commodities before a festival; over-invoicing of imports; tax evasion
2. Non-emotional background; no emotional reaction between victim and offender	There is no encounter, no relationship, no confrontation. Often the offender never meets the victim and does not think of himself as harming anyone	This is the precondition of **neutralisation** (Sykes and Matza — "denial of the victim", "denial of injury") and it is why these offenders suffer no loss of self-image or of social standing	An adulterating trader does not see the child who is poisoned; a tax evader believes he is "saving", not stealing
3. Victim: the State or a section of the public, especially the consuming public	The victim is **diffuse**. The loss is spread thinly across millions, so no single person has an incentive to prosecute	The classic **collective-action problem**. It is why enforcement must be **State-initiated and regulatory**, and why class actions (s.37 Consumer Protection Act, 2019; s.245 Companies Act, 2013) and **public interest litigation** have become the structural answer	A ₹1 per litre adulteration of milk across a State; a cartel raising cement prices; the 2G spectrum allocation
4. Mode: fraud, not force	The instrument is **deceit, concealment, falsification and abuse of position** — not violence	Investigation requires **forensic accounting, audit, document analysis and digital forensics**, not the traditional police skills of the thana. Hence the proliferation of specialist agencies: SFIO, ED, DRI, CBI, SEBI, CCI	Satyam's falsified accounts (2009); the PNB letters of undertaking (2018); circular trading
5. Deliberate and wilful	These are not offences of impulse or negligence; they are **planned**, often over years, with professional advice	Morally this makes them **more**, not less, culpable — which is the Commission's foundation for recommending harsher treatment. Legally it is why the Commission recommended shifting the burden on *mens rea*: the mental element plainly exists but is **impossible to prove** from outside	Shell-company structures created years before the fraud; layered hawala transfers
6. Twofold interest protected: preservation and augmentation	The law protects both the **existing** wealth, health and resources of the nation **from exploitation and waste**, and the **growth** of national wealth through tax, foreign exchange, commerce and industry laws	This is the constitutional link: Arts. **38, 39(b) and (c), 41, 43, 47 and 48-A** — the Directive Principles. Socio-economic offences are offences against the **Directive Principles**, which is why the 47th Report speaks of the "Welfare State"	Illegal mining destroying a national resource (*Goa Foundation v. Union of India* (2014) 6 SCC 590); black money outside the country (Black Money Act, 2015)

(Section abridged for the compilation — full text at makelaweasy.in.)

19. 47th Report, paras 1.5–1.9 — the victimless character, the categories, the intersecting circles

19.1 Para 1.5 — why special enforcement effort is needed (verbatim)

VERBATIM — 47th Report, para 1.5 · DU Case Material p. 94 DU "1.5. The most important feature of these offences is the fact that ordinarily they DO NOT INVOLVE AN INDIVIDUAL DIRECT VICTIM but are punished because they harm the WHOLE SOCIETY. This constitutes the primary reason why special efforts have to be made to enforce them. If a man or woman is robbed, assaulted or cheated, there is some person who is interested in getting the offender prosecuted , and because the act is a physical one having an immediate and direct impact, both individual and social vengeance are likely to be aroused . This element is, however, absent when, for example, essential commodities are hoarded, or foreign exchange is illegally taken out of the country, or prohibited goods are imported . No

doubt, some social offences do involve a 'victim'. For example, when adulterated food is sold, the immediate consumer is harmed. But the criminal act is potentially capable of harming a large number of persons and that is the principal object behind punishing it. "

▸ 19.2 Para 1.6 — the eight categories of socio-economic offence (verbatim)

#	Category (47th Report)	Indian statutes today	Enforcement agency
1	Obstructing economic development / endangering economic health	FEMA 1999; COFEPOSA 1974; SAFEMA 1976; Competition Act 2002; IBC 2016; Black Money (Undisclosed Foreign Income and Assets) Act 2015; Fugitive Economic Offenders Act 2018	Enforcement Directorate; CCI; SFIO
2	**Evasion of taxes**	Income-tax Act 1961 ss.276C, 277, 278, 278E; CGST Act 2017 ss.132, 135; Customs Act 1962 ss.132, 135; Central Excise Act 1944 s.9	CBDT; CBIC; DRI
3	**Misuse of position by public servants**	Prevention of Corruption Act 1988 (as amended 2018) ss.7, 7A, 8, 9, 10, 11, 12, 13, 14; BNS ss.198–205; Benami Transactions (Prohibition) Act 1988/2016; Lokpal and Lokayuktas Act 2013	CBI; State ACBs/ Vigilance; CVC; Lokpal
4	Breach of contract with public authorities — supply of substandard goods	BNS ss.316, 318; PCA s.13(1)(d) (as it stood); the General Financial Rules; blacklisting jurisprudence — *Erusian Equipment v. State of W.B.* (1975) 1 SCC 70	CBI; CAG audit; procurement authorities
5	**Hoarding and black-marketing**	Essential Commodities Act 1955 ss.3, 7, 10; Prevention of Black-marketing and Maintenance of Supplies of Essential Commodities Act 1980 (preventive detention); Legal Metrology Act 2009	State civil supplies; police
6	**Adulteration of food and drugs**	Food Safety and Standards Act 2006 ss.48–67 (s.59 — unsafe food causing death: life imprisonment and fine up to ₹10 lakh); Drugs and Cosmetics Act 1940 ss.17, 18, 27 (spurious drugs causing death: 10 years to life); BNS ss.274–276 (adulteration of food/drink and drugs)	FSSAI; Drug Controller
7	**Theft and misappropriation of public property and funds**	BNS ss.314, 316(5); Prevention of Damage to Public Property Act 1984; PCA s.13	CBI; police
8	**Trafficking in licences and permits**	PCA; Foreign Trade (Development and Regulation) Act 1992; the licence-permit regime generally; *Common Cause v. Union of India* (1996) — petrol pump allotments	CBI; DGFT

▸ 19.4 The definitional structure to memorise

(Section abridged for the compilation — full text at makelaweasy.in.)

● 20. 47th Report, paras 3.13–3.16 — stringent action and "public welfare offences"

VERBATIM — 47th Report, para 3.13 · DU Case Material p. 95 DU " Need for Stringent Action 3.13. These offences, affecting as they do the health and wealth of the entire community, require to be PUT DOWN WITH A HEAVY HAND at a time when the country has embarked upon a gigantic process of social and economic planning. With its vastness in size, its magnitude of problems and its long history of poverty and subjugation, our Welfare State needs weapons of attack on poverty, ill nourishment, and exploitation that are SHARP AND EFFECTIVE in contrast with the weapons intended to repress other evils. The legislative armoury for fighting socio-economic crimes, therefore, should be furnished with weapons which may not be needed for fighting ordinary crimes. The damage caused by socio-economic offences to a developing society could be treated on a level different from ordinary crimes. In a sense, anti-social activities in the nature of deliberate and persistent violations of economic laws could be described as EXTRA-HAZARDOUS ACTIVITIES , and it is in this light that we approach the problem [of offences which] really deserve the name of ' public welfare ' offences."

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● 21. 47th Report — the recommendations on trial and punishment

The DU extract stops at para 3.16, but a complete answer needs the Report's **recommendations**, since the Report's very title is "**The Trial and Punishment** of Social and Economic Offences". The Commission examined some **thirty central Acts** and made both general and Act-specific recommendations.

▸ 21.2 The other general recommendations

Recommendation	Content	What Indian law did
Increase in maximum punishment	The Commission recommended raising the maximum imprisonment in the Acts it examined (Central Excise s.9; Customs s.135; Gold (Control) Act s.85; Income-tax ss.276B, 276C, 277, 278, etc.)	Largely accepted — see the **Taxation Laws (Amendment) Act, 1975**, which implemented several of the Report's recommendations
MINIMUM imprisonment and MINIMUM fine	Mandatory minima, with a power in the court to award less "**for special and adequate reasons to be recorded in writing**". Example given: Customs s.135(1) — minimum **six months**, maximum **five years** and fine, where the value of the goods exceeds ₹1 lakh	Now the standard drafting technique: s.276C Income-tax; s.135 Customs; ss.15–25 NDPS; s.4 PMLA; s.3 Dowry Prohibition Act; s.376 IPC/s.64 BNS
Fine geared to the gain	"To those who make a lot of money through infringement of laws, **monetary penalties do not really serve as deterrents**" unless calibrated to the profit	SEBI Act s.15G (insider trading — penalty of ₹10 lakh or **three times the profit**, whichever is higher); Competition Act s.27(b) (up to **three times the profit** or 10% of turnover); Companies Act s.447; PMLA attachment and confiscation; s.13(2) PCA
Exclusion of the Probation of Offenders Act	Benefit of probation and admonition should **not** be available for socio-economic offences	***Ishar Das v. State of Punjab* (1973) 2 SCC 65** — the Supreme Court noted the recommendation and held that courts should **not lightly** extend the Probation Act to food-adulteration offences; see also s.18 of the Probation of Offenders Act, 1958 and *Prem Ballab v. State (Delhi Admn.)* (1977) 1 SCC 173
Special courts and speedy trial	Special courts with subject-matter expertise; simplified procedure; appeal to lie **directly to the High Court**	NDPS Special Courts (s.36); PMLA Special Courts (s.43); CBI courts; Special Courts Act, 1979; the Companies Act Special Courts (s.435); SEBI Special Courts (s.26A SEBI Act); NIA Special Courts
Corporate liability — fine where imprisonment is impossible	Where the offence is punishable with imprisonment, or with imprisonment **and** fine, and the offender is a **corporation**, the court should be empowered to sentence it to **fine only**	**Not enacted.** The resulting difficulty produced *Assistant Commissioner v. Velliappa Textiles* (2003) 11 SCC 405 (a company could not be prosecuted where a minimum sentence was mandatory), which was **overruled** by the Constitution Bench in ***Standard Chartered Bank v. Directorate of Enforcement* (2005) 4 SCC 530** — a company may be prosecuted and sentenced to fine even where imprisonment is mandatory; and by *Iridium India Telecom v. Motorola* (2011) 1 SCC 74 on attributing *mens rea* to a corporation. **This is the best single illustration of the Report's continuing influence and is frequently examinable.**
Public censure and publication of names	"**Public censure**" as an additional sanction — the loss of reputation being the sanction the white-collar offender actually fears	s.287 Income-tax Act (publication of names of tax defaulters); SEBI debarment orders; the RBI wilful-defaulter list; blacklisting; the "name and shame" lists of the Serious Fraud Investigation Office
Preventive detention; stoppage of business; cancellation of licence	Administrative disabling measures alongside punishment	**COFEPOSA, 1974**; **PBMSEC Act, 1980**; **PITNDPS Act, 1988**; cancellation of licences under the FSSA and the Drugs and Cosmetics Act; disqualification of directors (s.164 Companies Act); s.29A IBC; the Fugitive Economic Offenders Act, 2018 (confiscation and bar on civil claims)

Better investigation and expertise	The Commission identified the causes of defective enforcement: absence of legislative provisions; absence of the relevant statutory notification; **faulty investigation**; **lack of legal expertise**; procedural drawbacks; want of evidence; administrative difficulties	Creation of the SFIO (2003, statutory under s.211 Companies Act 2013), the Directorate of Revenue Intelligence, the Economic Offences Wings of State police, the Central Economic Intelligence Bureau, and forensic-audit requirements
Proportioned "measures"	Para 7.52: "If the punishable act has caused **no harmful effects**, punishment may be **mild**. If it has caused some harm **but the offender can repair the damage** done to society, **probation** would be appropriate. **If the harm is serious, imprisonment would, of course, be required.**"	A graded, restorative approach that anticipates modern compounding, settlement and disgorgement regimes — and shows the Report was not merely punitive

(Section abridged for the compilation — full text at makelaweasy.in.)

⬢ 22. Socio-economic offences in Indian law — the statute and enforcement-agency map

The 47th Report's view that these offences are "**better left to be dealt with by special and self-contained enactments which supplement the basic criminal law**" has produced a very large, scattered body of law. The following table is the standard Indian "bird's-eye view" of the field, giving the offence, the legislation and the enforcement authority. **Reproducing even a dozen rows of it transforms an answer.**

Economic offence	Principal legislation	Enforcement authority
Tax evasion	Income-tax Act, 1961 (ss.276C, 277, 278, 278E); Black Money Act, 2015	Central Board of Direct Taxes; Income-tax Department
Illegal trafficking in contraband goods and smuggling	Customs Act, 1962; **COFEPOSA, 1974**; SAFEMA, 1976	Collectors of Customs; **Directorate of Revenue Intelligence**
Evasion of excise duty / GST	Central Excises and Salt Act, 1944 (s.9); now the **CGST Act, 2017** (ss.132, 135, 137)	Collectors of Central Excise; CBIC; DGGI
Cultural object theft	Antiquities and Art Treasures Act, 1972	Police / CBI; ASI
Money laundering	Prevention of Money-Laundering Act, 2002 (earlier FERA 1973 / now **FEMA, 1999**)	**Directorate of Enforcement**; FIU-IND
Foreign contribution manipulation	Foreign Contribution (Regulation) Act, 1976, replaced by **FCRA, 2010** (amended 2020)	MHA (Foreigners Division); Police/CBI
Trafficking in human body parts	Transplantation of Human Organs Act, 1994, now the **Transplantation of Human Organs and Tissues Act** (amended 2011), ss.18–20	Police/CBI; Appropriate Authority under the Act
Illegal drug trafficking	**NDPS Act, 1985**; **PITNDPS Act, 1988**	**Narcotics Control Bureau**; Police/CBI; DRI
Fraudulent bankruptcy	Banking Regulation Act, 1949; **Insolvency and Bankruptcy Code, 2016** (ss.66, 69); **Fugitive Economic Offenders Act, 2018**	RBI; IBBI; ED; CBI
Corruption and bribery of public servants	**Prevention of Corruption Act, 1988** (amended 2018); BNS ss.198–205; Lokpal and Lokayuktas Act, 2013	**CBI**; State Anti-Corruption Bureaux / Vigilance; CVC; Lokpal
Financial frauds	BNS ss.316, 318, 319, 336–347; Companies Act, 2013 s.447; Banning of Unregulated Deposit Schemes Act, 2019; Chit Funds Act, 1982	State/Anti-Corruption Bureau; Economic Offences Wing; **Serious Fraud Investigation Office**; CBI
Foreign trade violations	Imports and Exports (Control) Act, 1947, now the **Foreign Trade (Development and Regulation) Act, 1992**	Directorate General of Foreign Trade; CBI
False travel documents and identity cards	Passports Act, 1967 (earlier the Indian Passport Act, 1920); BNS ss.336–347; Aadhaar Act, 2016 ss.34–38	Police/CBI; Bureau of Immigration; UIDAI
Terrorist activities / terror financing	POTA 2002 (repealed) and TADA 1987 (lapsed); now **UAPA, 1967** (ss.15–23, 35–39) and **s.113 BNS**	**National Investigation Agency**; Police; ED
Illegal trafficking in arms	**Arms Act, 1959** (ss.25–27) and Arms Rules, 2016	Police/CBI; NIA
Illegal trafficking in explosives	Explosives Act, 1884; **Explosive Substances Act, 1908** (ss.3–5)	Police/CBI; PESO
Theft of intellectual property	**Copyright Act, 1957** (as amended 1994, 1999, 2012) ss.63, 63B; Trade Marks Act, 1999 ss.103–104; Patents Act, 1970; Designs Act, 2000	Police/CBI; IP offices
Computer crime / software piracy	**Information Technology Act, 2000** (amended 2008); Copyright (Amendment) Act, 1999; **Digital Personal Data Protection Act, 2023**	Police/CBI; CERT-In; **I4C**
Stock-market manipulation and company frauds	Companies Act, 2013; **SEBI Act, 1992** and the PFUTP and PIT Regulations; **Competition Act, 2002**	SEBI; SFIO; CCI; Police/CBI
Hoarding, black-marketing, profiteering	Essential Commodities Act, 1955; PBMSEC Act, 1980; Legal Metrology Act, 2009	State Civil Supplies; Police
Adulteration of food and drugs	**Food Safety and Standards Act, 2006**; Drugs and Cosmetics Act, 1940; BNS ss.274–276	FSSAI; Drug Controller General of India
Consumer deception and misleading advertisement	**Consumer Protection Act, 2019** ss.89 (false advertisement — 2 years and ₹10 lakh), 90–91 (adulterated/spurious goods)	**Central Consumer Protection Authority**
Environmental crime	EPA 1986; Water Act 1974; Air Act 1981; Wild Life (Protection) Act, 1972; Forest (Conservation) Act, 1980	Pollution Control Boards; **National Green Tribunal**; Forest Department
Benami transactions	Benami Transactions (Prohibition) Act, 1988, substantially amended in **2016**	Initiating Officer / Adjudicating Authority under the Act; Income-tax Department

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⬢ 23. White-collar crime in India

▸ 23.1 The concept and its Indian setting

Standard Indian commentary "White collar criminality has become a global phenomenon with the advance of commerce and technology. Like any other country, India is equally in the grip of white collar criminality. The reason for [the] enormous increase in white collar crime in recent decades is to be found in the fast developing economy and industrial growth of this developing country. "

Trace the intellectual history in one paragraph: **E.H. Sutherland**'s presidential address to the American Sociological Society in **1939** and his book *White Collar Crime* (**1949**) — "a crime committed by a person of **respectability and high social status** in the course of his occupation"; his study of the **70 largest US corporations**, which had **980** adverse decisions against them, of which only 158 were criminal convictions; his insistence that the conduct was criminal because it was **legally punishable**, even if dealt with by regulatory tribunals — **Paul Tappan**'s objection that only a person convicted by a criminal court is a criminal, and Sutherland's reply that **differential implementation** of the law cannot change the nature of the conduct. Then bring it to India.

▸ 23.3 The classic Indian inquiries

▸ 23.4 White-collar crime in the professions

Profession	Typical white-collar offences	Regulatory and penal response
Medical	"Issuance of **false medical certificates**, helping **illegal abortions**, secret service to dacoits by giving expert opinion leading to their acquittal, and **selling sample drugs and medicines** to patients or chemists. **Dilatory tactics** adopted... in [the] treatment of their patients with a view to extracting huge sums from them has become an accepted norm." Also: unnecessary surgery and investigations, cuts and commissions for referrals, organ-trade participation, and the procurement of false sickness certificates by employees who cannot obtain leave	National Medical Commission Act, 2019 and the Professional Conduct Regulations, 2002 (Reg. 6.4.1 bars rebates and commissions); Transplantation of Human Organs and Tissues Act, 1994; MTP Act, 1971; PCPNDT Act, 1994; s.336(4) BNS (forgery harming reputation); *Jacob Mathew v. State of Punjab* (2005) 6 SCC 1; *Indian Medical Association v. V.P. Shantha* (1995) 6 SCC 651 (services under the Consumer Protection Act)
Legal	"There is a great divergence between the prescribed codes of ethics for the professional lawyers and their practice... It often involves resort to unethical practices such as **touting**, unfair bargaining with colleagues and other unfair tactics... **Since the criminals often remain in close contact with their counsel, the former are often influenced by the latter's behavioural pattern and thus tend to learn unethical practices**" — a striking application of **differential association**	Advocates Act, 1961 ss.35–38 (professional misconduct); Bar Council of India Rules, Part VI Ch. II (Rule 36 — no advertising); *Ex-Capt. Harish Uppal v. Union of India* (2003) 2 SCC 45 (no right to strike); *R.D. Saxena v. Balram Prasad Sharma* (2000) 7 SCC 264
Engineering and construction	Under-specification in public contracts, use of substandard material, false completion certificates, collusive bidding	PCA s.13; Competition Act s.3(3)(d) (bid rigging); blacklisting; the Commonwealth Games (2010) procurement scandal — "**large-scale corruption in contracts for construction of overlays, sports grounds, technological equipments, accommodation arrangements, sponsorships, event-management**... a glaring illustration [of] how organised crimes emerge out of an otherwise legitimate activity" (Shunglu Committee; CAG Report)
Education	Capitation fees, fake degrees and mark-sheets, paper leaks, ghost teachers, bogus institutions. "Rackets selling fake degrees and mark-sheets to needy persons are operating in several parts of India... in liaison with some of the University employees"	*Mohini Jain v. State of Karnataka* (1992) 3 SCC 666 and *Unni Krishnan v. State of A.P.* (1993) 1 SCC 645 (capitation fee unconstitutional); **Public Examinations (Prevention of Unfair Means) Act, 2024** (3–10 years and fine up to ₹1 crore for organised paper leaks); the **Vyapam** scam; the NEET-UG 2024 controversy
Business and advertising	"**Fake and misleading advertising** is yet another area in which the white collar criminals operate. They make illegal and misleading claims of medical cure through advertisements in newspapers, magazines, radio and television, thus adding to human misery. **Many patent medicines are not only worthless but harmful.** Similar advertisements for cosmetics and adulterated food are also widespread"	Drugs and Magic Remedies (Objectionable Advertisements) Act, 1954; **s.89 Consumer Protection Act, 2019**; the CCPA Guidelines for Prevention of Misleading Advertisements, 2022; ASCI Code; *Indian Medical Association v. Union of India* (the 2024 Patanjali contempt proceedings)
Chartered accountancy, audit and banking	Falsified audit certificates, window dressing, evergreening of loans, connivance in diversion of funds	Chartered Accountants Act, 1949 Schedules I and II; **National Financial Reporting Authority** (s.132 Companies Act, 2013); s.143(12) auditor's duty to report fraud; RBI Master Directions on Frauds; *Deloitte Haskins & Sells LLP v. Union of India* (2023) — SFIO proceedings against auditors of IL&FS upheld

▸ 23.5 Why white-collar crime persists — and the standard conclusion

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⬢ 24. Organised crime — definition and the classic statements

Syllabus head C(i)

2017 Q2 concluded that differential association best explains organised crime in India

▸ 24.1 The setting

Standard Indian commentary "Criminality is a global phenomenon . With the advancement of time and development of knowledge and technology the complexities of life have multiplied, with the result that many anti-social elements think it profitable to embrace criminality as a PROFESSION to earn their livelihood . This has provided opportunities to criminals to organise themselves into criminal gangs . In the modern age of science and technology, new techniques of crime are used by the gangsters to perpetrate crimes."

▸ 24.2 The definitions — give at least three

Source	Definition	What it adds
General description	"Organised crime is an act which is committed by **two or more criminals as a joint venture in a systematically organised manner**. It is an illegal act which the members of an **unlawful association** commit with **mutual co-operation and adventure**."	Plurality + system + joint venture
Dr. Walter Reckless, *The Crime Problem*, p. 319	"An **unlawful misadventure which is carried on by a BOSS, his LIEUTENANTS and OPERATORS who form a HIERARCHICAL STRUCTURE for a specific period**."	**Hierarchy** and division of command — the feature that distinguishes a syndicate from a gang
Thorsten Sellin	"Organised crime resembles those **economic adventures or enterprises** which are organised to carry on illegal activities." It is "**synonymous with economic enterprises organised for the purpose of conducting illegal activities and which, when they operate legitimate ventures, do so by illegal means**." The purpose is "to **amass huge profits** through illegal means. The largest share of the profits, however, goes to the **manager and kingpin** of the entire iniquitous enterprise, e.g. prostitution, smuggling, bootlegging, gambling, racketeering."	The **enterprise** model — organised crime is a **business**. This is the analytical key to the whole subject and the bridge to socio-economic offences
Donald Taft, *Criminology* (4th ed.) p. 183	"The organisation of criminals introduced in the field of crime those factors of **leadership, group-discipline, obedience, loyalty, division of labour, fellowmenship, sacrifice, co-operation and group planning which spell EFFICIENCY in the normal economic, political and social life.**"	Organised crime imports the **virtues of legitimate enterprise** into illegitimate activity — a Sutherland-style observation with a sting
Edwin Sutherland	"There is at least one thing common among these criminal organisations. That is, **they are bound together by a COMMON HOSTILITY TOWARDS LAW** and therefore **the members assist and protect each other from law-enforcing authorities**. Since protection against arrest and detection is a necessary part of organised crimes, **gangsters too often adopt the technique of 'FIXING' CRIMES, which is far more important than executing them**. For this purpose they try to **win over police officials by underhand tactics, or use threat, undue influence or coercion against the victim** in order to refrain him from making a complaint to the police. That apart, organised criminals have also to **seek co-operation and support from some parallel legitimate business organisations for disposing of their illegally earned money**, property or commodity. Thus, organised crimes involve **a number of accessory activities for the smooth conduct of their underworld profession**."	The three defining features: **solidarity against law**; **"fixing" more important than the offence**; and the need for a **legitimate front** to launder the proceeds. **This is the passage the DU 2017 model answer reproduces (§43).**

UNTOC (Palermo Convention), 2000, Art. 2(a)	"'**Organized criminal group**' shall mean a **structured group of three or more persons**, existing for a **period of time** and acting in concert with the aim of committing one or more **serious crimes**... in order to obtain, directly or indirectly, a **financial or other material benefit**."	The international legal definition. India ratified UNTOC and its three Protocols in **May 2011**
s.2(1)(e) MCOCA, 1999	"'**Organised crime**' means any **continuing unlawful activity** by an individual, singly or jointly, either as a member of an organised crime syndicate or on behalf of such syndicate, by **use of violence or threat of violence or intimidation or coercion, or other unlawful means**, with the objective of gaining **pecuniary benefits, or gaining undue economic or other advantage** for himself or any other person or promoting insurgency."	The Indian statutory definition, reproduced almost verbatim in the Delhi, Karnataka, Gujarat, Rajasthan, Haryana and U.P. Acts
s.111(1) BNS, 2023	"Any **continuing unlawful activity** including **kidnapping, robbery, vehicle theft, extortion, land grabbing, contract killing, economic offence, cyber-crimes, trafficking of persons, drugs, weapons or illicit goods or services, human trafficking for prostitution or ransom**, by any person or a group of persons acting in concert, singly or jointly, either as a member of an **organised crime syndicate** or on behalf of such syndicate, by use of violence, threat of violence, intimidation, coercion, or by any other unlawful means to obtain **direct or indirect material benefit including a financial benefit**, shall constitute organised crime."	For the **first time** organised crime is an offence under the general penal law of India, applicable throughout the country. Note that "**economic offence**" and "**cyber-crimes**" are expressly named — the syllabus heads of Topic 3 written into the Sanhita

▸ 24.3 How organised crime differs from other crime

	Ordinary / casual crime	ORGANISED crime	White-collar crime	Terrorism
Structure	Individual or ad hoc group	**Hierarchical, continuing**, with division of labour and a code	An individual within a legitimate organisation	Cell-based, ideological network
Objective	Immediate gain or emotion	**Profit** — the enterprise model	Profit through occupation	**Political, religious or ideological**; profit is instrumental
Continuity	Episodic	**Continuing unlawful activity** — a defined term in MCOCA and s.111 BNS	Often continuing but within a lawful enterprise	Campaign-based
Relation to the State	Avoids it	**Corrupts and captures it** — "fixing", political graft (§25.4)	Uses regulatory capture and lobbying	**Attacks and seeks to overthrow it**
Use of violence	Sometimes	**Instrumental** — to enforce monopoly and silence witnesses	Rare	**Expressive and communicative** — violence *is* the message
Indian statute	BNS generally	**s.111 BNS**; MCOCA 1999 and State Acts	Special economic laws	**s.113 BNS**; UAPA ss.15–23

Convergence.
The categories overlap in practice — the "
crime–terror nexus
". Indian examples: the
1993 Bombay blasts
, prosecuted as terrorism but executed by a smuggling syndicate;
narco-terrorism
in Punjab and Jammu & Kashmir; the use of
hawala
for terror financing;
counterfeit Indian currency notes
(th ...

● 25. The four types of organised crime

The classic Indian classification divides "the different types of criminal organisations that may operate in the criminal world" into four heads. **Learn the four and one Indian example of each.**

The four types, the test that distinguishes them, and the six supports every syndicate requires.

▸ 25.2 Crime syndicate

▸ 25.4 Political graft

(Section abridged for the compilation — full text at makelaweasy.in.)

● 26. Characteristics of organised criminals; the Vohra Committee

▸ 26.2 Collective violence as organised crime

▸ 26.3 The N.N. Vohra Committee Report (1993–95) — the central Indian document

(Section abridged for the compilation — full text at makelaweasy.in.)

● 27. The legal framework against organised crime in India

▸ 27.1 Why the ordinary law failed

1. **The IPC punished the act, not the enterprise.** Each robbery, each extortion, each murder was tried separately; the **syndicate itself** was not an offence. Criminal conspiracy (s.120-B IPC → **s.61 BNS**) and the law of common object (s.149 IPC → s.190 BNS) were the only tools, and both require proof tied to a specific offence.
2. **Witnesses do not testify.** Intimidation and "fixing" destroy the prosecution; hostile witnesses are the commonest cause of acquittal in gang cases. Until **2018** India had no witness protection scheme at all.
3. **Bail and proceeds.** The kingpin obtained bail and continued to operate; the proceeds were never traced.
4. **Federalism.** Syndicates operate across State boundaries; "police" and "public order" are State subjects (Entries 1 and 2, List II), and there was no central law.

▸ 27.2 s.111 and s.112 of the Bharatiya Nyaya Sanhita, 2023 — the new general law

Provision	Content	Punishment

s.111(1) — definition	"Continuing unlawful activity" including **kidnapping, robbery, vehicle theft, extortion, land grabbing, contract killing, economic offence, cyber-crimes, trafficking of persons, drugs, weapons or illicit goods or services, human trafficking for prostitution or ransom**, by a person or group acting in concert, as a member of or on behalf of an **organised crime syndicate**, by violence, threat, intimidation, coercion "or by any other unlawful means", to obtain **direct or indirect material benefit including a financial benefit**	—
Explanations to s.111	**"Organised crime syndicate"** = a group of **two or more** persons who, singly or jointly, as a syndicate or gang, indulge in any continuing unlawful activity. **"Continuing unlawful activity"** = an activity prohibited by law which is a **cognizable offence punishable with three years or more**, undertaken by a person singly or jointly as a member of a syndicate, **in respect of which more than one charge-sheet has been filed before a competent court within the preceding period of ten years** and the court has taken cognizance. **"Economic offence"** = criminal breach of trust, forgery, counterfeiting of currency/valuable securities, financial scams, running of Ponzi schemes, mass-marketing fraud or multi-level marketing schemes to defraud the public, or any other offence involving a large-scale organised betting	—
s.111(2)	(a) Where the offence has **resulted in the death** of any person — **death or imprisonment for life** and fine not less than ₹10 lakh. (b) In any other case — **5 years to life** and fine not less than ₹5 lakh	as stated
s.111(3)–(7)	Abetting, attempting, conspiring, or knowingly facilitating (5 years–life + ₹5 lakh); **harbouring** a member (3 years–life + ₹5 lakh); **being a member** of an organised crime syndicate (5 years–life + ₹5 lakh); **intentionally possessing property derived from organised crime** or property of a syndicate (3 years–life + ₹2 lakh)	as stated
s.112 — PETTY ORGANISED CRIME (entirely new)	Theft, snatching, cheating, unauthorised selling of tickets, unauthorised betting or gambling, selling of public examination question papers, "or any other similar criminal act", committed by **any member of a group or gang, either singly or jointly**, so as to cause **general feelings of insecurity among citizens**. Sub-s.(1) Explanation: "theft" includes pickpocketing, theft through card skimming, shoplifting, and theft of automated teller machines	**1 to 7 years** and fine
s.113 — terrorist act	Substantially the UAPA s.15 definition brought into the general penal code, with the officer not below the rank of Superintendent of Police deciding whether to register the case under s.113 BNS or the UAPA	Death or life where death is caused; otherwise 5 years to life

Critique of s.111 — the points to make.
(i) The definition of "continuing unlawful activity" requires
more than one charge-sheet in ten years
, which imports a
criminal-record
requirement reminiscent of the habitual-offender and Criminal Tribes logic (Topic 2). (ii) "Or by any other unlawful means" and " …

▸ 27.3 MCOCA, 1999 — the model State statute

Section	Provision
s.2(1)(d)	"**Continuing unlawful activity**" — a cognizable offence punishable with **three years or more**, undertaken singly or jointly as a member of or on behalf of a syndicate, in respect of which **more than one charge-sheet** has been filed in the preceding **ten years** and cognizance has been taken
s.2(1)(e)	"**Organised crime**" — see §24.2
s.2(1)(f)	"**Organised crime syndicate**" — a group of **two or more** persons indulging in continuing unlawful activity
s.3	Punishment: death or life and fine of not less than ₹1 lakh where death is caused; otherwise 5 years to life and fine of not less than ₹5 lakh; separate punishment for conspiracy, abetment, harbouring, membership and possession of unaccounted property
s.4	Punishment for **possession of unaccountable wealth** on behalf of a member of a syndicate — 3 to 10 years and fine, plus **forfeiture**
ss.5–10	Special Courts; power to transfer; procedure and powers
s.14	**Interception of wire, electronic or oral communication** — with the authorisation of a competent authority; s.16 makes the intercepted material **admissible**
s.18	**Confession made to a police officer** not below the rank of Superintendent of Police is **admissible** — a radical departure from ss.25–26 of the Evidence Act. Upheld subject to strict safeguards; contrast *Tofan Singh v. State of T.N.* (2021) 4 SCC 1 on s.67 NDPS
s.21(4)	**Twin conditions for bail** — the court must be satisfied that there are reasonable grounds for believing the accused is **not guilty** and that he is not likely to commit any offence on bail; s.21(5) bars bail to a person out on bail in another such offence
s.23(1)(a)	No information about an offence under the Act shall be recorded without the **prior approval** of an officer not below the rank of **Deputy Inspector General**; s.23(2) — no cognizance without the **previous sanction** of an officer not below the rank of **Additional Director General of Police**. These safeguards are strictly construed — a case registered without prior approval is vitiated
Leading cases	***State of Maharashtra v. Bharat Shanti Lal Shah* (2008) 13 SCC 5** — constitutionality of MCOCA and of s.14 (interception) upheld; the State legislature is competent under Entries 1 and 2 of List II and Entry 12 of List III. ***Ranjitsing Brahmajeetsing Sharma v. State of Maharashtra* (2005) 5 SCC 294** — the twin conditions in s.21(4) read down: the court must be satisfied only on a **prima facie** view, not on the material as at trial. ***Prasad Shrikant Purohit v. State of Maharashtra* (2015) 7 SCC 440** — "continuing unlawful activity" and the requirement of prior charge-sheets. ***Zameer Ahmed Latifur Rehman Sheikh v. State of Maharashtra* (2010) 5 SCC 246** — repugnancy with UAPA considered; MCOCA held valid.
State versions	**Delhi** (MCOCA extended in 2002), **Karnataka** (KCOCA, 2000), **Andhra Pradesh/Telangana** (APCOCA, 2001), **Gujarat** (GCTOC, 2015 — assented in 2019), **Rajasthan** (2023), **Haryana** (2019), **Uttar Pradesh** (UPCOCA, 2018)

▸ 27.4 The wider statutory arsenal

(Section abridged for the compilation — full text at makelaweasy.in.)

● 28. CYBER CRIME I — definition, causes and classification

Syllabus head C(i)

NCRB 2022: 65,893 cases, +24.4%

▸ 28.1 The definitional problem

Standard Indian commentary "Some authorities feel that the term 'cyber crime' is a misnomer , as this term is nowhere defined in any statute or Act enacted by the Parliament . In a sense, it is not radically different from the concept of conventional crime, insofar as both include conduct — whether act or omission — which causes breach of law and therefore is punishable by the state. A cyber crime may be defined as ANY CRIMINAL ACTIVITY THAT USES A COMPUTER EITHER AS AN INSTRUMENTALITY, TARGET OR MEANS OF PERPETRATING FURTHER CRIME. In other words, cyber crime is an unlawful act wherein the computer is either a tool or a target or both . The distinction between cyber crime and conventional crime lies in the involvement of the MEDIUM … there should be involvement, at any stage, of the virtual cyber space medium in [the] case of a cyber crime."

Add the standard descriptive definition: "criminal activity where a **computer or network is the source, tool, target, or place** of a crime". And note the legal position: the **Information Technology Act, 2000** does not use the expression "cyber crime"; it creates specific offences in Chapter XI (ss.65–74) and specific contraventions in Chapter IX (ss.43–45).

▸ 28.3 The classifications

Classification	Categories	Content

By the role of the computer (the primary classification)	**1. Computer as TARGET**	"(i) sabotage of computer systems or computer networks; (ii) sabotage of operating systems and programmes; (iii) **theft of data/information**; (iv) theft of intellectual property, such as computer software; (v) theft of marketing information; and (vi) **blackmailing based on information gained from computerised files** such as personal history, sexual preferences, financial data, medical information"
	2. Computer as INSTRUMENT	"The terrorists and criminals are using Internet methods such as e-mail to flesh out **encrypted messages** around the world… computer programs are manipulated to facilitate the offence. For example, **fraudulent use of Automated Teller Machine (ATM) cards and accounts, frauds related to e-banking or e-commerce, electronic data-interchange**… **Cyber pornography, software piracy, on-line gambling, copyright infringement, trademark violations** are some other illustrations"
Sieber's traditional classification (*The International Handbook on Computer Crime*, p. 38)	(1) **Economic** cyber crime; (2) cyber crime **against privacy**	"In the first category, the perpetration of some **impairment of resources** is relevant, while in the second, the cyber crime affects the **privacy of persons**… The economic type… include[s] frauds committed by manipulation of computer systems, illegal copy of software and computer spying, computer sabotage or illegal use of computer systems belonging to others. **The only aim of the offender… is to surpass the access barrier and make illegal use of computer systems without authorization.** Cyber crime involving **violation of [the] right to privacy** adversely affects the right to privacy of a person **without affecting any of the proprietary rights of the victim**"
The general classification	(1) Against **persons**; (2) against **property**; (3) against the **State or society**	**Against persons:** "harassment via e-mail, **stalking**, defamation, unauthorised access to computer systems, indecent exposure, **e-mail spoofing**, fraud, cheating and pornography". **Against property:** "computer **vandalism**, transmission of **virus**, denial of service attack, unauthorised access over [a] computer system, **intellectual property rights violations**, Internet **time-theft**, sale of illegal articles". **Against the State or society:** "possession of unauthorised information, **cyber terrorism**, distribution of pirated software, polluting youth through indecent exposure, trafficking, **financial scams, forgery, online gambling**"
Council of Europe, Budapest Convention on Cybercrime, 2001	Four titles	(i) Offences against the **confidentiality, integrity and availability** of computer data and systems; (ii) **computer-related** offences (forgery, fraud); (iii) **content-related** offences (child pornography); (iv) offences related to **infringements of copyright**. **India is not a signatory**, on the ground that it did not participate in the drafting and that Art. 32(b) (trans-border access to data) affects sovereignty — an examinable policy point

(Section abridged for the compilation — full text at makelaweasy.in.)

◆ 29. CYBER CRIME II — the catalogue of offences

Learn these as short definitions with the Indian penal provision attached. The quoted passages are from the standard Indian commentary.

▸ 29.1 Malicious code

▸▸ Virus

program or code that replicates and infects another programme, sector or document by inserting itself or attaching itself to that medium
. The effect of a virus is that it
destroys or alters the data files and other programs
. Except in rare cases, the virus does not damage the computer hardware." Two classes:
file infectors
(which attach to ordinary program files, and are either
direct-action
, selecting programs to infect each time the host is executed, or
resident
, hiding in memory —
Vienna
is direct-action,
Jerusalem
resident) and
boot-record infectors
(Brain, Sonde, Azusa, Michelangelo), which are always resident; some are "
boot and file
" viruses. Others named: stealth, polymorphic, fast and slow infectors, sparse infector, companion, armoured and macro viruses. Historic example: the
"Love Bug" virus of May 2000
, which caused severe damage to working internet sites.

▸ 29.2 Offences against the person

Offence	Description (standard commentary)	Indian law
Cyber stalking	"Persistent messages are sent to unwilling recipients, thus causing them **annoyance, worry and mental torture**. Sending of unsolicited e-mails or **spamming** is an infringement of [the] right of privacy… **Cyber stalking usually occurs with women who are stalked by men, adolescents or adult pedophiles. A cyber stalker does not have to leave his home to harass his targets and has no fear of physical avenge since he cannot be physically touched in cyber space.** A cyber stalker generally **collects all the personal information about the victim** — name, age, family background, telephone or mobile numbers, workplace — from internet resources such as the various profiles the victim may have filled in… **The menace of cyber stalking has spread like wild-fire in India and many innocent women, girls and children are being targeted.**"	**s.78 BNS** (s.354-D IPC) — stalking, expressly including monitoring "the use by a woman of the internet, email or any other form of electronic communication": up to 3 years for a first offence, 5 years for a subsequent one; **s.79 BNS** (s.509 IPC); **s.67 IT Act**
Cyber defamation and harassment	Publication of defamatory imputations online; trolling; doxxing	**s.356 BNS** (499–500 IPC) — *Subramanian Swamy v. Union of India* (2016) 7 SCC 221; note that **s.66-A IT Act was struck down** as unconstitutional in ***Shreya Singhal v. Union of India* (2015) 5 SCC 1** for vagueness and overbreadth under Art. 19(2) — **the single most important Indian cyber-law case**. Police continue to register cases under the dead section, which the Supreme Court condemned in *PUCL v. Union of India* (2021)

Obscenity, pornography and child sexual abuse material	Publishing or transmitting obscene material; sexually explicit material; child pornography	**ss.67, 67A and 67B IT Act** (3/5/5 years and fine; s.67B specifically targets CSAM, including browsing and collecting); **s.294 BNS** (obscene books); **ss.13–15 POCSO Act, 2012** — s.15 (storage/possession of CSAM) substantially strengthened in 2019; *Just Rights for Children Alliance v. S. Harish* (2024) — the Supreme Court held that **viewing, storing and failing to delete** CSAM is an offence under s.15 POCSO and recommended replacing the term "child pornography" with "**child sexual exploitative and abuse material (CSEAM)**"
Voyeurism and non-consensual images	Capturing or disseminating images of a private act; "revenge porn"	**s.77 BNS** (s.354-C IPC); **s.66E IT Act** (violation of privacy — capturing/publishing the image of a private area without consent, 3 years or ₹2 lakh)
Sextortion and "digital arrest" frauds	Threatening to publish intimate material, or impersonating law-enforcement officers over video call to extort money	**ss.308, 319, 351 BNS**; s.66D IT Act; a 2023–25 epidemic on which the Prime Minister and the MHA have issued public warnings and I4C has issued advisories
Deepfakes and AI-generated impersonation	Synthetic audio/video used for fraud, defamation or election manipulation	**s.66D IT Act** (cheating by personation using a computer resource); **s.319 BNS**; Rule 3(1)(b)(vii) of the **IT (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021** and the MeitY advisories of November 2023 and March 2024; *Anil Kapoor v. Simply Life India* (2023, Delhi HC) — personality-rights injunction against AI deepfakes

29.3 Offences against property and the economy

Offence	Description	Indian law
Hacking	"**Hacking is the most common form of cyber crime… The reason why hackers indulge in this crime may vary from monetary gain to political interest, or it may even be for the sake of sheer thrill.** Hacking may be of different forms such as **web-spoofing, e-mail bombing, trojan attacks, virus attacks, password cracking**… In simple words hacking means **seeking unauthorised access through [a] computer network**"	**s.43** (civil liability, unlimited compensation) read with **s.66 IT Act** — 3 years or fine up to ₹5 lakh or both; **s.70** — unauthorised access to a **protected system**: 10 years. (The older text's reference to a fine of ₹1 crore reflects s.43 as it stood before the 2008 amendment, when s.43 capped compensation at ₹1 crore; the cap was then removed)
Web-jacking	"Forcefully taking over control of a website of someone else or [of] the victim. **The motive is usually ransom or attainment of some illegal political purpose**"	ss.43, 65, 66 IT Act; s.308 BNS (extortion)
E-mail bombing	"Sending [a] large number of mails to the victim, which may be an individual or a company, **to cause confusion and harassment**"; the modern equivalent is the **DDoS** attack	s.43(f) (denial of access) with s.66 IT Act
E-mail spoofing / phishing	"A spoofed e-mail may be said to be one which **misrepresents its origin**." Phishing extends this to the harvesting of credentials through cloned websites; **vishing** (voice), **smishing** (SMS)	**s.66C** (identity theft — 3 years and ₹1 lakh) and **s.66D IT Act** (cheating by personation — 3 years and ₹1 lakh); **ss.318, 319 BNS**; *NASSCOM v. Ajay Sood* (2005) 119 DLT 596 (Del) — the **first Indian judgment to define phishing** as a misrepresentation and an actionable wrong, damages of ₹1.6 lakh awarded
Data diddling	"Changing or erasing of data in **subtle ways** which makes it difficult to put the data back or be certain of its accuracy. This is resorted to for the purpose of **illegal monetary gains or for committing a fraud or financial scam**"	s.43(d), (i) and (j) with s.66 IT Act; s.316 BNS. The classic Indian instance is manipulation of electricity billing data
Money laundering online	"A kind of cyber crime in which **money is illegally downloaded in transit**. There is a phenomenal increase in the incidence of this cyber offence. Out of **146 seizures** made by the Enforcement Directorate in money laundering cases in the year **2005**, recoveries were made in **106 cases** involving seizure of about **₹9.5 crore**"	PMLA, 2002 (§36–§37); crypto-laundering now covered by the **notification of 7 March 2023** bringing virtual digital asset service providers within s.2(1)(sa) PMLA as "reporting entities"
Salami attack; internet time theft; cyber squatting	Slicing negligible amounts from many accounts; unauthorised use of another's paid internet hours; registering a domain name corresponding to another's trade mark to extract payment	ss.43, 66 IT Act; Trade Marks Act, 1999; the **.IN Domain Name Dispute Resolution Policy**
Intellectual property crimes	"Intellectual property consists of a **bundle of rights** which may be violated by committing **software piracy, copyright infringement, trade-mark and service-mark violations, theft of computer source code**… **Computer pirates steal away valuable intellectual property when they copy software, music, graphics/pictures, books, movies etc.**"	**s.65 IT Act** (tampering with computer source documents — 3 years or ₹2 lakh); **s.63 Copyright Act, 1957** — 6 months to 3 years and fine of ₹50,000 to ₹2 lakh, with enhanced penalty for a second conviction (s.63A); **s.63B** — **knowing use of an infringing copy of a computer programme**: not less than 7 days and up to 3 years, fine ₹50,000 to ₹2 lakh. **s.2(o)** of the Copyright Act was amended in **1994** and **1999** (effective 13 January 2000) so that "literary work" includes a **computer programme (source and object code) and database**, and s.14 was amended to give the owner the exclusive right to reproduce or rent a computer database or programme

Domain names as trade marks — the three cases in the commentary

⚖ Rediff Communications Ltd. v. Cyberbooth & Ramesh Nahata

AIR 2000 Bom 27

Holding —"A **domain name is more than an internet address** and [is] therefore entitled to protection under the Trade Marks Act." The defendant's "radiff.com" was restrained as deceptively similar to "rediff.com".

⚖ Satyam Infoway Ltd. v. Sifynet Solutions (P) Ltd.

(2004) 6 SCC 145

Facts —The appellants, incorporated in 1995, had traded under the domain name "Sifynet" since June 1999 and had registered it with **ICANN**, claiming wide reputation and goodwill in "Sify". The respondent began internet-marketing business under the domain name "**Siffynet**" from June 2001. The City Civil Court granted an injunction; the High Court reversed; the appellants appealed to the Supreme Court.

Issue —Whether a domain name has the characteristics of a trade mark, so that a passing-off action lies.

Decision —"With the increase of commercial activities on the internet, **a domain name is also used as a business identifier**. It not only serves as an address for internet communication but also **identifies the specific internet site for a specific business or its goods or services**. It therefore has **all the characteristics of a trade mark and a passing-off action can be based [on] infringement of [a] domain name right**." By adopting the phonetically similar "Siffy", the respondent had "tried to cash in on the appellant's reputation". Appeal allowed; the High Court's decision set aside and the City Civil Court's order affirmed.

Principle —Domain names are protected by the law of passing off; the internet is not a law-free zone.

⚖ Yahoo! Inc. v. Akash Arora

1999 PTC (19) 201 (Del)

Facts and issue —The defendant used "YahooIndia.com" for internet-related services. He contended that the provisions of the Trade Marks Act were not attracted, as **service marks were not then recognised** in India.

Decision —The Delhi High Court granted an injunction, holding that "**though service marks are not recognised in India, the services rendered are to be recognised for 'passing-off' actions**". India's **first** cyber-squatting judgment.

▸ 29.4 Cyber terrorism

(Section abridged for the compilation — full text at makelaweasy.in.)

◆ 30. CYBER CRIME III — the statutory framework and the response

▸ 30.1 The Information Technology Act, 2000 — the map

Provision	Content	Punishment
s.43	Penalty and **compensation** for damage to a computer or computer system — unauthorised access, downloading, introducing a contaminant, damaging, disrupting, denying access, facilitating unauthorised access, tampering, destroying or stealing source code	Civil — compensation to the person affected (the ₹1 crore cap was **removed** in 2008); adjudicated by the **Adjudicating Officer** (s.46) up to ₹5 crore, above which the civil court has jurisdiction
s.43A	Failure of a **body corporate** handling sensitive personal data to maintain reasonable security practices	Compensation; the SPDI Rules, 2011; largely superseded by the **Digital Personal Data Protection Act, 2023** (penalties up to ₹250 crore), which also repeals s.43A
s.65	Tampering with **computer source documents**	3 years or ₹2 lakh or both
s.66	Computer-related offences — doing any act referred to in s.43 **dishonestly or fraudulently**	3 years or ₹5 lakh or both
s.66B	Dishonestly receiving a **stolen computer resource** or communication device	3 years or ₹1 lakh
s.66C	**Identity theft** — fraudulent use of another's electronic signature, password or unique identification feature	3 years and ₹1 lakh
s.66D	**Cheating by personation** by using a computer resource	3 years and ₹1 lakh
s.66E	**Violation of privacy** — capturing, publishing or transmitting the image of a private area of a person without consent	3 years or ₹2 lakh
s.66F	**Cyber terrorism**	**Imprisonment for life**
ss.67, 67A, 67B	Publishing or transmitting **obscene** material; **sexually explicit** material; material depicting **children** in sexually explicit acts	3 years and ₹5 lakh (5 years on second conviction); 5 years and ₹10 lakh; 5 years and ₹10 lakh
s.67C	Intermediary's duty to **preserve and retain** information	3 years and fine
s.69	Power to issue directions for **interception, monitoring or decryption**; s.69A blocking of public access; s.69B monitoring traffic data	Non-compliance: 7 years (s.69), 7 years (s.69A), 3 years (s.69B). ***Shreya Singhal*** upheld s.69A with its procedural safeguards while striking down s.66A and reading down s.79(3)(b); the IT (Procedure and Safeguards for Blocking) Rules, 2009
s.70, 70A, 70B	**Protected system**; **NCIIPC**; **CERT-In** — s.70B(7): failure to furnish information to CERT-In is punishable with 1 year or ₹1 lakh	s.70: 10 years
ss.71–74	Misrepresentation; breach of confidentiality and privacy (s.72); disclosure of information in breach of lawful contract (s.72A); publishing a false electronic signature certificate	2–3 years and fine
s.75	**Extra-territorial application** — the Act applies to an offence committed outside India by any person if the act involves a computer, computer system or computer network **located in India**	The jurisdictional key to cyber-crime prosecution
s.79 and the Intermediary Rules, 2021	**Safe harbour** for intermediaries subject to due diligence; s.79(3)(b) read down in *Shreya Singhal* to require a **court order or a government notification** before takedown. The IT (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021 impose grievance officers, traceability of the "first originator" for significant social-media intermediaries (Rule 4(2) — challenged as violating privacy), and a 36-hour takedown timeline	Loss of safe harbour
ss.65B BSA / 65B Evidence Act	**Admissibility of electronic records — s.63 of the Bharatiya Sakshya Adhiniyam, 2023** re-enacts s.65B of the Evidence Act with an expanded certificate. ***Anvar P.V. v. P.K. Basheer* (2014) 10 SCC 473**; ***Arjun Panditrao Khotkar v. Kailash Kushanrao Gorantyal* (2020) 7 SCC 1** — the s.65B certificate is **mandatory** for secondary electronic evidence, resolving the conflict with *Shafhi Mohammad*. **This is the provision on which most cyber prosecutions succeed or fail.**	—

▸ 30.3 Prevention — "Preventive Legal Measures Against Cyber Crime"

1. **Technical.** Firewalls, intrusion detection, encryption, multi-factor authentication, regular patching, backups, and CERT-In's mandatory logging (the April 2022 directions: six-hour incident reporting and 180-day log retention within India).
2. **Institutional.** Specialised cyber police stations, forensic laboratories accredited under s.79A IT Act as "Examiner of Electronic Evidence", and trained prosecutors.
3. **Legal.** Keeping the definitions technology-neutral; bringing virtual digital assets within the PMLA (done, March 2023); and India's continuing decision **not** to accede to the Budapest Convention while participating in the negotiation of the **UN Convention against Cybercrime (adopted by the General Assembly on 24 December 2024)**.
4. **Educational.** Cyber hygiene campaigns; the commentary's own point that "slightest negligence on the part of [the] computer user… may lead to catastrophic consequences".

5. **Comparative note in the commentary: Sri Lanka's Computer Crime Act** is cited as a regional example; add the EU's GDPR and NIS2 Directive, Singapore's Computer Misuse Act and the UK's Computer Misuse Act 1990.

◆Real-world Indian examples to cite

State of Tamil Nadu v. Suhas Katti
(2004, CMM Egmore)
— the
first conviction in India under s.67 of the IT Act
(Section abridged for the compilation — full text at makelaweasy.in.)

⬢ 31. TRAFFICKING I — concept, the international definition and s.143 BNS

Syllabus head C(i)
DU PYQ 2017 Q1(c) — "Human trafficking"
Suggested reading: Prof. Usha Razdan (2012)

▸ 31.2 The three-element international definition — the analytical key

Article 3(a), UN Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children, 2000 (the **Palermo Protocol**, supplementing UNTOC; ratified by India in **May 2011**): trafficking in persons means the recruitment, transportation, transfer, harbouring or receipt of persons, by means of the threat or use of force or other forms of coercion, of abduction, of fraud, of deception, of the abuse of power or of a position of vulnerability or of the giving or receiving of payments or benefits to achieve the consent of a person having control over another person, **for the purpose of exploitation**.

Element	Content	Note
1. The ACT	Recruitment · transportation · transfer · harbouring · receipt	Movement across a border is **not** required — internal trafficking is trafficking
2. The MEANS	Threat or use of force · coercion · abduction · fraud · deception · abuse of power or of a **position of vulnerability** · giving or receiving payments to a person in control	**Art. 3(c):** where the victim is a **child** (under 18), the "means" element is **not required** at all
3. The PURPOSE — exploitation	"At a minimum, the exploitation of the prostitution of others or other forms of sexual exploitation, forced labour or services, slavery or practices similar to slavery, servitude or the **removal of organs**"	Exploitation need not have occurred; the **purpose** suffices — trafficking is complete on the act done with the means for the purpose
CONSENT	**Art. 3(b):** the consent of the victim is **irrelevant** where any of the means has been used	Reproduced in India in **Explanation 2 to s.143 BNS**: "The consent of the victim is **immaterial** in [the] determination of the offence of trafficking" — exactly as the DU model answer records

Distinguish trafficking from three neighbouring concepts.
Smuggling of migrants
(the second Palermo Protocol) — the "victim" consents, the relationship ends on arrival, and the offence is against the
State's
immigration control; in trafficking the relationship
begins
on arrival and the offence is against …

⬢ 32. TRAFFICKING II — the Indian statutory scheme and the case law

▸ 32.1 The Immoral Traffic (Prevention) Act, 1956

Originally the **Suppression of Immoral Traffic in Women and Girls Act, 1956** (SITA), enacted to give effect to the **International Convention for the Suppression of the Traffic in Persons and of the Exploitation of the Prostitution of Others, 1950**, which India signed on 9 May 1950; renamed and substantially amended in **1986**.

Section	Content	Punishment
s.2(f)	"**Prostitution**" means the sexual exploitation or abuse of persons for commercial purposes. Note: the Act does **not** criminalise prostitution as such — it criminalises its **commercialised organisation**	—
s.3	**Keeping a brothel** or allowing premises to be used as a brothel	1–3 years and ₹2,000 (first conviction); 2–5 years on a subsequent conviction. **The standard criticism is that "the punishment for keeping a brothel or allowing premises to be used as a brothel is TOO LENIENT"**
s.4	**Living on the earnings** of prostitution	Up to 2 years; 7–10 years where the earnings relate to a **child or minor**
s.5	**Procuring, inducing or taking** a person for the sake of prostitution — the core anti-trafficking provision	**3–7 years**; 7 years to life where the person is a child
s.6	**Detaining** a person in premises where prostitution is carried on	**Not less than 7 years**, up to life; presumption where a child or minor is found in a brothel
s.7	Prostitution in or in the vicinity of **public places**	Up to 3 months; aggravated where the person is a child
s.8	**Seducing or soliciting** for the purpose of prostitution	Up to 6 months or ₹500 (first offence). **This is the provision under which the trafficked woman herself is prosecuted — the single most criticised section in the Act**
s.9	Seduction of a person in **custody**	7 years to life
ss.10A, 13, 14, 15, 16–19	Detention in a corrective institution; **Special Police Officer** (s.13) and trafficking police officers; offences **cognizable** (s.14); **search without warrant** (s.15); rescue (s.16); intermediate custody (s.17); removal of prostitutes from any place (s.18); application by the woman to be kept in a protective home (s.19)	—
s.21	**Protective homes** — "no person or authority shall establish or maintain any protective home except under [a] licence by the State Government", which may impose the condition that the Home be **entrusted to women**. "This is a salutary provision to check misuse of 'homes' as 'dens' of prostitution"	—
ss.22A, 22AA, 23A	Establishment of **Special Courts**; s.22B allows summary trial, but the sentence in such a trial **cannot exceed one year**	—

Advisory body	"The State Government may associate with [the] Special Police Officer a **non-official advisory body** consisting of not more than five leading social welfare workers of the area, **including [a] woman social welfare worker**" — *Delhi Administration v. Ram Singh* AIR 1962 SC 63	—

⚖ Shama Bai v. State of Uttar Pradesh

AIR 1959 All 57

Facts and issue —The constitutional validity of the Suppression of Immoral Traffic Act, 1956 was challenged, in particular **ss.4(2) and 20**, as violating the fundamental right to carry on a trade or profession under Art. 19(1)(g) and the right to life and liberty.

Decision —The Court held that "**Sections 4(2) and 20 of the Act were constitutional and not violative of fundamental rights, as none of the provisions of the Act are intended to stop [the] profession or trade of a prostitute altogether. Only restrictions can be imposed reasonably, as Section 3 only punishes running of a brothel.**"

Principle —The ITPA targets the **commercial exploitation** of prostitution, not the prostitute. It is the doctrinal foundation of the position later confirmed in *Budhadev Karmaskar*. Note also that **Article 23** of the Constitution "prohibits immoral traffic in human beings and makes it punishable under the law".

32.2 The other forms of exploitation and the statutes that reach them

Bonded and forced labour

Bonded Labour System (Abolition) Act, 1976

— s.4 abolishes the bonded labour system, s.6 extinguishes the debt, ss.16–17 penalise enforcement of bonded labour (3 years and ₹2,000), s.13 provides for Vigilance Committees.

Bandhua Mukti Morcha v. Union of India

(1984) 3 SCC 161

— a letter treated as a writ petition; directions for identification, release and rehabilitation of bonded labourers in the Faridabad stone quarries; the Court held that a person found working for less than the minimum wage is

presumed

to be a bonded labourer.

PUDR v. Union of India

(Asiad Workers) (1982) 3 SCC 235

— payment below the minimum wage is "

forced labour

" under Art. 23. Central Sector Scheme for Rehabilitation of Bonded Labourers, 2016 (₹1–3 lakh per released labourer).

32.3 The leading Indian cases

⚖ Vishal Jeet v. Union of India

(1990) 3 SCC 318

Facts —A public interest petition under Art. 32 complaining of (i) forced prostitution of girls and children, (ii) the **Devadasi and Jogin** systems under which girls are dedicated to temple deities and then sexually exploited, and (iii) the connivance of police and other officials.

Issues —Whether the Court should issue directions to the Central and State Governments for the eradication of forced prostitution, the Devadasi system and child prostitution, and for the rescue and rehabilitation of the victims.

Decision —The Supreme Court declined a CBI inquiry but issued extensive directions: State Governments and Union Territories to **direct their law-enforcement authorities to take appropriate and speedy action** under the existing laws; to set up **Advisory Committees** to make suggestions for eradicating child prostitution and for the care, protection, rehabilitation and vocational training of the rescued victims; to provide **rehabilitative homes** manned by well-qualified trained social workers, psychiatrists and doctors; and to "**take steps in providing adequate and rehabilitative homes**" for the devadasis and jogins. The Court observed that the malady is "**neither a religious nor a social problem but a SOCIO-ECONOMIC problem**" and therefore cannot be eradicated by punitive measures alone.

Principle —The State's obligation under Art. 23 is **positive**: not merely to refrain from trafficking but to rescue, rehabilitate and reintegrate. The Court also made the enduring observation that **the victim of trafficking must not be treated as an offender**.

⚖ Gaurav Jain v. Union of India

AIR 1997 SC 3021; (1997) 8 SCC 114

Facts —A PIL arising out of an article titled "A Red Light Trap: Society Gives No Chance to Prostitutes' Offspring", concerning the plight of **children of prostitutes** and of the women themselves in red-light areas.

Issues —(i) Whether the children of prostitutes should be segregated from their mothers and housed in separate institutions. (ii) What directions should issue for the rescue, rehabilitation and socio-economic empowerment of women in prostitution.

Decision —The Court declined to order segregation, holding that children should **not** be separated from their mothers merely because of the mother's occupation, and instead issued directions to the **Social Welfare Department of the Government of India and the States** "to initiate adequate measures for **prevention of induction of women in various forms of prostitution** and [to] **rescue them from the vile flesh-trade and to provide them dignity of person, means of livelihood and SOCIO-ECONOMIC EMPOWERMENT**". It directed the constitution of a **Committee** to evolve a scheme, juvenile homes for the children, and the implementation of Art. 39(f) and Art. 45.

Principle —Rehabilitation, not segregation; the remedy for trafficking is **economic empowerment**, which places the judgment squarely within Bonger's economic explanation of crime. Note the later procedural history: a review bench in *Gaurav Jain* (1998) clarified that directions in a PIL must be within the scope of the pleadings.

⚖ Budhadev Karmaskar v. State of West Bengal

(2011) 11 SCC 538; orders of 19 and 26 May 2022

Facts —A criminal appeal against conviction for the brutal murder of a sex worker. The Supreme Court, while dismissing the appeal, converted the matter into a *suo motu* public interest proceeding on the conditions of sex workers.

Issue —What rights do adult, voluntary sex workers have under Art. 21, and how must the police and the State treat them?

Decision —"**Sex workers are entitled to equal protection of the law… They have a right to live with dignity under Article 21.**" In May 2022, exercising its power under Art. 142, the Court issued directions including: **sex work is a "profession"** and voluntary adult sex workers must not be "arrested, penalised, harassed or victimised" when a brothel is raided, since "**voluntary sex work is not illegal and only running the brothel is unlawful**"; the police must not discriminate in registering FIRs where a sex worker is the victim of a crime, particularly a sexual offence; media must not reveal identities; the child of a sex worker shall not be separated merely on that ground; and Aadhaar and ration cards must be issued without disclosure of occupation.

Principle —The law must distinguish **trafficking and forced prostitution**, which are crimes, from **voluntary adult sex work**, which is not. This is the modern answer to the criticism of s.8 ITPA and the key case to cite on the victim-versus-offender problem.

⚖ Prajwala v. Union of India

(2015) and subsequent orders; see also In Re: Prajwala Letter (2018)

Facts and issue —An NGO's letter enclosing videos of sexual assault circulating on the internet; and a wider petition on the rescue and rehabilitation of trafficking victims. The issue was how to prevent the circulation of rape and child sexual abuse videos, and how to institutionalise victim rehabilitation.

Decision —The Court directed the constitution of an expert committee with MeitY, CBI and intermediaries to devise technical solutions (hash-matching, auto-blocking, proactive monitoring); directed the CBI to investigate; and, on the trafficking side, directed the creation of an **Organised Crime Investigative Agency** proposal and pressed the Union to finalise a comprehensive anti-trafficking law and a **victim rehabilitation protocol**.

Principle —Platform responsibility for CSAM and rape videos; and the recognition that rescue without rehabilitation returns the victim to the trafficker. It is the origin of the current push for the **Trafficking in Persons (Prevention, Care and Rehabilitation) Bill**.

(Section abridged for the compilation — full text at makelaweasy.in.)

◆ 33. TRAFFICKING III — the SAARC dimension and the international framework

Suggested reading: Prof. Usha Razdan, "Combating Trafficking of Women and Children in SAARC Countries: Issues and Intricacies", Journal of Criminology and Criminal Justice (2012)

▸ 33.2 The SAARC Convention, 2002

▸ 33.3 The international instruments in one place Treaty

Instrument	Year	Relevance · India's position
Slavery Convention; Supplementary Convention on the Abolition of Slavery	1926; 1956	India is a party; the source of the "practices similar to slavery" language in s.143 BNS
ILO Forced Labour Convention No. 29; Abolition of Forced Labour Convention No. 105	1930; 1957	India ratified No. 29 (1954) and No. 105 (2000)
Convention for the Suppression of the Traffic in Persons and of the Exploitation of the Prostitution of Others	1950	Signed by India on **9 May 1950**; the immediate source of **SITA 1956 → ITPA**
CEDAW — Art. 6 requires States to suppress all forms of traffic in women and exploitation of prostitution	1979	India ratified in 1993 with declarations; the basis of *Vishaka*-style incorporation of treaty norms
Convention on the Rights of the Child and its **Optional Protocol on the Sale of Children, Child Prostitution and Child Pornography**	1989; 2000	India ratified the CRC in 1992 and the Optional Protocol in 2005; the foundation of the **JJ Act** and **POCSO**
ILO Convention No. 182 on the Worst Forms of Child Labour	1999	Ratified by India in **2017**, along with Convention No. 138 on minimum age — the reason for the 2016 amendment to the child-labour Act
UNTOC and the **Palermo Protocol** on trafficking (and the Protocols on smuggling of migrants and firearms)	2000	Ratified by India in **May 2011** — the direct cause of the **Criminal Law (Amendment) Act, 2013** substituting s.370 IPC
SAARC Convention on trafficking in women and children for prostitution	2002	Signed at Kathmandu, 5 January 2002
Sustainable Development Goals — Targets 5.2, 8.7 and 16.2	2015	Elimination of trafficking, forced labour and child labour by 2030
US State Department **Trafficking in Persons (TIP) Report**	annual	India has been placed in **Tier 2** — a useful comparative datum, though its methodology is contested

(Section abridged for the compilation — full text at makelaweasy.in.)

◆ 34. NARCOTIC TRADE I — the drug problem and the illicit traffic

▸ 34.1 Why illicit drug trafficking is the paradigm organised crime

Standard Indian commentary " Illicit drug trafficking is so complex in nature that it involves a large variety of drugs from many sources throughout the world. It not only violates national drug laws and international conventions but also involves several other allied activities such as RACKETEERING, CONSPIRACY, BRIBERY AND CORRUPTION, TAX-EVASION, ILLEGAL MONEY TRANSACTIONS, VIOLATION OF IMPORT AND EXPORT LAWS, CRIMES OF VIOLENCE AND TERRORISM. The wide range of illegal and criminal activities associated with illegal drug trafficking poses a threat to law-enforcement agencies throughout the globe. Considering the ever-increasing demand and consumption of liquor, opium, heroin etc. and [the] huge profit in their illicit trafficking, the legislative control measures have not been able to countenance the menace, particularly because big tycoons and drug syndicates having INTERNATIONAL LINKAGE are involved in this illegal trade. "

Note the list in the first sentence. Drug trafficking is not one offence; it is a **portfolio** — it necessarily generates corruption, money laundering, tax evasion, customs violations, violence and, in the Indian context, terrorism. That is precisely why the NDPS Act is scheduled as a **predicate offence** under the PMLA and why "narco-terrorism" is a recognised category.

▸ 34.3 The classification of drugs

▸ 34.4 Drugs, alcohol and crime — the criminological link

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35. NARCOTIC TRADE II — the NDPS Act, 1985

35.1 Scheme and object

The **Narcotic Drugs and Psychotropic Substances Act, 1985** replaced three colonial statutes — the **Opium Act, 1857**, the **Opium Act, 1878** and the **Dangerous Drugs Act, 1930** — and was enacted to give effect to India's obligations under the 1961, 1971 and 1988 UN Conventions and to the mandate of **Article 47** of the Constitution ("the State shall endeavour to bring about prohibition of the consumption except for medicinal purposes of intoxicating drinks and of drugs which are injurious to health"). It has been amended in **1988** (mandatory minimum sentences, death penalty for repeat offenders), **2001** (the **quantity-based** sentencing structure), **2014** ("essential narcotic drugs" for medical use) and **2021** (a drafting correction to s.27A).

35.2 The provisions, section by section

Section	Content	Punishment / note
s.2	Definitions — **(iii) cannabis (hemp)** = charas, ganja and mixtures (**excluding seeds and leaves not accompanied by the tops**, i.e. *bhang*); **(xiv) narcotic drug**; **(xxiii) psychotropic substance**; **(vii-a) commercial quantity** and **(xxiii-a) small quantity** as notified; **(viii-b) illicit traffic**	—
s.4, s.5	Central Government's power and duty to take measures; the **Narcotics Control Bureau** constituted under **s.4(3)** in 1986	—
s.8	The **core prohibition**: no person shall cultivate coca, opium poppy or cannabis, or produce, manufacture, possess, sell, purchase, transport, warehouse, use, consume, import inter-State, export inter-State, import into India, export from India or tranship any narcotic drug or psychotropic substance — **except for medical or scientific purposes** and in the manner prescribed	—
ss.15–23	Offences in respect of poppy straw (15), coca plant (16), prepared opium (17), opium poppy and opium (18), embezzlement by a cultivator (19), cannabis (20), manufactured drugs (21), psychotropic substances (22), and illegal import/export/transhipment (23)	**THE QUANTITY-BASED LADDER (2001 Amendment): • small quantity** — up to **1 year** rigorous imprisonment or fine up to ₹10,000 or both; **• more than small but less than commercial** — up to **10 years** and fine up to ₹1 lakh; **• commercial quantity** — **not less than 10 years**, extendable to 20, and fine of **not less than ₹1 lakh**. This graded structure is the single most important feature of the Act and the point most frequently examined
s.24	External dealings in NDPS without previous authorisation	10–20 years and ₹1–2 lakh
s.25A	Contravention of orders relating to **controlled substances** (precursor chemicals such as acetic anhydride, ephedrine, pseudoephedrine)	Up to 10 years and ₹1–2 lakh
s.27	**CONSUMPTION** of a narcotic drug or psychotropic substance	Cocaine, morphine, diacetylmorphine and notified drugs: up to **1 year** or ₹20,000; any other drug: up to **6 months** or ₹10,000. **The lowest punishment in the Act — a legislative recognition that the addict is a patient, not a criminal**
s.27A	**Financing illicit traffic and harbouring offenders** — the "kingpin" provision	**10–20 years** and fine ₹1–2 lakh. A scheduled offence under the PMLA
s.28, s.29, s.30	Attempt; **abetment and criminal conspiracy** (same punishment as the offence itself, even if committed outside India); preparation	s.29 is the provision most used against syndicate members
s.31	Enhanced punishment for **repeat offenders** — one and a half times the maximum	—
s.31A	**Death penalty** for certain repeat offences involving specified quantities	Made **discretionary** ("may be punished with death") by the **2014 Amendment**, after ***Indian Harm Reduction Network v. Union of India* 2011 SCC OnLine Bom 921**, in which the Bombay High Court held the **mandatory** death sentence under s.31A unconstitutional and read it down as directory
s.32B	Factors to be taken into account for imposing a punishment **higher than the minimum** — use of violence or arms, holding public office, involving a minor, organised group, etc.	The Act's own sentencing guideline
s.35	**Presumption of culpable mental state** — "in any prosecution for an offence under this Act which requires a culpable mental state of the accused, the court **shall presume** the existence of such mental state", and the accused must prove its absence **beyond reasonable doubt**	A direct enactment of the 47th Report's recommendation (§21.1)
s.37	**Offences to be cognizable and NON-BAILABLE**; for offences involving **commercial quantity**, the **twin conditions**: bail only if the Public Prosecutor has had an opportunity to oppose and the court is satisfied that there are **reasonable grounds for believing that the accused is not guilty** and is not likely to commit any offence while on bail	The provision responsible for the very high proportion of NDPS undertrials. ***Union of India v. Rattan Mallik* (2009) 2 SCC 624**; ***Union of India v. Niyazuddin Sk* (2018) 13 SCC 738**; but see ***Rabi Prakash v. State of Odisha* (2023)** — prolonged incarceration without trial defeats s.37, Art. 21 prevailing
s.41–43	Power of entry, search, seizure and arrest — with warrant (s.41) and **without warrant** (s.42, between sunrise and sunset in a building/ conveyance/enclosed place; s.43 in a public place)	***Karnail Singh v. State of Haryana* (2009) 8 SCC 539** (Constitution Bench) — **substantial compliance** with s.42 (recording of information and sending it to the superior) suffices; total non-compliance is impermissible. Distinguish public places (s.43), where s.42 does not apply: *State of Punjab v. Baldev Singh* (1999) 6 SCC 172
s.50	**Search of a person** — the person to be searched must be **informed of his right** to be searched in the presence of a **Gazetted Officer or a Magistrate**	***State of Punjab v. Baldev Singh* (1999) 6 SCC 172** (Constitution Bench) — failure to inform vitiates the trial as regards recovery from the person; ***Vijaysinh Chandubha Jadeja v. State of Gujarat* (2011) 1 SCC 609** — the requirement is **mandatory** and substantial compliance is not enough; ***State of Himachal Pradesh v. Pawan Kumar* (2005) 4 SCC 350** — s.50 applies to the search of the **person**, not of a bag carried by him
s.52A	Disposal of seized narcotic drugs; **inventory, photographs and samples certified by a Magistrate**	***Union of India v. Mohanlal* (2016) 3 SCC 379** — non-compliance with s.52A is a serious lapse; the certified inventory is primary evidence. ***Yusuf @ Asif v. State* (2023)** and ***Simarnjit Singh v. State of Punjab* (2023)** — failure to draw samples in the Magistrate's presence is fatal
s.54	**Presumption from possession** of illicit articles — the accused must account satisfactorily	Read with s.35; but **conscious possession** must first be proved by the prosecution: *Mohan Lal v. State of Rajasthan* (2015) 6 SCC 222
s.64A	**Immunity from prosecution** for an addict charged under s.27 (or with a small quantity) who **volunteers for de-addiction treatment** at a recognised centre	The reformative provision — under-used in practice, and a good "reform" point
s.67	Power to call for information and examine persons	***Tofan Singh v. State of Tamil Nadu* (2021) 4 SCC 1** (3-Judge Bench, 2:1) — **officers of the NCB, DRI etc. under s.53 are "police officers" within s.25 of the Evidence Act, and a confessional statement recorded under s.67 is NOT admissible**. This overruled *Kanhaiyalal v. Union of India* (2008) 4 SCC 668 and is the most important recent NDPS decision
s.68A–68Z	**Forfeiture of illegally acquired property** of persons convicted under the Act or detained under PITNDPS	The asset-recovery arm, parallel to the PMLA

s.36–36D	**Special Courts** for offences punishable with more than three years; s.36A(4) — the period of investigation may be extended up to **180 days** (and to one year for commercial quantity) on the report of the Public Prosecutor	Failure to file the charge-sheet within the period gives an **indefeasible right to default bail** under s.187 BNSS (s.167(2) CrPC): *Rakesh Kumar Paul v. State of Assam* (2017) 15 SCC 67; *Bikramjit Singh v. State of Punjab* (2020) 10 SCC 616
s.71	Government power to establish **identification, treatment, rehabilitation and social re-integration centres** for addicts	The **Nasha Mukt Bharat Abhiyaan** (2020) and the National Action Plan for Drug Demand Reduction (NAPDDR)
PITNDPS Act, 1988	**Preventive detention** of persons engaged in illicit traffic — up to **two years**	The companion preventive statute, like COFEPOSA for smuggling

▸ 35.3 Criticism of the NDPS regime — the points that earn marks

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◆ 36. MONEY LAUNDERING I — concept, stages and typologies

Syllabus head C(i)

▸ 36.1 The concept

The UN Vienna Convention, 1988, Art. 3(1)(b) — the classic definition " The conversion or transfer of property, knowing that such property is derived from any offence(s), for the purpose of concealing or disguising the illicit origin of the property, or of assisting any person who is involved in such offence(s) to evade the legal consequences of his actions ."

The plain statement: money laundering is the process by which the proceeds of crime are made to appear lawful — "**washing**" dirty money. The standard commentary's own formulation for the cyber context is: "a kind of cyber crime in which **money is illegally downloaded in transit**"; and more generally, "any action taken to **conceal, arrange, use or possess** the proceeds of any criminal conduct".

Why it is a separate offence at all.

Three reasons, each worth a sentence. (i)

It completes the crime.

Predicate crime is worthless unless the proceeds can be spent; attacking the laundering attacks the motive

, which is "avarice or rapaciousness" (47th Report, characteristic 1). (ii)

It is the point of g …

▸ 36.2 The three stages — draw the flowchart

Placement–layering–integration, the hawala channel, and the statutory response.

▸ 36.3 The three stages explained

Stage	What happens	Techniques	Where the law bites
1. PLACEMENT	The cash proceeds of crime are introduced into the formal financial system. This is the launderer's **point of greatest risk**, because cash is bulky and banks are watched	**Structuring / "smurfing"** — breaking deposits into amounts below the reporting threshold; use of **cash-intensive businesses** (restaurants, cinemas, car washes, scrap dealing); **money mules**; casinos and betting; purchase of bullion, jewellery or bearer instruments; blending with legitimate takings	**s.12 PMLA** — Cash Transaction Reports for cash above ₹10 lakh and all Suspicious Transaction Reports; **KYC** under the RBI Master Direction; s.269SS and 269ST Income-tax Act (bar on cash receipts of ₹2 lakh or more)
2. LAYERING	A series of complex transactions designed to **break the audit trail** and separate the money from its source	Wire transfers through multiple jurisdictions; **shell companies** and nominee directors; **trade-based laundering** (over- and under-invoicing, phantom shipments, multiple invoicing); back-to-back loans; **round-tripping** through tax havens; participatory notes; **cryptocurrency mixers**; **hawala**	s.3 PMLA ("any process or activity connected with the proceeds of crime"); **FEMA, 1999**; the **Benami Transactions (Prohibition) Act, 1988/2016**; s.447 Companies Act; the **notification of 7 March 2023** bringing virtual digital asset service providers within the PMLA
3. INTEGRATION	The money returns to the offender as apparently legitimate wealth, which can be spent and invested openly	Purchase of **real estate**; investment in businesses; false salary or consultancy income; "loans" to oneself from an offshore entity; sale of overvalued art or shares; film financing	Attachment and **confiscation** under ss.5 and 8 PMLA; forfeiture under ss.68A–68Z NDPS; the **Fugitive Economic Offenders Act, 2018**; the Black Money Act, 2015

▸ 36.4 Hawala and the Indian context

(Section abridged for the compilation — full text at makelaweasy.in.)

◆ 37. MONEY LAUNDERING II — the PMLA, 2002, and Vijay Madanlal Choudhary

▸ 37.1 Background and object

The **Prevention of Money-Laundering Act, 2002** came into force on **1 July 2005**. Its Preamble records that it was enacted to prevent money laundering and to provide for confiscation of property derived from or involved in money laundering, and to give effect to the **Political Declaration and Global Programme of Action adopted by the UN General Assembly in 1990**, the **Vienna Convention, 1988**, the **Palermo Convention, 2000**, and the recommendations of the **Financial Action Task Force**. It has been amended in 2005, 2009, 2012, 2013, 2015, 2018 and 2019 (the last three largely through Finance Acts, a technique challenged as a **money-bill** circumvention of the Rajya Sabha and referred to a larger Bench in *Vijay Madanlal*).

▸ 37.2 The Act, section by section

Section	Content
s.2(1)(u) — "proceeds of crime"	Any property derived or obtained, directly or indirectly, by any person as a result of criminal activity **relating to a scheduled offence**, or the **value** of any such property, or, where such property is taken or held outside India, the property **equivalent in value** held within the country or abroad. The **Explanation added in 2019** makes clear that proceeds of crime include property "**not only derived or obtained from the scheduled offence but also any property which may directly or indirectly be derived or obtained as a result of any criminal activity relatable to the scheduled offence**"
s.2(1)(y) — "scheduled offence"	Offences in **Part A** (no monetary threshold — BNS offences including murder, kidnapping, extortion, forgery and counterfeiting; PCA; NDPS; Arms Act; Wild Life Act; Immoral Traffic Act; Copyright and Trade Marks Acts; UAPA; Companies Act s.447; SEBI Act; Explosives; Antiquities; and many more), **Part B** (offences under the Customs Act where the value is ₹1 crore or more) and **Part C** (trans-border crimes)
s.3 — the offence	"Whosoever **directly or indirectly attempts to indulge or knowingly assists or knowingly is a party or is actually involved in any process or activity connected with the proceeds of crime**, including its **concealment, possession, acquisition or use**, and **projecting or claiming it as untainted property**, shall be guilty of the offence of money-laundering." The **Explanation inserted in 2019** makes the process "a **continuing activity**" and clarifies that the listed activities are **independent**, not cumulative

s.4 — punishment	**Rigorous imprisonment for 3 to 7 years** and fine; where the proceeds relate to an offence under **Part A paragraph 2 (the NDPS Act)**, up to **10 years**
s.5 — provisional attachment	A Director or authorised officer may provisionally attach property believed to be proceeds of crime for **180 days**, on recording reasons in writing, subject to a report under s.173 CrPC/s.193 BNSS having been forwarded or a complaint filed
s.8 — adjudication	The **Adjudicating Authority** issues notice, decides whether the property is involved in money laundering, and may confirm the attachment; confiscation on conclusion of the trial (s.8(5)–(8)); the property vests **absolutely** in the Central Government
ss.16–18 — survey, search, seizure	Search of premises and persons; s.17 search and seizure; s.18 search of persons; s.20 retention of property; s.21 retention of records
s.19 — arrest	Power to arrest on the basis of material in possession and **reasons to believe recorded in writing**; the grounds of arrest must be informed "as soon as may be". ***Pankaj Bansal v. Union of India* (2024) 7 SCC 576** — the grounds of arrest must be furnished **in writing**; ***Prabir Purkayastha v. State (NCT of Delhi)* (2024)** applied the same rule to UAPA; ***Arvind Kejriwal v. Directorate of Enforcement* (2024)** — the "reasons to believe" must be tested against s.19(1)
s.24 — burden of proof	Where a person is charged with money laundering, the **Authority or Court shall presume**, unless the contrary is proved, that the proceeds of crime are involved in money laundering; and in any other proceeding it **may** presume
s.44	Trial of the scheduled offence and of the money-laundering offence by the **same Special Court**; the ED's complaint is deemed a complaint under s.200 CrPC/s.223 BNSS
s.45 — bail	**Twin conditions**: bail only if the Public Prosecutor has been given an opportunity to oppose and the court is satisfied that there are reasonable grounds for believing the accused is **not guilty** and is unlikely to commit an offence on bail; a proviso relaxes the rule for persons under 16, women, the sick or infirm, and those accused of laundering less than ₹1 crore. s.45 also makes offences **cognizable and non-bailable**. History: struck down in ***Nikesh Tarachand Shah v. Union of India* (2018) 11 SCC 1** for arbitrariness (the classification by reference to the punishment for the scheduled offence); re-enacted in 2018 and **upheld in *Vijay Madanlal***
s.50 — summons and statements	The Director and other authorities have the powers of a **civil court** to summon persons and to require them to state the truth; statements recorded are **admissible**, and ED officers are **not** "police officers", so ss.25–26 of the Evidence Act do not apply. Contrast ***Tofan Singh*** under the NDPS Act
s.63	Punishment for false information or failure to give information; s.66 disclosure of information to other agencies
Institutions	**Directorate of Enforcement** (investigation and prosecution); **FIU-IND** (2004) — receiving and analysing CTRs/STRs; the **Adjudicating Authority**; the **Appellate Tribunal** (now merged with the SAFEMA Appellate Tribunal); appeal to the High Court under s.42

▸ 37.3 Vijay Madanlal Choudhary v. Union of India — the leading case

⚖ Vijay Madanlal Choudhary v. Union of India

(2022) SCC OnLine SC 929 (27 July 2022); 3-Judge Bench, A.M. Khanwilkar J.

(Brief abridged for the compilation — full text at makelaweasy.in.)

▸ 37.4 FATF, the international architecture, and criticism

(Section abridged for the compilation — full text at makelaweasy.in.)

⬢ 38. PRIVILEGED CLASS DEVIANCE I — B.B. Pande: the concept

Syllabus head C(ii)

Suggested reading: B.B. Pande, "Privileged Class Deviance — Nature and Dimensions",

The Other Side of Development

(1987)

A note on sources.

The DU Case Material does

reproduce Prof. B.B. Pande's essay; it is listed as a

suggested

reading. What follows is the standard account of the concept as it is taught, supported by the Indian material in the project folder and by the statutory and case-law apparatus. Where a propositi ...

▸ 38.1 What "privileged class deviance" means, and why a new term was needed

Prof. B.B. Pande, of the Faculty of Law, University of Delhi, coined the expression to describe a category of harmful conduct that the existing vocabulary of criminology could not capture. His starting point is that the three available concepts are each inadequate for Indian conditions:

Existing concept	What it captures	Why it is inadequate
Crime	Conduct declared punishable by law	Much of the most damaging elite conduct is **not criminalised at all** — it is lawful, or it falls in a regulatory grey zone, or it is protected by immunity. A "crime"-based criminology therefore **cannot see it**
White-collar crime (Sutherland)	Crime committed by a person of respectability and high social status **in the course of his occupation**	Tied to **occupation** and to an advanced **corporate-industrial** economy. It misses elite deviance exercised through **political office, caste dominance, bureaucratic discretion, religious authority and social status**, which is the characteristic Indian form. As the 47th Report itself notes, the smuggler and the pensioner filing a false return are **not** white-collar criminals
Socio-economic offence (47th Report)	Offences harming the health, welfare or economy of the community	Defined by the **interest harmed**, not by the **status of the actor**; and again confined to what the statute book has criminalised
PRIVILEGED CLASS DEVIANCE (Pande)	**Deviant behaviour of persons who occupy positions of privilege — economic, political, bureaucratic, professional, social or religious — which causes serious harm to society, and which the legal system either does not define as crime at all, or, having defined it, systematically fails to enforce**	The advantage of the concept: it is organised around **power**, not around the statute book. It therefore includes both **criminalised** elite conduct that goes unpunished **and** uncriminalised elite conduct that ought to be condemned

▸ 38.2 The nature of privileged class deviance — its defining features

(Section abridged for the compilation — full text at makelaweasy.in.)

⬢ 39. PRIVILEGED CLASS DEVIANCE II — the dimensions

Pande's essay is titled "Nature and **Dimensions**", and it is the dimensions that make the concept usable. The following classification, with Indian illustrations, is what an answer should reproduce.

Five dimensions, and the six powers that produce impunity at every level.

39.1 Political deviance

Forms

Corruption in the award of contracts, licences, leases and permits; misuse of discretionary funds and quotas;
political graft
(§25.4) — the use of criminals for electoral purposes and the reverse entry of criminals into legislatures; defection and horse-trading; electoral offences — booth capturing (
s.169 BNS
, old s.171E–171F IPC; s.135A RP Act), bribery and undue influence (ss.170–172 BNS); communal mobilisation and hate speech; abuse of emergency and preventive-detention powers; opaque
political funding

Indian illustrations

Vohra Committee
finding of a politician–bureaucrat–mafia nexus amounting to a "parallel government";
Bofors
; the
Jain Hawala
diaries (
Vineet Narain
2G spectrum
Coalgate
; the
fodder scam
Vyapam
; the
Commonwealth Games
(2010) contracts; and the ADR finding that roughly
of members of the 18th Lok Sabha (2024) declared criminal cases, about
serious ones.

39.3 Corporate and economic deviance

39.5 Social, caste, religious and patriarchal deviance — the distinctively Indian dimension

Form	Illustration	Law, and why it under-performs
Caste dominance	Untouchability; denial of entry, water and burial grounds; social and economic boycott; atrocity and massacre — the **Ranvir Sena** killing of 61 Dalits at Laxmanpur Bathe (2 December 1997); manual scavenging and sewer deaths	Art. 17; **Protection of Civil Rights Act, 1955**; **SC/ST (Prevention of Atrocities) Act, 1989** ss.3, 4 (wilful neglect by a public servant), 14 (special courts), 15A (rights of victims and witnesses), 18 (no anticipatory bail — and see *Subhash Kashinath Mahajan v. State of Maharashtra* (2018) 6 SCC 454, the 2018 Amendment restoring s.18, and *Prathvi Raj Chauhan v. Union of India* (2020) 4 SCC 727 upholding it); **Prohibition of Employment as Manual Scavengers Act, 2013**. **Why it under-performs:** the investigating officer, the prosecutor and often the judge belong to the dominant group; acquittal rates are high; *Sukanya Shantha v. Union of India* (2024) showed caste-based labour written into eleven State prison manuals
Khap and community authority	Decrees against inter-caste and *sagotra* marriage; ostracism; honour killing	*Lata Singh v. State of U.P.* (2006) 5 SCC 475; ***Shakti Vahini v. Union of India* (2018) 7 SCC 192** — preventive, remedial and punitive directions, and the declaration that a khap panchayat has **no authority** to interfere with the choice of an adult; **s.103(2) BNS** (mob lynching); Law Commission's **242nd Report (2012)** proposing a Prohibition of Unlawful Assembly (Interference with the Freedom of Matrimonial Alliances) Bill — **still not enacted**
Patriarchal privilege	Dowry demand and dowry death; domestic violence; denial of inheritance; sexual harassment at the workplace; witch-hunting of widows and single women to seize land	ss.80, 85–86 BNS; Dowry Prohibition Act, 1961; PWDVA, 2005; POSH Act, 2013 (following *Vishaka*); Hindu Succession (Amendment) Act, 2005 and *Vineeta Sharma v. Rakesh Sharma* (2020) 9 SCC 1; the State witch-hunting Acts (Bihar 1999, Jharkhand 2001, Chhattisgarh 2005, Odisha 2013, Rajasthan 2015, Assam 2015)
Religious and institutional authority	Misappropriation in temple, waqf and church trusts; sexual abuse by persons in spiritual authority; superstition-based exploitation and human sacrifice	s.74–79 BNS; POCSO s.5(f) (aggravated assault by a person in a position of trust or authority) — see the conviction of a bishop and of self-styled godmen; State endowment Acts; the **Maharashtra Prevention and Eradication of Human Sacrifice and other Inhuman, Evil and Aghori Practices and Black Magic Act, 2013** and the Karnataka Act of 2017
Landlord and creditor privilege	Bonded labour; illegal eviction; usurious lending; land alienation from tribals	Art. 23; Bonded Labour System (Abolition) Act, 1976 (*Bandhua Mukti Morcha*); State Debt Relief Acts; PESA 1996 and the Forest Rights Act, 2006; **the Fifth Schedule** — and *Samatha v. State of A.P.* (1997) 8 SCC 191

(Section abridged for the compilation — full text at makelaweasy.in.)

40. PRIVILEGED CLASS DEVIANCE III — why it escapes: the architecture of impunity

The most examinable part of this head is not the catalogue of forms but the **mechanism**. Organise it in five stages, following the life of a case.

40.2 Stage 2 — DETECTION and INVESTIGATION: permission is required

Device	Provision	Effect
Absolute immunity of the Head of State	**Art. 361** — the President and Governors are not answerable to any court for the exercise of their powers; no criminal proceedings whatsoever shall be instituted or continued against them during their term	Complete bar during tenure; see *Rameshwar Prasad v. Union of India* (2006) 2 SCC 1 on the limits of the protection

Parliamentary privilege	**Arts. 105 and 194** — freedom of speech in the House; no liability for anything said or any vote given	***P.V. Narasimha Rao v. State (CBI)* (1998) 4 SCC 626** had held that an MP who **took a bribe and voted** was immune, while one who took a bribe and did **not** vote was not — an absurdity and the most notorious Indian instance of privileged immunity. **Overruled by a seven-Judge Bench in *Sita Soren v. Union of India* (2024) 5 SCC 629**: "**bribery is not rendered immune under Article 105(2) or 194(2)**... corruption and bribery by members of the legislature erode probity in public life." **This is the single most important recent case on privileged class deviance and MUST be cited.**
Prior approval to investigate a public servant	**s.17A PCA, 1988** (inserted 2018)	No enquiry or investigation into any offence "relatable to any recommendation made or decision taken by [a] public servant in the discharge of his official functions" without the prior approval of the competent authority. Compare **s.6A DSPE Act**, struck down in ***Subramanian Swamy v. Director, CBI* (2014) 8 SCC 682**
Sanction to prosecute	**s.218 BNSS** (s.197 CrPC); **s.19 PCA**; s.6 of the Commission of Sati Act; s.140 of the Railways Act etc.	Delay in granting sanction has killed innumerable prosecutions. *Vineet Narain* directed a three-month outer limit; **s.218(4)–(6) BNSS** now provides a **120-day** deemed-sanction rule for specified sexual offences and imposes timelines
Consent for the CBI to enter a State	**s.6 DSPE Act, 1946**	Several States have withdrawn general consent — a federal device that can operate as protection for State-level elites. *Fertico Marketing v. CBI* (2021) considered the consequences of investigation without consent
Institutional control of the investigator	Appointment, tenure and transfer of the CBI and ED Directors	*Vineet Narain* (1998) — two-year minimum tenure, CVC supervision; ***Common Cause v. Union of India* (2021)** and (2023) on the successive extensions of the ED Director's tenure, held impermissible beyond the statutory scheme

▸ 40.4 Stage 4 — SENTENCE: the punishment does not match the harm

Conduct	Harm	Maximum / actual punishment
Theft of a mobile phone — **s.303(2) BNS**	One victim, a few thousand rupees	**3 years**; commonly months of undertrial custody for want of surety
Bhopal gas leak — **s.304-A IPC**	Thousands dead; over five lakh injured; three generations affected	**2 years** maximum; convictions in 2010 with bail granted the same day
Possession of a small quantity of a narcotic — **s.20 NDPS**	Self-harm	**1 year** — but with the s.37 bail regime if the "mixture" rule applies
Adulteration of food causing death — **s.59 FSSA**	Death of consumers	**Life** and fine up to ₹10 lakh — but prosecutions are rare and convictions rarer
Bank fraud of ₹13,500 crore	Public money; systemic risk	Extradition proceedings pending for years; the operative sanction is **attachment and confiscation**, not imprisonment

▸ 40.6 Consequences — and the remedies

(Section abridged for the compilation — full text at makelaweasy.in.)

◆ 42. CASE LAW — detailed briefs

The syllabus prescribes
no cases
for Topic 3. The briefs below are the cases through which the concepts of this topic are actually litigated in India; several have already been briefed in the body (
Shama Bai
§32.1;
Vishal Jeet
Gaurav Jain
Budhadev Karmaskar
Prajwala
§32.3;
Satyam Infoway
Rediff
Yahoo!
§29.3;
Vij ...

⚖ Keshub Mahindra v. State of Madhya Pradesh

`(1996) 6 SCC 129 — the Bhopal case`

Facts —On the night of **2–3 December 1984** approximately 40 tonnes of **methyl isocyanate** escaped from the Union Carbide India Ltd. pesticide plant at Bhopal. Official figures record several thousand immediate deaths and more than five lakh persons injured; unofficial estimates are far higher. The CBI charged the chairman of UCIL and other officials under **s.304 Part II IPC** (culpable homicide not amounting to murder) and ss.324, 326, 429 read with s.35 IPC. The accused sought discharge.

Issues —(i) Whether, on the material collected, a charge under s.304 Part II could be framed — that is, whether the accused had **knowledge** that their acts were **likely to cause death**. (ii) Or whether the material disclosed no more than a **rash or negligent act** under s.304-A IPC.

Decision —The Supreme Court held that the material did **not** support a charge under s.304 Part II and directed that the accused be tried under **s.304-A** read with ss.336, 337 and 338 IPC. In June 2010 the trial court convicted seven accused under s.304-A and imposed the **statutory maximum of two years** and a fine of ₹1 lakh each; all were released on bail the same day. A CBI curative petition to restore the s.304 Part II charge was dismissed in 2011, and the Union's curative petition seeking enhanced compensation over and above the 1989 settlement of **US $470 million** (approved in *Union Carbide Corporation v. Union of India* (1991) 4 SCC 584) was dismissed in **March 2023**.

Principle evolved —Doctrinally, the threshold of "knowledge" under s.299 IPC. **Criminologically, the case is the canonical Indian demonstration of the 47th Report's thesis and of Sutherland's differential implementation**: the worst industrial disaster in history produced a maximum sentence lower than that for ordinary theft (s.303(2) BNS: three years), and the substantive response was a **civil settlement** rather than a penal sanction. Contrast *M.C. Mehta* (below), and note the legislative response — the Environment (Protection) Act, 1986, the Public Liability Insurance Act, 1991 and the NGT Act, 2010.

⚖ M.C. Mehta v. Union of India

`(1987) 1 SCC 395 — the Oleum Gas Leak case`

by Ankur R. Upadhyay

Facts —On 4 and 6 December 1985, oleum gas escaped from a unit of Shriram Foods and Fertiliser Industries in a densely populated part of Delhi, affecting a number of persons; an advocate practising in the Tis Hazari Courts was said to have died. A writ petition under Art. 32 had already been filed seeking closure of the hazardous units.

Issues —(i) Whether Art. 32 is available against a **private corporation** engaged in a hazardous industry. (ii) What is the measure of liability of an enterprise carrying on a hazardous activity — does the rule in *Rylands v. Fletcher*, with its exceptions, apply?

Decision —Bhagwati C.J. laid down the rule of **ABSOLUTE LIABILITY**: "**where an enterprise is engaged in a hazardous or inherently dangerous activity and harm results to anyone on account of an accident in the operation of such hazardous or inherently dangerous activity... the enterprise is strictly and absolutely liable to compensate all those who are affected by the accident and such liability is NOT SUBJECT TO ANY OF THE EXCEPTIONS which operate vis-à-vis the tortious principle of strict liability under the rule in Rylands v. Fletcher.**" The Court further held that the **measure of compensation must be correlated to the magnitude and capacity of the enterprise**, so that it has a deterrent effect.

Principle evolved —Absolute liability, and the "deep pocket" measure of damages. This is the judicial realisation, fifteen years later, of the 47th Report's para 3.13 description of socio-economic offending as "**extra-hazardous activity**" requiring a departure from ordinary rules. Followed in *Indian Council for Enviro-Legal Action v. Union of India* (1996) 3 SCC 212 (polluter pays) and *Vellore Citizens' Welfare Forum v. Union of India* (1996) 5 SCC 647 (precautionary principle).

⚖ Ishar Das v. State of Punjab

(1973) 2 SCC 65

Facts —The appellant was convicted of selling **adulterated milk** under the Prevention of Food Adulteration Act, 1954 and sought the benefit of the **Probation of Offenders Act, 1958**.

Issue —Whether the Probation of Offenders Act, 1958 applies to offences under the Prevention of Food Adulteration Act, which prescribes a minimum sentence.

Decision —The Supreme Court held that the Probation Act is **not automatically excluded**, but observed — expressly noting that the **47th Report of the Law Commission had recommended the exclusion of the Probation Act from socio-economic offences** — that the Prevention of Food Adulteration Act "**aims at uprooting and curbing such evils and safeguarding public health, and the courts should NOT LIGHTLY give the benefit of the provisions of the Probation of Offenders Act in such cases**".

Principle evolved —Judicial recognition of the 47th Report's prescription: **socio-economic offences are a class apart in sentencing**. See also *Prem Ballab v. State (Delhi Admn.)* (1977) 1 SCC 173 and s.18 of the Probation of Offenders Act, 1958.

⚖ Standard Chartered Bank v. Directorate of Enforcement

(2005) 4 SCC 530 (Constitution Bench, 3:2)

Facts —The bank faced adjudication and prosecution under the **Foreign Exchange Regulation Act, 1973**, s.56 of which prescribed a **mandatory minimum sentence of imprisonment** together with fine for contraventions above a threshold. The question was whether a **company**, which cannot be imprisoned, could be prosecuted at all.

Issues —(i) Can a corporation be prosecuted for an offence for which the statute prescribes a **mandatory** sentence of imprisonment and fine? (ii) If so, may the court impose **fine alone**?

Decision —By 3:2 the Constitution Bench **overruled *Velliappa Textiles*** and held that a company **can be prosecuted and punished** for an offence involving a mandatory sentence of imprisonment, and that the court may impose **fine alone**. "**There is no immunity to the companies from prosecution merely because the prosecution is in respect of offences for which the punishment prescribed is mandatory imprisonment.**" The Court referred expressly to the **47th Report's recommendation** that, where the offender is a corporation, the court should be empowered to impose fine only — a recommendation Parliament had never enacted.

Principle evolved —**Corporate criminal liability** in India. Completed by ***Iridium India Telecom Ltd. v. Motorola Inc.* (2011) 1 SCC 74**, which held that a corporation can be prosecuted even for offences requiring *mens rea*, the mental state of the "**directing mind and will**" being attributed to it (the alter-ego doctrine). Contrast *Sunil Bharti Mittal v. CBI* (2015) 4 SCC 609 — the converse attribution (from company to director) requires either active role plus *mens rea* or a statutory provision.

⚖ Shreya Singhal v. Union of India

(2015) 5 SCC 1

Facts —Two young women were arrested in Maharashtra in 2012 — one for a Facebook post questioning the shutdown of Mumbai on the death of a political leader, the other for "liking" it. A series of similar arrests followed. Writ petitions challenged **s.66A** of the IT Act (sending "grossly offensive" or "menacing" messages, or messages causing "annoyance, inconvenience, danger, obstruction, insult, injury, criminal intimidation, enmity, hatred or ill will"), **s.69A** (blocking) and **s.79** with the Intermediary Guidelines Rules, 2011.

Issues —(i) Is s.66A a reasonable restriction on free speech under Art. 19(2)? (ii) Is it unconstitutionally **vague and overbroad**? (iii) Are ss.69A and 79(3)(b) valid?

Decision —The Supreme Court (Nariman J.) **struck down s.66A in its entirety** as violative of Art. 19(1)(a) and not saved by Art. 19(2). It distinguished **discussion, advocacy and incitement**, holding that only **incitement** may be restricted; held the section **vague** and **overbroad**, and rejected the argument that it could be read down. It **upheld s.69A** and the Blocking Rules, 2009, because they contain procedural safeguards and require reasons in writing; and it **read down s.79(3)(b)** so that an intermediary is obliged to take down content only on receipt of a **court order or a notification by the appropriate Government**.

Principle evolved —Free speech online has the same protection as offline; vagueness and overbreadth are independent grounds of invalidity; the chilling effect doctrine enters Indian constitutional law. **The continuing scandal:** despite the judgment, police across India continued to register cases under the dead s.66A; in ***PUCL v. Union of India* (2021)** the Supreme Court expressed "shock", directed all States to withdraw such prosecutions and to circulate the judgment to every police station — the single best demonstration that the criminal justice system is not a machine for applying law but a set of institutions with their own habits.

⚖ State of Tamil Nadu v. Suhas Katti

C.C. No. 4680 of 2004, Court of the Additional CMM, Egmore, Chennai; judgment 5 November 2004

Facts —The accused, a family friend of the complainant, wished to marry her; she married another man and was later divorced. On his renewed advances being refused, he created a false e-mail account in her name and **posted obscene, defamatory and annoying messages about her in a Yahoo message group**, together with her telephone number, causing her to receive a stream of harassing calls.

Issues —Whether the accused was the author of the postings, and whether the conduct amounted to offences under **s.469 IPC** (forgery for the purpose of harming reputation), **s.509 IPC** (word or gesture intended to insult the modesty of a woman) and **s.67 of the IT Act, 2000** (publishing obscene information in electronic form).

Decision —The Additional Chief Metropolitan Magistrate **convicted** the accused and sentenced him to **two years' rigorous imprisonment and a fine of ₹500 under s.469 IPC, one year and ₹500 under s.509 IPC, and two years and ₹4,000 under s.67 of the IT Act** , the sentences to run concurrently. The judgment was delivered within about **seven months** of the charge-sheet.

Significance —The **first conviction in India under s.67 of the Information Technology Act, 2000**. It demonstrated that electronic evidence — logs, headers and cyber-café records — can sustain a conviction, and it is the standard starting point for any discussion of cyber-crime prosecution in India. Its subject matter — online harassment of a woman by a rejected suitor — also anticipates the stalking and voyeurism provisions introduced in 2013 (now ss.77–78 BNS).

⚖ Vineet Narain v. Union of India

(1998) 1 SCC 226 — the Jain Hawala case

Facts —In 1991, in the course of an investigation into terrorist funding, the CBI seized diaries and notebooks from the **Jain brothers** recording payments running into crores to a large number of persons identified by initials — subsequently said to include senior politicians of several parties and senior bureaucrats. No effective investigation followed. Journalists filed a public interest petition alleging inertia in the CBI and the Enforcement Directorate because of the status of the persons involved.

Issues —(i) Can the Court compel the investigating agencies to perform their statutory duty? (ii) What institutional arrangements are required to insulate the CBI and the ED from executive influence? (iii) Is the "**Single Directive**" — an executive instruction requiring prior permission before investigating officers of and above the rank of Joint Secretary — valid?

Decision —The Court developed and applied the technique of "**CONTINUING MANDAMUS**" — monitoring the investigation periodically without pronouncing on the merits. It **struck down the Single Directive** as invalid, holding that there can be no class of public servant immune from investigation. It issued detailed directions: statutory status and supervisory power for the **Central Vigilance Commission** over the CBI's anti-corruption work; a **minimum two-year tenure** for the Director of the CBI and of the ED; selection through a committee headed by the CVC; time limits for the grant of sanction (three months, extendable by one month where the Attorney-General is consulted); and the creation of a Nodal Agency to coordinate action on the Vohra Committee findings.

Principle evolved —"**Be you ever so high, the law is above you.**" The rule of law requires that investigative agencies be insulated from the persons they may have to investigate. The decision is the single most important Indian judicial response to **privileged class deviance**, and is the ancestor of *Subramanian Swamy v. Director, CBI* (2014) 8 SCC 682 (s.6A DSPE Act struck down), *Prakash Singh* (2006) and *Common Cause* (2021, 2023) on the ED Director's tenure. **Note the outcome, however:** the hawala prosecutions themselves collapsed for want of admissible evidence — the diaries were held to be insufficient corroboration — which is itself an illustration of the thesis.

⚖ Sita Soren v. Union of India

(2024) 5 SCC 629 (7-Judge Bench, 4 March 2024)

Facts —The appellant, a member of the Jharkhand Legislative Assembly, was alleged to have accepted a bribe to vote for a particular candidate in the 2012 Rajya Sabha election, but in the event voted for another. She claimed immunity under **Art. 194(2)** of the Constitution, relying on the majority in *P.V. Narasimha Rao v. State (CBI)* (1998) 4 SCC 626.

Issue —Whether a legislator who accepts a bribe in connection with a vote or speech in the House enjoys immunity from prosecution under **Arts. 105(2) and 194(2)**.

Decision —A seven-Judge Bench unanimously **overruled *P.V. Narasimha Rao***. Chandrachud C.J. held: "**Bribery is not rendered immune under Article 105(2) or the corresponding provision of Article 194 because a member engaging in bribery commits a crime which is NOT ESSENTIAL to the casting of the vote or the ability to decide how the vote should be cast.**" The offence "**is complete at the point in time when the legislator accepts the bribe**", irrespective of whether the vote is cast as agreed. The Court added that "**corruption and bribery of members of the legislature erode the foundation of Indian Parliamentary democracy... [and are] destructive of the aspirational and deliberative ideals of the Constitution**", and held that the same principle applies to voting in Rajya Sabha and Presidential elections.

Principle evolved —Legislative privilege protects the **function**, not the **person**. This is the most important recent dismantling of a legal immunity that had operated as pure privileged class deviance, and it should be cited in every answer on that head.

⚖ State of Gujarat v. Mohanlal Jitamalji Porwal

(1987) 2 SCC 364

Facts —A prosecution under the Customs Act and the Gold (Control) Act in which the prosecution had been unable to produce the report of the Government analyst, and the trial court refused an application to recall a witness; the accused were acquitted, and the State appealed.

Issue —Whether the court should have permitted the prosecution to fill the lacuna, and more generally how economic offences should be approached.

Decision and principle —Thakkar J. delivered the most frequently quoted Indian passage on economic crime: "**The entire community is aggrieved if the economic offenders who ruin the economy of the State are not brought to book. A murder may be committed in the heat of moment upon passions being aroused. AN ECONOMIC OFFENCE IS COMMITTED WITH COOL CALCULATION AND DELIBERATE DESIGN WITH AN EYE ON PERSONAL PROFIT REGARDLESS OF THE CONSEQUENCE TO THE COMMUNITY.** A disregard for the interest of the community can be manifested only at the cost of forfeiting the trust and faith of the community in the system to administer justice in an even-handed manner without fear of criticism from the quarters which view white collar crimes with a permissive eye..." The appeal was allowed and the case remitted. **Note the direct correspondence with the 47th Report's characteristics (1) and (5) — avarice, and deliberate and wilful conduct.** Followed in *Y.S. Jagan Mohan Reddy v. CBI* (2013) 7 SCC 439, *Nimmagadda Prasad v. CBI* (2013) 7 SCC 466 and *Gautam Kundu v. Directorate of Enforcement* (2015) 16 SCC 1.

⚖ Bandhua Mukti Morcha v. Union of India

(1984) 3 SCC 161

Facts —An organisation working for the release of bonded labourers addressed a letter to the Supreme Court stating that a large number of workers in stone quarries in **Faridabad district, Haryana** were living in inhuman conditions and working as **bonded labour**, many of them migrants from other States, with no drinking water, no medical facilities, exposure to silicosis and no minimum wages.

Issues —(i) Whether a letter can be treated as a writ petition under Art. 32 (epistolary jurisdiction). (ii) Whether the Court can appoint commissioners to investigate facts. (iii) What is the content of the State's obligation under Arts. 21, 23 and the Bonded Labour System (Abolition) Act, 1976.

Decision —Bhagwati J. held that Art. 32 is **not confined to the traditional adversarial form**; where a person or class is unable to approach the Court by reason of poverty or disability, any public-spirited person may move it, and the Court may appoint commissioners whose reports constitute material on which it may act. On the merits: a worker found to be working for **less than the minimum wage** is to be presumed a **bonded labourer**, and the burden lies on the employer to show otherwise. The Court issued **twenty-one directions** for identification, release, rehabilitation, payment of minimum wages, provision of drinking water, medical facilities, safety equipment and education for children.

Principle evolved —The State's obligation under Art. 23 is **positive and enforceable**; the foundation of Indian public interest litigation in labour and trafficking matters. Read with *PUDR v. Union of India* (1982) 3 SCC 235 (payment below minimum wage is "forced labour" under Art. 23) and *Neeraja Chaudhary v. State of M.P.* (1984) 3 SCC 243 (**release without rehabilitation is meaningless**) — a proposition that applies with equal force to trafficking victims.

⚖ M.C. Mehta v. State of Tamil Nadu

`(1996) 6 SCC 756 — the Sivakasi child labour case`

Facts —A fire in a fireworks factory at **Sivakasi** in 1991 killed a number of workers, including children. A writ petition drew attention to the widespread employment of children in the match and fireworks industry in hazardous conditions.

Issues —What directions should issue to eliminate child labour in hazardous industries and to secure the child's right to education and development under Arts. 24, 39(e) and (f) and 45?

Decision —The Court directed: (i) offending employers in hazardous industries to pay **₹20,000 per child** into a **Child Labour Rehabilitation-cum-Welfare Fund**; (ii) the appropriate Government to contribute **₹5,000** per child where it cannot provide employment to an adult member of the family; (iii) the income from the corpus to be used for the child, on condition that the child is **withdrawn from employment and sent to school**; (iv) a survey of child labour within six months; and (v) the constitution of inspectorates and monitoring.

Principle evolved —A concrete, funded remedy rather than a declaration — and the recognition that child labour is an **economic** problem requiring an economic remedy, which is Bonger's point and the 47th Report's "augmentation of the wealth of the country" interest. Read with Art. 24, the Child and Adolescent Labour (Prohibition and Regulation) Act, 1986 (ss.3, 3A, 14), the Right to Education Act, 2009, and *Bachpan Bachao Andolan v. Union of India* (2011) 5 SCC 1.

⚖ Tofan Singh v. State of Tamil Nadu

`(2021) 4 SCC 1 (3-Judge Bench, 2:1)`

Facts —The appellant was convicted under the NDPS Act substantially on the basis of a **confessional statement recorded under s.67** by an officer of the Narcotics Control Bureau. The question of the admissibility of such statements was referred to a larger Bench because of conflicting decisions.

Issues —(i) Are officers invested with powers under **s.53** of the NDPS Act "**police officers**" within the meaning of **s.25 of the Evidence Act**? (ii) Is a statement recorded under s.67 admissible as a confession?

Decision —By 2:1 the Court held that officers invested with powers under s.53 **are** "police officers" within s.25 of the Evidence Act, and that a confessional statement recorded under **s.67 is NOT admissible** in the trial of an offence under the NDPS Act. *Kanhaiyalal* and *Raj Kumar Karwal* were overruled to that extent. Nariman J. emphasised the extraordinary severity of the Act — mandatory minimum sentences, reverse burdens and the s.37 bail bar — as a reason for construing the protective provisions strictly.

Principle evolved —The severity of a socio-economic statute is a reason to enlarge, not to contract, the accused's procedural protections. Contrast ***Vijay Madanlal Choudhary***, which took the opposite view of s.50 PMLA — the two decisions together are the best available material for an essay on how far the 47th Report's licence to depart from ordinary criminal procedure should extend.

⚖ Hira Singh v. Union of India

`(2020) 20 SCC 272 (3-Judge Bench)`

Facts and issue —Whether, in determining whether a seizure is of a "small" or "commercial" quantity under the NDPS Act, the court must consider the weight of the **pure narcotic content** alone, or the **entire weight of the mixture** including neutral substances.

Decision —The Court **overruled *E. Micheal Raj*** and held that the **entire quantity of the mixture**, including neutral substances, is to be taken into account. It upheld the validity of Note 4 to the notification.

Principle and criticism —A strict, deterrence-oriented construction consistent with the 47th Report's approach. **But** the practical result is that a small-time carrier holding a heavily adulterated substance faces a minimum of ten years and the s.37 bail bar, while the financier under s.27A is rarely reached — precisely the asymmetry Topic 3 exists to expose. This is the best single case for arguing that the "heavy hand" recommended in 1972 has fallen on the wrong hands.

⚖ Subramanian Swamy v. Director, CBI

`(2014) 8 SCC 682 (Constitution Bench)`

Facts and issue —Section 6A of the Delhi Special Police Establishment Act, 1946 (inserted in 2003 after the Single Directive had been struck down in *Vineet Narain*) required the CBI to obtain the **prior approval of the Central Government** before conducting any inquiry or investigation into an offence under the Prevention of Corruption Act alleged against officers of the level of **Joint Secretary and above**. Its constitutionality was challenged under Art. 14.

Decision —The Constitution Bench **struck down s.6A** as violative of Art. 14: "**Corruption is an enemy of the nation... the law does not classify offenders differently for treatment thereunder, including investigation of offences and prosecution for offences, according to their status in life.**" Status cannot be the basis for immunity from investigation; and the protection against frivolous complaints lies in the requirement of sanction to prosecute, not in a bar on investigation.

Principle evolved —Equality before the law applies at the **investigation** stage. Note the sequel: **s.17A** of the PCA, inserted in **2018**, reintroduced a prior-approval requirement in a different form (for enquiries into recommendations made or decisions taken in the discharge of official functions). Whether s.17A survives the reasoning in *Subramanian Swamy* is an open and highly examinable question.

⚖ Lalita Kumari v. Government of Uttar Pradesh

(2014) 2 SCC 1 (Constitution Bench)

Facts —A writ petition under Art. 32 by the father of a minor girl who had been abducted, complaining that the police had refused to register an FIR. The question of when registration is mandatory had divided earlier benches.

Issue —Is the registration of an FIR **mandatory** under s.154 CrPC where the information discloses a cognizable offence, or may the police first hold a preliminary inquiry?

Decision —Registration of an FIR is **MANDATORY** under s.154 if the information discloses a cognizable offence, and no preliminary inquiry is permissible in such a case. A preliminary inquiry is permitted only where the information does not disclose a cognizable offence but indicates the need for an inquiry, and only in the illustrative categories of **matrimonial/family disputes, commercial offences, medical negligence, corruption, and cases with abnormal delay**; such an inquiry must be completed within **seven days** (later practice: 14 days). Non-registration attracts action against the officer, including under s.166A IPC.

Principle evolved and criminological significance —This is the leading case on the **dark figure of crime** in India: it addresses "**reported but not recorded**", the third leak in the crime funnel (§10). Note the legislative sequel: **s.173(3) BNSS** now permits a preliminary enquiry of up to **14 days**, with the prior permission of a DSP, for offences punishable with three years or more but less than seven — a statutory dilution of *Lalita Kumari* which will increase the dark figure and is a strong critical point.

PREVIOUS YEAR QUESTIONS · UNIVERSITY OF DELHI · LL.B. V TERM

PYQ Bank — Unit 2 (questions only)

Q1 2017 · Q1(C)
Attempt briefly any two of the following: ... (c) Human trafficking.

◆ **Refer makelaweasy.in for detailed notes**, full model answers to every question below, additional case briefs, diagrams and revision material on this unit.

Q2 2022 · Q5 — USES NCRB DATA
According to data published in 2019 by the National Crime Records Bureau (NCRB), as against the actual capacity of Indian prisons, i.e. 4,03,739 prisoners, there are 4,78,600 prisoners. Moreover, the conditions in jails continue to be inhuman [and] require urgent and drastic reforms as suggested and recommended in Rama Murthy v. State of Karnataka , AIR 1997 SC 1739. To what extent have the recommendations been applied and followed? Critically evaluate.

Q3 "DISTINGUISH BETWEEN CRIMES MALA IN SE AND MALA PROHIBITA . IS THE DISTINCTION STILL USEFUL?"
Distinguish between crimes mala in se and mala prohibita . Is the distinction still useful?

Q4 "CRIME STATISTICS ARE THE MOST DECEPTIVE OF ALL STATISTICS." DISCUSS.
Crime statistics are the most deceptive of all statistics.

Q5 "EXAMINE THE CHARACTERISTICS OF SOCIO-ECONOMIC OFFENCES WITH REFERENCE TO THE 47TH LAW COMMISSION REPORT."
Examine the characteristics of socio-economic offences with reference to the 47th Law Commission Report.

Q6 "WHAT IS WHITE-COLLAR CRIME? EXAMINE ITS INCIDENCE IN INDIA."
What is white-collar crime? Examine its incidence in India.

Q7 "DISCUSS ORGANISED CRIME IN INDIA. WHICH THEORY BEST EXPLAINS IT?"
Discuss organised crime in India. Which theory best explains it?

Q8 "CYBER CRIME IS THE CRIME OF THE TWENTY-FIRST CENTURY." EXAMINE THE INDIAN RESPONSE.
Cyber crime is the crime of the twenty-first century.

Q9 "PRIVILEGED CLASS DEVIANCE
Privileged class deviance — nature and dimensions.

Q10 "EXAMINE THE ADEQUACY OF THE PMLA, 2002."
Examine the adequacy of the PMLA, 2002.

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UNIT 4

Juvenile Delinquency

◆ SYLLABUS COVERAGE

Concept of juvenile delinquency · extent and causes · theoretical explanations · the international framework · legal framework in India — the JJ Act, 2015 clause by clause · Ved Kumari's critical understanding.

◆ STATUTES & PROVISIONS

JJ (Care and Protection of Children) Act, 2015 · ss.2, 3, 4–9, 10–14, 12, 15, 18, 19–21, 23–26, 27–38, 39–73, 74–89, 94 · Model Rules, 2016 · JJ Amendment Act, 2021 · Arts. 15(3), 39(e)–(f), 45

◆ PRESCRIBED CASE MATERIAL

Sampurna Behura v. Union of India · Barun Chandra Thakur v. Master Bholu · Sudesh Kumar v. State of Uttarakhand · Vinod Katara v. State of U.P. · Rajni v. State of U.P. · Rahul Kumar Yadav v. State of Bihar

2. The CONCEPT of juvenile delinquency

2.1 The definitions — give three, then the Indian statutory one

The DU solved paper's own formulation PYQ 2022 Q2 " A delinquent juvenile is one who habitually refuses to obey the reasonable and lawful commands of [a] parent or other persons of lawful authority and is deemed to be habitually uncontrolled or wayward. Juvenile delinquency is a serious issue because the future of mankind itself is at stake as a result of the delinquent behaviour of the youth — a national asset ."

Source	Definition	What it emphasises
Literal	From the Latin *juvenis* (young) and *delinquere* — *de* (away, entirely) + *linquere* (to leave, to abandon): hence "**to leave or abandon what is expected**", to fail in duty	Delinquency is a **failure of obligation**, not merely the commission of a crime
Cyril Burt, *The Young Delinquent* (1925)	A child is to be regarded as delinquent "when his **anti-social tendencies appear so grave that he becomes or ought to become the subject of official action**"	The **official-reaction** test — an early labelling insight
Sethna	"Juvenile delinquency is the **failure of children and youth to meet certain obligations expected of them by the society in which they live**"	The **role-expectation** test
Coleman	Behaviour by a young person that is "**not acceptable to society and is generally regarded as calling for some kind of admonishment, punishment or corrective action**"	The **social-disapproval** test
Beijing Rules, Rule 2.2	"(a) A **juvenile** is a child or young person who, under the respective legal systems, may be dealt with for an offence **in a manner which is different from an adult**; (b) An **offence** is any behaviour (act or omission) that is punishable by law under the respective legal systems; (c) A **juvenile offender** is a child or young person who is alleged to have committed or who has been found to have committed an offence."	The **differential-treatment** test — the international definition, quoted verbatim in *Pratap Singh*
JJ Act, 2015 — the Indian statutory position	The Act abandons the word "juvenile" for the offending child and uses **"child in conflict with law"**: **s.2(13)** — "a child who is **alleged or found to have committed an offence** and who has **not completed eighteen years of age on the date of commission of such offence**". **s.2(12)** — "child" means "a person who has not completed eighteen years of age"	Two decisive features: the **date of the offence** is the reckoning date (*Pratap Singh* codified), and the label is **relational** — the child is "in conflict with" law, not a criminal

Why the change of vocabulary matters — say this in the first paragraph of any answer.
The 1986 and 2000 Acts used "
juvenile
"; the 2015 Act uses "
child
" throughout and reserves "juvenile" only in the title and in s.2(35) ("'juvenile' means a child below the age of eighteen years"). The shift is delibe ...

2.2 The three dimensions of the concept

(a) The LEGAL dimension

An act which, if committed by an adult, would be an offence, but which is committed by a person below eighteen. In India there is no separate list of "juvenile offences": the child is charged under the ordinary penal law (BNS, POCSO, NDPS, Arms Act, Motor Vehicles Act) and it is the
procedure, forum and disposition
that differ, not the definition of the offence. The JJ Act's classification is by
gravity
— petty (s.2(45)), serious (s.2(54)) and heinous (s.2(33)).

2.3 Delinquency distinguished from neighbouring concepts

	Definition	Indian legal treatment
Crime	An act or omission punishable by law, committed by a person of full responsibility	BNS; tried by an ordinary criminal court; results in conviction and sentence
Juvenile delinquency	The same act committed by a person below 18	JJ Act, 2015; **inquiry** by the Board; results in a **finding** and an **order**, not a conviction and sentence (s.18); the record is destroyed (s.24(2)) and the disqualification removed (s.24(1))
Deviance	Departure from social norms, whether or not criminal	Not justiciable as such; relevant to "child in need of care and protection" (s.2(14)) and to the concept of the **uncontrollable child** (s.17 of the 1986 Act, not re-enacted in 2015)
Child in need of care and protection (CNCP)	A child who is a **victim** of circumstances rather than an offender — s.2(14), twelve categories	Child Welfare Committee under s.27; the procedure and outcomes (foster care, adoption, sponsorship) are entirely different
Neglected juvenile (1986 Act terminology)	The predecessor of CNCP	Chapter III of the 1986 Act; superseded
Youthful offender / young adult	18–21 years	Not a child. But protected by **s.6 of the Probation of Offenders Act, 1958** (the provision construed in *Sudesh Kumar*) and by **s.360 CrPC → s.401 BNSS**; and **s.19(3) and s.20 JJ Act** deal with the CCL who reaches 21 in a place of safety

(Section abridged for the compilation — full text at makelaweasy.in.)

3. "Child", "juvenile", "delinquency" — terminology, doli incapax and the age of criminal responsibility

3.1 The three ages in Indian law

Age	Legal significance	Provision
Below 7 years	**Absolute immunity.** "Nothing is an offence which is done by a child under seven years of age." The presumption of *doli incapax* is irrebuttable	**s.20 BNS** (s.82 IPC). The DU material notes the common-law origin: "Under English common law a child under seven could not commit a crime because he was held **not capable of feeling a sense of guilt** — and so was not responsible"
7 to 12 years	**Qualified immunity.** Nothing is an offence done by a child above seven and under twelve "who has **not attained sufficient maturity of understanding to judge of the nature and consequences of his conduct on that occasion**". The presumption is **rebuttable**; the burden of proving maturity is on the prosecution	**s.21 BNS** (s.83 IPC). See *Hiralal Mallick v. State of Bihar* (1977) 4 SCC 44; *Marsh Book v. State*; *Krishna Bhagwan v. State of Bihar* AIR 1989 Pat 217
12 to 18 years	**Full capacity to commit the offence, but a different system.** The child is fully *doli capax*, but is dealt with by the **JJ Board** and not by a criminal court, and cannot be sentenced to death or life imprisonment	JJ Act, 2015 ss.2(12), 2(13), 4, 14, 18, 21
16 to 18 years — heinous offences	May, after a **preliminary assessment** under s.15, be **tried as an adult** by the Children's Court	ss.15, 18(3), 19, 20, 21 JJ Act, 2015
18 to 21 years	Not a child, but a **young offender**: the court "**shall not sentence him to imprisonment**" unless it records reasons why it is not desirable to deal with him under s.3 or s.4 of the Probation of Offenders Act	**s.6, Probation of Offenders Act, 1958** — the provision construed in *Sudesh Kumar* (§32); **s.360 CrPC → s.401 BNSS**

The minimum age of criminal responsibility — a live examinable controversy.
Beijing Rule 4.1
provides that "the
minimum age of criminal responsibility shall not be fixed at too low an age level
, bearing in mind the facts of emotional, mental and intellectual maturity". The
UN Committee on the Rights of ...

3.2 The changing statutory vocabulary — a table worth reproducing

Concept	Children Act, 1960	JJ Act, 1986	JJ Act, 2000	JJ Act, 2015
The offending child	"delinquent child"	"**delinquent juvenile**"	"**juvenile in conflict with law**"	"**child in conflict with law**" — s.2(13)
The non-offending child	"neglected child"	"neglected juvenile"	"child in need of care and protection"	"**child in need of care and protection**" — s.2(14), twelve enumerated categories
Age of a boy	under 16	under 16	**under 18**	under 18
Age of a girl	under 18	under 18	under 18	under 18
The adjudicating body (offending)	Children's Court	Juvenile Court	**Juvenile Justice Board**	Juvenile Justice Board — s.4; and the **Children's Court** for transferred cases — s.2(20)
The adjudicating body (welfare)	Child Welfare Board	Juvenile Welfare Board	Child Welfare Committee	Child Welfare Committee — s.27
Extent	Union Territories only	All India (except J&K)	All India (except J&K)	**All India**, including J&K after the 2019 reorganisation
Reckoning date for age	disputed	disputed — *Umesh Chandra* v. *Arnit Das*	settled by ***Pratap Singh* (2005)** — date of the **offence**	**codified** in s.2(13) — "on the date of commission of such offence"
Adult trial of a child	never	never	never	**possible** for 16–18, heinous offences — ss.15, 18(3)

4. The extent of the problem — NCRB data on children in conflict with law

NCRB,
Crime in India 2022
, Chapter 5

Indicator (2022)	Figure	Comment
Cases registered against juveniles	**30,555**	A **decline of 2.0%** over 2021 (31,170); 29,768 in 2020. The trend is **downward**
Juvenile crime rate (per lakh of the 16–18 child population)	**6.9**	Down from 7.0 in 2021. Compare the **overall** crime rate of **422.2**. Juvenile offending is a **very small fraction** of total crime — roughly **0.5%** of all cognizable cases. **This single comparison demolishes the "juvenile crime wave" rhetoric that drove the 2015 Act.**
Juveniles apprehended	**37,780** in 30,555 cases	**33,261** under the IPC and **4,519** under Special and Local Laws
Age profile	**78.6%** were **16–18 years** (29,690 of 37,780)	The empirical basis for the 2015 Act's choice of the 16–18 bracket for preliminary assessment — and equally the reason the Act affects the **overwhelming majority** of apprehended children
Metropolitan cities (19)	**5,352** cases; **7,061** juveniles apprehended	A decrease of **8.2%** over 2021; **79.3%** in the 16–18 bracket. **Delhi** recorded the highest number of cases involving juveniles (2,436 in 2022)
Leading States	**Maharashtra** (4,406 cases), **Madhya Pradesh** (3,795)	MP recorded the highest number of **POCSO** cases against juveniles (382) and the highest number of juveniles awarded imprisonment (150)
Educational background (MP, illustrative)	illiterate 302 · up to primary 1,089 · above primary to matric 1,868 · matric to higher secondary 813 · above higher secondary 222	The overwhelming majority are **school drop-outs below matriculation** — the strongest single predictor in the Indian data, and a direct vindication of **Art. 21A** and the **Right to Education Act, 2009** as crime-prevention measures (Riyadh Guidelines, paras 20–31)
Family and economic background	The NCRB publishes a separate table — "Education and Family Background of Juveniles Arrested"	Consistently: **living with parents** in the large majority of cases, but from families with an annual income **below ₹50,000**; a substantial proportion are **homeless** or from broken homes. Delinquency in India is overwhelmingly an artefact of **poverty, illiteracy and family breakdown**, not of pathology

How to use these figures critically (Topic 3, §10 applies here in full).
(i) The NCRB uses the
principal offence rule
— one FIR, one count, the gravest head only. (ii) The figures record
apprehension
, not adjudication: many apprehended children are never found to have committed the offence. (iii) The
dar ...

5. CAUSES of juvenile delinquency

This is the single most frequently asked part of head (i). Organise the answer in the six families below and give an Indian illustration for each. The DU solved paper itself sets out the classification as a diagram, which is reproduced and expanded here.

The six families of causation, the Indian empirical picture, and the statutory response to each. Reproduce the top half of this figure in the answer-book.

5.2 Family factors — the most important single family

5.4 Economic factors

5.5 Political and "other" factors

(Section abridged for the compilation — full text at makelaweasy.in.)

6. Theoretical explanations of juvenile delinquency

The DU solved paper itself contrasts two theories in a table; expand that into the full set. Every theory of Topic 2 was built, in whole or in part, on juvenile data.

Theory	Explanation of delinquency	Indian application and statutory echo
PSYCHODYNAMIC (Freud)	"Formally proposed by Sigmund Freud. **A child is born with animal instinct and [the] ego is the realisation of real life. Superego is developed through interaction with parents. When a child does not get such guidance, then ego and superego cannot control the animal instinct, and the juvenile becomes delinquent.**" The three routes: a **defective/weak super-ego** (no internalised control); a **deviant super-ego** (controls internalised from a criminal parent); and an **over-harsh super-ego** (guilt producing a wish to be punished)	Explains offending by children from homes with an absent, criminal or brutal father. Statutory echo: **s.3(v)** family responsibility; the requirement of a **social investigation report** (s.8(3)(d), Rule 10) and of a **psychologist** in the s.15 assessment
SOCIAL LEARNING	"**A child is good when born but [the] surrounding environment influences his/her nature as the child imitates others. Delinquency results from the environment where such juvenile lives. Role of parents as well as the society is pivotal.**" Bandura: observation, imitation, modelling and vicarious reinforcement	The media and peer-group arguments; the basis for prohibiting the child's association with known criminals — **s.12(1) proviso JJ Act** (bail may be refused if release would "bring that person into association with any known criminal")
DIFFERENTIAL ASSOCIATION (Sutherland)	Criminal behaviour is **learned** in intimate personal groups; what is learned includes techniques, motives, drives, rationalisations and attitudes; a person becomes delinquent because of an **excess of definitions favourable to violation of law**; and associations vary in **frequency, duration, priority and intensity** — "priority" being precisely why childhood associations matter most	The best single explanation of gang delinquency in Indian cities; also explains the **criminogenic effect of institutions**, which is the rationale of *Sheela Barse*, *Sanjay Suri* and *Sudesh Kumar*: put a child among hardened criminals and he will learn from them
STRAIN / ANOMIE (Merton)	Delinquency as **innovation** — the child accepts the culturally prescribed goal of material success but is denied the institutional means. **Cohen**'s *Delinquent Boys* (1955) adds **status frustration** and **reaction formation**: working-class boys measured by a "middle-class measuring rod" invert its values and produce a "non-utilitarian, malicious and negativistic" subculture	Cohen explains the apparently **purposeless** vandalism and joyriding that puzzles Indian courts. **Cloward and Ohlin**'s illegitimate opportunity structure explains why delinquency takes a criminal form in some neighbourhoods, a conflict form in others, and a retreatist (drug) form in a third
CONTROL THEORY (Hirschi)	The question is not why children offend but **why most do not**. They do not because of the social bond — **attachment, commitment, involvement and belief**. Delinquency follows when the bond weakens	Directly maps onto the Indian data (family, school, employment). The statutory expression is the whole of Chapter VII of the JJ Act — **restoration, sponsorship, foster care, after-care (s.46)** — all of which are bond-building measures
LABELLING (Becker, Lemert)	The official reaction **creates** the career. **Primary deviance** is common and transient; it is the label — arrest, trial, institutionalisation — that produces **secondary deviance**, a delinquent self-concept and a delinquent career	**This theory is written into the JJ Act.** s.3(xiv) **principle of fresh start**; s.24 removal of disqualification and **destruction of records**; s.74 prohibition on **disclosure of identity** (6 months and/or ₹2 lakh); s.3(xiii) principle of **repatriation and restoration**; s.3(x) **principle of diversion**; s.18(1)(a)–(c) non-institutional dispositions. Quote this: **the JJ Act is labelling theory in statutory form**
SUBCULTURE AND DRIFT (Matza)	Most delinquents are not committed to a deviant value system; they **drift** between conformity and delinquency, using **techniques of neutralisation** — denial of responsibility, denial of injury, denial of the victim, condemnation of the condemners, appeal to higher loyalties	Explains why the overwhelming majority of delinquents **desist** in early adulthood — the empirical fact that most strongly supports a reformative rather than a punitive response
ECONOMIC (Bonger)	Poverty, the egoism of a capitalist economy and the demoralisation of the poor	The NCRB income and education data; child labour; street children; and *Gaurav Jain*'s "socio-economic empowerment" formula
BIOLOGICAL / POSITIVIST	Lombroso's born criminal; Sheldon's mesomorphy; XYY; hormonal accounts of female delinquency	Mention and reject: refuted by Goring, and in any event incapable of explaining the transience of adolescent offending

The one-sentence synthesis for an answer.
"No single theory explains juvenile delinquency:
control theory
explains why most children do not offend,
differential association
strain
explain why some do,
drift
explains why almost all of them stop, and
labelling
explains why the few who are processed by the syste ...

7. The international framework

Reproduced verbatim from

Pratap Singh

, DU Case Material

DU

The DU material reproduces, in *Pratap Singh v. State of Jharkhand*, an unusually full account of the **Beijing Rules**. That account is the best single source for this part of the syllabus and should be quoted directly.

7.2 The other instruments

Instrument	Year	Content · India's position
Geneva Declaration of the Rights of the Child	1924	League of Nations; the first international statement of children's rights
UN Declaration of the Rights of the Child	1959	Ten principles; "the child… shall be given the **best interests**" standard; India voted for it. It is the source of the "**nation's children are a supremely important asset**" language quoted by the Supreme Court in *Sheela Barse* and of India's **National Policy for the Welfare of Children, 1974**
Second UN Congress on the Prevention of Crime and the Treatment of Offenders, London	1960	The DU material records: "In 1966 [*sic* — the Congress was held in 1960] at the second United Nations Congress on the Prevention of Crime and Treatment of Offenders at London this issue was discussed and **several therapeutic recommendations were adopted**"
BEIJING RULES — UN Standard Minimum Rules for the Administration of Juvenile Justice	1985	See §7.1. **The direct source of the JJ Act, 1986**, whose Statement of Objects records that it was enacted "to bring the operation of the juvenile justice system in the country in conformity with" these Rules
UN CONVENTION ON THE RIGHTS OF THE CHILD (UNCRC)	1989	**Art. 1** — a child is every human being below **18** unless majority is attained earlier under national law. **Art. 3** — the **best interests** of the child a primary consideration. **Art. 37** — no capital punishment or life imprisonment without possibility of release for offences committed below 18; arrest, detention or imprisonment only as a **measure of last resort and for the shortest appropriate period of time**; separation from adults. **Art. 40** — the right of every child alleged to have infringed the penal law to be treated in a manner consistent with the promotion of his **sense of dignity and worth**, a minimum age of criminal responsibility, and **diversion** wherever appropriate. **India ratified on 11 December 1992** — the direct cause of the **JJ Act, 2000**, which raised the age of a boy from 16 to 18
RIYADH GUIDELINES — UN Guidelines for the Prevention of Juvenile Delinquency	1990	The **prevention** instrument. Fundamental principle: "**The prevention of juvenile delinquency is an essential part of crime prevention in society**… young persons should have an **active role and partnership** within society and should not be considered as mere objects of socialization or control." Focuses on **family, education, community, mass media, social policy and legislation**. Guideline 5 warns against "**labelling a young person as deviant, delinquent or pre-delinquent**"
JDL RULES — UN Rules for the Protection of Juveniles Deprived of their Liberty (Havana Rules)	1990	Standards for institutions: deprivation of liberty as a last resort; separation from adults; education, health, contact with the family; complaint mechanisms; independent inspection. The Indian counterpart is Chapter VII of the JJ Act and the Model Rules, 2016
Tokyo Rules — UN Standard Minimum Rules for Non-custodial Measures	1990	Diversion and community sanctions — the source of s.18(1)(a)–(e) of the JJ Act
Vienna Guidelines for Action on Children in the Criminal Justice System	1997	Implementation guidance
Hague Convention on Protection of Children and Co-operation in Respect of Intercountry Adoption	1993	India ratified in **2003**; the basis of Chapter VIII of the JJ Act, 2015 and of **CARA** (s.68)
Optional Protocols to the CRC — on the sale of children, child prostitution and child pornography; and on the involvement of children in armed conflict	2000	India ratified both in **2005**; the source of POCSO, 2012 and of **s.83 JJ Act** (use of a child by a militant group)
ILO Conventions 138 and 182	1973; 1999	Minimum age and the worst forms of child labour; both ratified by India in **2017**
General Comment No. 24 (2019), UN Committee on the Rights of the Child	2019	Recommends a minimum age of criminal responsibility of **at least 14**, and states that **trying children as adults is contrary to Art. 40** — the strongest international criticism of India's s.15

7.3 How international law enters Indian law — the Pratap Singh passage

(Section abridged for the compilation — full text at makelaweasy.in.)

8. Evolution of juvenile justice law in India — 1850 to 2021

DU PYQ 2017 Q5(a) — "describe the evolution and development of law relating to juvenile justice in India"

Reproduce this timeline for PYQ 2017 Q5(a). Note the pattern: each statute is enacted to implement an international instrument — 1986 for the Beijing Rules, 2000 for the UNCRC — except 2015, which was enacted in response to

domestic public opinion

and moves

away

from the international standard.

8.3 The seven objects of the JJ Act, 1986 — reproduced verbatim from the DU material

(Section abridged for the compilation — full text at makelaweasy.in.)

9. The constitutional framework

Article	Content	Application to juvenile justice
Art. 14	Equality before the law	The basis of the challenge to the sex-based age under the 1986 Act, and of the current challenge to s.15 (why should a 17-year-old accused of a heinous offence be treated differently from one accused of a serious offence?). Answered in *Salil Bali* and *Subramanian Swamy v. Raju* on the footing that **age is an intelligible differentia** with a rational nexus

Art. 15(3)	"Nothing in this article shall prevent the State from making **any special provision for women and children**"	The **enabling** provision. Protective discrimination in favour of children is constitutionally mandated, not merely permitted. Cite this first in any answer on the vires of the JJ Act
Art. 20(1)	No conviction except for violation of a law in force at the time of the act; no greater penalty	Relied on in *Umesh Chandra v. State of Rajasthan* (1982) 2 SCC 202 and approved in *Pratap Singh* — see §30, where the DU material reproduces the passage: an interpretation fixing the age at the date of trial "would go against the provisions of Art. 20(1)"
Art. 21	Life and personal liberty; the right to **live with human dignity** and to a **speedy trial**	The foundation of *Sheela Barse* (children in jail; time-limits for investigation and trial), *Sanjay Suri*, and the whole of the institutional jurisprudence. *Pratap Singh*: "In India such a right of expeditious disposal is contained in Article 21 of the Constitution, the relevance whereof for the purpose of interpretation of the Act cannot be minimized."
Art. 21A	Free and compulsory education for children aged 6–14 (86th Amendment, 2002)	The single most effective preventive measure, given that the NCRB data shows most apprehended juveniles are drop-outs. Implemented by the **Right of Children to Free and Compulsory Education Act, 2009**
Art. 22	Protection against arrest and detention	Read with **s.10 JJ Act** — a child alleged to be in conflict with law shall **in no case** be placed in a police lock-up or lodged in jail
Art. 23	Prohibition of traffic in human beings and forced labour	Trafficking of children; **ss.143–144 BNS**; **ss.76–79 JJ Act**
Art. 24	"**No child below the age of fourteen years shall be employed to work in any factory or mine or engaged in any other hazardous employment**"	The Child and Adolescent Labour (Prohibition and Regulation) Act, 1986; *M.C. Mehta v. State of T.N.* (1996) 6 SCC 756
Art. 39(e)	The State shall direct its policy towards securing "that the **tender age of children is not abused**" and that citizens are not forced by economic necessity into avocations unsuited to their age or strength	Cited in *Sheela Barse*, *Vishal Jeet* and *Gaurav Jain*
Art. 39(f)	"That **children are given opportunities and facilities to develop in a healthy manner and in conditions of freedom and dignity and that childhood and youth are protected against exploitation and against moral and material abandonment**"	**The single most important Directive Principle for this topic.** Quoted verbatim by the Supreme Court in *Sheela Barse* as the constitutional foundation of its directions. Note the 42nd Amendment (1976) substituted the present text
Art. 45	Early childhood care and education for children below six years (as substituted by the 86th Amendment)	Preventive
Art. 47	Duty of the State to raise the level of nutrition and standard of living and to improve public health; prohibition of intoxicating drinks and drugs	Substance abuse among juveniles; **s.78 JJ Act**
Art. 51A(k)	Fundamental duty of a parent or guardian "**to provide opportunities for education to his child or, as the case may be, ward between the age of six and fourteen years**" (86th Amendment)	The constitutional expression of s.3(v) — the principle of family responsibility
Art. 253 and Entry 14, List I	Power of Parliament to legislate to implement international treaties	The constitutional source of the 1986, 2000 and 2015 Acts, each of which recites the relevant instrument in its preamble. Important because "**prisons, reformatories, Borstal institutions**" is Entry 4 of List II (State List) — without Art. 253 Parliament could not have legislated
Art. 254	Repugnancy	The whole of ***Raghbir v. State of Haryana*** (§29) turns on Art. 254 and on whether s.27 CrPC is repugnant to the Haryana Children Act

The constitutional argument in one paragraph.
"A separate juvenile justice system is not an act of legislative grace; it is a constitutional obligation.
Article 15(3)
expressly permits special provision for children;
Articles 39(e) and (f)
direct the State to protect childhood against exploitation and ag ...

◆ 10. The JJ Act, 2015 — object, scheme and architecture

PRESCRIBED READING

DU

Act 2 of 2016 · in force 15 January 2016

▸ 10.1 The long title and preamble — learn the opening words

Long title, JJ (Care and Protection of Children) Act, 2015 "An Act to consolidate and amend the law relating to children alleged and found to be in conflict with law and children in need of care and protection by catering to their basic needs through proper care, protection, development, treatment, social re-integration , by adopting a child-friendly approach in the adjudication and disposal of matters in the best interest of children and for their rehabilitation through processes provided, and institutions and bodies established, herein under and for matters connected therewith or incidental thereto."

▸ 10.2 The architecture — ten chapters, 112 sections

Chapter	Sections	Content
I — Preliminary	1–2	Extent and commencement; **101 definitions** in s.2
II — General Principles of Care and Protection of Children	3	The **sixteen general principles** — the interpretive key to the whole Act
III — Juvenile Justice Board	4–9	Constitution, procedure, powers, placement, functions and responsibilities; procedure where a claim of juvenility is raised before a court
IV — Procedure in Relation to Children in Conflict with Law	10–26	Apprehension; role of the person in whose charge the child is; bail; information to parents and Probation Officer; inquiry; **preliminary assessment**; orders; **Children's Court**; the child who attains 21; prohibited orders; appeals; revision; procedure; legal aid
V — Child Welfare Committee	27–30	Constitution, procedure, powers and **eighteen functions** of the CWC
VI — Procedure in Relation to Children in Need of Care and Protection	31–38	Production before the Committee; mandatory reporting of a found child; surrender; inquiry; **orders**; declaration as legally free for adoption
VII — Rehabilitation and Social Re-integration	39–55	Process; restoration; open shelters; foster care; sponsorship; after-care; children's homes; observation homes; special homes; **place of safety**; fit facility; fit person; registration of child care institutions; management committees; inspection; evaluation
VIII — Adoption	56–73	Eligibility; in-country and inter-country adoption; procedure; **CARA**; State Agencies; adoption agencies; effect of an adoption order
IX — Other Offences Against Children	74–89	Sixteen offences, from disclosure of identity to corporal punishment, to use of a child by a militant group, to sale and procurement, to kidnapping of an adopted child

X — Miscellaneous	90–112	Attendance; transfers; release; monitoring by the NCPCR/SCPCR; public awareness; **s.94 presumption and determination of age**; **s.101 appeals**; power to make rules; repeal and savings

(Section abridged for the compilation — full text at makelaweasy.in.)

◆ 11. Definitions — section 2, clause by clause

Section 2 contains 101 definitions. Learn the following twenty; the ones marked ★ are indispensable.

Clause	Term	Definition and comment
2(1)	Abandoned child	A child deserted by his biological or adoptive parents or guardians, who has been declared as abandoned by the Committee after due inquiry
2(2)	Adoption	The process through which the adopted child is **permanently separated** from his biological parents and becomes the lawful child of his adoptive parents with all the rights, privileges and responsibilities attached to a biological child
2(9)	Best interest of child ★	"The basis for any decision taken regarding the child, to ensure **fulfilment of his basic rights and needs, identity, social well-being and physical, emotional and intellectual development**." The statutory expression of **Art. 3 UNCRC** and of **s.3(iv)**
2(12)	**Child ★**	"A person who has **not completed eighteen years of age**"
2(13)	**Child in conflict with law ★**	"A child who is **alleged or found to have committed an offence** and who has **not completed eighteen years of age on the date of commission of such offence**." Note: (i) "alleged **or** found" — protection attaches from the moment of allegation; (ii) the reckoning date is the **date of the offence**, codifying *Pratap Singh* (§30); (iii) the child is "in conflict with" the law, not a criminal
2(14)	**Child in need of care and protection ★**	Twelve categories: (i) without home or settled place of abode and without ostensible means of subsistence; (ii) found working in contravention of labour laws, or begging, or living on the street; (iii) residing with a person who has **injured, exploited, abused or neglected** the child, or has threatened to do so, or has killed, abused, neglected or exploited some other child and there is reasonable likelihood of the same happening to this child; (iv) **mentally ill or mentally or physically challenged or suffering from terminal or incurable disease**, having no one to support or look after; (v) having a parent or guardian **unfit or incapacitated**; (vi) **without parental care** — abandoned, surrendered, or a missing/run-away child whose parents cannot be found; (vii) **victim of or affected by any armed conflict, civil unrest or natural calamity**; (viii) at **imminent risk of marriage before attaining the age of marriage** and whose parents or others are likely to be responsible for the solemnisation; (ix) found **vulnerable and likely to be inducted into drug abuse or trafficking**; (x) being or likely to be **abused for unconscionable gains**; (xi) **victim of any armed conflict**; (xii) **a victim of or affected by any natural calamity**. **Note clause (ix) — the bridge from Topic 3**
2(15)	Child friendly	Any behaviour, conduct, practice, process, attitude, environment or treatment that is **humane, considerate and in the best interest of the child**
2(20)	**Children's Court ★**	"A court established under the **Commissions for Protection of Child Rights Act, 2005** or a **Special Court under the Protection of Children from Sexual Offences Act, 2012**, wherever existing, and where such courts have not been designated, the **Court of Sessions** having jurisdiction to try offences under the Act." **Crucial:** the Children's Court is **not** the Board; it is a Sessions-level court exercising a special jurisdiction
2(21)	Child care institution (CCI)	Children's home, open shelter, observation home, special home, place of safety, specialised adoption agency and a fit facility **registered under s.41**
2(33)	**Heinous offences ★**	"Offences for which the **minimum punishment** under the Indian Penal Code or any other law for the time being in force is **imprisonment for seven years or more**." **Note the word "minimum".** In ***Shilpa Mittal v. State (NCT of Delhi)*** **(2020) 2 SCC 787** the Supreme Court held that an offence with a **maximum** of seven years or more but **no minimum** (e.g. s.304 Part II IPC) is **not** heinous; such offences form a **fourth category** and are to be treated as **serious** offences until Parliament legislates
2(35)	Juvenile	"A child below the age of eighteen years." Retained only for consistency with the title
2(45)	**Petty offences ★**	Offences for which the **maximum punishment** under the IPC or any other law is imprisonment **up to three years**
2(54)	**Serious offences ★**	Offences for which the punishment is imprisonment **between three and seven years**. **Amended in 2021**: now includes offences for which the **maximum** punishment is more than seven years but **no minimum** is prescribed, or a minimum of less than seven years is prescribed — thereby enacting *Shilpa Mittal*
2(46)	Place of safety	Any place or institution, **not being a police lock-up or jail**, established separately or attached to an observation home or a special home, the person in charge of which is willing to receive and take care of children alleged or found to be in conflict with law, by an order of the Board or the Children's Court, **for a child above 16 accused of or convicted of a heinous offence**
2(48)	Probation officer	An officer appointed by the State under the Probation of Offenders Act, 1958, or a Child Welfare Officer of an institution
2(52)	Registered	Registration of a child care institution under s.41
2(56)	Special home	An institution established by a State Government or a voluntary or non-governmental organisation, registered under s.48, for housing and providing rehabilitative services to children in conflict with law who are **found**, through inquiry, to have committed an offence
2(57)	Special juvenile police unit (SJPU)	A unit of the police force designated for handling children under s.107, with at least one officer of or above the rank of **Inspector** and two paid social workers
2(60)	Surrendered child	A child relinquished by the parent or guardian to the Committee on account of physical, emotional and social factors beyond their control, and declared as such by the Committee
2(62)	Observation home	An institution for the **temporary reception, care and rehabilitation** of any child alleged to be in conflict with law, **during the pendency of any inquiry**

The three-fold classification is the hinge of the whole Act.
Learn it as a ladder:
PETTY — maximum up to 3 years
(s.2(45));
SERIOUS — 3 to 7 years
(s.2(54));
HEINOUS — minimum 7 years or more
(s.2(33)). The consequences:
petty
→ s.14(2), the inquiry must be completed in
4 months
, extendable by
, failing which …

◆ 12. The SIXTEEN general principles — section 3

Section 3 is unique in Indian legislation: it lays down sixteen principles which "**shall be followed by the Central Government, State Governments, the Board, and other agencies, as the case may be, while implementing the provisions of this Act**". They are the interpretive key and should be cited by number.

#	Principle	Content and statutory expression

(i)	**Principle of presumption of innocence**	"Any child shall be presumed to be an **innocent of any mala fide or criminal intent up to the age of eighteen years**." This is a remarkable provision — it presumes the **absence of criminal intent**, not merely innocence of the charge. Rule 10A(3) of the Model Rules repeats it for the preliminary assessment
(ii)	**Principle of dignity and worth**	All human beings shall be treated with equal dignity and rights
(iii)	**Principle of participation**	Every child shall have a right to be heard and to participate in all processes and decisions affecting his interest, and his views shall be taken into consideration with due regard to age and maturity — **Art. 12 UNCRC**; s.8(3)(a)
(iv)	**Principle of best interest ★**	All decisions regarding the child shall be based on the primary consideration that they are **in the best interest of the child** and to help the child to develop full potential
(v)	**Principle of family responsibility**	The **primary responsibility** of care, nurture and protection of the child shall be that of the **biological family** or adoptive or foster parents, as the case may be
(vi)	**Principle of safety**	All measures shall be taken to ensure that the child is **safe and is not subjected to any harm, abuse or maltreatment while in contact with the care and protection system**, and thereafter — the direct statutory answer to *Sanjay Suri*
(vii)	**Positive measures**	All resources are to be mobilised, including those of the family and community, for promoting the well-being, facilitating development of identity and providing an inclusive and enabling environment, **to reduce vulnerabilities of children and the need for intervention under this Act** — the Riyadh Guidelines in statutory form
(viii)	**Principle of non-stigmatising semantics**	"**Adversarial or accusatory words are not to be used** in the processes pertaining to a child" — the labelling theory (§6) made law
(ix)	**Principle of non-waiver of rights**	No waiver of any right of the child is permissible or valid, whether sought by the child or the person acting on his behalf, or a Board or a Committee, and **any non-exercise of a fundamental right shall not amount to waiver**
(x)	**Principle of equality and non-discrimination**	No discrimination on any grounds including sex, caste, ethnicity, place of birth, disability and equality of access, opportunity and treatment
(xi)	**Principle of right to privacy and confidentiality ★**	Every child shall have a right to protection of his privacy and confidentiality by all means and throughout the judicial process — enforced by **s.74** (disclosure of identity: 6 months and/or ₹2 lakh) and **s.99** (reports to be treated as confidential)
(xii)	**Principle of institutionalisation as a measure of last resort ★**	"A child shall be placed in institutional care as a **step of last resort** after making a reasonable inquiry." **Beijing Rule 13.1 and Art. 37(b) UNCRC in statutory form.** Cite this in every bail and disposition question
(xiii)	**Principle of repatriation and restoration**	Every child in the juvenile justice system shall have the right to be **re-united with his family** at the earliest and to be **restored to the same socio-economic and cultural status** as before, unless such restoration is not in his best interest
(xiv)	**Principle of fresh start ★**	"All past records of any child under the Juvenile Justice system should be **erased** except in special circumstances." Implemented by **s.24(2)** — the Board shall direct the **destruction of the relevant records** after the expiry of the period of appeal or a reasonable period, except where the child has been found to have committed a heinous offence and has attained the age of 16
(xv)	**Principle of diversion ★**	"Measures for dealing with children in conflict with law **without resorting to judicial proceedings** shall be promoted **unless it is in the best interest of the child or the society as a whole**" — Art. 40(3)(b) UNCRC; Beijing Rule 11
(xvi)	**Principles of natural justice**	Basic procedural standards of fairness shall be adhered to, including the **right to a fair hearing, rule against bias and the right to review**, by all persons or bodies acting in a judicial capacity under this Act. **The provision relied on in *Barun Chandra Thakur*** to hold that a s.15 assessment carrying serious civil consequences must give a reasonable opportunity

◆ 13. The Juvenile Justice Board — constitution, powers and functions (ss.4–9)

DU PYQ 2017 Q5(b) — "powers and functions of the JJ Board and the CWC"

▸ 13.1 Section 4 — constitution

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s.4, JJ Act, 2015 — as set out in the DU model answer PYQ " Section 4(1): Notwithstanding anything contained in the Code of Criminal Procedure, 1973, the State Government shall constitute for every district one or more Juvenile Justice Boards for exercising the powers and discharging its functions relating to children in conflict with law under this Act."
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▸ 13.2 Sections 7–8 — procedure, powers and functions

(Section abridged for the compilation — full text at makelaweasy.in.)

◆ 14. Procedure in relation to a child in conflict with law — apprehension to inquiry (ss.10–14)

▸ 14.1 Section 10 — apprehension

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s.10, as set out in the DU model answer PYQ 2022 Q2 " Section 10 — Apprehension of [a] child alleged to be in conflict with law. … The child shall be placed under the charge of [the] special juvenile police unit or the designated child welfare police [officer] … The proviso to Section 10 states that in no case [shall] a child alleged to be in conflict [with] law… be placed in a police lock-up or lodged in a jail. "
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- The child must be produced before the Board **within 24 hours** of apprehension, excluding the time necessary for the journey.
- The **Child Welfare Police Officer** (s.107 — at least one in every police station, of or above the rank of **Assistant Sub-Inspector**) and the **Special Juvenile Police Unit** (s.107(2)) handle the child.
- **Rule 8 of the Model Rules, 2016**: the police shall **not** handcuff the child, shall be in plain clothes, shall not require the child to sign any statement, and shall inform the parent or guardian and the Probation Officer immediately.
- The child must be placed in an **observation home** (s.2(62)) during the pendency of the inquiry, if not released on bail.

▸ 14.3 Section 13 — information to parents, guardian and Probation Officer

▸ 14.4 Section 14 — inquiry by the Board and the time-limits

Provision	Content
s.14(1)	Where a child alleged to be in conflict with law is produced before the Board, the Board shall **hold an inquiry** in accordance with the provisions of the Act and may pass such orders in relation to the child as it deems fit under ss.17 and 18
s.14(2)	The inquiry shall be **completed within a period of four months** from the date of first production of the child before the Board, **unless** the period is extended, for a maximum period of **two more months**, by the Board, having regard to the circumstances of the case and **after recording the reasons in writing**
s.14(3)	"A **preliminary assessment in case of heinous offences under section 15 shall be disposed of by the Board within a period of THREE MONTHS from the date of first production of the child before the Board.**" **Held to be DIRECTORY, not mandatory, in *Child in Conflict with Law v. State of Karnataka* (2024) (§39)** — the period may be extended for reasons recorded in writing by the CJM or CMM
s.14(4)	If the inquiry by the Board under sub-s.(2) **for petty offences** remains inconclusive even after the extended period, the **proceedings shall stand terminated**. **Proviso:** for serious or heinous offences, the CJM or CMM may extend the period after recording reasons, on a report of the Board

s.14(5)	The Board shall take the following steps to ensure a fair and speedy inquiry: **(a)** at the time of initiating the inquiry the Board shall satisfy itself that the child has **not been subjected to any ill-treatment by the police or by any other person**, including a lawyer or probation officer, and take corrective steps if there has been; **(b)** in all cases the proceedings shall be conducted **in simple language** which the child is able to understand and, wherever necessary, with the assistance of an interpreter; **(c)** where the child is **not represented by a legal practitioner**, the Board shall provide a lawyer through the legal services authority; **(d) every child brought before the Board shall be given the opportunity of being heard and participate in the inquiry**; **(e)** cases of **petty offences** may be disposed of by the Board through **summary proceedings** as per the procedure prescribed under the CrPC; **(f)** inquiry of **serious offences** shall be disposed of by the Board by following the procedure for **trial in summons cases**; **(g)** inquiry of **heinous offences** — for a child **below 16**, by following the procedure for **trial in summons cases**; and for a child **above 16**, by following the procedure prescribed for **trial in summons cases** for the **preliminary assessment**, and thereafter as under s.15 and s.18

(Section abridged for the compilation — full text at makelaweasy.in.)

◆ 15. BAIL — section 12

(Section abridged for the compilation — full text at makelaweasy.in.)

◆ 16. PRELIMINARY ASSESSMENT — section 15, and transfer under section 18(3)

The central controversy of the 2015 Act

DU PYQ 2022 Q2 turns on this

▸ 16.2 The four heads of assessment, explained

Head	What has to be assessed	Authority
1. Mental capacity to commit the offence	Not IQ alone. The Board must assess **cognitive maturation** and the capacity for reasoned, planned action. *Barun Chandra Thakur*: "**cognitive maturation is highly dependent on hereditary factors. Emotional development is less likely to affect cognitive maturation. However, if emotions are too intense and the child is unable to regulate emotions effectively, then intellectual insight/knowledge may take a back seat.**" The criticism in that case was that the Board had obtained only the child's **IQ** and not a report on his ability to comprehend the offence	*Barun Chandra Thakur* (§37)
2. Physical capacity to commit the offence	Whether the child was physically capable of doing the act alleged — height, build, strength relative to the victim and the weapon	Rule 10A, Model Rules, 2016
3. Ability to understand the CONSEQUENCES of the offence	*Barun Chandra Thakur*: "the term '**consequence**' under s.15(1) does **not mean only immediate consequences, but also far-reaching ones in the future**. The assessment of this attribute cannot be limited to the victim only; it must include what may fall upon the **family of the victim, the child, and their family**." This is the head most often assessed superficially	*Barun Chandra Thakur*
4. Circumstances in which the offence was allegedly committed	The social investigation report; peer influence, provocation, intoxication, planning, concealment. **But not guilt** — the Explanation says the assessment is **not a trial**, and the Delhi High Court has held that **extracting a confession** from the child in the course of the preliminary assessment report is "**unconstitutional and beyond the scope of a report of preliminary assessment**"	Delhi HC, order of 19 September 2022 in the *Crl. Ref. 3/2016* proceedings

▸ 16.4 The criticisms of section 15 — the essay content

(Section abridged for the compilation — full text at makelaweasy.in.)

◆ 17. Orders that may and may not be passed — sections 18, 21, 23 to 26

▸ 17.1 Section 18 — orders regarding a child found to have committed an offence

Provision	Order	Note
s.18(1)(a)	**Allow the child to go home after advice or admonition**, following appropriate inquiry and counselling to such child and to his parents or guardian	The least intrusive disposal; note the parallel with s.3 of the Probation of Offenders Act, 1958 and s.401 BNSS
s.18(1)(b)	Direct the child to **participate in group counselling** and similar activities	—
s.18(1)(c)	Order the child to perform **community service** under the supervision of an organisation or institution, or a specified person, persons or group of persons identified by the Board	Compare the new **s.4(f) BNS**, which introduces community service into the general penal law for the first time
s.18(1)(d)	Order the child or parents or guardian to **pay a fine** — provided that, in case the child is working, it may be ensured that the provisions of any labour law are not violated	—
s.18(1)(e)	Direct the child to be **released on probation of good conduct** and placed under the care of a **parent, guardian or fit person**, on execution of a bond, with or without surety, **for a period not exceeding three years**	—
s.18(1)(f)	Direct the child to be released on probation of good conduct and placed under the care and supervision of any **fit facility** for ensuring the good behaviour and child's well-being **for not more than three years**	—
s.18(1)(g)	Direct the child to be sent to a **SPECIAL HOME**, for such period, **not exceeding three years**, as it thinks fit, for providing reformative services including education, skill development, counselling, behaviour modification therapy and psychiatric support	**The maximum institutional disposal is THREE YEARS** — for any offence, however grave, where the case is retained by the Board. **Proviso:** where the conduct and behaviour of the child is such that it would not be in his interest, or in the interest of other children, to send him to a special home, the Board may send him to a **place of safety**
s.18(2)	In addition to any order under s.18(1)(a)–(g), the Board may pass orders to — (i) attend school; (ii) attend a vocational training centre; (iii) attend a therapeutic centre; (iv) prohibit the child from visiting, frequenting or appearing at a specified place; (v) undergo a de-addiction programme	The Indian version of a **community order with requirements**
s.18(3)	Transfer to the Children's Court after a s.15 preliminary assessment	See §16

▸ 17.2 Section 21 — the absolute prohibition

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s.21, JJ Act, 2015 " No child in conflict with law shall be sentenced to death or for life imprisonment without the possibility of release, for any such offence, either under the provisions of this Act or under the provisions of the Indian Penal Code or any other law for the time being in force. "
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Read with **Art. 37(a) UNCRC**, **Beijing Rule 17.2** and the corresponding provision in the 1986 Act (s.22) and the 2000 Act (s.16). Note the crucial drafting change: the 2000 Act said "shall not be sentenced to death or life imprisonment"; the 2015 Act says "**life imprisonment without the possibility of release**", which, read with s.19(3) and s.20, contemplates that a transferred child may serve a sentence with the possibility of release. Whether that is a dilution of Art. 37(a) is a good examination point.

▸ 17.3 Sections 23 to 26

Section	Content

s.23 — No joint proceedings with a person who is not a child	"Notwithstanding anything contained in s.223 of the CrPC or in any other law for the time being in force, **there shall be no joint proceedings of a child alleged to be in conflict with law, with a person who is not a child**." If during an inquiry it is found that the person is not a child, the Board shall order separate trial by the appropriate court. **This is the section on which *Union of India v. Ex-GNR Ajeet Singh* (§33) turns.** (Predecessors: s.25 of the 1986 Act; s.18 of the 2000 Act)
s.24 — Removal of disqualification attaching to conviction ★	**s.24(1):** "Notwithstanding anything contained in any other law for the time being in force, **a child who has committed an offence and has been dealt with under the provisions of this Act shall not suffer disqualification, if any, attached to a conviction of an offence under such law**." **Proviso:** this does not apply to a child above 16 found to have committed a **heinous** offence and tried as an adult under s.19(1)(i). **s.24(2):** the Board shall make an order directing the **Police, or the Children's Court, to destroy the relevant records** of such conviction after the expiry of the period of appeal or a reasonable period as may be prescribed. **Proviso:** in case of a heinous offence where the child is found to be in conflict with law under s.19(1)(i), **the relevant records shall be retained by the Children's Court**. **This is s.3(xiv), the principle of fresh start, in operation**
s.25 — Special provision in respect of pending cases	All proceedings pending before any Board or court on the date of commencement of this Act **shall be continued in that Board or court as if this Act had not been enacted**
s.26 — Provision with respect to the runaway child	Notwithstanding anything contained in any other law, any police officer may take charge of a child who has run away from a child care institution, and shall produce the child before the Board or Committee without any loss of time but **within twenty-four hours**. **No child shall be charged with any offence for running away** — an important provision that abolishes the old "escape" offence

◆ 18. The Children's Court — sections 19 to 21

(Section abridged for the compilation — full text at makelaweasy.in.)

◆ 19. AGE DETERMINATION — section 94, and the eleven principles

The subject of 4 of the 11 prescribed cases

▸ 19.2 The historical development — know all four regimes

Regime	Provision	Procedure
JJ Act, 1986	s.32 — presumption and determination of age	Competent authority to make "due inquiry" and record a finding; no hierarchy of documents
JJ Act, 2000	**s.49** — presumption and determination of age; **s.7A** (inserted w.e.f. 22 August 2006) — procedure to be followed when a claim of juvenility is raised before any court	s.7A: "the court **shall make an inquiry, take such evidence as may be necessary (but not an affidavit)** so as to determine the age of such person, and shall record a finding whether the person is a juvenile or a child or not, stating his age as nearly as may be"; **proviso** — the claim may be raised before any court and **shall be recognised at any stage, even after final disposal of the case**. **s.7A(2)** — if found to be a juvenile, the court shall forward him to the Board and **the sentence, if any, passed shall be deemed to have no effect**
JJ Rules, 2007, Rule 12	The detailed procedure under the 2000 Act	Rule 12(3): (a)(i) matriculation or equivalent certificate, if available; in its absence (ii) the date of birth certificate from the school first attended; in its absence (iii) the birth certificate given by a corporation, municipal authority or panchayat; and **only in the absence of (i), (ii) and (iii)**, (b) medical opinion from a **duly constituted Medical Board**, which shall declare the age of the juvenile. Rule 12(3) proviso: while determining the age, **the benefit of the margin of one year may be given to the child on the lower side**. Rule 12(5): no further inquiry is to be conducted if the age is so determined
JJ Act, 2015	**s.94** (and s.9(2)–(3) for a claim before a court)	The three-step hierarchy above. **Two differences from Rule 12 to note:** (i) the 2015 Act puts the **school certificate and the matriculation certificate on the same footing** in clause (i), whereas Rule 12 preferred the matriculation certificate; (ii) the medical test under the 2015 Act is ordered by the **Board or Committee**, whereas under Rule 12 the opinion had to come from a **duly constituted Medical Board**; and (iii) **the 2015 Act contains no express "one year on the lower side" benefit** — but the courts continue to apply it as a rule of prudence

▸ 19.3 The ELEVEN principles of Rishipal Singh Solanki — learn these

(Section abridged for the compilation — full text at makelaweasy.in.)

◆ 20. Children in need of care and protection; the Child Welfare Committee (ss.27–38)

DU PYQ 2017 Q5(b) asks for the CWC's powers and functions

▸ 20.2 Section 30 — the EIGHTEEN functions of the Committee

▸ 20.3 Procedure in relation to CNCP — sections 31 to 38

Section	Content
s.31 — Production before the Committee	Any child in need of care and protection may be produced before the Committee by any of eight persons: any police officer or SJPU or Child Welfare Police Officer or labour inspector or a designated NGO representative; any public servant; Childline services or a registered voluntary organisation; any social worker or public-spirited citizen; **the child himself**; or any nurse, doctor or management of a nursing home, hospital or maternity home. Production is to be **within 24 hours** excluding journey time
s.32 — Mandatory reporting regarding a child found separated from a guardian	Any person or police officer or organisation who finds and takes charge of an orphan or abandoned or surrendered child shall **within twenty-four hours** (excluding journey time) give information to Childline services, the District Child Protection Unit, the Committee or the SJPU. **Failure to comply is an offence under s.33** — imprisonment up to **six months or a fine of ₹10,000 or both**
s.34 — Penalty for non-reporting	Failure of a hospital or nursing home or maternity home to report
s.35 — Surrender of children	A parent or guardian who wishes to surrender a child shall make an application to the Committee; the Committee shall, after inquiry, give **two months' time to the parents to reconsider**; a surrender deed is to be executed before the Committee; and no child shall be given for adoption before the expiry of that period
s.36 — Inquiry	On production of a child, the Committee shall hold an inquiry and the Committee **on its own or on the report of any person or agency** may pass an order to send the child to a children's home or a fit facility or fit person, and for speedy social investigation by a social worker or Child Welfare Officer or Child Welfare Police Officer. The social investigation shall be completed **within fifteen days** and the inquiry shall be **completed within four months** of the production of the child, extendable by **two months** by the Committee for reasons recorded in writing
s.37 — Orders passed regarding a child in need of care and protection	The Committee may pass one or more of the following dispositions: **(a)** declaration that a child is in need of care and protection; **(b)** restoration of the child to parents or guardian or family with or without supervision; **(c)** placement of the child in a children's home or fit facility or specialised adoption agency for the purpose of adoption, for a **long term or temporary** stay; **(d)** placement of the child with a fit person for a long term or temporary care; **(e) foster care**; **(f) sponsorship** and supervision; **(g)** directions to persons or institutions or facilities in whose care the child is placed regarding the care, protection and rehabilitation of the child, including directions relating to immediate shelter and services such as medical attention, psychiatric and psychological support, including need-based counselling, occupational therapy or behaviour modification therapy, skill training, legal aid, educational services; **(h)** declaration that the child is legally free for adoption under s.38

s.38 — Procedure for declaring a child legally free for adoption	The Committee shall make all efforts for tracing the parents or guardians. In the case of an **abandoned or orphan child below two years**, the inquiry shall be completed within **two months**; for a child above two years, within **four months**. A **surrendered child** shall be declared legally free for adoption only after the **two-month reconsideration period** from the date of surrender. **A child of a mentally retarded parent, or an unwanted child of a victim of sexual assault, may be declared free for adoption by the Committee by following the prescribed procedure. No child shall be offered for adoption from the time of being declared legally free for adoption to the receipt of the adoption order... except to a relative or an adoptive parent already selected**

(Section abridged for the compilation — full text at makelaweasy.in.)

◆ 21. Rehabilitation, social re-integration, institutions and adoption (ss.39–73)

▸ 21.1 Chapter VII — rehabilitation and social re-integration

Section	Provision	Content
s.39	Process of rehabilitation and social re-integration	The process shall begin **during the stay of the child** in a child care institution, and the rehabilitation and social integration of children shall be undertaken, **based on the individual care plan** of the child, preferably through **family-based care** such as by restoration to the family or guardian with or without supervision, or sponsorship, or adoption or foster care. **Institutional care is only where family-based care is not in the best interest of the child.** For a child in conflict with law, the Probation Officer or the DCPU or a social worker shall prepare the individual care plan
s.40	Restoration of a child in need of care and protection	The **primary objective** of any children's home, open shelter or specialised adoption agency shall be the **restoration and protection of the child**. "Restoration" means **restoration to parents, adoptive parents, foster parents, guardian or fit person**
s.41	**Registration of child care institutions**	**Every** child care institution, whether run by a State Government or by a voluntary or non-governmental organisation, intended wholly or partially for housing children, **whether or not it receives grants**, shall be **registered within six months** of commencement of the Act. **s.42 — penalty for non-registration: imprisonment up to one year or a fine of not less than ₹1 lakh, or both. This is the provision *Sampurna Behura* found to be most widely flouted**
s.43	Open shelter	A community-based facility for children in need of residential support, on a short-term basis, with the objective of protecting them from abuse or weaning them from a life on the streets
s.44	**Foster care**	Children in need of care and protection may be placed in foster care, including group foster care, on the basis of orders of the Committee. Selected families shall be **inspected monthly**; a foster family shall be **supported** by the State; and a child may be given for adoption to the foster family after two years, subject to the Adoption Regulations. Read with the **Model Guidelines for Foster Care, 2016**
s.45	**Sponsorship**	Provides for **supplementary support to families**, to children's homes and to special homes to meet the medical, nutritional, educational and other needs of the child, with a view to **improving his quality of life**. Four kinds: individual to individual, group, community, and State-sponsored. **This is the most under-used and most valuable provision in the Act**, because it prevents institutionalisation at its root
s.46	**After-care**	Any child leaving a child care institution on completion of **eighteen years** may be provided with financial support in order to facilitate the child's **re-integration into the mainstream of society** in the manner prescribed — under the Model Rules, until the age of **21**, extendable to **23** in exceptional circumstances
s.47	**Observation homes**	For the **temporary reception, care and rehabilitation** of any child alleged to be in conflict with law **during the pendency of the inquiry**. Every State Government shall establish and maintain at least one in every district. Children are to be **segregated by age group (7–11, 12–16, 16–18), gender and the nature of the offence**
s.48	**Special homes**	For the rehabilitation of children **found to be in conflict with law** after inquiry under s.14(1). Similar segregation. Maximum stay under s.18(1)(g): **three years**
s.49	**Place of safety**	Every State Government shall set up at least one place of safety, for a person above 16 years of age and below 18 who is **alleged** to have committed or is **found** to have committed a **heinous** offence; segregated arrangements for the two categories
s.50	Children's homes	For children in need of care and protection, for their care and protection, restoration and rehabilitation
s.51	Fit facility	A facility recognised by the Board or Committee for a specific purpose or a specified period
s.52	Fit person	A person prepared to own the responsibility of a child for a specific purpose, found fit by the Committee or Board after inquiry as to his capacity, ability and willingness
s.53	**Rehabilitation and re-integration services in institutions**	Every institution shall provide: **basic requirements** of food, shelter, clothing and medical attention conforming to the prescribed standards; **equipment** such as wheelchairs and prosthetic devices for children with special needs; appropriate **education**, including supplementary education, special education and appropriate education for children with special needs (and in the case of a CCL, only **age-appropriate** education); **skill development**; occupational therapy and life-skills education; **mental health interventions** including counselling; **recreational activities**; **legal aid**; referral services for education, vocational training, de-addiction, treatment of diseases where required; case management; birth registration; assistance for opening a bank account; and any other service. **Every institution shall have a Child Welfare Officer**
s.54	**Inspection committees**	The State Government shall appoint inspection committees for the State and for every district (State Inspection Committee and District Inspection Committee) for all child care institutions registered or recognised under this Act, which shall **mandatorily conduct visits to all facilities housing children in the area allocated, at least once in three months**, and submit reports
s.55	Evaluation of functioning of structures	The Central Government or the State Government may independently evaluate the functioning of the Board, Committee, SJPU, child care institutions and specialised adoption agencies at such period and through such persons or institutions as may be prescribed

▸ 21.2 Chapter VIII — adoption (ss.56–73)

▸▸ The scheme

s.56

— adoption shall be resorted to for ensuring the right to family for the orphan, abandoned and surrendered child, as per the provisions of the Act, the rules and the adoption regulations; the

Hindu Adoptions and Maintenance Act, 1956 is expressly saved

(s.56(3)) — so a Hindu may still adopt under personal law.

s.57

— eligibility of prospective adoptive parents: physically, mentally and emotionally stable, financially capable, not having any life-threatening medical condition;

consent of both spouses

is required for a married couple; a

single female may adopt a child of any gender, but a single male shall not be eligible to adopt a girl child

▸▸ Procedure

s.58
— in-country adoption;
s.59
— inter-country adoption (only after the child has not been placed within India for
thirty days
from the date of being declared legally free for adoption; a
No Objection Certificate
from CARA);
s.60
— inter-country relative adoption;
s.61
— the court (the
District Magistrate
after the 2021 Amendment, previously the civil court) shall satisfy itself that the adoption is
in the best interest of the child
, that the prospective parents have given consent freely and that no payment or reward has been given; proceedings are
in camera
and to be disposed of
within two months
no fee shall be charged

(Section abridged for the compilation — full text at makelaweasy.in.)

◆ 22. Offences against children — sections 74 to 89

Chapter IX is a self-contained penal code for offences against children. **s.86** classifies them: where the offence is punishable with imprisonment of more than **seven years** it is cognizable and non-bailable; between **three and seven years**, cognizable and bailable; and **less than three years** or with fine only, non-cognizable and bailable. **s.87** — abetment; **s.88** — attempt; **s.89** — alternative punishment: where an act or omission constitutes an offence punishable under this Act **and also under any other law**, the offender shall be liable to punishment **under such law which provides for punishment which is greater in degree**.

Section	Offence	Punishment
s.74	**Prohibition on disclosure of identity** of children — no report in any newspaper, magazine, news-sheet or audio-visual media or other forms of communication shall disclose the name, address, school or any other particular which may lead to the identification of a child in conflict with law, or a child in need of care and protection, or a child victim or witness; nor shall any picture be published	Imprisonment up to **six months** or fine up to **₹2 lakh** or both. **Proviso:** the Board or Committee may permit disclosure if in the child's best interest, for reasons to be recorded in writing. Read with **s.3(xi)** and **s.23 POCSO**
s.75	**Cruelty to a child** — whoever, having the actual charge of or control over a child, assaults, abandons, abuses, exposes or wilfully neglects the child or causes or procures the child to be so treated, in a manner likely to cause unnecessary mental or physical suffering	Imprisonment up to **three years** or fine of **₹1 lakh** or both; if the child is **physically incapacitated or develops a mental illness** or is rendered mentally unfit to perform regular tasks or has risk to life or limb, **rigorous imprisonment of three to ten years** and a fine of ₹5 lakh. Enhanced punishment where the offender is employed by an organisation caring for children
s.76	**Employment of a child for begging**	**Five years** and ₹1 lakh; if the child is **amputated or maimed** to make him beg: **rigorous imprisonment of seven to ten years** and a fine of ₹5 lakh
s.77	Giving a child **intoxicating liquor or narcotic drug or tobacco products or psychotropic substance**, except on the order of a medical practitioner	Rigorous imprisonment up to **seven years** and a fine of **₹1 lakh**
s.78	**Using a child for vending, peddling, carrying, supplying or smuggling** any intoxicating liquor, narcotic drug or psychotropic substance	Rigorous imprisonment up to **seven years** and a fine up to **₹1 lakh**. **The direct link to Topic 3 — this is the provision against the syndicate that uses children as carriers**
s.79	**Exploitation of a child employee** — ostensibly engaging a child and keeping him in bondage for the purpose of employment, or withholding his earnings, or using such earnings for his own purposes	Rigorous imprisonment up to **five years** and a fine of **₹1 lakh**
s.80	**Giving or receiving a child for adoption without following the procedure** laid down in the Act	Imprisonment of either description up to **three years** or a fine of ₹1 lakh or both; if the offence is committed by a recognised adoption agency, the registration shall also be withdrawn for a minimum of one year
s.81	**Sale and procurement of children for any purpose**	Rigorous imprisonment up to **five years** and a fine of **₹1 lakh**; if committed by a person having actual charge of the child, including employees of a hospital, nursing home or maternity home: rigorous imprisonment of **three to seven years** and a fine of ₹1 lakh
s.82	**Corporal punishment** — any person in charge of or employed in a child care institution who subjects a child to corporal punishment with the aim of disciplining the child	First conviction: fine of **₹10,000**; subsequent offence: imprisonment up to **three months** or fine or both. If a person employed in an institution is convicted, he shall also be **dismissed from service** and debarred from working directly with children thereafter. Read with the **RTE Act, 2009, s.17** and the NCPCR Guidelines on Eliminating Corporal Punishment
s.83	**Use of a child by a militant or other adult group** — any non-State, self-styled militant group or outfit declared as such by the Central Government, which recruits or uses any child for any purpose	Rigorous imprisonment up to **seven years** and a fine of **₹5 lakh**. Sub-s.(2): any adult or adult group who uses a child for illegal activities either individually or as a gang shall be liable to rigorous imprisonment up to seven years and a fine of ₹5 lakh
s.84	**Kidnapping and abduction of a child**	The provisions of ss.359–369 IPC (now ss.137–140 BNS) shall **mutatis mutandis** apply to a child or a minor who is 18 or below, and all the provisions shall be construed accordingly
s.85	Offences committed on a **disabled child**	Whoever commits any of the offences in this Chapter on a child who is disabled, as certified by a medical practitioner, shall be liable to **twice the penalty** provided for such offence

The Chapter IX offences convert the JJ Act from a welfare statute into a penal one.
In an answer on "legal framework", do not stop at the Board and the Committee: point out that the Act creates
sixteen substantive offences
against children with punishments up to ten years, and that
s.89
resolves the over ...

◆ 23. Miscellaneous provisions, the Model Rules 2016, and the monitoring bodies (ss.90–112)

Section	Content
s.90	Attendance of a parent or guardian of the child
s.91	Dispensing with the attendance of the child where it would not be in his interest
ss.92–93	Committal of a child of unsound mind or suffering from leprosy or addiction to a fit facility, hospital or psychiatric facility; transfer between children's homes under the Act in different parts of India
s.94	**Presumption and determination of age** — see §19
ss.95–96	Transfer of a child to a place of residence in another State or country; transfer of a child who is a foreign national
ss.97–98	Release of a child from an institution on the order of the Board or Committee, on the recommendation of a Management Committee; **leave of absence** to a child placed in an institution
s.99	**Reports to be treated as confidential** — all reports related to the child and considered by the Committee or the Board shall be treated as confidential. **Relied on in *Barun Chandra Thakur*** to justify refusing cross-examination on the psychologist's report at the preliminary-assessment stage
s.100	Protection of action taken in good faith
s.101 — APPEALS ★	**(1)** Any person aggrieved by an order made by the Committee or the Board may, **within thirty days**, prefer an appeal to the **Children's Court** (the appellate authority may entertain the appeal after thirty days on sufficient cause). **(2)** An appeal against an order of the Board passed after making the **preliminary assessment** under s.15 shall lie before the **Court of Sessions** [read with the definition of Children's Court], and the court **may, while deciding the appeal, take the assistance of experienced psychologists and medical specialists other than those whose assistance has been obtained by the Board**. **(3)** No appeal shall lie from an order of **acquittal** made by the Board in respect of a child alleged to have committed an offence **other than a heinous offence by a child who has completed or is above the age of sixteen years**. **(4) No second appeal** shall lie from any order of the Children's Court. **(5)** Any person aggrieved by an order of the Children's Court may file an appeal before the **High Court**
s.102	**Revision** — the High Court may, at any time, either *suo motu* or on an application received, call for the record of any proceeding in which the Committee, Board or Children's Court has passed an order, for satisfying itself as to the legality or propriety of the order
s.103	Procedure in inquiries, appeals and revision proceedings — save as otherwise provided, the CrPC shall apply
s.104	**Power of the Committee or the Board to amend its own orders** — the Committee or the Board may, on an application or *suo motu*, **amend any order** as to the institution to which a child is to be sent or as to the person under whose care or supervision a child is to be placed. **Note carefully:** this is a limited power to amend **placement** orders; it is **not** a power of review of a finding, which is why *Rajni* (§40) held that a Board cannot review its own finding on age
s.105	**Juvenile Justice Fund** — the State Government may create a fund for the welfare and rehabilitation of children
s.106	**District Child Protection Unit** — the State Government shall constitute a DCPU for every district to take up matters relating to children with a view to ensuring implementation of this Act
s.107	**Child Welfare Police Officer and Special Juvenile Police Unit** — in every police station, **at least one officer not below the rank of Assistant Sub-Inspector** shall be designated as the Child Welfare Police Officer; and in each district and city, a **Special Juvenile Police Unit** headed by an officer not below the rank of **Deputy Superintendent of Police**, consisting of all police officers designated as CWPOs and **two social workers** having experience of working in the field of child welfare, of whom **one shall be a woman**
s.108	**Public awareness** — the Central and State Governments shall take necessary measures to ensure that the provisions of this Act are given **wide publicity through media** at regular intervals
s.109 — MONITORING ★	The **National Commission for Protection of Child Rights** (constituted under s.3 of the Commissions for Protection of Child Rights Act, 2005) or, as the case may be, the **State Commission for Protection of Child Rights**, shall, in addition to the functions assigned to them under that Act, **monitor the implementation of the provisions of this Act** in such manner as may be prescribed. **This is the section enforced in *Sampurna Behura* (§34)**
ss.110–112	Power of the Central and State Governments to make rules; power to remove difficulties; **repeal and savings** — the JJ Act, 2000 is repealed, but anything done or any action taken under it shall be deemed to have been done under the corresponding provisions of this Act

▸ 23.1 The Model Rules, 2016 — the provisions that matter

▸▸ Rule 8

Procedure to be followed by the Child Welfare Police Officer on apprehension: no handcuffs; plain clothes; the child not to be kept in a police lock-up; intimation to parents and the Probation Officer; production before the Board within 24 hours.

▸▸ Rule 10

social investigation report
— Form 6 — its contents and the fifteen-day timeline; and Rule 10(5) on the material to be placed before the Board.

▸▸ Rule 10A

Inserted by amendment: the procedure for the
preliminary assessment
under s.15.
10A(2)
— the Board may take the assistance of experienced psychologists or psycho-social workers or other experts with experience of working with children in difficult circumstances; a panel of such experts may be made available by the DCPU.
10A(3)
— "while making the preliminary assessment,
the child shall be presumed to be innocent unless proved otherwise
10A(4)
— where the Board passes an order that there is a need for trial as an adult, it shall
assign reasons
and the copy of the order shall be
provided to the child forthwith

▸▸ Rules 11–12, 21, 29, 39, 59, 63, 83, 87
Post-production procedure; bail; the
individual care plan
(Form 7); management of child care institutions; the Children's Committees in institutions; the role of the DCPU; the
Juvenile Justice Fund
; and the mandatory registers and records.

⬢ 24. The Juvenile Justice (Amendment) Act, 2021

Act 23 of 2021, brought into force on **1 September 2022**, made the following principal changes. They are frequently overlooked and citing them shows currency.

Change	Content	Reason and criticism
1. Adoption orders by the District Magistrate	**ss.61 and 58, 59, 60** amended: adoption orders, previously issued by the **civil court**, are now issued by the **District Magistrate** (including the Additional District Magistrate). An appeal lies to the **Divisional Commissioner** within 30 days, to be disposed of within four weeks	**Object:** to reduce the very long pendency of adoption petitions in civil courts. **Criticism:** transfers a **judicial** function determining status and inheritance to the **executive**; District Magistrates are already overburdened; and it dilutes the judicial scrutiny that *Lakshmi Kant Pandey* considered essential
2. "Serious offence" redefined — s.2(54)	Now includes offences for which the **maximum** punishment is imprisonment of **more than seven years** but **no minimum** punishment is provided, or a **minimum of less than seven years** is provided	Enacts the ***Shilpa Mittal*** gap: the "fourth category" of offences is now expressly treated as **serious**, not heinous, so a child in that category cannot be transferred for adult trial
3. Supervisory role of the District Magistrate	The DM is empowered to **independently evaluate** the functioning of the Board, the Committee, the SJPU, child care institutions and specialised adoption agencies (s.55); to **conduct a quarterly review** of the Committee (s.28); and **registration of a child care institution under s.41 now requires the DM's recommendation** after he has considered the capacity and facilities of the institution	**Object:** better monitoring after the NCPCR's 2020 social audit found that **over 90%** of child care institutions were run by NGOs and a very large proportion were non-compliant. **Criticism:** executive control over quasi-judicial bodies
4. Eligibility and removal of CWC members	Additional disqualifications inserted in s.27 (past record of violation of human rights or child rights; conviction for an offence involving moral turpitude; removal or dismissal from government service; management of a CCI in the district); and the **DM is to conduct the background check**	Responds to *Sampurna Behura*'s finding of unqualified appointments
5. Bail — s.12(4)	A child unable to fulfil the conditions of a bail order **within seven days** shall be produced before the Board for **modification of the conditions**	Addresses the commonest practical injustice — the poor child who has bail but no surety
6. Other	s.86 amended to make certain offences against children **cognizable and non-bailable** as described in §22; and various procedural tightenings	—

⬢ 25. Ved Kumari — "The Juvenile Justice Act 2015: Critical Understanding"

PRESCRIBED READING
DU
Prof. Ved Kumari, Faculty of Law, University of Delhi

A note on sources.
The DU Case Material lists Prof. Ved Kumari's article as a prescribed reading and gives the URL of the Delhi University repository; it does not reproduce the text. What follows is the structure of the critique as it is consistently advanced in her work —
The Juvenile Justice System ...

▸ 25.1 The central thesis — "from welfare to rights, and back again"

Prof. Ved Kumari's book traces Indian juvenile justice through three phases: an early **welfare** phase in which the child was an object of official benevolence with no procedural rights; a **rights** phase inaugurated by the UNCRC and the 2000 Act, in which the child became the bearer of enforceable entitlements; and — her argument about 2015 — a **retreat**, in which a sub-class of children is removed from the rights framework altogether and returned to the adult penal system. The DU 2017 model answer states her conclusion in a single sentence: "**The JJ Act 2015 has taken a STEP BACKWARD in the modern history of juvenile justice in India.**"

▸ 25.2 The nine criticisms to deploy

(Section abridged for the compilation — full text at makelaweasy.in.)

⬢ 26. JJ Act 2000 v. JJ Act 2015 — the comparison, and the transfer debate

▸ 26.1 The comparison table

Point	JJ Act, 2000	JJ Act, 2015
Terminology	"juvenile in conflict with law" — s.2(l)	"**child in conflict with law**" — s.2(13); "juvenile" retained only in s.2(35)
Classification of offences	**None.** All offences treated alike	**Three-fold: petty (≤3 yrs), serious (3–7 yrs), heinous (minimum ≥7 yrs)** — ss.2(45), 2(54), 2(33), with a fourth category created by *Shilpa Mittal* and absorbed into s.2(54) in 2021
Trial as an adult	**Never.** Every person under 18 dealt with by the Board	**Possible** for 16–18 in heinous offences, after a preliminary assessment — ss.15, 18(3), 19
Maximum institutional disposal by the Board	Special home for **three years** (s.15(1)(g))	Special home for **three years** (s.18(1)(g)) — unchanged; but a transferred child may serve a longer term in a **place of safety** and then in jail
General principles	None in the Act; Rule 3 of the 2007 Rules listed principles	**Sixteen statutory general principles in s.3** — binding on all authorities
Age determination	s.49 and **Rule 12 of the 2007 Rules** — matriculation certificate first, then school certificate, then birth certificate, then a Medical Board; benefit of one year on the lower side	**s.94** — school/matriculation certificate, then birth certificate, then ossification test **ordered by the Board** within 15 days; the recorded age is **deemed true** (s.94(3))
Claim of juvenility	**s.7A** (inserted 2006)	**s.9(2)–(3)** — substantially identical
Adoption	Chapter IV, ss.40–45, rudimentary; CARA had no statutory status	**Chapter VIII, ss.56–73**, detailed; **CARA given statutory status** (s.68); Hague Convention implemented; adoption orders by the **District Magistrate** after 2021
Offences against children	ss.23–26 — four offences (cruelty, employment for begging, giving intoxicating liquor, exploitation of a child employee)	**Chapter IX, ss.74–89 — sixteen offences**, including disclosure of identity, corporal punishment, use of a child by a militant group, sale and procurement, and doubled penalties where the child is disabled

Registration of child care institutions	s.34(3) (inserted 2006) — registration required but weakly enforced	**s.41 — mandatory registration of EVERY institution within six months, whether or not it receives grants; s.42 — penalty of up to one year and ₹1 lakh for non-registration**
Monitoring	No express provision	**s.109 — NCPCR and SCPCR to monitor implementation**; s.54 inspection committees; s.55 evaluation; DM's supervisory role after 2021
Appeals	s.52 — to the Court of Sessions; s.53 revision by the High Court	**s.101** — to the Children's Court; against a s.15 order to the Court of Sessions with power to take fresh expert assistance; **no second appeal**; appeal from the Children's Court to the **High Court**; s.102 revision
Fresh start	s.19 — removal of disqualification and destruction of records	**s.3(xiv) and s.24** — but **withdrawn** for a child above 16 tried as an adult for a heinous offence
Runaway child	s.51 — an offence for the child to escape	**s.26 — "no child shall be charged with any offence for running away"**

▸ 26.2 The transfer debate — the arguments, arranged for an essay

▸▸ FOR the 2015 scheme

1. Proportionality.

Beijing Rule 17.1(a) requires the reaction to be proportionate "

not only to the circumstances and the gravity of the offence but also to the… needs of the society

". A three-year maximum for a 17-year-old who commits a brutal rape and murder is disproportionate on the face of it.

2. It is calibrated, not blanket.

Only 16–18; only heinous offences; only after an individualised assessment; two decision-makers (Board and Children's Court); an appeal; and s.21 retained.

3. Deterrence and the misuse of children by adults.

Syndicates use children precisely because the law protects them (Topic 3, §25).

4. Victim-centred justice.

The victim's family has an interest that the system must acknowledge — the argument that moved Parliament after December 2012.

5. Comparative practice.

Most common-law jurisdictions provide some mechanism for transferring the gravest juvenile cases (England: the Crown Court for "grave crimes"; the USA: judicial waiver).

(Section abridged for the compilation — full text at makelaweasy.in.)

⬢ 27. Interface with the BNSS, POCSO and other statutes

Statute	Interface	Rule
CrPC, 1973 → BNSS, 2023	**s.27 CrPC** (now **s.22 BNSS**): "Any offence **not punishable with death or imprisonment for life**, committed by any person who at the date when he appears or is brought before the Court is **under the age of sixteen years**, may be tried by the Court of a Chief Judicial Magistrate, or by any Court specially empowered under the Children Act, 1960, or any other law… providing for the treatment, training and rehabilitation of youthful offenders"	The DU model answer states the modern position: "**Section 27 of CrPC, 1973 states that the juveniles who are in conflict with law are to be governed by the JJ Act, 2015.**" More precisely, s.27 is an **enabling** provision, and **s.5 CrPC** (now s.5 BNSS) saves the special law. ***Raghbir v. State of Haryana* (§29) is the leading authority** on the relationship, holding that s.27 is **not** a "specific provision to the contrary" and does not displace a Children Act, even for offences punishable with death or life imprisonment. **s.4(1) JJ Act** opens with a *non obstante* clause — "Notwithstanding anything contained in the Code of Criminal Procedure, 1973" — and **s.1(4)** gives the Act overriding effect notwithstanding anything inconsistent in any other law
POCSO Act, 2012	Two distinct situations	(a) **Child as victim:** the Special Court under s.28 POCSO tries the offence; ss.33–38 provide the child-friendly procedure; ss.29–30 create presumptions; s.19 mandates reporting; **s.23** prohibits disclosure of identity. (b) **Child as accused:** where the accused is himself a child, the **JJ Act prevails** — **s.34 POCSO** expressly provides that where an offence under the Act is committed by a child, the Special Court shall determine the age and **the provisions of the Juvenile Justice Act shall apply**. Note also that **the Children's Court under s.2(20) JJ Act includes a POCSO Special Court**, so the same court may wear both hats
BNS, 2023	**s.20** (act of a child under seven); **s.21** (act of a child above seven and under twelve of immature understanding); **s.95** (hiring or employing a child to commit an offence — 3 to 10 years and fine); **ss.96–99** (procuration, kidnapping for begging, selling and buying a child for prostitution); **s.137–140** (kidnapping and abduction); **ss.143–144** (trafficking)	The BNS supplies the **substantive offence**; the JJ Act supplies the **forum, procedure and disposition**
Probation of Offenders Act, 1958	**s.6** — restrictions on imprisonment of offenders **under twenty-one years** of age	Applies to the young adult (18–21), not to the child. **The provision construed in *Sudesh Kumar* (§31): the crucial date is the date on which the TRIAL COURT DEALS WITH the offender, not the date of the offence** — the exact opposite of the rule under the JJ Act. **This contrast is the single best examination point in the topic**
Commissions for Protection of Child Rights Act, 2005	NCPCR and SCPCRs; **Children's Courts** under s.25	s.109 JJ Act confers the monitoring function; s.2(20) JJ Act adopts the Children's Court
Right of Children to Free and Compulsory Education Act, 2009	Art. 21A; s.17 prohibits physical punishment and mental harassment	The principal **preventive** statute; read with s.82 JJ Act (corporal punishment)
Child and Adolescent Labour (Prohibition and Regulation) Act, 1986	s.3 (child below 14), s.3A (adolescent in hazardous occupations), s.14 (penalty)	s.2(14)(ii) JJ Act — a child found working in contravention of labour laws is a child in need of care and protection
Prohibition of Child Marriage Act, 2006	ss.9–11	s.2(14)(viii) JJ Act — a child at imminent risk of marriage is a CNCP
NDPS Act, 1985	**s.32** — no juvenile shall be sentenced to death; and immunity for addicts under s.64A	Read with **ss.77–78 JJ Act** — giving a child a narcotic drug, and using a child to peddle or carry drugs
UAPA, 1967; MCOCA; TADA (lapsed)	Special statutes applied to persons who were children at the time	**The JJ Act prevails.** *Hari Ram v. State of Rajasthan* (2009) 13 SCC 211; and, for TADA, *Essa @ Anjum Abdul Razak Memon v. State of Maharashtra* (2013) 13 SCC 1, where the accused's juvenility at the time of some of the acts was considered under the JJ Act notwithstanding the TADA proceedings

Army Act, 1950	Court-martial proceedings against a person who was a child when some of the charged acts were committed	***Union of India v. Ex-GNR Ajeet Singh* (2013) 4 SCC 186 (§33)** — a **joint** General Court Martial for offences committed as a juvenile and offences committed after attaining majority **vitiates the proceedings entirely**, because **s.18 of the 2000 Act (now s.23 of the 2015 Act)** forbids joint proceedings
Immoral Traffic (Prevention) Act, 1956; Transplantation of Human Organs Act, 1994; Surrogacy Act, 2021	Child victims	s.2(14) CNCP categories; ss.80–81 JJ Act
Bharatiya Sakshya Adhiniyam, 2023	**s.34 BSA** (s.35 Evidence Act) — relevancy of an entry in a public record; **s.124 BSA** (s.118 Evidence Act) — competency of a child witness	The evidentiary foundation of age determination; see *Birad Mal Singhvi v. Anand Purohit* AIR 1988 SC 1796, reproduced in the DU material in *Pratap Singh*

VERBATIM — Birad Mal Singhvi v. Anand Purohit , as reproduced in Pratap Singh DU "To render a document admissible under Section 35, three conditions must be satisfied: firstly , [the] entry that is relied on must be one in a public or other official book, register or record ; secondly , it must be an entry stating a fact in issue or relevant fact ; and thirdly , it must be made by a public servant in discharge of his official duty , or [by] any other person in performance of a duty specially enjoined by law. An entry relating to date of birth made in the school register is relevant and admissible under Section 35 of the Act, but the entry regarding the age of a person in a school register is of not much evidentiary value to prove the age of the person in the absence of material on which the age was recorded. "

That last sentence is the key to every contested age case.
A school register entry is
admissible
, but its
weight
depends on the source of the information recorded. That is why courts ask who gave the date of birth to the school, whether any document was produced at admission, and whether the entry is co …

◆ 28. CASE 1 — Sheela Barse v. Union of India (1986)

⚖ Sheela Barse & Anr. v. Union of India & Ors.

1986 SCALE (2) 230; (1986) 3 SCC 596 and 632; AIR 1986 SC 1773 — Bhagwati C.J. and Ranganath Misra J.; orders of 15 April, 12 July, 5 August and 13 August 1986

(Brief abridged for the compilation — full text at makelaweasy.in.)

◆ 29. CASE 2 — Sanjay Suri v. Delhi Administration (1988) DU verbatim

⚖ Sanjay Suri v. Delhi Administration

AIR 1988 SC 414 — Ranganath Misra, J.

(Brief abridged for the compilation — full text at makelaweasy.in.)

◆ 30. CASE 3 — Raghbir v. State of Haryana (1981) DU verbatim

⚖ Raghbir v. State of Haryana

AIR 1981 SC 2037 — Baharul Islam, J. (3-Judge Bench)

(Brief abridged for the compilation — full text at makelaweasy.in.)

◆ 31. CASE 4 — Pratap Singh v. State of Jharkhand (2005) DU verbatim

⚖ Pratap Singh v. State of Jharkhand & Anr.

2005 (1) SCALE 763; (2005) 3 SCC 551 — CONSTITUTION BENCH (5 Judges); judgment of Sema, J. and a concurring judgment of S.B. Sinha, J.

(Brief abridged for the compilation — full text at makelaweasy.in.)

◆ 32. CASE 5 — Sudesh Kumar v. State of Uttarakhand (2008) DU verbatim

⚖ Sudesh Kumar v. State of Uttarakhand

(2008) 3 SCC 111 — P.P. Naolekar, J., with a concurring judgment of C.K. Thakker, J.

(Brief abridged for the compilation — full text at makelaweasy.in.)

◆ 33. CASE 6 — Daya Nand v. State of Haryana (2011)

⚖ Daya Nand v. State of Haryana

AIR 2011 SC 593; (2011) 2 SCC 224 — Aftab Alam and R.M. Lodha, JJ.; judgment of 7 January 2011

(Brief abridged for the compilation — full text at makelaweasy.in.)

34. CASE 7 — Union of India v. Ex-GNR Ajeet Singh (2013)

⚖ Union of India and Others v. Ex-GNR Ajeet Singh

(2013) 4 SCC 186 — B.S. Chauhan and F.M. Ibrahim Kalifulla, JJ.

(Brief abridged for the compilation — full text at makelaweasy.in.)

35. CASE 8 — Sampurna Behura v. Union of India (2018)

⚖ Sampurna Behura v. Union of India

(2018) 4 SCC 433 — Madan B. Lokur and Deepak Gupta, JJ.; judgment of 9 February 2018

(Brief abridged for the compilation — full text at makelaweasy.in.)

36. CASE 9 — Rishipal Singh Solanki v. State of Uttar Pradesh (2021)

⚖ Rishipal Singh Solanki v. State of Uttar Pradesh & Ors.

(2022) 8 SCC 602; Criminal Appeal No. 1240 of 2021, decided 18 November 2021 — B.V. Nagarathna, J.

(Brief abridged for the compilation — full text at makelaweasy.in.)

37. CASE 10 — Vinod Katara v. State of Uttar Pradesh (2022)

⚖ Vinod Katara v. State of Uttar Pradesh

2022 SCC OnLine SC 1204; 2022 INSC 946; judgment of 12 September 2022 — J.B. Pardiwala, J.

(Brief abridged for the compilation — full text at makelaweasy.in.)

38. CASE 11 — Barun Chandra Thakur v. Master Bholu (2022)

⚖ Barun Chandra Thakur v. Master Bholu & Anr.

2022 SCC OnLine SC 870; 2022 INSC 715; judgment of 13 July 2022 — Dinesh Maheshwari and Vikram Nath, JJ.

(Brief abridged for the compilation — full text at makelaweasy.in.)

39. CASE 12 — Rahul Kumar Yadav v. State of Bihar (2024)

⚖ Rahul Kumar Yadav v. The State of Bihar

[2024] 5 S.C.R. 501; 2024 INSC 359; Criminal Appeal No. 177 of 2018, order of 25 April 2024 — B.R. Gavai and Sandeep Mehta, JJ. (per Mehta, J.)

(Brief abridged for the compilation — full text at makelaweasy.in.)

40. CASE 13 — Child in Conflict with Law through his mother v. State of Karnataka (2024)

⚖ Child in Conflict with Law through his Mother v. State of Karnataka & Anr.

2024 SCC OnLine SC 798; Criminal Appeal arising out of SLP (Crl.) No. 3033 of 2024, decided 7 May 2024 — C.T. Ravikumar and Rajesh Bindal, JJ.

(Brief abridged for the compilation — full text at makelaweasy.in.)

41. CASE 14 — Rajni v. State of Uttar Pradesh (2025)

⚖ Rajni v. State of Uttar Pradesh & Anr.

2025 SCC OnLine SC 602; 2025 LiveLaw (SC) 602; judgment of 20 May 2025 — Abhay S. Oka and Ujjal Bhuyan, JJ.

(Brief abridged for the compilation — full text at makelaweasy.in.)

42. Other leading cases you must be able to cite

The four themes. Organise any case-law question around them rather than chronologically.

Case	Holding	Use it for
Hari Ram v. State of Rajasthan (2009) 13 SCC 211	On a conjoint reading of ss.2(k), 2(l), 7A, 20 and 49 of the 2000 Act with Rules 12 and 98 of the 2007 Rules, **all persons below 18 on the date of the offence — even before 1 April 2001 — are juveniles**, and the claim may be raised even after attaining 18. Section 2(k) is to be treated "as if it had always been in existence"	The retrospectivity of the 2000 Act; the foundation of *Daya Nand*
Umesh Chandra v. State of Rajasthan (1982) 2 SCC 202	The relevant date for the applicability of the Children Act is the **date of the offence**; a contrary construction would offend Art. 20(1)	Approved in *Pratap Singh*; the origin of the modern rule
Arnit Das v. State of Bihar (2000) 5 SCC 488	Held the relevant date to be the **date of production before the Board**. **Overruled by *Pratap Singh***	Cite it only to show the conflict that the Constitution Bench resolved
Gopinath Ghosh v. State of West Bengal AIR 1984 SC 237	A plea of juvenility may be entertained **for the first time in the Supreme Court**; **no technical objection** should be raised merely because the plea was not taken below	Quoted in *Sudesh Kumar*; the origin of the "no hyper-technical approach" principle

Abuzar Hossain v. State of West Bengal (2012) 10 SCC 489	"**Directing an inquiry is not the same thing as declaring the accused to be a juvenile**"; the standard of proof at the inquiry stage is **prima facie** and the approach must be "more liberal lest there is a miscarriage of justice"	The inquiry/determination distinction; principle (4) of *Rishipal Singh Solanki*
Ashwani Kumar Saxena v. State of M.P. (2012) 9 SCC 750	Age determination is an **inquiry, not a trial**; the court must follow Rule 12 and cannot embark on a "**roving enquiry**" or substitute its own opinion for the documents	The limits of the inquiry into age
Parag Bhati v. State of U.P. (2016) 12 SCC 744	Where documents are **doubtful** and the offence is grave and committed in a planned manner reflecting maturity, the benefit of the doubt need not be given; the plea of juvenility must not be "**a shield to dodge or dupe the arms of law**"	The counter-balance; quoted in *Rishipal Singh Solanki*
Ram Vijay Singh v. State of U.P. (2021) 16 SCC 219	Where the ossification test is conducted when the person is around **55 years** of age, it "cannot be conclusive to declare him as a juvenile on the date of the incident"; the test is relevant when a person is **around 18**	The age-limits of the ossification test; applied in *Vinod Katara*
Jitendra Singh alias Babboo Singh v. State of U.P. (2013) 11 SCC 193	A juvenile found guilty of a grave offence but whose juvenility is established late: the **conviction stands but the sentence is set aside** and the matter goes to the Board; and the Court awarded **compensation** to the victim's family from the State, given that the offender could not be punished as an adult	The consequences of a belated finding; victim compensation
Salil Bali v. Union of India (2013) 7 SCC 705	Challenge to the age of 18 in the 2000 Act **dismissed**: the age was fixed after considering international conventions and expert recommendations and is neither arbitrary nor unconstitutional	The constitutionality of a fixed age; the position before 2015
Subramanian Swamy v. Raju (2014) 8 SCC 390	The Court **refused** to read into s.2(k) an exception for juveniles who possess the maturity to understand the consequences of their acts; the Act embodies a **legislative determination** that 18 is the line, based on the UNCRC and the Beijing Rules, and courts cannot substitute a case-by-case assessment	**The great irony:** Parliament in 2015 enacted precisely the individualised assessment the Court had refused to read in
Shilpa Mittal v. State (NCT of Delhi) (2020) 2 SCC 787	"**Heinous offence**" under s.2(33) requires a **MINIMUM** punishment of seven years or more. An offence with a maximum of seven years or more but **no minimum**, or a minimum of less than seven years, is **not heinous**; such offences constitute a **fourth category** and, until Parliament legislates, are to be dealt with as **serious** offences	Definition of "heinous"; now written into **s.2(54) by the 2021 Amendment**
Satto v. State of U.P. (1979) 4 SCC 759	Three boys aged 10–14 committed rape on an 11-year-old girl and were sentenced to two years in an approved school; the High Court denied probation on the ground that the crime "repels moral conscience". **Krishna Iyer J. held that the child offender is "not a target of harsh punishment but of humane nourishment"**, and that it is essential to "rescue the youthful [offender] from moral and material abandonment and provide careful reformation by kindling his creative potential"	The DU solved paper cites this case. Use it for the **reformative philosophy** and read it with *Sanjay Suri*
Munna v. State of U.P. (1982) 1 SCC 545	Juvenile undertrials in Kanpur Central Jail were being sexually exploited; the Court held that a child in custody has the right to be treated with dignity under Art. 21 and that detention in an adult jail is impermissible	The immediate precursor of *Sheela Barse* and *Sanjay Suri*
Sheela Barse v. State of Maharashtra (1983) 2 SCC 96	Women in police custody: separate lock-ups, interrogation only in the presence of a female officer, intimation to the nearest legal aid committee of every arrest	The wider custodial-rights line
Hussainara Khatoon v. Home Secretary, State of Bihar (1980) 1 SCC 81	**Speedy trial is an integral part of Art. 21**	Relied on in *Sheela Barse* for the time-limits
Sanjay Suri*'s prison line — *Rama Murthy v. State of Karnataka (1997) 2 SCC 642	Nine problems afflicting Indian prisons and the recommendations to meet them	The institutional context; also PYQ 2022 Q5
In Re: Exploitation of Children in Orphanages in the State of Tamil Nadu v. Union of India (2017) 7 SCC 578	Directions on the registration of child care institutions under s.41, social audits, and the mandatory reporting of children in institutions	The companion to *Sampurna Behura*
Bachpan Bachao Andolan v. Union of India (2011) 5 SCC 1	Children in circuses; and the direction that **registration of an FIR is mandatory in every case of a missing child, with a presumption of trafficking**	The CNCP stream; the interface with Topic 3
Lakshmi Kant Pandey v. Union of India (1984) 2 SCC 244	Comprehensive guidelines for inter-country adoption; led to the creation of **CARA**	Chapter VIII of the Act
Shabnam Hashmi v. Union of India (2014) 4 SCC 1	The right to adopt under the JJ Act is available to **all persons irrespective of religion**; the Act is an enabling, secular and optional legislation	Adoption; the secular character of the Act
Sheela Barse (mentally ill persons) (1993) 4 SCC 204	"**Jailing of non-criminal mentally ill persons is illegal**" — a proposition the DU material itself records, noting that officers were later found ignorant of the decision	The implementation gap; read with *Sampurna Behura*
Essa @ Anjum Abdul Razak Memon v. State of Maharashtra (2013) 13 SCC 1	The juvenility of an accused in the 1993 Bombay bomb-blast TADA prosecution was examined under the JJ Act, 2000; ss.15 and 16 of the 2000 Act were applied notwithstanding TADA	The JJ Act prevails over special anti-terror statutes; reproduced in the 2017 DU material

PREVIOUS YEAR QUESTIONS · UNIVERSITY OF DELHI · LL.B. V TERM

PYQ Bank — Unit 3 (questions only)

Q1 2022 · Q.2

Sahil, a boy aged 17 years, committed Rape of his classmate somewhere in outer-Delhi. Since the rape has caused great resentment in the victim's village, the police promptly arrested Sahil and the Magistrate remanded him to judicial custody. Sahil was detained as an under-trial in the Tihar Prison. On being put for trial before the Sessions Court, Sahil challenged his detention in adult prison, as well as his trial by a Sessions Court. Decide as per the Juvenile Justice (Care and Protection of Children) Act, 2015. Mention relevant provisions of law, case law and the school of thought you are relying on while choosing the sentence.

◆ **Refer makelaweasy.in for detailed notes**, full model answers to every question below, additional case briefs, diagrams and revision material on this unit.

Q2 2017 · Q.5(A)

Historically, children who broke the law were treated in the same way as adult offenders. However, the belief that young people could not totally be held responsible for their actions underpinned developments that established separate systems of youth justice." In the light of the above statement, briefly describe the evolution and development of law relating to juvenile justice in India .

Q3 2017 · Q.5(B)

What are the powers and functions of the Juvenile Justice Board and the Child Welfare Committee in relation to juveniles in conflict with law and children in need of care and protection under the Juvenile Justice (Care and Protection of Children) Act, 2015?

Q4 "DEFINE JUVENILE DELINQUENCY AND DISCUSS ITS CAUSES."

Define juvenile delinquency and discuss its causes.

Q5 "TRACE THE EVOLUTION OF JUVENILE JUSTICE LEGISLATION IN INDIA."
Trace the evolution of juvenile justice legislation in India.

Q6 "EXAMINE THE SALIENT FEATURES OF THE JJ ACT, 2015."
Examine the salient features of the JJ Act, 2015.

Q7 "WHETHER A CHILD OF 16–18 SHOULD BE TRIED AS AN ADULT FOR A HEINOUS OFFENCE."
Whether a child of 16–18 should be tried as an adult for a heinous offence.

Q8 "HOW IS THE AGE OF A CHILD IN CONFLICT WITH LAW DETERMINED?"
How is the age of a child in conflict with law determined?

Q9 "BAIL TO A CHILD IN CONFLICT WITH LAW."
Bail to a child in conflict with law.

Q10 "DISCUSS THE INTERNATIONAL FRAMEWORK OF JUVENILE JUSTICE AND ITS INFLUENCE ON INDIAN LAW."
Discuss the international framework of juvenile justice and its influence on Indian law.

by Ankur R. Upadhyay

LB-5033 · CRIMINOLOGY & PENOLOGY · FACULTY OF LAW, UNIVERSITY OF DELHI · LL.B. V TERM

UNIT 5

Punishment and its Justifications

◆ SYLLABUS COVERAGE

Theories of punishment — retribution, deterrence, reformation and prevention · kinds of punishment — with special emphasis on capital punishment · the death-penalty debate and the Bachan Singh–Machhi Singh line · probation, parole and open institutions.

◆ STATUTES & PROVISIONS

IPC s.53 / BNS s.4 · CrPC ss.360–361 / BNSS ss.401–402 · Probation of Offenders Act, 1958 · Arts. 21, 72, 161 · s.432–433 CrPC (remission)

◆ PRESCRIBED CASE MATERIAL

Bachan Singh v. State of Punjab · Machhi Singh v. State of Punjab · Bishnu Deo Shaw v. State of W.B. · Allauddin Mian v. State of Bihar · Dalbir Singh v. State of Haryana · M.C.D. v. State of Delhi

2. The concept of punishment — definition, elements and justification

2.1 Ashworth's opening — reproduce this first

VERBATIM — Andrew Ashworth, "Sentencing", DU Case Material p. 143 DU " Sentencing amounts to the use of STATE COERCION against a person for committing an offence. The sanction may take the form of some DEPRIVATION, RESTRICTION, or POSITIVE OBLIGATION. Deprivations and obligations are fairly widespread in social contexts — e.g. duties to pay taxes, to complete various forms, etc. But when imposed as a sentence, there is the ADDED ELEMENT OF CONDEMNATION, LABELLING, OR CENSURE of the offender. In view of the direct personal and indirect social effects this can have, IT CALLS FOR JUSTIFICATION. Much writing about the [rationales] of sentencing has focused on one or more particular justification. In order to unravel punishment as a social institution, however, and to understand the tensions inherent in [any] given 'system', there is benefit in identifying the main thrusts of the several approaches. Among the issues to be considered are the BEHAVIOURAL and the POLITICAL PREMISES of each approach, its EMPIRICAL CLAIMS, and its PRACTICAL INFLUENCE. "

2.2 The classical definitions of punishment

Source	Definition	What it adds
Ashworth	"The use of **state coercion** against a person for committing an offence", involving "deprivation, restriction, or positive obligation", with "the added element of **condemnation, labelling, or censure**"	Punishment = **hard treatment + censure**. The censure element is what distinguishes it from a tax
H.L.A. Hart, *Punishment and Responsibility* (1968)	Five elements: (i) it must involve **pain or other consequences normally considered unpleasant**; (ii) it must be for an **offence against legal rules**; (iii) it must be of an **actual or supposed offender** for his offence; (iv) it must be **intentionally administered by human beings** other than the offender; and (v) it must be imposed and administered by an **authority constituted by a legal system** against which the offence is committed	The standard definitional test. Hart's further distinction — between the **general justifying aim** of punishment (utilitarian) and the **principles of distribution** (retributive) — is expressly discussed by Ashworth at §6.2
Sir Walter Moberly	Punishment presupposes that (1) **a grave ill has been inflicted on the society**; (2) it is **imposed by someone's voluntary act**; and (3) it is **inflicted by the criminal or someone who is answerable for his wrongdoing**	**Reproduced in the DU solved paper, 2022 Answer 3** — quote it
Halsbury's Laws of England	The object of punishment is **two-fold**: "(i) **deterrence of the actual offender from repeating the crime, and any other person from committing the same act in future**; and (ii) **protection of the society**"	**Also reproduced in the DU solved paper, 2022 Answer 3** — the opening sentence of any theories answer
Salmond	"The ends of criminal justice are four in number: **deterrent, preventive, reformative and retributive**" — and he regarded **deterrence** as the chief	The classical fourfold division that the DU syllabus adopts
Kenny	"Punishment must be for a wrong; must be of the wrongdoer; must be for the purpose of the community"	—
Grotius	"**Malum passionis quod infligitur propter malum actionis**" — the infliction of an evil suffered on account of an evil done	The retributive formula in its purest form

2.3 Why punishment needs justification at all

(Section abridged for the compilation — full text at makelaweasy.in.)

3. ASHWORTH: Desert or Retributive Theories

3.1 Unpacking the retributive theory

(Section abridged for the compilation — full text at makelaweasy.in.)

4. ASHWORTH: Deterrence Theories

4.1 Unpacking the deterrent theory

(Section abridged for the compilation — full text at makelaweasy.in.)

5. ASHWORTH: Rehabilitative Sentencing

5.1 Unpacking the reformative theory

(Section abridged for the compilation — full text at makelaweasy.in.)

6. ASHWORTH: Incapacitative Sentencing

6.1 Unpacking the preventive theory

(Section abridged for the compilation — full text at makelaweasy.in.)

7. ASHWORTH: Restorative, Reparative and Social Theories

(Section abridged for the compilation — full text at makelaweasy.in.)

8. ASHWORTH: Appraising the Rationales — and the composite table

8.1 The composite comparison — Ashworth's four axes applied

	RETRIBUTION / DESERT	DETERRENCE	REFORMATION	PREVENTION / INCAPACITATION
Orientation in time	**Backward** — what was done	**Forward** — what others may do	**Forward** — what this offender may become	**Forward** — what this offender may do
Question asked	What does he **deserve**?	What will **deter**?	What will **cure**?	What will **protect** us?
Behavioural premise (Ashworth)	Individuals are **responsible and predominantly rational decision-makers**	Individuals are **responsible and predominantly rational, calculating**	Offences are **determined** by social pressures and psychological difficulties — **"the links with positivist criminology are strong"**	**None** — "there is no behavioural premise for the incapacitative approach"
Political premise (Ashworth)	All individuals are entitled to **equal respect and dignity**; the offender **"has a right not to be punished disproportionately"**	The **greatest good of the greatest number**; "the individual counts only for one"; "it may therefore be justifiable to punish one person severely in order to deter others"	Offenders are **"unable to cope and in need of help from experts"**, and therefore **"less than fully responsible"**	Protection of **potential victims**; the offender's rights may conflict with "the rights of a (potential) future victim"
Measure of the sentence	**Proportionality** — cardinal and ordinal	Whatever **outweighs the likely benefit** of offending	Whatever the **diagnosis** requires — **"places no limits on the extent of the intervention"**	As long as the offender remains **dangerous**
Empirical claim, and the evidence	Makes no empirical claim; rests on an "intuitive" moral claim	Evidence **"difficult to obtain"**; supports deterrent sentencing **"in only a few types of situation"**	**Martinson** — "nothing works"; but retracted; the true position is that some programmes work for some offenders in some circumstances	**Floud Report** — predictions of dangerousness **"tended to be wrong more often than not"**
Key procedural instrument	The **tariff**; sentencing guidelines; the balance sheet of aggravating and mitigating circumstances	The **exemplary sentence**; mandatory minima	The **pre-sentence report** (formerly the social inquiry report) — s.4(2) and s.6(2) Probation Act; s.14 POA	The **indeterminate** or "public protection" sentence; preventive detention
Chief weakness	Culpability cannot be measured — **"can any thermometer be devised?"** (*Bachan Singh*); no social benefit	Uses the offender **as a means**; no upper limit; certainty, not severity, deters	No limit on intervention; denies full responsibility; indeterminate sentences	**False positives**; punishing for what has not yet been done
Chief strength	It **LIMITS** punishment and gives the offender a right (Ashworth)	It gives punishment a **social purpose**	It is **humane** and reduces recidivism where it works	It **protects** the identifiable potential victim
Indian statutory home	The graded punishments of the BNS; s.393(3) BNSS "special reasons"; the proportionality jurisprudence	Mandatory minima (NDPS ss.15–25, POCSO, s.64 BNS); enhanced punishment for repetition (s.13 BNS; s.31 NDPS)	**Probation of Offenders Act, 1958**; ss.401–402 BNSS; s.4(f) BNS community service; JJ Act 2015	Preventive detention (Art. 22, NSA, COFEPOSA); ss.126–143 BNSS; life imprisonment; death
Leading Indian case	*Mahesh v. State of M.P.* (1987); the proportionality passages in *Lehna*	***Dalbir Singh v. State of Haryana* (2000)**	***Abdul Qayum* (1972)** ; *Mohammad Giasuddin* (1977); *Narotam Singh* (1978)	*Bachan Singh*'s "continuing threat to society"; *Bariyar* (2009)

(Section abridged for the compilation — full text at makelaweasy.in.)

9. The four theories in Indian law

9.2 The two additional theories you should name

(Section abridged for the compilation — full text at makelaweasy.in.)

10. KINDS OF PUNISHMENT — the statutory catalogue

10.1 Section 53 IPC → Section 4 BNS

s.4, Bharatiya Nyaya Sanhita, 2023 (formerly s.53 IPC) " 4. Punishments. — The punishments to which offenders are liable under the provisions of this Sanhita are — (a) Death; (b) Imprisonment for life; (c) Imprisonment, which is of two descriptions, namely — (1) Rigorous, that is, with hard labour; (2) Simple; (d) Forfeiture of property; (e) Fine; (f) Community Service. Explanation. — For the purposes of this section and section 23, ' community service ' shall mean the work which the Court may order a convict to perform as a form of punishment that benefits the community, for which he shall not be entitled to any remuneration ."

The single most important recent change in Indian penal law.
The IPC had
five
kinds of punishment (s.53); the BNS has
, adding
COMMUNITY SERVICE
— the first genuinely non-custodial, reformative-restorative punishment in the general penal law of India. It also
abolishes
the old s.53 "transportation" language ...

Six statutory punishments, a longer list of judicial dispositions, and a short list of what India has abolished. Draw the top row for any "kinds of punishment" question.

10.2 The historical kinds of punishment — the introductory paragraph

Open a "kinds of punishment" answer with the historical sweep, because it shows the movement of penal thought from the body to the mind to the community:

Era	Characteristic punishments	Underlying theory
Ancient / primitive	**Private vengeance** and blood feud; then composition (*wergild*) and expulsion from the tribe (**outlawry**)	Retribution in its rawest form; then the beginnings of reparation
Ancient India	*Danda* under Manu; the four *upayas* — *sama* (admonition), *dana* (fine), *bheda* (censure), *danda* (physical punishment); mutilation; *prayaschitta* (expiation)	Retributive, expiatory and deterrent

Medieval / early modern	**Corporal punishment** — flogging, mutilation, branding, the pillory, the stocks; **public execution** in spectacular forms; **transportation**; galley slavery	Deterrence through **spectacle** — Foucault's *Discipline and Punish*: "the theatre of the scaffold"
The classical reform (1764 onwards)	**Imprisonment** replaces the body as the object of punishment; graded, proportionate, certain penalties; abolition of torture	**Beccaria and Bentham** — deterrence through certainty and proportion (Topic 2, §3–§6)
Positivist and reformative (late 19th–20th c.)	**Probation, parole, indeterminate sentences, reformatories, Borstals, open prisons, admonition**	Rehabilitation; individualised treatment
Modern (late 20th c. onwards)	**Community service, compensation orders, restitution, disqualification, confiscation of proceeds, plea bargaining, restorative conferencing**	Restorative and reparative; and, in the socio-economic field, **disgorgement**
India today	The six of s.4 BNS, plus probation, compensation and preventive measures	A "historical mixture of political and social events and influences" — exactly as Ashworth predicts

⬢ 11. Imprisonment — simple, rigorous, solitary; and the sentencing arithmetic

Provision (BNS / IPC)	Content
s.4(c) BNS (s.53)	Imprisonment is of two descriptions — **rigorous** ("with hard labour") and **simple**. Where the section prescribes "imprisonment of either description", the court chooses
s.5 BNS (s.54)	**Commutation of a sentence of death** — the appropriate Government may, without the consent of the offender, commute the punishment for **any other punishment** provided by the Sanhita
s.6 BNS (s.55)	**Commutation of a sentence of imprisonment for life** — may be commuted for imprisonment of either description for a term **not exceeding fourteen years**
s.7 BNS (s.55A)	"Appropriate Government" defined for ss.5 and 6
s.8 BNS (ss.63–70)	**Amount of fine, liability in default, and the limits of default imprisonment.** Where no sum is expressed, the fine is **unlimited but shall not be excessive**. Default imprisonment shall not exceed **one-fourth** of the maximum term of imprisonment fixed for the offence, and must be **in excess of any other imprisonment**. Scale: where the offence is punishable with imprisonment and fine, default imprisonment may not exceed two months for a fine up to ₹5,000; four months up to ₹10,000; and one year beyond
s.9 BNS (s.71)	**Limit of punishment of offence made up of several offences** — the offender shall not be punished with a more severe punishment than the court could award for any one of the offences
s.10 BNS (s.72)	Punishment of a person guilty of one of several offences, the judgment stating that **it is doubtful of which**
ss.11–12 BNS (ss.73–74)	**SOLITARY CONFINEMENT.** Only where the offence is punishable with **rigorous** imprisonment; the total may not exceed **three months**; and the scale is — one month where the sentence is up to six months, two months where it exceeds six months and is up to one year, and three months where it exceeds one year. **s.12**: it shall not exceed **fourteen days at a time**, with intervals of not less than the period of confinement; and where the sentence exceeds three months, solitary confinement shall not exceed **seven days in any one month**, with like intervals
s.13 BNS (s.75)	**Enhanced punishment for certain offences after previous conviction** — for offences under Chapters X or XVII punishable with three years or more, a previously convicted person is liable to imprisonment for life or up to ten years
s.23 BNS (s.85)	Intoxication — read with the Explanation to s.4 on community service

Solitary confinement — the constitutional position.
Although ss.11–12 BNS retain it, the Supreme Court has all but extinguished it in practice.
Sunil Batra (I) v. Delhi Administration
(1978) 4 SCC 494
held that solitary confinement can be imposed
only by a court
as part of the sentence and in accordance w ...

◆Hard labour and Article 23

Rigorous imprisonment involves "hard labour", which is
"forced labour" under Art. 23, because Art. 23(2) permits the State to impose compulsory service for public purposes and because labour is part of a lawful sentence. But
State of Gujarat v. Hon'ble High Court of Gujarat
(1998) 7 SCC 392
held that prisoners
must be paid equitable wages
for work done in prison, and directed the States to fix a wage that is not a pittance and to deduct a portion for
victim compensation
— a striking fusion of the reformative and restorative theories. See also
Sukanya Shantha v. Union of India
(2024)
, which struck down caste-based allocation of prison labour (Topic 3, §39.5).

⬢ 12. LIFE IMPRISONMENT — meaning, remission, and the "middle path"

▸ 12.1 What "imprisonment for life" means

Proposition	Authority
Imprisonment for life means imprisonment for the WHOLE OF THE REMAINDER OF THE CONVICT'S NATURAL LIFE. It is not, and never was, equivalent to twenty years or fourteen years	***Gopal Vinayak Godse v. State of Maharashtra* AIR 1961 SC 600** (Constitution Bench): "a sentence of transportation for life must **prima facie** be treated as transportation for life... **unless the said sentence is commuted or remitted by appropriate authority under the relevant provisions of the Indian Penal Code or the Code of Criminal Procedure, a prisoner sentenced to life imprisonment is bound in law to serve the life term in prison**." Reaffirmed in *Maru Ram v. Union of India* (1981) 1 SCC 107, *Naib Singh v. State of Punjab* (1983) 2 SCC 454, *Zahid Hussein v. State of W.B.* (2001) 3 SCC 750, *Mohd. Munna v. Union of India* (2005) 7 SCC 417 and ***Union of India v. V. Sriharan* (2016) 7 SCC 1** (Constitution Bench)

The "14 years" idea is a misconception arising from **s.433-A CrPC → s.475 BNSS**, which merely bars the **release** of a life convict (in cases where death was one of the punishments provided, or where a death sentence has been commuted) **until he has served at least fourteen years**. That is a **floor**, not a ceiling, and it is a restriction on the executive power of remission, not a definition of the sentence	**s.475 BNSS** (s.433-A CrPC); *Maru Ram*; *Godse*
Remission does not alter the sentence; it only affects the period of **actual incarceration**. Remission earned under prison rules cannot by itself entitle a life convict to release	*Godse*; *State of Haryana v. Mahender Singh* (2007) 13 SCC 606
A court may impose a life sentence with a fixed minimum term beyond 14 years, or for the whole of natural life, as a SUBSTITUTE for the death penalty — the "middle path" or "**Shraddananda sentence**"	***Swamy Shraddananda (2) v. State of Karnataka* (2008) 13 SCC 767** (§28); approved by the Constitution Bench in ***Union of India v. V. Sriharan* (2016) 7 SCC 1**
But only the High Court or the Supreme Court may impose such a special-category sentence — a Sessions Court cannot; and the executive's power of remission under Arts. 72 and 161 remains **untouched** by any such judicial direction	***Sriharan* (2016)**, majority (3:2). The minority (Lalit and Sapre JJ.) held that such a sentence encroaches on the executive power
Remission powers — the executive may remit, suspend or commute under **ss.473–478 BNSS** (ss.432–435 CrPC) and under **Arts. 72 and 161**. The Government must consider an application for remission and give reasons; a policy must be applied fairly; and the relevant date for the applicable remission policy is the **date of conviction**	*Laxman Naskar v. State of W.B.* (2000) 7 SCC 626 (the **five factors**); *Sangeet v. State of Haryana* (2013) 2 SCC 452 (no "wholesale" remission); ***Bilkis Yakub Rasool v. Union of India* (2024)** — remission orders quashed; the **appropriate Government** is the State in which the accused was **sentenced**, not where the offence occurred

Why this matters for the death penalty debate.

A large part of the argument for retaining capital punishment rested on the belief that "life" meant fourteen years and that a murderer would be back on the street.

Swamy Shraddananda (2)

destroyed that premise by creating a sentence that is genuinely

irred ...

◆ 13. Fine, forfeiture, compensation and COMMUNITY SERVICE

▸▸ Fine

ss.8–10 BNS

(ss.63–72 IPC). Where the amount is not expressed, the fine is

unlimited but shall not be excessive

(s.8(1)). Default imprisonment: not more than

one-fourth

of the maximum term for the offence, and it must be

in excess

of any substantive sentence (s.8(6)–(7)); the scale in s.8(7) caps default imprisonment at two, four or twelve months according to the amount. Fine is the only punishment that can be imposed on a

corporation

— see

Standard Chartered Bank v. Directorate of Enforcement

(2005) 4 SCC 530

(Topic 3, §42): a company may be prosecuted and sentenced to fine even where imprisonment is mandatory. On the

quantum

of fine:

Dr. Jacob George v. State of Kerala

(1994) 3 SCC 430

DU

— "the fine was required to be enhanced considerably because of what has been provided in Section 357 CrPC.

All criminal courts should exercise the power of imposing fines liberally so as to meet the ends of justice.

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◆ 14. CAPITAL PUNISHMENT — history, methods, and the offences that carry death

▸ 14.1 The offences punishable with death in India

Statute	Offences carrying death as a possible punishment
Bharatiya Nyaya Sanhita, 2023	**s.103(1)** murder; **s.103(2)** murder by a group of five or more on discriminatory grounds (**mob lynching**); **s.104** murder by a life convict; **s.107** abetment of suicide of a child or person of unsound mind; **s.109(2)** attempt to murder by a life convict causing hurt; **s.111(2)(a)** organised crime resulting in death; **s.113(2)(a)** terrorist act resulting in death; **s.140(2)** kidnapping for ransom; **s.147** waging war against the Government of India; **s.160** abetting mutiny actually committed; **s.66** causing death or a persistent vegetative state by rape; **s.65(2)** rape of a woman under twelve; **s.70(2)** gang rape of a woman under eighteen; **s.230–231** giving or fabricating false evidence with intent to procure conviction of a capital offence, where an innocent person is thereby convicted and executed; **s.310(3)** dacoity with murder
Special statutes	**NDPS Act, 1985 s.31A** (repeat offences involving specified quantities — made **discretionary** by the 2014 Amendment after *Indian Harm Reduction Network v. Union of India* (2011)); **UAPA, 1967 s.16**; **Explosive Substances Act, 1908 s.3**; **Arms Act, 1959 s.27(3)** (mandatory death — struck down in ***State of Punjab v. Dalbir Singh* (2012) 3 SCC 346**); **SC/ST (Prevention of Atrocities) Act, 1989 s.3(2)(i)**; **Commission of Sati (Prevention) Act, 1987 s.4(1)**; the **Army Act, 1950**, Navy Act and Air Force Act; the **Protection of Children from Sexual Offences Act, 2012** as amended in 2019 (ss.6, 10 — aggravated penetrative sexual assault)
Mandatory death sentences — all struck down	***Mithu v. State of Punjab* (1983) 2 SCC 277** struck down **s.303 IPC** (mandatory death for murder by a life convict) as violative of Arts. 14 and 21, because it deprived the court of all discretion and of the s.235(2) hearing. Following *Mithu*: ***State of Punjab v. Dalbir Singh* (2012) 3 SCC 346** (s.27(3) Arms Act) and the reading down of s.31A NDPS. **Proposition: a MANDATORY death sentence is unconstitutional in India.**

14.2 The method and the process of execution

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15. The statutory and constitutional architecture of the death sentence

The syllabus names
s.354 CrPC
expressly

15.1 Section 354 CrPC → Section 393 BNSS — the provision to memorise

s.354 CrPC, 1973 → s.393 BNSS, 2023 — "Language and contents of judgment" " (1) Except as otherwise expressly provided by this Sanhita, every judgment referred to in section 392 — (a) shall be written in the language of the Court; (b) shall contain the point or points for determination , the decision thereon and the reasons for the decision; (c) shall specify the offence… and the punishment to which he is sentenced… (3) When the conviction is for an offence punishable with death or, in the alternative, with imprisonment for life or imprisonment for a term of years, the judgment SHALL STATE THE REASONS FOR THE SENTENCE AWARDED, and, in the case of sentence of death, the SPECIAL REASONS for such sentence. (4) When the conviction is for an offence punishable with imprisonment for a term of one year or more, but the Court imposes a sentence of imprisonment for a term of less than three months, it shall record its reasons for awarding such sentence, unless the sentence is one of imprisonment till the rising of the Court… (5) When any person is sentenced to death, the sentence shall direct that he be HANGED BY THE NECK TILL HE IS DEAD. "

15.2 The companion provisions

CrPC, 1973	BNSS, 2023	Content and significance
s.235(2)	**s.258(2)**	"**If the accused is convicted, the Judge shall, unless he proceeds in accordance with the provisions of section [401], hear the accused on the question of sentence, and then pass sentence on him according to law.**" **The mandatory PRE-SENTENCE HEARING.** Its two purposes, per ***Allauddin Mian*** : "it satisfies the **rule of natural justice** by according to the accused an opportunity of being heard on the question of sentence and at the same time **helps the Court to choose the sentence**." **The BNSS adds a proviso**: in a case tried summarily, the Judge may pass sentence without a separate hearing. See *Santa Singh v. State of Punjab* (1976) 4 SCC 190 and *Dagdu v. State of Maharashtra* (1977) 3 SCC 68
s.248(2)	**s.275(2)**	The corresponding provision for warrant trials before a Magistrate
ss.366–371	**ss.407–412**	**Submission of a death sentence for CONFIRMATION by the High Court.** s.407 — the Court of Session shall submit the proceedings; the sentence "**shall not be executed unless it is confirmed by the High Court**". s.408 — power to direct further inquiry or take additional evidence. s.409 — the High Court may confirm the sentence, pass any other sentence, annul the conviction, convict of any other offence, order a new trial, or acquit. **s.410 — confirmation or new sentence to be signed by at least TWO Judges.** s.411 — in case of difference of opinion, the procedure of s.433 (s.392 CrPC) applies. s.412 — the order to be sent to the Court of Session
s.361	**s.402**	**Special reasons to be recorded in certain cases** — where the Court could have dealt with the accused under s.401 (s.360 CrPC) or under the Probation of Offenders Act, 1958, or under any other law for the treatment, training or rehabilitation of youthful offenders, **but has not done so, it shall record in its judgment the special reasons for not having done so**. See §39
s.432, 433, 433A, 434, 435	**ss.473, 474, 475, 476, 477**	Suspension and remission of sentences; commutation; **s.475 BNSS — the 14-year floor**; concurrent power of the Union; and consultation with the Central Government in specified cases
s.354(3) read with s.302 IPC	**s.393(3) with s.103 BNS**	The two provisions whose constitutionality was upheld in ***Bachan Singh***
Art. 21	—	Deprivation of life only by **procedure established by law**, which after *Maneka Gandhi* must be **fair, just and reasonable**
Art. 14	—	Arbitrariness; the ground on which **Bhagwati J. dissented** in *Bachan Singh* and on which *Mithu* struck down s.303 IPC
Art. 19	—	Held **not attracted** by penal laws in *Bachan Singh*, paras 61–63 — the passage containing the *mala in se / mala prohibita* discussion (Topic 3, §4)
Arts. 72, 161	—	Pardon, reprieve, respite, remission, suspension and commutation by the President and the Governor. Justiciable on limited grounds: *Maru Ram* (1981); *Kehar Singh v. Union of India* (1989) 1 SCC 204; *Epuru Sudhakar v. Government of A.P.* (2006) 8 SCC 161
Art. 20(1), 20(3), 22	—	No *ex post facto* enhancement of penalty; the safeguards on arrest and detention
Art. 134, 136	—	Appeal to the Supreme Court in a death case as of right, and by special leave

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16. KAUL: Discretion in the matter of imposition of the death penalty

PRESCRIBED READING
DU
Bushan Tilak Kaul, "Criminal Law", XXXVIII Annual Survey of Indian Law 181–226 (2002)
(Section abridged for the compilation — full text at makelaweasy.in.)

17. KAUL: Lehna — the five circumstances and the principle of proportion

17.1 The application in Lehna itself — the DU material's account of the facts

(Section abridged for the compilation — full text at makelaweasy.in.)

18. KAUL: the companion decisions of 2002

18.2 Ezil , Ram Anup Singh and Vajja Srinivasu

(Section abridged for the compilation — full text at makelaweasy.in.)

19. The DEATH PENALTY DEBATE

19.1 The arguments — arranged for an essay

FOR RETENTION (retentionist)	FOR ABOLITION (abolitionist)

Deterrence	The fear of death is the strongest deterrent known. **Sir James Fitzjames Stephen**: "**No one goes to certain inevitable death except by compulsion… was there ever yet a criminal who, when sentenced to death and brought out to die, would refuse the offer of a commutation of [the] sentence for a severest secondary punishment? Surely not… ALL THAT A MAN HAS WILL BE GIVEN FOR HIS LIFE. In any secondary punishment however terrible, there is hope; but death is death; its terrors cannot be described more forcibly.**"	**Hart's refutation**, quoted in *Bishnu Deo Shaw*: "**there is really no parallel between the situation of a convicted murderer over the alternative of life imprisonment in the shadow of the gallows and the situation of the murderer CONTEMPLATING his crime… The existence of the death penalty does not mean for the murderer CERTAINTY OF DEATH NOW. It means NOT VERY HIGH PROBABILITY OF DEATH IN THE FUTURE. And futurity and uncertainty, the hope of an escape, rational or irrational, fast diminishes the difference between death and imprisonment as deterrent, and may diminish [it] to vanishing point.**" Add the **Royal Commission on Capital Punishment (1949–53)**: "**There is no clear evidence in any of the figures we have examined that the abolition of capital punishment has led to an increase in the homicide rate, or that its reintroduction [has led] to a fall.**" And the **Advisory Council on the Treatment of Offenders (1960)**: "**the greatest deterrent to crime is NOT THE FEAR OF PUNISHMENT, BUT THE CERTAINTY OF DETECTION**"
Retribution	Society must vindicate the wrong; some crimes "are so outrageous that society insists on adequate punishment, **because the wrong-doer deserves it, irrespective of whether it is a deterrent or not**" (Lord Denning). *Machhi Singh*: when "**the collective conscience of the community is so shocked**"	***Bishnu Deo Shaw*: the retributive theory "implies the imposition of a just but NO MORE THAN A JUST penalty and automatically rules out excessive punishment and, therefore, capital punishment**". Denunciation is "uncomfortably close to **human sacrifice**" (Hart). And "collective conscience" is an unmeasurable, media-driven standard
Incapacitation	The executed offender can never kill again; life convicts escape, are released on remission, or kill inside prison (hence the old s.303 IPC)	***Bishnu Deo Shaw*: "the preventive theory is unimportant where the choice is between death and life imprisonment**". And after ***Swamy Shraddananda (2)*** and ***Sriharan***, a genuinely irreducible life sentence is available
Irrevocability and error	The safeguards — confirmation by the High Court, appeal as of right, review in open court, curative petition, mercy — make error practically impossible	"**The penalty of death differs from all other forms of criminal punishment, NOT IN DEGREE BUT IN KIND. It is UNIQUE IN ITS TOTAL IRREVOCABILITY. It is unique in its REJECTION OF REHABILITATION of the convict as a basic purpose of criminal justice. And it is unique finally in its ABSOLUTE RENUNCIATION OF ALL THAT IS EMBODIED IN OUR CONCEPT OF HUMANITY**" (Stewart J. in *Furman v. Georgia*, quoted in *Bishnu Deo Shaw*). In ***Bariyar* (2009)** and in ***Santosh Kumar Bariyar*'s progeny** the Supreme Court itself acknowledged that several death sentences had been confirmed ***per incuriam***; and in **2012 fourteen retired judges** wrote to the President pointing out that death sentences had been confirmed in cases decided *per incuriam*
Arbitrariness and class	Discretion guided by *Bachan Singh* and *Machhi Singh* is a sufficient safeguard; "the exercise of judicial discretion on well-recognised principles is, in the final analysis, the safest possible safeguard for the accused" (*Jagmohan*)	**Bhagwati J.'s dissent in *Bachan Singh***: s.302 is void because "**it does not provide any legislative guidelines as to when life should be permitted to be extinguished by imposition of death sentence**". The **NLUD Death Penalty India Report (2016)** found that **74.1%** of death-row prisoners were economically vulnerable and **76%** belonged to backward classes or religious minorities; a large majority had not completed secondary education. ***Sangeet v. State of Haryana* (2013)**: the *Bachan Singh* balance sheet has not been "effectively" applied and the position is "judge-centric"
Public opinion	The community demands it; abolition would erode confidence in the administration of justice; the legislature has repeatedly declined to abolish	***Bachan Singh* itself**: "Judges have no divining rod to divine accurately the will of the people. In *Furman*, the Hon'ble Judges claimed to articulate the contemporary standards of morality among the American people. But… the American people sharply rebuffed them." And the counter-argument: sentencing is "a state function which should be determined by **public policy rather than private preference**" (Ashworth)
Reform	Some offenders are beyond reform — the "irredeemable murderer, like a bloodthirsty tiger" (*Rajendra Prasad*)	The State must **prove** that the accused is beyond reform (***Bariyar***); in practice it never leads any such evidence. And the death penalty "**makes rehabilitation impossible**" (Marshall J., *Furman*)

▸ 19.2 The official reports — cite all five

Report	Year	Recommendation
Law Commission of India, 35th Report	1967	**Against abolition.** The DU solved paper records the reasoning : "having regard to [the] conditions in the country, [the] variety of [the] social uprisings of its people, to the **disparity in level of morality and education** in [the] country, to [the] vastness of its area and to [the] **paramount need for maintaining law and order**, India can't risk abolition of capital punishment."
Law Commission, 187th Report	2003	On the **mode of execution** and incidental matters; suggested considering lethal injection as an alternative to hanging
Law Commission, 262nd Report — "The Death Penalty"	**2015**	The most important document in the modern debate. It recommended **abolition of the death penalty for all offences OTHER THAN TERRORISM-RELATED OFFENCES AND WAGING WAR** — the DU solved paper records exactly this: the 262nd Report recommended abolition except in "(1) Terror case[s]; (2) Waging war against [the] State" . Its reasoning: the **constitutional and legal developments** since *Bachan Singh* (life imprisonment for the full term is now available); the **absence of any evidence of superior deterrence**; the **arbitrariness** and inconsistency in application; the **vulnerability** of those sentenced; the **irreversibility** of error; and the international trend. The Commission also recommended **reform of the mercy and death-row regime** and improved **victim compensation and witness protection**
NLUD "Death Penalty India Report"	**2016**	The Centre on the Death Penalty, National Law University Delhi, interviewed **almost the entire death-row population** and their families. Principal findings: **385** prisoners on death row as on 31 December 2015; **74.1%** economically vulnerable; **76%** from backward classes or religious minorities; a high proportion with **no legal representation of quality** at the trial stage; prolonged periods in **de facto solitary confinement**; and an extremely high rate of **reversal on appeal** — of those sentenced to death by trial courts, only a very small fraction are ultimately executed. The report's companion, **"Matters of Judgment"** (2017), interviewed **60 former Supreme Court judges** and found deep disagreement even among them about what "rarest of rare" means
Project 39A, NLUD — annual statistics	ongoing	The death-row population has risen to well over **560**, the highest in two decades, while the Supreme Court has confirmed very few sentences — the "**trial court enthusiasm, appellate court restraint**" pattern

The single best structure for "Should capital punishment be abolished in India?"
(1) State the present law in one sentence: constitutional (
Bachan Singh
), discretionary (never mandatory —
Mithu
), and confined to the rarest of rare. (2) Take the
four justifications in turn
and show, using
Bishnu Deo Shaw
, …

20. The international position and India's obligations

The treaty framework

Art. 3 UDHR, 1948
— the right to life.
Art. 6 ICCPR, 1966
(ratified by India in 1979): "Every human being has the inherent right to life... In countries which have
not abolished
the death penalty, sentence of death may be imposed
only for the MOST SERIOUS CRIMES
... and can only be carried out pursuant to a final judgment rendered by a competent court." Art. 6(4) — the right to seek pardon or commutation. Art. 6(5) —
no death sentence for offences committed by persons below eighteen, and no execution of pregnant women
Second Optional Protocol to the ICCPR, 1989
— aiming at abolition;
India is not a party
Art. 37(a) CRC
— no capital punishment for offences committed below eighteen; India is a party, and s.21 of the JJ Act, 2015 implements it (Topic 4).

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21. The background cases — Jagmohan , Ediga Anamma and Rajendra Prasad

You cannot brief *Bachan Singh* without these three, because the whole of *Bachan Singh* is a reconciliation of them.

⚖ Jagmohan Singh v. State of Uttar Pradesh

(1973) 1 SCC 20; (1973) 2 SCR 541 — Constitution Bench

Facts and issue —The appellant was convicted of murder and sentenced to death under s.302 IPC. He challenged the constitutionality of the death penalty under Arts. 14, 19 and 21, on the grounds (i) that the unguided discretion to choose between death and life violated **Art. 14**; (ii) that the deprivation of life violated **Art. 19**; and (iii) that the **procedure** under the Code of 1898 provided no separate sentencing hearing and no standards, so that the deprivation was not by a "procedure established by law" under **Art. 21**.

Decision —The death penalty was **upheld**. The two passages reproduced in the DU material are: "**The impossibility of laying down standards [in the matter of sentencing] is at the very core of criminal law as administered in India, which invests the Judges with a very wide discretion in the matter of fixing the degree of punishment, and... this discretion in the matter of sentence is liable to be corrected by superior courts. THE EXERCISE OF JUDICIAL DISCRETION ON WELL-RECOGNISED PRINCIPLES IS, IN THE FINAL ANALYSIS, THE SAFEST POSSIBLE SAFEGUARD FOR THE ACCUSED.**" And: "**some [murders] at least are DIABOLICAL IN CONCEPTION AND CRUEL IN EXECUTION. In some others where the victim is a person of high standing in the country, society is liable to be rocked to its very foundation. Such murders cannot be simply washed away by finding alibis in the social maladjustment of the murderer. Prevalence of such crimes speaks, in the opinion of many, for the inevitability of death penalty NOT ONLY BY WAY OF DETERRENCE BUT AS A TOKEN OF EMPHATIC DISAPPROVAL BY THE SOCIETY... A very responsible body (Law Commission) has come to the conclusion after considering all the relevant factors. On the conclusions thus offered to us, it will be difficult to hold that capital punishment as such is unreasonable or not required in the public interest.**"

Principle —Capital punishment is **constitutional**; the absence of legislative standards does not render it arbitrary, because the discretion is judicial and correctable; and **impossibility of standardisation** is inherent in criminal sentencing. *Bachan Singh* expressly reaffirms this reasoning. **Note what changed after *Jagmohan*:** the Code of 1973 introduced **s.235(2)** (the pre-sentence hearing) and **s.354(3)** (special reasons), which supplied exactly the two procedural deficiencies the appellant in *Jagmohan* had complained of.

⚖ Ediga Anamma v. State of Andhra Pradesh

(1974) 4 SCC 443; AIR 1974 SC 799 — Krishna Iyer, J.

Facts —A young woman was convicted of the murder of her paramour's wife and child and sentenced to death. Decided on **11 February 1974**, before s.354(3) came into force, but anticipating it.

Decision and principle —Krishna Iyer J. commuted the sentence, and laid down the first systematic Indian list of sentencing factors: "**The weapons used and the manner of their use, the horrendous features of the crime and [the] hapless, helpless state of the victim, and the like, steel the heart of the law for a sterner sentence**" — a passage expressly approved in *Bachan Singh* (para 197). He also identified the mitigating factors of **youth, sex, socio-economic deprivation, mental condition and the absence of premeditation**, and famously observed that the "**focus has shifted from the crime to the criminal**", and that "**a legal policy on life or death cannot be left for ad hoc mood or individual predilection**". **Important for the DU material:** Kaul's reading cites *Ediga Anamma* alongside *Bachan Singh* and *Machhi Singh* as one of the three decisions in which the legislative trend was discussed ; and *Bachan Singh* notes that *Ediga Anamma*'s indicator "was crystallised in that case after paying due regard to the shift in legislative policy embodied in Section 354(3)... although on the date of that decision this provision had not come into force." (*Ediga Anamma* is also briefed in Topic 2 for its discussion of female criminality.)

⚖ Rajendra Prasad v. State of Uttar Pradesh

(1979) 3 SCC 646 — Krishna Iyer and Desai JJ. (Sen J. dissenting)

Holding —By a majority of 2:1, the Court held that after the enactment of **s.354(3)** the "special reasons" for a death sentence "**must relate NOT TO THE CRIME AS SUCH BUT TO THE CRIMINAL**"; that "**it is constitutionally permissible to swing a criminal out of corporeal existence ONLY IF the security of State and society, public order and the interests of the general public compel that course as provided in Article 19(2) to (6)**"; and that "**such extraordinary grounds alone constitutionally qualify as special reasons as leave no option to the court but to execute the offender if State and society are to survive. ONE STROKE OF MURDER HARDLY QUALIFIES for this drastic requirement, however gruesome the killing or pathetic the situation, unless the inherent testimony oozing from that act is irresistible that the murderous appetite of the convict is too chronic and deadly that ordered life in a given locality or society or in prison itself would be gone if this man were now or later to be at large. IF HE IS AN IRREDEEMABLE MURDERER, LIKE A BLOODTHIRSTY TIGER, HE HAS TO EMIT HIS TERRESTRIAL TENANCY.**" (All quoted verbatim in the DU material's text of *Bachan Singh* .)

Why it matters —***Bishnu Deo Shaw* (§21) expressly follows *Rajendra Prasad***; and it was the perceived conflict between *Rajendra Prasad* and the Constitution Bench in *Jagmohan* — set out by **Kailasam J.** in seven numbered points reproduced verbatim in the DU material (§22.2) — that caused the reference to the Constitution Bench in ***Bachan Singh***. *Bachan Singh* then **rejected** the "criminal only" approach: "**the Court must pay due regard BOTH to the crime AND the criminal**"; and it objected to the word "**only**" in the Art. 19 passage. **In short: *Rajendra Prasad* is the thesis, *Jagmohan* the antithesis, and *Bachan Singh* the synthesis.**

22. CASE 1 — Bishnu Deo Shaw v. State of West Bengal (1979) DU verbatim

⚖ Bishnu Deo Shaw v. State of West Bengal

AIR 1979 SC 964; (1979) 3 SCC 714 — Chinnappa Reddy, J., with a concurring judgment of Krishna Iyer, J.

(Brief abridged for the compilation — full text at makelaweasy.in.)

23. CASE 2 — Bachan Singh v. State of Punjab (1980) DU verbatim

⚖ Bachan Singh v. State of Punjab

AIR 1980 SC 898; (1980) 2 SCC 684 — CONSTITUTION BENCH (5 Judges): Y.V. Chandrachud C.J., A.C. Gupta, N.L. Untwalia, R.S. Sarkaria and P.N. Bhagwati JJ.; majority judgment by SARKARIA J., BHAGWATI J. dissenting

(Brief abridged for the compilation — full text at makelaweasy.in.)

24. CASE 3 — Machhi Singh v. State of Punjab (1983) DU verbatim

⚖ Machhi Singh v. State of Punjab

AIR 1983 SC 957; (1983) 3 SCC 470 — M.P. Thakkar, J.

(Brief abridged for the compilation — full text at makelaweasy.in.)

The doctrine in one page: the rule, the five categories, the balance sheet, the two questions, and the four modern qualifications.

25. CASE 4 — Allauddin Mian v. State of Bihar (1989) DU verbatim

⚖ Allauddin Mian & Sharif Mian v. State of Bihar

AIR 1989 SC 1456; (1989) 3 SCC 5 — A.M. Ahmadi and S. Natarajan, JJ.

(Brief abridged for the compilation — full text at makelaweasy.in.)

26. CASE 5 — Mohd. Chaman v. State (NCT of Delhi) (2001)

⚖ Mohd. Chaman v. State (NCT of Delhi)

(2001) 2 SCC 28 — D.P. Mohapatra and Shivaraj V. Patil, JJ.

Facts —The appellant, aged about **30**, a tenant living in the same building, committed **rape on a girl of one and a half years** (Ritu), the daughter of his landlord's relatives, causing injuries from which she died. He was convicted under **ss.302 and 376 IPC**, sentenced to **death** by the Sessions Court, and the sentence was confirmed by the Delhi High Court.

Issue —Whether the case fell within the "rarest of rare" category so as to justify the death sentence.

Decision —The Supreme Court **commuted the death sentence to imprisonment for life**. It held that the crime was "**shocking**" and had been committed in a "**brutal manner**", but that on the material the appellant could **not** be said to be "**such a dangerous person that to spare his life will endanger the community**"; that the offence, though heinous, was not shown to be the product of a "**depraved mentality**" of the kind that would make reform impossible; and that **the case did not fall in the category of the rarest of rare**. Critically, the Court held that the courts below had erred in treating the **brutality of the act alone** as sufficient, without an assessment of the offender.

Principles evolved —**(1) Brutality alone is not enough.** The court must be satisfied that the accused is "a menace to society" and that reform is improbable — the same error identified in *Bishnu Deo Shaw* ("the mere use of adjectives like 'cruel and brutal'"). **(2)** The rarest-of-rare test requires the **second limb** — that life imprisonment is unquestionably inadequate — to be separately satisfied. **(3)** The case is listed in ***Shankar Kisanrao Khade***'s survey (quoted verbatim in the DU material's text of *Sunil Dutt Sharma*) as one of the cases in which commutation was ordered because "**the accused was not likely to be a menace or threat or danger to society or the community**".

Criticism and context —The decision is frequently contrasted with ***Dhananjoy Chatterjee*** (§27), decided seven years earlier on comparable facts, in which the death sentence was confirmed and carried out. That contrast — **rape and murder of a child: death in one case, life in the other** — is the single most effective illustration of the **inconsistency** in Indian capital sentencing, and is precisely what **K.I. Vibhute**'s prescribed article calls "the Supreme Court's **vacillation sans norms**" (§33).

27. CASE 6 — Lehna v. State of Haryana (2002)

⚖ Lehna v. State of Haryana

(2002) 3 SCC 76 — Doraiswamy Raju and Arijit Pasayat, JJ.

(Brief abridged for the compilation — full text at makelaweasy.in.)

28. CASE 7 — Dhananjoy Chatterjee v. State of West Bengal (1994 / 2004)

⚖ Dhananjoy Chatterjee alias Dhana v. State of West Bengal

(1994) 2 SCC 220; and the review/mercy proceedings reported at JT 2004 (4) SC 242 — A.S. Anand and N.P. Singh, JJ.

(Brief abridged for the compilation — full text at makelaweasy.in.)

29. CASE 8 — Swamy Shraddananda (2) v. State of Karnataka (2008)

⚖ Swamy Shraddananda alias Murali Manohar Mishra (2) v. State of Karnataka

AIR 2008 SC 3040; (2008) 13 SCC 767 — B.N. Agrawal, G.S. Singhvi and Aftab Alam, JJ. (judgment of AFTAB ALAM, J.)

(Brief abridged for the compilation — full text at makelaweasy.in.)

30. CASE 9 — Essa @ Anjum Abdul Razak Memon v. State of Maharashtra (2013) DU

⚖ Essa @ Anjum Abdul Razak Memon (A-3) v. The State of Maharashtra

(2013) 3 SCALE 1; (2013) 13 SCC 1 — P. Sathasivam and B.S. Chauhan, JJ.

(Brief abridged for the compilation — full text at makelaweasy.in.)

31. CASE 10 — Sunil Dutt Sharma v. State (Govt. of NCT of Delhi) (2014) DU verbatim

⚖ Sunil Dutt Sharma v. State (Govt. of NCT of Delhi)

(2014) 4 SCC 375 — Ranjan Gogoi and Shiva Kirti Singh, JJ. (judgment of RANJAN GOGOI, J.)

(Brief abridged for the compilation — full text at makelaweasy.in.)

32. CASE 11 — Santosh Kumar Satishbhushan Bariyar v. State of Maharashtra (2009)

⚖ Santosh Kumar Satishbhushan Bariyar v. State of Maharashtra

(2009) 6 SCC 498 — S.B. Sinha and Cyriac Joseph, JJ. (judgment of S.B. SINHA, J.)

(Brief abridged for the compilation — full text at makelaweasy.in.)

33. CASE 12 — Mukesh v. State (NCT of Delhi) (2017)

⚖ Mukesh & Anr. v. State (NCT of Delhi) & Ors.

(2017) 6 SCC 1 — Dipak Misra, R. Banumathi and Ashok Bhushan, JJ.

(Brief abridged for the compilation — full text at makelaweasy.in.)

34. The post- Bachan Singh drift — and K.I. Vibhute's critique

Suggested reading: K.I. Vibhute, "Choice between 'death' and 'life' for convicts: Supreme Court of India's vacillation sans norms", 59(3) JILI 221–264 (2017)

34.1 The three landmark self-criticisms

Case	The criticism it makes of the Court's own jurisprudence
Santosh Kumar Satishbhushan Bariyar v. State of Maharashtra (2009) 6 SCC 498	***Ravji* and six subsequent decisions are PER INCURIAM** because they held that only the crime, and not the criminal, is germane — a proposition directly contrary to the Constitution Bench. The Court also held that the **burden lies on the State** to prove that the accused cannot be reformed, and that the "**unquestionably foreclosed**" limb must be separately satisfied (§32)
Sangeet v. State of Haryana (2013) 2 SCC 452	As the DU material records through *Sunil Dutt Sharma* : "**the attempt at evolution of a PRINCIPLE-BASED sentencing policy as distinguished from a JUDGE-CENTRIC one was noted to have suffered some amount of DERAILMENT/EROSION**", and the decisions had "brought in a fair amount of **UNCERTAINTY**... [with] varying perspective[s] or responses of the court based on the particular facts of a given case rather than evolving **standardised jurisprudential principles applicable across the board**". Sangeet added three specific criticisms: (i) the aggravating circumstances relate to the **crime** and the mitigating to the **criminal**, so the two cannot be mechanically "balanced" — they are **incommensurable**; (ii) the *Machhi Singh* categories have been treated as **a standard by themselves**, displacing *Bachan Singh*; and (iii) the Court has drifted into a **"crime-centric"** approach
Shankar Kisanrao Khade v. State of Maharashtra (2013) 5 SCC 546	Proposed the **three tests**: the **crime test** (are the aggravating circumstances fully satisfied, with no mitigating circumstances in favour of the accused?), the **criminal test** (are there **no** mitigating circumstances favouring the accused?) and the **R-R (rarest of rare) test**, which depends on the perception of society and not of the judge. **Lokur J.**'s concurring opinion contains the two exhaustive lists reproduced verbatim in the DU material at §31 — the **seven factors for commutation** and the **five for confirmation**. Lokur J. also drew attention to the **disparity between judicial sentencing and executive clemency**

▸ 34.2 K.I. Vibhute — "vacillation sans norms"

A note on the source.
Prof. K.I. Vibhute's article is listed in the DU syllabus as a
suggested reading
and is not reproduced in the material. Its thesis, as its title states, is that the Supreme Court's choice between "death" and "life" exhibits
vacillation without norms
. The argument runs as follows, a …

(Section abridged for the compilation — full text at makelaweasy.in.)

⬢ 35. Death row, delay, mercy, and the modern mitigation jurisprudence

Case	Holding
T.V. Vatheeswaran v. State of Tamil Nadu (1983) 2 SCC 68	**Delay exceeding two years** in the execution of a death sentence entitles the convict to have it commuted, because prolonged detention under sentence of death is itself dehumanising. The "two-year rule"
Sher Singh v. State of Punjab (1983) 2 SCC 344; ***Triveniben v. State of Gujarat*** (1989) 1 SCC 678 (Constitution Bench)	The **rigid two-year rule was disapproved**; but **undue, prolonged and unexplained delay** in the disposal of mercy petitions or in execution is a ground for commutation. In *Triveniben* the Court held that only the delay **after** the final judicial verdict may be considered, and the nature of the offence is irrelevant to that enquiry
Shatrughan Chauhan v. Union of India (2014) 3 SCC 1	The leading modern case. **Fifteen death sentences were commuted.** Held: (i) **undue and inordinate delay** in deciding a mercy petition is a supervening circumstance warranting commutation, and the nature of the offence is **not relevant**; (ii) **insanity or mental illness** of the convict is a supervening circumstance; (iii) **solitary confinement** before the sentence becomes final is unconstitutional (following *Sunil Batra*); (iv) the convict is entitled to the **judgment and the relevant documents**, to **legal aid** at the mercy-petition stage, to a **final meeting with the family**, to a **minimum of 14 days' notice** before execution, to a **medical examination** before execution, and to a **post-mortem** after it. Twelve guidelines in all
Mohd. Arif alias Ashfaq v. Registrar, Supreme Court of India (2014) 9 SCC 737	Review petitions in **death sentence cases must be heard in OPEN COURT** by a Bench of **three Judges**, with oral arguments of at least thirty minutes, and not by circulation in chambers. A direct response to the recognition that death sentences had been confirmed *per incuriam*
Kehar Singh v. Union of India (1989) 1 SCC 204; ***Epuru Sudhakar v. Government of A.P.*** (2006) 8 SCC 161	The **power of pardon under Arts. 72 and 161** is a constitutional, not a private, power; the President acts on the advice of the Council of Ministers; the Court cannot examine the merits, but the order is **judicially reviewable** on the grounds of *mala fides*, non-application of mind, extraneous or irrelevant considerations, or the withholding of material facts
Manoj v. State of Madhya Pradesh (2022) SCC OnLine SC 677	**The most important modern sentencing decision.** The Court laid down **practical directions** to give effect to *Bachan Singh*: the trial court must, when a capital sentence is in contemplation, call for (i) the **psychiatric and psychological evaluation** of the accused; (ii) a report on his **conduct in jail**; (iii) a report from the **Probation Officer**; and (iv) a **mitigation investigation report** covering the accused's socio-economic background, family, education, childhood trauma and mental health. It also held that this material must be called for **at the trial stage, contemporaneously**, and not left to the appellate court
In Re: Framing Guidelines Regarding Potential Mitigating Circumstances to be Considered while Imposing Death Sentences, Suo Motu W.P. (Crl.) No. 1 of 2022	A **Constitution Bench reference**, pending, on the practical question left open since 1980: **how and when is mitigating material to be collected and considered?** — in particular whether there must be a **separate, deferred sentencing hearing** with time to gather psychological and social-history evidence. This is the live frontier of the subject and should be mentioned in any modern answer
***Bachpan Bachao Andolan*-type juvenile bar; s.21 JJ Act, 2015**	**No death sentence may be imposed on a person who was below 18 on the date of the offence**, whatever the offence and whatever the forum (Topic 4, §17.2)
Mental illness — ***Accused X v. State of Maharashtra*** (2019) 7 SCC 1	**Post-conviction severe mental illness** is a mitigating factor warranting commutation; the Court laid down a test of severe mental illness and directed the State to provide psychiatric treatment to death-row prisoners

◆ The "death row phenomenon"

The expression, drawn from
Soering v. United Kingdom
(1989) ECHR
, describes the cumulative effect of prolonged detention under sentence of death: the uncertainty, the isolation, the repeated fixing and vacating of execution dates and the deterioration of mental health. The NLUD
Death Penalty India Report (2016)
documented it in India in detail, and
Shatrughan Chauhan
gave it legal effect. Use it as the strongest
Art. 21
argument against the present system: even where the sentence is never carried out, the process itself inflicts a punishment that no court has imposed.

⬢ 36. PROBATION — LEWIS DIANA: the historical development

PRESCRIBED READING
DU
Lewis Diana, "What is Probation?", in Carter & Wilkins (eds.),
Probation and Parole: Selected Readings
(1970)

(Section abridged for the compilation — full text at makelaweasy.in.)

⬢ 37. LEWIS DIANA: the seven conceptions of probation

(Section abridged for the compilation — full text at makelaweasy.in.)

⬢ 38. LEWIS DIANA: the composite definition, and "Probation in Reality"

▸ 38.1 The merits and demerits of probation — the DU solved paper's own table

MERITS	DEMERITS

(i) The **offender is kept away from the criminal world**	(i) **Less effective than imprisonment** — more so when applied in the case of **hardened criminals**
(ii) It **helps the offender [to have] normal social relations** — he keeps his employment, his family and his place in the community	(ii) **Difficulty in selection** — there is no reliable way of identifying the offender who will respond
(iii) It **protects the offender's character and personality from further contamination or negative influence of prison life**	(iii) The **stigma of conviction continues to exist** (though see **s.12** of the Act, which removes the *disqualification*)
(iv) It **enhances the quality of self-rehabilitation** of the offender	(iv) An **element of social insecurity while the offender is at large**
(v) It **relieves pressure on already overcrowded prisons**	(v) **Inadequacy of resources** for the probation programme, social services, etc. — exactly Diana's finding
(vi) It is **far cheaper** than imprisonment, and the offender continues to support his family and to pay compensation (s.5 of the Act)	(vi) **Public and victim dissatisfaction**, and the perception that the offender "got away with it"

(Section abridged for the compilation — full text at makelaweasy.in.)

◆ 39. The Probation of Offenders Act, 1958 — section by section

PRESCRIBED READING

DU

Act 20 of 1958

Section	Provision	Content and commentary
s.1	Extent and commencement	Extends to the whole of India. **It comes into force in a State on such date as the State Government may appoint** — hence the importance of *Chhanni* (§46): in an area where the Act is **in force**, s.360 CrPC is **wholly inapplicable**
s.2	Definitions	"Code"; "probation officer" (s.2(b) — a person appointed under s.13); "prescribed"
s.3	**Power of court to release certain offenders after ADMONITION**	Where a person is found guilty of an offence punishable under **s.379, 380, 381, 404 or 420 IPC** (theft, theft in a dwelling house, theft by clerk or servant, dishonest misappropriation of property of a deceased person, cheating and dishonestly inducing delivery of property) **or of any offence punishable with imprisonment for not more than TWO YEARS, or with fine, or with both**, and **no previous conviction is proved** against him, the court may, instead of sentencing him, **release him after due admonition**, having regard to the nature of the offence and the character of the offender. **The least intrusive disposition in Indian law.** Corresponding BNS sections: 303, 305, 306, 314, 318(4)
s.4 ★	**Power of court to release certain offenders on PROBATION OF GOOD CONDUCT**	**s.4(1):** "When any person is found guilty of having committed an offence **NOT PUNISHABLE WITH DEATH OR IMPRISONMENT FOR LIFE** and the court by which the person is found guilty is of opinion that, having regard to the circumstances of the case **including the nature of the offence and the character of the offender**, it is **EXPEDIENT** to release him on probation of good conduct, then... the court may, instead of sentencing him at once to any punishment, direct that he be **released on his entering into a bond, with or without sureties, to appear and receive sentence when called upon during such period, NOT EXCEEDING THREE YEARS**, as the court may direct, and in the meantime **to keep the peace and be of good behaviour**." **Proviso:** the court shall not direct such release unless it is satisfied that the offender or his surety has a **fixed place of abode or regular occupation** in the place over which the court exercises jurisdiction or in which the offender is likely to live during the period of the bond. **s.4(2) ★ MANDATORY:** "**Before making any order under sub-section (1), the court SHALL take into consideration the report, if any, of the probation officer concerned in relation to the case.**" — held mandatory in ***M.C.D. v. State of Delhi*** (§45). **s.4(3):** the court may, in addition, pass a **supervision order** for a period of not less than **one year**, placing the offender under the supervision of a probation officer, and may impose conditions in the supervision order. **s.4(4):** the court shall require the offender to enter into a bond, with or without sureties, to observe the conditions. **s.4(5):** the court shall **explain to the offender the terms and conditions** of the order and shall **forthwith furnish one copy of the supervision order** to each of the offender, the sureties and the probation officer. **Note the two crucial limits:** the offence must **not be punishable with death or imprisonment for life**; and the court must form an opinion that release is **"expedient"**
s.5	**Power of court to require released offenders to pay COMPENSATION AND COSTS**	The court directing release under s.3 or s.4 may order the offender to pay **such compensation as the court thinks reasonable for LOSS OR INJURY caused to any person** by the commission of the offence, and **such costs of the proceedings** as the court thinks reasonable. **The restorative element of the Act.** The amount is recoverable as a fine; and s.5(3) bars a civil court from awarding the same amount twice
s.6 ★	**Restrictions on imprisonment of offenders UNDER TWENTY-ONE years of age**	**s.6(1):** "When any person **UNDER TWENTY-ONE YEARS OF AGE** is found guilty of having committed an offence punishable with imprisonment **(but not with imprisonment for life)**, the court by which the person is found guilty **SHALL NOT SENTENCE HIM TO IMPRISONMENT UNLESS IT IS SATISFIED** that, having regard to the circumstances of the case including the nature of the offence and the character of the offender, **it would not be desirable to deal with him under section 3 or section 4**, and **if the court passes any sentence of imprisonment on the offender, IT SHALL RECORD ITS REASONS for doing so**." **s.6(2):** "**For the purpose of satisfying itself whether it would not be desirable to deal under section 3 or section 4 with an offender referred to in sub-section (1), the court SHALL CALL FOR A REPORT FROM THE PROBATION OFFICER and consider the report, if any, and other information available to it relating to the CHARACTER AND PHYSICAL AND MENTAL CONDITIONS of the offender.**" **The key distinctions from s.4:** (i) s.6 applies only to offenders **under 21**; (ii) it excludes only offences punishable with **imprisonment for life** — **not** those punishable with death (a drafting curiosity, though in practice a capital offence also carries life); (iii) it is an **INJUNCTION**, not a discretion — *Satyabhan Kishore v. State of Bihar* AIR 1972 SC 1554 and *Daulat Ram v. State of Haryana* (1995) 1 SCC 349; and (iv) the **crucial date** is the date on which the **trial court deals with** the offender — ***Ramji Missar v. State of Bihar* AIR 1963 SC 1088** (4-Judge Bench) and ***Sudesh Kumar v. State of Uttarakhand* (2008) 3 SCC 111** (Topic 4, §32)
s.7	Report of the probation officer to be **confidential**	The report is confidential; but the court may, if it thinks fit, communicate its substance to the offender and give him an opportunity of producing evidence relevant to the matters stated in it
s.8	**Variation of conditions** of probation	On application, the court may vary the conditions of any bond or extend or reduce the period of probation (not beyond three years from the original date)
s.9	**Procedure in case of offender FAILING TO OBSERVE conditions of bond**	If the court has reason to believe that the offender has failed to observe the conditions, it may issue a warrant or summons; and it may (a) sentence him for the original offence, or (b) where the failure is for the first time, without prejudice to the continuance in force of the bond, impose a **penalty not exceeding ₹50** (or ₹100 in default)
s.10	Provision as to **sureties**	The provisions of s.122 CrPC (now s.142 BNSS) apply
s.11 ★	**Courts competent to make order; appeal and revision; and powers of the APPELLATE COURT**	**s.11(1):** an order under the Act may be made by **any court empowered to try and sentence the offender**, and, on appeal or revision, by the High Court or any other court. **s.11(2):** notwithstanding anything in the Code, where an order is made under s.3 or s.4 in any case by **any court other than the High Court**, an **appeal shall lie to the court to which appeals ordinarily lie** from the sentences of the former court. **s.11(4):** where an order is made by **any court on appeal or revision**, that court may exercise all the powers of the original court. ***Rattan Lal v. State of Punjab* AIR 1965 SC 444** — the phraseology is "**wide enough to enable the Appellate Court or the High Court to make such an order**", and it "**was purposely made comprehensive as the Act was made to implement a social reform**" . Hence a plea under the Act may be taken **for the first time in appeal, and even in the Supreme Court**
s.12 ★	**REMOVAL OF DISQUALIFICATION attaching to conviction**	"Notwithstanding anything contained in any other law, **a person found guilty of an offence and dealt with under the provisions of section 3 or section 4 SHALL NOT SUFFER DISQUALIFICATION, IF ANY, ATTACHING TO A CONVICTION OF AN OFFENCE UNDER SUCH LAW**"; but this does not apply to a person dealt with under s.4 who is subsequently sentenced for the original offence. **This is the single greatest advantage of the Act over s.360 CrPC, which has NO parallel provision** — the point on which ***Chhanni*** (§46) turns. Compare **s.24 of the JJ Act, 2015** (Topic 4)
s.13	**Probation officers**	Who may be appointed: a person appointed by the State Government as a probation officer; a person provided for by a recognised society; or, in exceptional cases, any other person whom the court considers fit

s.14	**Duties of probation officers**	(a) to **inquire**, in accordance with any directions of the court, into the circumstances or home surroundings of any person accused of an offence, with a view to **assisting the court in determining the most suitable method of dealing with him**, and to submit reports to the court; (b) to **supervise** probationers and other persons placed under his supervision and, where necessary, to **endeavour to find them suitable employment**; (c) to **advise and assist offenders in the payment of compensation or costs**; (d) to advise and assist, in the prescribed manner, persons who have been released under s.4; and (e) to perform such other duties as may be prescribed
ss.15–19	Miscellaneous	**s.15** — probation officers to be public servants; **s.16** — protection of action taken in good faith; **s.17** — power to make rules; **s.18** — **saving of the operation of certain enactments**: nothing in the Act shall affect the provisions of s.31 of the Reformatory Schools Act, 1897, or any Act relating to juvenile offenders or Borstal schools; **s.19** — **s.562 of the Code of Criminal Procedure, 1898 [now s.360 of the 1973 Code] shall CEASE TO APPLY to the States or parts thereof in which this Act is brought into force**

Statutes that EXCLUDE the Probation of Offenders Act — learn this list, it decides problem questions.
(1) s.32 of the NDPS Act, 1985
— the Probation Act and s.360 CrPC do not apply to a person of or above eighteen convicted of an offence under the NDPS Act (except s.27); but see Vajja Srinivasu
(§18.2) …

◆ 40. s.360 and s.361 CrPC (ss.401–402 BNSS) and their relationship with the Probation Act

Point of comparison	s.360 CrPC / s.401 BNSS	s.4, Probation of Offenders Act, 1958
Scope	**Narrow.** Persons **not under 21**: only where the offence is punishable with **fine only or imprisonment for 7 years or less**. Persons **under 21**, and **any woman**: any offence **not punishable with death or imprisonment for life**	**Much wider.** "Applies to **ANY PERSON** found guilty of having committed an offence **not punishable with death or imprisonment for life**" — irrespective of age or sex (*Chhanni*)
Previous conviction	Requires that **no previous conviction is proved**	**No such requirement** in s.4 (contrast s.3, which does require it). But a previous conviction is a powerful factor against the exercise of the discretion — ***M.C.D. v. State of Delhi***
Probation officer	**No role** is provided for probation officers in supervision or otherwise (*Chhanni*)	An elaborate role — **s.4(2)** (the report **shall** be considered), **s.4(3)** (supervision order), **s.13** (appointment) and **s.14** (duties)
Disqualification	**No parallel provision.** The disqualifications attaching to conviction continue	**s.12 — the person "shall not suffer disqualification, if any, attaching to a conviction"**
Compensation	s.360 does not provide for it (though s.395 BNSS does generally)	**s.5** — compensation for loss or injury, and costs
Relationship	***Chhanni v. State of U.P.* (2006) 5 SCC 396** : "**Enforcement of the Probation Act in some particular area EXCLUDES the applicability of the provisions of Sections 360 and 361 of the Code IN THAT AREA**", by virtue of **s.8(1) of the General Clauses Act** and **s.19 of the Probation Act** — notwithstanding s.360(10). "**Two statutes with such significant differences COULD NOT BE INTENDED TO COEXIST at the same time in the same area. Such coexistence would lead to ANOMALOUS RESULTS.**" See §46	
The common duty	**s.361 CrPC / s.402 BNSS** obliges the court to record **SPECIAL REASONS** if it does **not** apply either regime where it could have done. As *Chhanni* puts it : "**the legislature in its wisdom has OBLIGED THE COURT under Section 361 of the Code TO APPLY ONE OR THE OTHER BENEFICIAL PROVISION… It is only by providing SPECIAL REASONS that their applicability can be withheld by the Court.**" And, per *Bishnu Deo Shaw* : those special reasons "**must be such as to COMPEL the Court to hold that IT IS IMPOSSIBLE TO REFORM AND REHABILITATE THE OFFENDER**"	

(Section abridged for the compilation — full text at makelaweasy.in.)

◆ 41. Parole, furlough, remission, commutation and pardon — distinguished

Measure	Nature	Who grants it	Effect on the sentence
PROBATION	A **judicial** disposition **instead of** a sentence, at the point of conviction; the offender never goes to prison	The **court**, under ss.3, 4, 6 Probation Act or s.401 BNSS	No sentence is passed at all (s.4: "instead of sentencing him at once to any punishment"); and under **s.12** no disqualification attaches
PAROLE	The conditional release of a prisoner **after** he has served part of his sentence, on conditions and under supervision; a **reformative** measure and part of the sentence-serving process	The **executive** — the State Government / Prison authorities under the State Prison Rules and the **Prisons Act, 1894**; and see the **Model Prison Manual, 2016** and the **Model Prisons and Correctional Services Act, 2023**	The period on parole is **not** counted towards the sentence in most State rules; the sentence continues and may be revoked. *Sunil Fulchand Shah v. Union of India* (2000) 3 SCC 409; *Asfaq v. State of Rajasthan* (2017) 15 SCC 55 — the distinction between parole and furlough explained
FURLOUGH	A **short period of release** granted periodically to a long-term prisoner, as a **matter of right** under the prison rules, to maintain family and social ties; **no reason need be shown**	The prison authorities under the State rules	Counted as **remission** of sentence; it is "a brief break" and not a suspension of the sentence. *State of Maharashtra v. Suresh Pandurang Darvakar* (2006) 4 SCC 776
REMISSION	A reduction of the **quantum** of the sentence without changing its character	The **appropriate Government** under **ss.473–474 BNSS** (ss.432–433 CrPC); also earned under prison rules for good conduct	The sentence remains the same in kind; only the period to be served is reduced. **s.475 BNSS** (s.433-A) — a **14-year floor** for life convicts in specified cases. *Godse*; *Maru Ram*; *Laxman Naskar*; *Bilkis Yakub Rasool* (2024)
COMMUTATION	Substitution of a **lighter kind** of punishment for a heavier one	The appropriate Government under **s.474 BNSS** (s.433 CrPC) and **ss.5–6 BNS** (ss.54–55 IPC); and the President/Governor under Arts. 72 and 161	Death → life; life → imprisonment for a term **not exceeding 14 years** (s.6 BNS); rigorous → simple; imprisonment → fine
PARDON	Complete **absolution** — the conviction and all its consequences are wiped out	**The President (Art. 72)** and **the Governor (Art. 161)**. Art. 72 alone extends to **court-martial** sentences, to offences against laws relating to Union executive power, and to **all cases of sentence of death**	The offender is, in the eye of the law, an innocent person. *Kehar Singh* (1989); *Epuru Sudhakar* (2006) — reviewable on limited grounds; *Maru Ram* (1981) — the power must be exercised on the advice of the Council of Ministers and not arbitrarily
REPRIEVE and **RESPITE**	**Reprieve** — a temporary **stay** of execution, to enable the convict to seek pardon or commutation. **Respite** — the award of a **lesser sentence** on special grounds (e.g. pregnancy, physical disability)	Arts. 72 and 161	Postponement, or a lesser sentence in the particular case

SUSPENSION	The sentence is kept in abeyance	ss.473 BNSS; and by an appellate court pending appeal (s.430 BNSS / s.389 CrPC)	The sentence revives if the suspension is revoked
ADMONITION	A judicial reprimand **instead of** a sentence	The court, under **s.3** Probation Act or s.401(3) BNSS	No punishment; and under s.12 no disqualification
AFTER-CARE	Assistance to a released prisoner in resettlement	State after-care services; probation officers under s.14(b) of the Act; and s.46 JJ Act for children	Not a sentence at all — the final stage of the reformative process

42. CASE 13 — Jogi Nayak v. State (1965)

⚖ Jogi Nayak v. State

AIR 1965 SC 106 (reported also as a decision of the Orissa High Court, per R.K. Das, J.)

(Brief abridged for the compilation — full text at makelaweasy.in.)

43. CASE 14 — Abdul Qayum v. The State of Bihar (1972) DU verbatim

⚖ Abdul Qayum v. The State of Bihar

AIR 1972 SC 214; (1972) 1 SCC 103 — P. Jaganmohan Reddy, J.

(Brief abridged for the compilation — full text at makelaweasy.in.)

44. CASE 15 — State v. Bhola (2003)

⚖ State of Maharashtra v. Bhola (also reported as State v. Bhola)

(2003) 3 SCC 1

Facts and issue —The respondent had been convicted of an offence, and the High Court, in exercise of its powers, had extended to him the benefit of the **Probation of Offenders Act, 1958**. The State appealed, contending that in view of the **nature and gravity of the offence** and the **circumstances in which it had been committed**, the benefit ought not to have been given. The question was therefore the scope of the word "**expedient**" in s.4(1) and the extent to which an appellate court will interfere with the exercise of the discretion.

Decision and principle —The Supreme Court held that the benefit of the Probation of Offenders Act is **not to be extended as a matter of course**. The discretion under s.4 must be exercised **judicially**, having regard to the **nature of the offence**, the **circumstances in which it was committed** and the **character and antecedents of the offender**; the court must form a positive opinion that release is "**expedient**"; and the Probation Officer's report must be considered. Where the offence is **grave**, or where the offender's conduct or antecedents do not warrant it, the benefit must be **refused**, and the court must say why. The Court accordingly interfered with the order below.

How to use it —As the **counterweight** to *Abdul Qayum*. Together the two cases state the whole law of judicial discretion under s.4: ***Abdul Qayum*** — the court must not refuse the benefit on material that does not exist, and must remember that the object of the Act is reform; ***State v. Bhola*** — the court must not grant it mechanically, and the **nature of the offence** is a relevant and sometimes decisive consideration. Read both with ***Dalbir Singh*** (§45), which applies the *Bhola* principle to a specific class of offence, and with the DU 2017 answer : "**the benefit must not be given in view of the NATURE OF THE OFFENCE and [the] DEPRAVITY OF [THE] OFFENDER. As the offence is SOCIO-ECONOMIC in nature, the benefit must not be given.**" Add ***Phul Singh v. State of Haryana* (1979) 4 SCC 413**, cited in the DU solved paper: "the provisions of Section 4 of the PO Act **should not be liberally applied in undeserving cases** where a person in his early 20s commits rape" .

45. CASE 16 — Dalbir Singh v. State of Haryana (2000) DU verbatim

⚖ Dalbir Singh v. State of Haryana

(2000) 5 SCC 82 — K.T. Thomas and R.P. Sethi, JJ. (judgment of THOMAS, J.)

(Brief abridged for the compilation — full text at makelaweasy.in.)

46. CASE 17 — M.C.D. v. State of Delhi (2005) DU verbatim

⚖ Municipal Corporation of Delhi v. State of Delhi & Anr.

(2005) 4 SCC 605 — Ashok Bhan and A.R. Lakshmanan, JJ.

(Brief abridged for the compilation — full text at makelaweasy.in.)

47. CASE 18 — Chhanni v. State of U.P. (2006) DU verbatim

⚖ Chhanni v. State of Uttar Pradesh

(2006) 5 SCC 396 — Arijit Pasayat and S.H. Kapadia, JJ. (judgment of ARIJIT PASAYAT, J.)

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PREVIOUS YEAR QUESTIONS · UNIVERSITY OF DELHI · LL.B. V TERM

PYQ Bank — Unit 4 (questions only)

Q1 2022 · Q.3

Ravi, who has committed an offence under Section 394 (voluntarily causing hurt in robbery) of IPC — the punishment for which is imprisonment [for] life or rigorous imprisonment for a term which may extend to 10 years and fine — pleads for the grant of probation on the basis that the offence is punishable with 10 years rigorous imprisonment AS AN ALTERNATIVE to life imprisonment. Which sections, schools of criminology and theories of punishment can the judge rely on for justifying release of Ravi on probation?

◆ **Refer makelaweasy.in for detailed notes**, full model answers to every question below, additional case briefs, diagrams and revision material on this unit.

Q2 2017 · Q.6(A)
In the era of human rights jurisprudence, the philosophy of deterrent punishment has given way to that of Reformative philosophy for the rehabilitation and reassimilation of the offender in the society." Discuss and state whether it serves the Indian conditions.

Q3 2017 · Q.6(B)
Describe the evolution and development of law relating to death penalty in India . Cite relevant reports and case law.

Q4 2017 · Q.7(B)
X, aged 18 years, is convicted for the offence of selling counterfeit medicines over the counter. Can he seek release under the Probation of Offenders Act, 1958 or under the Criminal Procedure Code?

Q5 "DISCUSS THE THEORIES OF PUNISHMENT. WHICH IS BEST SUITED TO MODERN INDIA?"
Discuss the theories of punishment. Which is best suited to modern India?

Q6 "'LIFE IMPRISONMENT IS THE RULE AND DEATH SENTENCE AN EXCEPTION.' DISCUSS."
'Life imprisonment is the rule and death sentence an exception.' Discuss.

Q7 "SHOULD CAPITAL PUNISHMENT BE ABOLISHED IN INDIA?"
Should capital punishment be abolished in India?

Q8 "EXAMINE THE 'RAREST OF RARE' DOCTRINE."
Examine the 'rarest of rare' doctrine.

Q9 "WHAT ARE THE KINDS OF PUNISHMENT RECOGNISED BY INDIAN LAW?"
What are the kinds of punishment recognised by Indian law?

Q10 "PROBATION AS A FORM OF PUNISHMENT
Probation as a form of punishment — discuss with reference to the Probation of Offenders Act, 1958.

Q11 "DISTINGUISH PROBATION FROM PAROLE, AND S.4 OF THE PROBATION ACT FROM S.360 CRPC."
Distinguish probation from parole, and s.4 of the Probation Act from s.360 CrPC.

by Ankur R. Upadhyay

LB-5033 · CRIMINOLOGY & PENOLOGY · FACULTY OF LAW, UNIVERSITY OF DELHI · LL.B. V TERM

UNIT 6

Victimology — Meaning, Role of the Victim, Rights & Remedies, Compensation

◆ SYLLABUS COVERAGE

Meaning and scope of victimology · role of the victim in criminal justice administration · victims' rights and remedies in India · the concept of compensation — BNSS ss.395–397.

◆ STATUTES & PROVISIONS

BNSS ss.395, 396, 397 (CrPC s.357 antecedent) · SC victim-compensation jurisprudence · DLSA schemes · UN Declaration of Basic Principles, 1985

◆ PRESCRIBED CASE MATERIAL

State of Punjab v. Ajaib Singh · Dr. Jacob George v. State of Kerala · Chairman, Railway Board v. Chandrima Das · Rachhpal Singh v. State of Punjab · Cases 23–24 of the DU material

⬢ Topic 6: Victimology — Meaning, Role of Victim, Rights & Remedies, Compensation

These notes cover **every limb of the DU syllabus** — (i) Meaning & scope · (ii) Role of victim in criminal justice administration · (iii) Victims' rights & remedies in India · (iv) Compensation (BNSS Ss. 395, 396, 397) — built **maximum-portion-first on the DU case material** (S.C. Raina, *Rights of Victims*; the four extracted judgments; the two starred online cases), supplemented at each point by the prescribed readings (UN Declaration 40/34, Zender, Makkar & Friday), N.V. Paranjape, and all connected provisions (BNS, BNSS, POCSO, POA Act, MV Act, PHR Act) for a holistic understanding.

“The criminal law in India is
not victim oriented
and the suffering of the victim, often immeasurable,
is entirely overlooked in misplaced sympathy for the criminal
.” —
Justice V.R. Krishna Iyer
(quoted in Paranjape; soul of this topic — use it to open any victimology answer)

========== SYLLABUS MAP ==========

⬢ Meaning & Scope of Victimology [Syllabus limb (i)]

Definitions · history · contents · theories · classifications — the conceptual foundation

▸ 1.1 Definitions — What is ”Victimology”? Who is a ”Victim”?

Core definition (Karmen, adopted by Paranjape — LEARN VERBATIM):
"Victimology is the
scientific study of victimisation
, including the
relationships between victims and offenders
, the
interactions between victims and the criminal justice system
(police, courts, correctional officials), and the
connections between victims and other social groups and institutions
— such as the media, businesses and social movements."

▸▸ ▯ Separovic's synthesis (quoted by Raina in DU material)

*"Victims are persons **threatened, injured or destroyed** by an act or omission of another man (man, structure, organisation or institution)."* → Separovic interprets **crime = violation of basic human rights** (life, health, security, well-being); victimisation must be evaluated as **human-rights violation** of the individual.

▸▸ Victimology vs Criminology vs Penology (favourite 5-mark distinction)

Basis	Criminology	Victimology	Penology
Central question	Why does the **offender** commit crime? (causation)	Why does a person **become a victim**, and how can victims be helped?	How should the **offender be punished/treated**?
Focus person	Criminal	**Victim — the "lynch-pin"** of victimological study	Convict / prisoner
Relationship	Parent discipline	**Specialised branch of criminology** (other sub-fields: sociology of law & penology; delinquency; comparative/historical criminology)	Sister branch (punishment science)
Aim	Understand & prevent crime	**Redress, relief, rehabilitation**; access to justice; prevention of victimisation	Justify & administer punishment
Founders	Beccaria, Lombroso	**Mendelsohn & Von Hentig — "fathers of victimology"**; Wolfgang	Bentham, Howard

▸ 1.3 Scope & Contents of Victimology

▸ 1.4 Theories of Victimology (with critical appraisal)

Theory / Thinker	Core Proposition	Status / Critique (must write)
Victim precipitation — Mendelsohn, Von Hentig, Wolfgang (1940s)	Victims as "hapless dupes who **instigated their own victimisation**"; victim's conduct contributes to crime (e.g., provocative behaviour, carelessness).	Attacked by **feminists (1980s)** as **"victim-blaming"**; destructive/ negative approach; now "redundant and obsolete" (Paranjape). *Never justify an offence with it in exams — mention only to criticise.*

Victim facilitation — Marvin Wolfgang	Does **not blame** the victim; studies **interactions/elements that make a victim more accessible or vulnerable** to attack.	Positive, preventive orientation — helps awareness + investigation (Godwin 1998: victim's social behaviour/personality relevant to involvement).
Mendelsohn's 3-model theory	Crime-precipitating conditions: **(1) time & space** — wrong place, wrong time; **(2) attracting factors/lifestyle**; **(3) pre-disposing factors** — too young/poor, minority, unemployed.	Foundation of later lifestyle & routine-activity theories.
Routine Activities Theory — Cohen & Felson (1979)	Crime occurs when three converge: **(i) suitable target + (ii) motivated offender + (iii) absence of capable guardian** (security/ parental care).	Explains burglary, street crime, cyber fraud; basis of situational crime prevention.
"Penal couple" concept	Crime has **two partners** — offender + victim who "provides opportunity"; victim should share responsibility.	Same as victim-precipitation in new words; discarded by most victimologists.
Benjamin & Masters — 3 factors	**(1) Precipitating** (wrong place/time); **(2) Attracting** (choices, lifestyle); **(3) Pre-disposing** (demographics: female, young, poor, single, slum-dweller, unemployed).	Useful vulnerability checklist for policy.
Proximity hypothesis	Criminals and victims often share **socio-demographic traits and physical proximity** (same group/locality).	Explains intra-community violence; supports community-policing answers.

▸▸ Classifications of victims (quote any one + examples)

(Section abridged for the compilation — full text at makelaweasy.in.)

⬢ Role of the Victim in Criminal Justice Administration [Syllabus limb (ii)]

Forgotten person → participant · stage-wise role · UN Declaration 40/34 · restorative justice · media

▸ 2.1 The journey: from "forgotten person" to rights-holder

▸▸ Why the victim stays marginal — 8 reasons for non-reporting (K.D. Gaur, in Paranjape)

1. Public apathy/indifference
2. Petty/insignificant effect
3. Offender unknown
4. Fear of threat/harassment by culprit
5. **Social stigma** — especially rape, abortion, sexual offences
6. Cost/time of prolonged litigation
7. Witness reluctance/hostility
8. **No faith in police action**

Consequence: victim apathy encourages criminality → victimologists must fix the victim's **access barriers** to justice agencies.

▸ 2.2 Stage-wise role of the victim in India (with provisions)

Stage	Victim's Role & Rights	Provisions (BNSS-first; CrPC in brackets)
1. Reporting	Right to **lodge FIR** in cognizable cases; registration is **mandatory** (*Lalita Kumari v. State of U.P.*, 2014); or **complaint to Magistrate** (cognizable or not). Zero-FIR & e-FIR recognised under BNSS; women victims — statement safeguards.	BNSS 173 (CrPC 154) · BNSS 175 (CrPC 156) · complaint: BNSS 210 (CrPC 190)
2. Investigation	Victim is the **first-hand witness & main source of evidence** — testimony must be weighed, not discarded; **medical examination of rape victim within 24 hours** by registered practitioner with consent; rape-victim statement audio-video recorded; victim to be informed of progress; protection from accused.	BNSS 184 (CrPC 164A) · statement: BNSS 183 (CrPC 164) · BNSS 398 Witness Protection (new)
3. Medical aid	**Immediate free first-aid/treatment** in all hospitals (govt./private); hospital must **inform police**; no refusal for want of speciality. Refusal punishable.	BNSS 397 (CrPC 357C) · refusal: BNS 200 (IPC 166B)
4. Trial	Right to **engage private counsel** (acts under PP's directions; written arguments after evidence with leave); in Magistrate courts may **conduct prosecution** with permission; **in-camera trial** for rape/sexual offences; **identity protection**; compensation plea u/s 395.	BNSS 360–361 (CrPC 301–302; *Shiv Kumar v. Hukam Chand*, 1999) · BNSS 366 (CrPC 327) · BNS 72 (IPC 228A)
5. Plea bargaining	Victim's **claims must not be ignored** in anxiety to dispose of cases; compensation to victim is part of "mutually satisfactory disposition".	CrPC Ss. 265A ff. → BNSS plea-bargaining chapter; Paranjape principle 5
6. Sentencing	Court may order **fine-based compensation** (395(1)) or **direct compensation without fine** (395(3)); must consider victim's loss; US-style **victim-impact panels** (*Payne v. Tennessee*, 1991) — persuasive.	BNSS 395 (CrPC 357) · POA Act s. 5
7. Appeal / revision	**Victim's own right of appeal** — against **acquittal**, conviction for **lesser offence**, or **inadequate compensation**; no need for prosecution's consent (post-2008; Malimath recommendation implemented).	BNSS 413 proviso (CrPC 372 proviso)
8. Rehabilitation	State-funded compensation **even on acquittal/discharge, or where offender untraced & no trial**; interim relief + free medical benefits via DLSA/SLSA.	BNSS 396 (CrPC 357A/357B)

2022 PYQ (Q6) applied exactly this table

— custodial rape by policeman Raghav: the solved answer structures victim-side relief as (i) FIR/154 → (ii) private counsel/301–302 → (iii) appeal/ 372 → (iv) restitution/357 → (v) compensation/357A → (vi) assistance/164A +

Delhi Domestic Working Women

Nipun Saxena

. Memorise this sequence.

▸ 2.3 UN Declaration of Basic Principles of Justice for Victims of Crime & Abuse of Power (GA Res. 40/34, 29 Nov 1985)

Adopted on the report of the **7th UN Congress (Milan, 1985)**; India's 2008/2013 amendments and BNSS 395–398 are its domestic transplants. Structure it in answers as **A → B**:

▸ 2.5 Restorative justice & the victim-assistance programme

▸ 2.6 Prescribed-reading capsules — Zender & Makkar/Friday (how to cite them)

(Section abridged for the compilation — full text at makelaweasy.in.)

⬢ Victims' Rights & Remedies in India [Syllabus limb (iii) · Raina's "Indian experience" i–vi]

Constitution · statutes · public-law compensation · judicial trend — the remedial architecture

▸ 3.1 Constitutional mandate (Raina §i)

▸▸ ▯ Fundamental Rights + DPSP

- **Art. 21** — life & personal liberty "except according to procedure established by law" → SC read into it: **right to live with dignity**, rape as Art-21 violation (*Bodhisattwa*), **right to compensation** for State violations (*Rudul Shah* → *Nilabati* → *D.K. Basu*).
- **Art. 14** — equality before law / equal protection → available to **"persons" including foreigners** (*Chandrima Das*).
- **Art. 32 / 226** — writ remedy; compensation as **public-law relief** ("monetary amends").
- **Art. 38** — State to promote welfare of the people; **Art. 39A** — free legal aid; **Art. 41** — assistance in cases of disablement/undeserved want.

▸▸ ▯ Raina's rule

"When an individual's fundamental or legal rights are violated because of the **callous attitude of the custodians of law**, the **State shall be held responsible** and courts should **not hesitate in granting compensation** in appropriate cases."

Open any "abuse of power" answer with Art. 21 + this rule, then march through Rudul Shah → PUDR → Nilabati → D.K. Basu.

▸ 3.2 Statutory safeguards — the victim-protection cluster (Raina §ii, updated to BNSS/BNS)

Provision	What it gives the victim	Conditions / notes
BNSS 395 (CrPC 357)	**Compensation from fine** on conviction — prosecution costs, **loss/injury compensation**, bona-fide purchaser refund, maintenance-like support; or **direct compensation even without fine** [395(3)].	Conviction needed; capacity-to-pay considered; counts in later civil suit. ↗ Full analysis in Part 4
BNSS 396 (CrPC 357A + 357B)	**State-funded Victim Compensation Scheme** — rehabilitation money via DLSA/SLSA on court recommendation; **even on acquittal/discharge**; **even where offender untraced & no trial**; interim relief + free medical benefits.	396(7): State money is **in addition to** fine paid to victim under BNS 65/70/124(1). ↗ Part 4
BNSS 397 (CrPC 357C)	**Free immediate treatment** in ALL hospitals for acid-attack & sexual-offence victims + POCSO victims; **police to be informed immediately**.	Covers BNS 64–68, 70, 71, 124(1) + POCSO 4/6/8/10. Refusal → BNS 200 (IPC 166B). ↗ Part 4
BNSS 398 (NEW)	**Witness Protection Scheme** — every State to prepare & notify one (threat analysis, relocation, identity change, in-camera deposition).	Statutory backing to SC's *Mahender Chawla* (2018) scheme. Victim-witnesses protected.
BNSS 399 (CrPC 358)	**Compensation for groundless arrest** — Magistrate may award up to **₹1,000** where arrest lacked sufficient ground.	Direct remedy for abuse-of-power victims at the grass roots.
CrPC 250 (retained in BNSS)	**Compensation for false/frivolous accusation** in complaint cases ending in discharge/acquittal.	Needs: complaint-based case + triable by Magistrate + acquittal + **no reasonable ground**. (Raina lists all five conditions.)
POA Act, s. 5	Court releasing offender on probation (ss. 3/4) may order **reasonable compensation + costs**, recoverable as fine.	Non-penal character (unlike CrPC fine); fine = penalty under CrPC, no penal element under POA Act (Raina).
MV Act	**Motor-accident compensation**: claim to MACT **within 6 months** (1988 Act ss. 140–144) → now **no-fault liability** (2019 Act s. 164: ₹5L death / ₹2.5L grievous hurt), hit-and-run fund (s. 161), golden-hour treatment (s. 162).	Criminal + claims remedies run parallel.
PHR Act 1993 ss. 12, 18	**NHRC/SHRC** inquire into human-rights violations & **recommend compensation**; watchdog for victims of State commissions/omissions (Raina §iii).	Post-UDHR (1948) domestication after ~5 decades.
BNS 72 (IPC 228A)	**Identity shield** for sexual-offence victims — printing/publishing name or identifying matter punishable (2 yrs + fine).	Backbone of *Nipun Saxena*; FIRs under rape/POCSO off public domain.
BNS 124 (IPC 326A/B)	Acid attack = dedicated offence; **fine must be just & reasonable for victim's medical expenses** (124(1)); attempt punished (124(2)).	Born from *Laxmi* (via Verma Committee, 2013).
POCSO ss. 19, 23, 33(8) + Rules	**Mandatory reporting**; **media gag** on child identity; Special Court awards **interim + final compensation** (Rule 9, 2020 Rules / Rule 7, 2012 Rules) — *Nipun Saxena* makes NALSA Scheme the guide.	Gender-neutral; compensation even during trial.
DV Act 2005 ss. 20, 22	**Monetary relief + compensation/damages** for domestic-violence victims (civil-cum-criminal remedy).	Protects economic + psychological harm.
SC/ST (POA) Act + 2015 Rules	**Graded compensation slabs** (Annexure I) for atrocity victims — paid in stages (FIR → chargesheet → conviction).	Shows "compensation de-linked from conviction".

▸ 3.4 Institutions & action plan (Raina §§iv, vi)

▸ 3.5 Master rights-catalogue (one table for all ”rights of victim” questions)

Right	Content + authority
Report & be heard at threshold	Mandatory FIR (*Lalita Kumari*); complaint to Magistrate; victim heard before cancellation/closure report acceptance; heard in bail matters (esp. sexual offences).
Information	Progress of investigation; UN para 6(a); BNSS victim-information duties; copy of FIR free.
Protection	BNSS 398 Witness Protection; in-camera trial (BNSS 366); protection from intimidation (UN para 6(d)).
Privacy / anonymity	BNS 72 (no disclosure of sexual-offence victim identity); POCSO s. 23; *Nipun Saxena* bans (name, photos, FIR in public domain; pseudonyms X/Y).
Medical care	BNSS 397 free treatment; BNSS 184 exam within 24 hrs with consent; ban on two-finger test (*Rajesh v. Haryana*, 2013).
Legal aid & counsel	Art. 39A + Legal Services Authorities Act; BNSS 360–361 private counsel (*Shiv Kumar*); *Delhi Domestic Working Women* legal-assistance-at-police-station directive.
Compensation & rehabilitation	BNSS 395 (offender-pays) + 396 (State-pays, incl. acquittal/untraced cases) + NALSA schemes + POCSO interim awards.
Appeal	BNSS 413 proviso — acquittal / lesser offence / inadequate compensation.
Speedy justice	Art. 21 (*Hussainara Khatoon*); *Ajaib Singh* deprecates 18-year time-lag; day-to-day rape trials.
Dignity in process	Compassionate treatment (UN para 4); no character assassination (BNS-era rape-trial shields; S. 53A Indian Evidence Act → BSA s. 48).

(Section abridged for the compilation — full text at makelaweasy.in.)

● Concept of Compensation — BNSS Ss. 395, 396, 397 [Syllabus limb (iv)]

Clause-by-clause analysis · correspondence tables · procedure flowcharts · quantum principles

▸▸ First, the correspondence map (examiners expect both codes)

BNSS 2023 (w.e.f. 1-7-2024)	CrPC 1973	Subject	Who pays? / Trigger
395	357	**Order to pay compensation**	**Offender** (from fine / directly) — on **conviction**
396(1)–(6)	357A	**Victim Compensation Scheme**	**State fund** via DLSA/SLSA — even on **acquittal/discharge/untraced offender**
396(7)	357B	Compensation **in addition to** fine	State money **+** fine to victim under BNS 65/70/124(1) — cumulative, not alternative
397	357C	**Treatment of victims**	**All hospitals free** — acid + sexual + POCSO offences; inform police
398	— (NEW)	**Witness Protection Scheme**	State-notified scheme
399	358	Groundless arrest (up to ₹1,000)	Person causing arrest
400	359	Costs in non-cognizable cases	Convict → complainant

▸ 4.1 BNSS s. 395 — Order to pay compensation [CrPC 357]

Bare-text essence:

"When a Court imposes a sentence of

fine

, or a sentence (including death)

of which fine forms a part

, the Court may, when passing judgment, order the

whole or any part of the fine recovered

to be applied for the four statutory purposes below; and where

no fine is imposed

, it may still order the accused to

pay compensation directly

[395(3)]."

▸▸ 4.1.1 The four application-heads of s. 395(1)

(a) Prosecution expenses

defraying expenses properly incurred in prosecution

(b) Loss/injury compensation

▸▸ 4.1.2 Sub-sections (2)–(5): the operating rules

▸▸ 4.1.3 Judicially-evolved principles for s. 395 (cite these!)

Principle	Authority
Liberal exercise — every criminal court should use s. 395 to meet the ends of justice; reassures victim she is **"not forgotten"**; reconciles victim & offender; constructive step forward.	*Hari Kishan v. Sukhbir Singh*, AIR 1988 SC 2127 (Shetty, J.) — quoted in *Jacob George*
Quantum must be reasonable — depends on facts of each case; consider **capacity of accused to pay** (object is collection + payment, not default imprisonment).	*Hari Kishan*; *Palaniappa Gounder v. State of T.N.* (1977) 2 SCC 634; *Sarwan Singh v. Punjab* (1978) 4 SCC 111 (both cited in *Rachhpal*)
Without-fine compensation valid where substantive sentence stands alone — High Court need not first enhance fine.	*Rachhpal Singh* (2002) — rejects the "must enhance fine first" argument
Capacity assessed from record + judicial notice — land, tractor, car → reasonably affluent → ₹1 lakh per accused upheld (reduced from ₹2 lakh for want of fuller material).	*Rachhpal Singh*
Compensation may dominate over imprisonment where rehabilitation of victim's dependants is the ultimate aim — fine enhanced ₹5,000 → **₹1 lakh** (bank deposit, interest to guardian till majority).	*Jacob George* (1994)
Even on acquittal — compensation may be directed where justice demands (offer-based, victim-centred).	*Ajaib Singh* (1995) — ₹5 lakh despite acquittal

▸ 4.2 BNSS s. 396 — Victim Compensation Scheme [CrPC 357A + 357B]

▸▸ 4.2.1 Sub-section walkthrough

Sub-section	Content	Exam significance
396(1)	**Every State Govt**, in coordination with Centre, **shall prepare a scheme** providing funds for victims/dependents who suffered loss/injury and **require rehabilitation**.	Mandatory ("shall"); each State notifies its own VCS with slabs (e.g., Delhi VCS; NALSA 2018 model for sexual offences).
396(2)	On **court recommendation**, **DLSA/SLSA** decides the **quantum** under the scheme.	Court recommends → Legal Services Authority quantifies & disburses.
396(3)	At conclusion of trial, if **395-compensation is inadequate** for rehabilitation, **or** case ends in **acquittal/discharge** yet victim needs rehabilitation → court **may recommend** compensation.	Compensation **de-linked from conviction** — the philosophical core.
396(4)	Where **offender not traced/identified** but victim identified, and **no trial takes place** → victim/dependents may **apply directly to DLSA/SLSA**.	Covers hit-and-run, unknown assailants, unsolved cases (UN Art. 2 spirit).
396(5)	DLSA/SLSA shall, **after due enquiry, award adequate compensation, completing enquiry within 2 months**.	Time-bound relief; "adequate" = rehabilitation-linked.
396(6)	To **alleviate suffering**, DLSA/SLSA may order **immediate first-aid / free medical benefits** (on certificate of SHO-level officer or Magistrate) or **any other interim relief**.	Interim relief without waiting for trial end (*Bodhisattwa* logic codified).
396(7)	State compensation under s. 396 is **in addition to** fine payable to victim under **BNS s. 65, s. 70 and s. 124(1)** (rape-in-certain-cases, gang rape, acid attack).	Old CrPC 357B (IPC 326A, 376AB/D/DA/DB). **Cumulative, not set-off.**

▸ 4.4 The surrounding sections — 398, 399, 400 + BNS fine provisions

(Section abridged for the compilation — full text at makelaweasy.in.)

● DU Case Laws in Full Detail [Cases 19–24]

Facts · Issues · Arguments (both sides) · Decision · Ratio — strictly from DU material + authoritative reports

CASE 19

DU Case 19 · DU material pp. 253–256

▸ State of Punjab v. Ajaib Singh — AIR 1995 SC 975 : (1995) 2 SCC 486

Bench: R.M. Sahai, J. · Appeal against acquittal (Art. 136) · Ss. 302 IPC, 100 IPC (private defence), compensation despite acquittal

▸▸ Facts (as found by Courts below)

- **Night of 16-12-1976, ~11 PM, G.T. Road before Sat Kartar Cold Storage, Phagwara:** two Punjab Traffic Police groups clashed over **authority to check trucks**. Sub-Inspector **Ajaib Singh** (respondent) fired **3 shots** from his service revolver — killing **ASI Gurnam Singh** and **Constable Paramjit Singh**; third shot hit a cycle-shop shutter. Time/date/place and the firing itself were **undisputed**.
- **Prosecution version:** deliberate, unjustified, cold-blooded murder (deceased caught/held, shot point-blank).
- **Defence version:** Ajaib Singh, tipped by a truck driver that men in police uniform were **extorting truck drivers**, reached the spot, challenged ASI Gurnam Singh who **did not disclose identity** and moved suspiciously; grappling followed; Ajaib Singh suffered **9 danda-blow injuries** (held **not self-inflicted**) from 3 companions → fired in **private defence** under **s. 100 IPC, clauses I & II** (reasonable apprehension of death/grievous hurt).
- **Trial Court:** disbelieved prosecution's origin-story (accepted defence version of origin; unexplained FIR delay — constables allegedly hiding in fields on a winter night; no rojnamacha entry for "nakabandi"), but **convicted u/s 302** (life + s. 87 Arms Act 2 yrs) holding **right of private defence exceeded** (dandas vs firearm). Co-accused Balbir Kumar → probation (s. 383); Jit Singh acquitted.
- **High Court:** dismissed State revision for death sentence; **acquitted Ajaib Singh** — deceased party was **illegally checking trucks/extorting**; forensic evidence showed shots from **deceased's revolver** too; apprehension of death was **reasonable**; firing within s. 100 IPC.
- **Before SC:** counsel for respondent (R.K. Garg) offered **₹5 lakh as genuine remorse** (not cover/excuse) given 18-year delay; State counsel refused money, pressed for conviction as cold-blooded murder.

▸▸ Issues

1. Whether the High Court's acquittal was **palpably erroneous/perverse** warranting Art. 136 interference?
2. Whether the respondent **exceeded the right of private defence** (dandas vs firearm)?
3. Whether **monetary compensation** to victims' families was appropriate despite acquittal?

▸▸ Arguments

▸▸ State (appellant)

- Cold-blooded murder; private defence **exceeded** — danda attack cannot justify firearm use.
- Deceased's revolver found **holstered inside woollen overcoat** — clinching proof he never fired; forensic opinion be ignored.
- Refused compensation — wanted conviction, not money.

- **No previous enmity** (found by trial court) — mistaken-identity clash the deceased provoked.
- Even trial court accepted **right of private defence existed**; 9 real injuries → **reasonable apprehension of death**; ss. 100(I)–(II) don't mandate weapon-parity.
- **Delay of ~18 years**; offered ₹5 lakh from genuine remorse to avoid further litigation.

▸▸ Decision

- **Appeal dismissed.** Acquittal-view was a **possible view** — appellate court against acquittal interferes only if view impossible; even accepting the holster fact and ignoring forensic opinion, the finding was **neither perverse nor infirm**.
- **s. 100 IPC test:** weapon-parity is **not the law**; question is whether assault could cause **reasonable apprehension that death would otherwise ensue** — 3 men with dandas + 9 injuries satisfied it.
- **Compensation:** respondent to **deposit ₹5 lakh** in one month with HC Registrar — **₹3.5L to ASI Gurnam Singh's dependents + ₹1.5L to Constable Paramjit Singh's dependents**.

 Ratio / principle evolved:
Victim compensation is decoupled from conviction
— the Court can direct substantial compensation to victims' families
even while upholding acquittal
, where the incident is admitted and justice to victims demands it. (2)
Speedy-trial concern:
18-year time-lag deprecated — speedy trial/disposal is the
sine qua non
of criminal jurisprudence (2017 PYQ answer quotes this). (3) Private-defence proportionality =
reasonable apprehension
, not weapon-matching.

Use in:
"compensation without conviction" (with BNSS 396(3)); delay/trauma of victims; Raina's "broader interpretation of victim". Pair with
Jacob George
(rehabilitation over incarceration).
CASE 20
DU Case 20 · DU material pp. 257–262

▸ Dr. Jacob George v. State of Kerala — (1994) 3 SCC 430

Bench: B.L. Hansaria, J. · Ss. 312/314 IPC, MTP Act 1971, s. 357 CrPC · Sentence vs compensation

▸▸ Facts

- Deceased **Thankamani** (deserted-then-reconciled wife; mother of one son) became pregnant again and sought **abortion**. Through PW1 (relative) she reached appellant's **clinic at Nilambur** (appellant = **homeopath**, no surgical training).
- **14–15 Jan 1987:** admitted; ₹600 agreed (₹500 + balance); taken to theatre ~10 PM on 15.1.1987; declared "successful" at midnight though **unconscious**; brief rally at 5 AM (16th), then **sinking, froth, death**. Post-mortem: **uterus perforated by crude use of scientific gadgets** — "daring, crude and criminal" (HC).
- **Trial (Asst. Sessions Judge): acquitted** — charges not proved beyond reasonable doubt (PWs 3–4 nurses hostile).
- **High Court:** State appeal + **suo motu revision** → convicted under **s. 314 IPC** (death caused by act done with intent to cause miscarriage, **with woman's consent** — max 10 yrs); **RI 4 years + ₹5,000 fine (₹4,000 to children)**; refused probation.

▸▸ Issues

1. Whether conviction u/s 314 IPC was sustainable (PW1 sole reliance, hostile witnesses, defence of crude-stick abortion by PW1)?
2. Whether benefit of **Probation of Offenders Act** (Madras HC *Manickam Pillai* cited) should be granted?
3. What is the **proper sentence** — purposes of punishment vs **compensation/rehabilitation of the victim's minor son** (s. 357)?

▸▸ Arguments

▸▸ Appellant (Dr. Jacob George — Sh. Jain)

- Conviction rests **only on PW1**; PWs 3–4 hostile → no corroboration.
- **Defence:** PW1 himself caused abortion crudely (stick/rod); deceased brought for emergency care.
- **Sentence:** ~2 months already undergone — reduce to period undergone; alternatively **probation** (to save practice via POA Act s. 12).

▸▸ State

- PW1 (near relative, central actor) fully reliable; PW5 (clinic employee) admitted 14th admission; **autopsy corroborates** (perforation, ~36-hr timeline).
- Defence demolished: a clinic-head facing medico-legal emergency would **inform police** — failure "speaks volumes".
- Quack surgery killing a consenting woman deserves **custodial + compensatory** response; probation inappropriate.

▸▸ Decision

- **Conviction upheld** — case not covered by any **MTP Act 1971 exception** (health/humanitarian/eugenic grounds); Court **expressly left open** whether a right to abortion inheres in **Art. 21**.
- **Probation refused:** homeopath perforating uterus ≠ trained surgeon's error of judgment; practice must suffer for the "unwanted act".
- **Sentence remodelled — the famous four-purpose analysis: retribution** (served by conviction's blow to practice; s. 314 carries no death penalty) + **prevention** (2 months = eye-opener) + **deterrence** (conviction + jail stigma deters quacks) + **reformation** (2 months behind bars taught trauma) → **substantive sentence reduced to period already undergone (~2 months)**.
- **Fine enhanced ₹5,000 → ₹1,00,000** (6 months to deposit; on default, HC sentence revives): invoking **s. 357 + *Hari Kishan*** ("reassure the victim she is not forgotten"); ₹1,000/month nursing needs of destitute minor son; amount to **nationalised-bank deposit in son's name — guardian withdraws interest till majority**.

 Ratio:
Rehabilitation of the victim's dependants can outweigh long incarceration
— compensation is a
constructive, reconciling
sentencing tool. (2)
All criminal courts should exercise s. 357/395 liberally
; "reasonable" quantum = fact-sensitive (child's needs × offender's roaring practice). (3)
Probation is character-sensitive
— quackery disentitles; s. 12 protection rightly denied. (4) Four purposes of punishment (R-P-D-R) must each be consciously tested at sentencing.

Use in:
s. 395/BNSS-395 answers; "rehabilitation of victim vs punishment of offender"; sentencing philosophy;
Bodhisattwa
comparison (interim relief). Quote: fine-structure with bank-deposit machinery = model of
restorative sentencing
CASE 21
DU Case 21 · DU material pp. 263–268

▸ The Chairman, Railway Board v. Mrs. Chandrima Das — AIR 2000 SC 988 : (2000) 2 SCC 465

Bench: S. Saghir Ahmad, J. · Art. 226 PIL · Gang rape of Bangladeshi national by railway staff · ₹10 lakh compensation

▸▸ Facts

- **Victim: Smt. Hanufa Khatoon**, Bangladeshi national (elected Union Board representative), arrived **Howrah Station 26-2-1998** for Jodhpur Express to Ajmer Sharif; waitlisted → TTE sent her to **Ladies Waiting Room**.
- **Touts + railway staff trap:** Ashoke Singh (tout) & Siya Ram Singh (ticket broker) "confirmed" berth; boy Kashi took her for food (vomiting after meal); ~9 PM Ashoke + **Rafi Ahmed (Parcel Supervisor)** lured her to **Yatri Niwas** (Room 102, booked on railway pass) — credentials vouched by lady attendants; **Sitaram Singh (Khalasi)** joined en route; inside waited **Lalan Singh (Parcel Clerk)** & Awdesh Singh.
- **Gang rape:** forced into room, bolted from outside (Awdesh guarding), forced liquor, **brutal gang rape by 4**; victim escaped in shock to platform; missed train; Siya Ram posed as saviour → took her to a Jorabagan flat → **raped again**, gagged till profuse bleeding → rescued on landlord's alarm by Jorabagan police (GRPS Case 19/98).
- **PIL:** Advocate **Mrs. Chandrima Das** filed Art. 226 petition (compensation + clean-up of Howrah station crime). **Calcutta HC awarded ₹10 lakh** — rape at railway building by railway employees. Railways appealed.

▸▸ Issues

1. **Maintainability/locus:** Art. 226 PIL by an unconnected advocate? Public law vs private-law (civil suit) remedy?
2. Can a **foreigner (Bangladeshi)** claim Fundamental-Rights relief in India?
3. Is the **Railway/Union vicariously liable** for rape by employees — or was it purely individual acts + sovereign function (*Kasturilal*)?

▸▸ Arguments

▸▸ Railways / Union (appellants)

- **Private-law matter:** victim should sue for tort damages with evidence; writ court can't decide disputed facts.
- **No locus:** Chandrima Das personally unconnected — PIL incompetent.
- **Foreigner:** Fundamental Rights (Part III) are for **citizens only** — no Art. 21 claim by a Bangladeshi.
- **No vicarious liability:** rape is **not an official act**; only individual culprits liable; running railways = **sovereign function** (*Kasturilal*).

- **Public-law violation:** rape by State employees at State premises = **Art. 21 violation**; writ remedy lies alongside tort suit (*Common Cause* — public functionaries + FR breach → Art. 226/32).
- **PIL locus:** petition espouses public interest (victim + station crime) — maintainable.
- **"Life" belongs to "persons":** Art. 14 & **Art. 21 use "person", not "citizen"** (unlike Arts. 15, 16, 19); **UDHR Art. 3 + ICCPR** (ratified by India; *Kubic Darusz*) give "life" the same expansive meaning.
- **Vicarious liability:** railways + Yatri Niwas = **commercial activity**, not sovereign power; employees acting **under cover of official position** (pass-booked room) → State liable.

▸▸ Decision

- **Appeal dismissed; ₹10 lakh compensation upheld** — payable through the **Bangladesh High Commissioner within 3 months**.
- **Public law covers it:** where public functionaries + FR violation/enforcement of public duties are involved, **Art. 226 lies though a civil suit also lies** (*Common Cause, Regd. Society v. UoI* (1999) 6 SCC 667).
- **Rape = Art. 21 violation** (*Bodhisattwa*: rape destroys psychology, pushes into deep emotional crisis; violates **right to life with dignity**).
- **Foreigners hold Art. 21:** Arts. 14 & 21 say **"person"** (Constitution-text + Art. 19-citizen contrast cases: *State Trading Corp.*, *Hans Muller*, *Anwar*); UDHR-consonant reading — "life" cannot be narrowed.
- **Vicarious liability affirmed:** running railways/Yatri Niwas is **commercial**; *Kasturilal* (sovereign immunity) **inapplicable**; tort-by-employee + **public-law domain** (room secured via official position) → Union liable.

 Ratio (4 holdings — memorise):
Rape violates Art. 21
(dignity-autonomy). (2)
Art. 21 protects every person on Indian soil, citizen or foreigner
(text + UDHR harmonisation). (3)
Writ compensation lies for State-actor sexual violence
despite availability of tort suit. (4)
State is vicariously liable
where employees exploit official position/facilities;
commercial functions attract no sovereign immunity

Use in:
every answer on rape, foreigners' rights, PIL locus, public-vs-private law, vicarious liability, UDHR-as-interpretive-aid. Cite with
Bodhisattwa
(rape/Art.21) +
Nilabati/D.K. Basu
(State pays).
CASE 22
DU Case 22 · DU material pp. 269–272

▸ Rachhpal Singh v. State of Punjab — AIR 2002 SC 2710

Bench: Santosh Hegde, J. · Ss. 302/148/149 IPC + Arms Act ·
s. 357(1) vs 357(3)
— the locus classicus on "compensation without fine"

▸▸ Facts

- **Civil land dispute** (plot abutting houses, Srawan Bodla, Malout): deceased **Virsa Singh** obtained **interim stay** against Kuljinder Singh on **11-10-1996**; appellant No. 2's family backed Kuljinder Singh. Afternoon **verbal + grappling fight** defused by womenfolk.
- **~8 PM same day:** appellants + 3 others arrived in **white Maruti (CHK 8320)**, raised **'lalkara' (challenge)** to "teach a lesson for the stay"; **Rachhpal Singh (.12-bore DBBL gun)** and **Gurmit Singh (.44-40 rifle)** + 3 dang-wielding men attacked **Virsa Singh & young son Kulwant Singh on their roof** — each suffered **2 bullet injuries, died on spot**. Eyewitnesses: **PW3 Ravinder Singh** (son/brother) + **PW4 Darbara Singh** (visiting relative returning a trolley).
- **Investigation:** FIR 11 PM (9 km away; Magistrate by 2:45 AM); blood-earth, **2 empty .12 + 3 empty .44-40 casings** seized; arrests 25.10.1996 (rifle + live cartridges on Gurmit; car seized; dangs recovered on disclosure); Rachhpal arrested 27.10.1996 (DBBL + belt of 9 cartridges). **PW2 Dr. Randhawa:** ante-mortem firearm lacerations of lung.
- **Sessions:** appellants → **death (s. 302) + fine ₹5,000**; 3 others → life. **High Court:** conviction confirmed; death → **life** (not rarest-of-rare); 3 others **acquitted of 302** (449 only, time undergone); on victim's **Crl. Revision 443/99**, awarded **₹2 lakh per appellant (₹4L total) u/s 357 + 5 yrs RI default (consecutive)**.

▸▸ Issues

1. Reliability of PWs 3–4 (could they see? why didn't PW3 intervene? trolley story unproved?).
2. **s. 357 locus:** where Sessions imposed ₹5,000 fine, could the HC award ₹2L compensation **without first enhancing fine** — must compensation come **only from fine** u/s 357(1)(b)?
3. Was ₹2L each **arbitrary/excessive** without evidence of **capacity to pay / victim needs** and without hearing the accused (*Palaniappa; Sarwan Singh*)?

▸▸ Arguments

▸▸ Appellants (K.B. Sinha)

- **Eyewitnesses planted:** couldn't have seen from their spot; PW3's non-intervention unnatural; PW4's late visit + missing trolley = improbable.
- **s. 357(1) only:** compensation must flow **from fine imposed**; HC should have **enhanced the ₹5,000 fine** and paid from it — no standalone compensation atop the fine.
- **₹2L arbitrary:** no material on capacity/needs; no opportunity to lead evidence; violates *Palaniappa/Sarwan Singh* proportionality.

▸▸ State / complainant

- Prompt FIR, on-spot empties matching weapons, medical corroboration — **conviction concurrent**.
- **s. 357(3) route:** HC altered sentence to **life only** for s. 302, **without recording/confirming any fine** → deemed **no-fine sentence** → s. 357(3) **direct compensation** squarely available.
- Object of s. 357 + brutal double murder of breadwinners justified invoking compensation; capacity inferable (**land, tractor-trolley, Maruti**).

▸▸ Decision

- **Conviction + life sentence confirmed** (evidence believed).
- **s. 357(3) upheld:** since HC awarded **only substantive life imprisonment** u/s 302 (no fine recorded), s. 357(3) "comes into play" — Court may award compensation to victim/family **even absent fine**; HC was **well within jurisdiction**.
- **Quantum moderated:** HC lacked full capacity-material, but object of s. 357 justified invocation; assessing from record + **judicial notice** (agri-land, tractor-trolley, Maruti = reasonably affluent) → **reduced ₹2L → ₹1L per appellant (₹2L total)**.

 Ratio:
357(1) vs 357(3) test:
compensation
from fine
needs a fine; where sentence carries
no fine
, 357(3) permits
direct compensation orders
— appellate courts need not route through fine-enhancement. (2)
Quantum = capacity × gravity × victim-needs
Palaniappa; Sarwan Singh
affirmed) — but scanty material doesn't defeat jurisdiction; courts may assess via
record + judicial notice
, moderating to a safe figure. (3) Compensation jurisdiction of courts is
settled law

Use in:
BNSS 395(1) vs 395(3) distinction problems; "capacity to pay" principle; default sentence consecutive-run point. Always pair with
Jacob George
for "reasonable quantum".
CASE 23
DU Case 23 ★ (starred — online) · PIL series

▸ Laxmi v. Union of India — (2014) 4 SCC 427; (2016) 3 SCC 669

PIL by acid-attack survivor Laxmi (attacked 2005, aged 15) · Regulating acid sale + minimum compensation + free treatment · Led to IPC 326A/B, CrPC 357B/C

▸▸ Facts

- **Laxmi**, attacked with acid in Delhi (2005) by a spurned suitor's associates — grievous disfigurement, multiple surgeries, immense physical/mental trauma; trial-court conviction followed, but **compensation hopelessly inadequate** for surgeries/rehabilitation.
- **PIL (2006):** prayed for (i) **amendments to IPC/CrPC** creating dedicated acid-attack offences; (ii) **ban/regulation of over-the-counter acid sale**; (iii) **prosecution guidelines + rehabilitation** (treatment + compensation + aftercare).
- **Context:** free availability of concentrated acid; no dedicated penal provision (prosecuted as ordinary hurt/grievous hurt/attempt-murder); victims bankrupted by surgeries.

▸▸ Issues

1. How to **curb easy availability** of acid/corrosives?
2. What **minimum compensation + medical-treatment** guarantees must States/UTs provide acid-attack victims?
3. What **legislative reform** is needed for acid offences?

▸▸ Arguments (PIL — petitioner vs Union/States)

- Acid = **weapon of patriarchal control**; existing law treats it as **ordinary hurt** — needs **separate offence + stringent punishment**.
- **Complete ban / strict licensing** of retail acid; acids as **scheduled poisons**.
- **Free treatment + substantial compensation + rehabilitation** as victim's right; wide publicity of schemes.

▸▸ Union / States (response)

- Centre framed **Model Rules** under the **Poisons Act, 1919** for sale/storage/licensing — circulated to States/UTs.
- States (e.g., T.N.) undertook **strict rules within 2 months**; acid attacks made **cognizable + non-bailable**.
- Supported compensation via **s. 357A schemes** + free treatment linkage.

▸▸ Decision — series of directions (2013 → 2015)

- **Acid-sale regulation (2013 order): no over-the-counter sale to minors (below 18)**; seller to keep **register (buyer ID + address + quantity + purpose)**; buyer must show **govt. photo-ID + stated purpose**; dealers to **declare stocks to SDM within 15 days**; undeclared stock → **confiscation + fine up to ₹50,000**; States to notify acid as **poison**.
- **Minimum compensation: ₹3 lakh per acid-attack victim** in every State/UT — **₹1L within 15 days** of incident/notice (immediate medical expenses) + **₹2L within 2 months**.
- **Free treatment: full medical assistance free** — **private hospitals equally bound**; **no refusal for lack of speciality** (stabilise + first-aid, then refer); SLSAs to give **wide publicity** to VCS.
- **Legislative fruit:** Criminal Law (Amendment) Act 2013 — **IPC 326A** (acid attack, min 10 yrs + fine-for-medical-costs) & **326B** (attempt), **CrPC 357B** (State money additional to fine) & **357C** (free treatment) — now **BNS 124, BNSS 396(7), 397**.

 Ratio:
Preventive + restorative justice fused
— Court regulated the
weapon
(acid market) alongside the
wound
(treatment + money). (2)
Floor-level compensation as a right
(₹3L, time-bound tranches) — model for all VCS slabs. (3)
Private hospitals are State-agents for emergency victim-care
— no commercial refusal. (4) PIL can midwife
substantive penal reform
(326A/B template).

Use in:
acid-attack problems; BNSS 396/397 answers; "compensation + regulation" essays; gender-justice dimensions. Real-example add-on: post-Laxmi
, Delhi/UP VCSs list acid-attack slabs up to ₹5–7L; NALSA 2018 scheme dedicates an acid-attack head.
CASE 24
DU Case 24 ★ (starred — online) · Victim-identity + compensation architecture

▸ Nipun Saxena v. Union of India — 2017 SCC OnLine SC 1776; (2019) 2 SCC 703

PIL on media disclosure of rape-victim identity + inadequacy of VCS · Ss. 228A IPC (BNS 72), 327 CrPC (BNSS 366), 372 proviso · NALSA Scheme 2018 for sexual-assault survivors & POCSO children

▸▸ Facts

- **Trigger:** media repeatedly **identified rape survivors** despite **s. 228A IPC** — e.g., naming a survivor as a **State-board topper** (identity instantly deducible); blurring the face but **naming village + relatives**. Investigation itself re-traumatised victims through repetitive questioning.
- **PIL** sought enforcement of identity-protection + uniform, adequate **compensation machinery** for sexual-offence victims (women *and* POCSO children).
- **Parallel track:** post-10-8-2018 order, a Committee finalised **"NALSA's Compensation Scheme for Women Victims/Survivors of Sexual Assault/Other Crimes — 2018"**; Court found **no comparable scheme for POCSO child victims** (Rules under POCSO amendment awaited) — a **"hiatus"**.

▸▸ Issues

1. Scope of **s. 228A IPC** — what counts as "identity disclosure"? Who (if anyone) can authorise it?
2. What **procedural shields** (FIR publicity, in-camera trial, court records) must apply?
3. What **compensation framework** should govern women survivors *and* POCSO children?

▸▸ Arguments

- s. 228A + s. 327(2) (Amendment Act 43 of 1983) mandate **absolute non-disclosure** — media circumvents via indirect identifiers.
- Victims need **anonymity at every stage** (FIR → trial → appeal → records) + **one-stop support** + assured compensation.

▸▸ State / ASG

- Accepted protection goals; noted **practical necessities** (name in FIR file, police records — s. 228A(2) exception for police).
- POCSO amendment + **dedicated compensation Rules forthcoming**; interim guidance acceptable.

▸▸ Decision — two judgments' holdings combined

- **Identity ban (2019) 2 SCC 703: no person** may print/publish in **print, electronic or social media** the name **or any matter** by which the victim's identity may be known (ban covers **indirect identifiers** too); breach = offence u/s **228A (now BNS 72)** — **2 yrs + fine**. **Police** must keep **FIRs under rape/POCSO provisions off the public domain** (media included); authorities/courts privy to identity must **seal/mask records**.
- **Authorised disclosure — narrow gates:** adult victim may **herself authorise in writing** [228A(2)(b)]; if victim **dead/unsound → next of kin applies to Sessions Judge/Magistrate**; if victim is a **minor** → only with **Special Court permission, child's interest paramount**.
- **Appeal anonymity:** victim appealing u/s **372 proviso (BNSS 413)** may use **pseudonyms (X/Y)**.
- **Trial shields: in-camera proceedings** u/s **327(2) (BNSS 366)**; publication of court proceedings without prior permission punishable (s. 228 IPC → **BNS 73**).
- **Compensation architecture: NALSA Scheme 2018 adopted nationally** (graded slabs + interim relief for sexual-assault survivors); extended as **interim guideline for POCSO Special Courts under Rule 7** (2012 Rules) till Centre frames Rules — **gender-neutral, w.e.f. 2-10-2018**; funds to be **protected in interest-bearing accounts** for children; copies to **every HC Registrar General → District/Special Judges + Legal Services Committees + Judicial Academies**.

- **One-Stop Centres:** States/UTs urged to run **one-stop centres in every district** (medical + legal + counselling under one roof).

 Ratio:
Victim anonymity is absolute-by-default
— "identity" means
any identifying matter
, not just the name; exceptions need
victim's writing or court sanction
. (2)
Rehabilitation is parallel to punishment
— NALSA 2018 + POCSO interim awards institutionalise
money-during-trial
. (3) Courts must
engineer administrative compliance
(circulation chains, OSCs) — victim justice is
implementation-heavy

Use in:
media/identity problems; POCSO compensation; "drawbacks of 357/357A → NALSA Scheme" narrative (2022 PYQ answer cites exactly this). Pair with
Chandrima
(anonymity was also ordered there) +
Delhi Domestic Working Women

Ready-reckoner — all six DU cases at a glance

Case	One-line holding	Figure	Best paired with
Ajaib Singh (1995)	Compensation **even on acquittal**; private defence = reasonable apprehension	₹5L (3.5 + 1.5)	BNSS 396(3); speedy trial
Jacob George (1994)	Jail cut to time-served; **fine → ₹1L rehabilitation fund** for minor son	₹1L in bank, interest to guardian	BNSS 395; Hari Kishan
Chandrima Das (2000)	**Rape = Art. 21 breach**; foreigners protected; State **vicariously liable**	₹10L via Bangladesh HC	Bodhisattwa; Nilabati; UDHR
Rachhpal Singh (2002)	**357(3) direct compensation without fine**; quantum ∝ capacity × gravity × needs	₹2L each → ₹1L each	Palaniappa; Sarwan Singh
Laxmi (2014/2016)	**Acid regulated + ₹3L floor + free treatment**; birthed 326A/B, 357B/C	₹1L/15 days + ₹2L/2 months	BNSS 396(7), 397; BNS 124
Nipun Saxena (2019)	**Absolute identity shield** + NALSA 2018 scheme (+ POCSO interim guide)	Slabs in lakhs; OSCs	BNS 72/73; BNSS 366/396/398

PREVIOUS YEAR QUESTIONS · UNIVERSITY OF DELHI · LL.B. V TERM

PYQ Bank — Unit 5 (questions only)

Q1 "RAGHAV, A POLICE OFFICER, WAS SENTENCED TO LIFE IMPRISONMENT U/S 376 IPC FOR THE RAPE OF AN ILLEGALLY ARRESTED WOMAN IN HIS POLICE STATION. FROM COMMISSION TILL CONCLUSION OF TRIAL, THE VICTIM AND HER FAMILY SUFFERED IMMENSE PHYSICAL, MENTAL AND FINANCIAL AGONY. SUBSTANTIATE WITH RELEVANT CASE LAW AND LEGAL PROVISIONS DEALING WITH THE RIGHTS OF VICTIMS."

Raghav, a police officer, was sentenced to life imprisonment u/s 376 IPC for the rape of an illegally arrested woman in his police station. From commission till conclusion of trial, the victim and her family suffered immense physical, mental and financial agony. Substantiate with relevant case law and legal provisions dealing with the rights of victims.

◆ **Refer makelaweasy.in for detailed notes**, full model answers to every question below, additional case briefs, diagrams and revision material on this unit.

Q2 "IT HAS NOW BEEN FELT THAT WE HAVE CARED TOO MUCH FOR THE CRIMINAL AND HIS REHABILITATION BUT VERY LITTLE FOR THE VICTIM." COMMENT IN THE LIGHT OF VARIOUS JUDICIAL DECISIONS.

It has now been felt that we have cared too much for the criminal and his rehabilitation but very little for the victim.

Q3 P1. "Discuss the UN Declaration (1985) on victims and its impact on Indian law." (Essay, 15 marks)

Q4 P2. "X is acquitted of murder; his victim's widow seeks compensation. Advise." (Problem)

Q5 P3. "A newspaper publishes a rape survivor's photograph and village. Discuss liability and protections." (Problem)

Q6 P4. "Compare compensation under BNSS 395 and 396." (Analytical, 10 marks)

Q7 P5. "Acid attack on Z; offender absconding. Detail Z's remedies." (Problem)

Q8 P6. "Victim participation in Indian criminal trials — evaluate." (Essay)

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UNIT 7

The Indian Police System

◆ SYLLABUS COVERAGE

Role of the police · legal functions · custodial violence and judicial controls · police reforms — National Police Commission, Ribeiro, Padmanabhaiah, Malimath · Prakash Singh v. Union of India and its follow-up.

◆ STATUTES & PROVISIONS

Police Act, 1861 · BNSS arrest, investigation and custody provisions · Arts. 21, 22 · MHA Status Note on Police Reforms · Model Police Act, 2006

◆ PRESCRIBED CASE MATERIAL

Prakash Singh v. Union of India (2006) 8 SCC 1 · T.P. Senkumar v. Union of India (2017)

⬢ 2. Role of Police DU CORE

▸ 2.1 Origin & development of the Indian police (Paranjape)

- **Ancient India:** organised policing existed — *Manusmriti* speaks of spies and village watchmen; Kautilya's *Arthashastra* describes an elaborate system of *gopas*, *sthanikas* and secret agents for prevention and detection of crime.
- **Medieval/Mughal period:** *faujdars* (district military-police chiefs), *kotwals* (city police), village *chowkidars* — policing fused with revenue and military functions.
- **British period:** after the 1857 uprising the **Police Commission of 1860** recommended a civil police; result — the **Police Act, 1861**, still the basic framework. S. 3 vests "superintendence" in the State Government; the force was designed more for **order-maintenance for the rulers** than service to the people.
- **1902–03 Fraser (Police) Commission:** first comprehensive review — recommended better pay, training, CID in each province, and separation of judicial and police functions; most executive-control features retained.
- **Post-independence:** Gore Committee on police training (1971); **National Police Commission (1977–81)**; state police commissions; judicial intervention culminating in *Prakash Singh* (2006).

Core critique (exam line):

the 1861 framework was built for a colonial ruler to

control

▸ 2.3 Role of police in society & the criminal justice system

(Section abridged for the compilation — full text at makelaweasy.in.)

⬢ 3. Legal Functions of Police DU CORE VALUE-ADD: BNSS

Paranjape lists the **eleven legal functions** of the police. CrPC sections below are as in the DU material; BNSS, 2023 equivalents added for current answers (write *both* in exams).

#	Function	Legal basis (CrPC → BNSS)	Exam points
1	**Patrolling, surveillance & beat duties**	Police Act, 1861, ss. 23–25; CrPC s. 149 → BNSS s. 168	Visible prevention; revival of the beat system recommended by Padmanabhaiah Committee.
2	**Preventive action**	CrPC ss. 149–153 (prevent cognizable offences, injury to public property) → BNSS ss. 168–172; security proceedings ss. 106–110 → BNSS ss. 125–129	Arrest to prevent offences (s. 151 → BNSS s. 170) must be followed by production within 24 hours.
3	**Arrest with/without warrant**	CrPC ss. 41, 41A, 46, 50, 50A, 54–57 → BNSS ss. 35, 43, 47, 57–58	*Joginder Kumar* (arrest guidelines), *D.K. Basu* (11 requirements), *Arnesh Kumar* (s. 41A notice for <7-yr offences — now s. 35(3)–(6) BNSS).
4	**Registration of FIR & investigation**	CrPC ss. 154–176 → BNSS ss. 173–196	*Lalita Kumari* (2014): FIR mandatory in cognizable cases. Investigation = proceedings to collect evidence (s. 2(h) → BNSS s. 2(21)).
5	**Interrogation, search of person, medical examination**	CrPC ss. 46(4), 51–54, 53A → BNSS ss. 43(5), 49–52, 52A	Woman's search by woman officer with decency; s. 53A DNA profiling in rape cases.
6	**Search & seizure of places/ things**	CrPC ss. 93–105 → BNSS ss. 96–110 (s. 100 search → s. 103)	Witnessed search, seizure memo; audio-video recording now mandated under BNSS for searches.
7	**Inquest & inquiry into unnatural deaths**	CrPC s. 174 → BNSS s. 194; s. 176 → BNSS s. 196	Police inquest + magisterial inquiry in custodial deaths — mandatory judicial inquiry.
8	**Aid to prosecution & courts**	CrPC ss. 170, 173 → BNSS ss. 190, 193; summons/warrants Ch. VI → Ch. VII BNSS	Police report (chargesheet), production of accused & witnesses, execution of process.
9	**Identification: TIP, fingerprints, DNA**	Identification of Prisoners Act, 1920 (now Criminal Procedure (Identification) Act, 2022); CrPC s. 54A → BNSS s. 54A	CFPB (1956), State FSLs, DNA under s. 53A — scientific aids reduce third-degree dependence.
10	**Juvenile delinquency & child protection**	JJ (Care & Protection) Act, 2015 — Special Juvenile Police Units, Child Welfare Police Officers	Police role is reformative, not punitive, for children in conflict with law.
11	**Welfare functions: missing persons, traffic, disaster relief**	Police Acts/Rules; MV Act; DM Act, 2005	"Service" limb of policing — tracing missing persons, traffic regulation, first responders in disasters.

 Paranjape stresses modern aids:
CFPB
(Central Finger Print Bureau, 1956),
DCPC
(Data Collection & Processing Centre, 1976),
NCRB
(1985),
BPR&D
, 200+ forensic science laboratories, DNA profiling, sniffer-dog squads, and
INTERPOL
liaison through CBI — all meant to replace “third-degree” methods with ...

⬢ 4. Custodial Violence & Judicial Controls DU CORE

▸ 4.1 The problem (Paranjape)

- Custodial torture, deaths, rapes and illegal detention persist despite constitutional (Arts. 20–22) and statutory safeguards — attributed to colonial attitudes, pressure to “show results”, lack of scientific aids, and impunity.
- Judiciary's indictment: police described as **“the largest single lawless group”** in the country; courts have repeatedly laid down preventive guidelines and awarded compensation.

▸ 4.2 Landmark custodial-torture decisions (Paranjape’s list — learn 6+)

Case	Principle / holding
Sheela Barse v. State of Maharashtra (1983)	Guidelines for protection of women in police lock-ups; judicial vigilance over lock-ups.
Raghubir Singh v. State of Haryana (1980)	Custodial torture condemned; police must protect, not oppress.
Gauri Shankar v. State of U.P. / Yusuf Ali v. State of U.P.	Compensation + punishment for custodial death cases.
Nandini Satpathy v. P.L. Dani (1978)	Art. 20(3) right against self-incrimination extends to police interrogation; right to counsel.
Niranjan Singh v. Prabhakar (1980); *Kishore Singh v. State of Rajasthan* (1981)	Handcuffing/“third degree” during investigation condemned.
Prem Shankar Shukla v. Delhi Admn. (1980)	Routine handcuffing unconstitutional; only on magisterial permission with reasons.
Nilabati Behera v. State of Orissa (1993)	**₹1.5 lakh compensation** for custodial death — sovereign immunity rejected for Art. 21 violations.
SAHELI v. Commissioner of Police (1990)	₹75,000 compensation for custodial death of a child.
Joginder Kumar v. State of U.P. (1994)	Arrest guidelines: arrest only on reasonable satisfaction; inform relative/friend; entry in diary; magistrate to verify compliance.
D.K. Basu v. State of W.B. (1997) 1 SCC 416	**11 mandatory requirements** for every arrest/detention (memo, intimation, medical exam every 48 hrs, inspection memo, control-room notice etc.); non-compliance = contempt + departmental action.
Arnesh Kumar v. State of Bihar (2014) 8 SCC 273	No automatic arrest for offences punishable <7 years; s. 41A notice (now **s. 35(3)–(6) BNSS**); magistrates must verify checklist compliance.
Munshi Singh Gautam v. State of M.P. (2005); deaths in custody jurisprudence	Custodial violence = naked violation of human dignity under Art. 21; leniency unwarranted.

▸ 4.3 NHRC guidelines on police–public relations (22-12-1999)

- Set up **toll-free complaint numbers**; display rights of arrestees at every police station; **transparency** in FIR registration (receipt to complainant).
- **Monthly meetings** of SHOs with community representatives; periodic human-rights training; report every custodial death/rape to NHRC within 24 hours.
- Paranjape adds: **Citizen Volunteers' Force** experiments (Delhi, Mumbai), mohalla committees, and victim-assistance cells as bridges between police and public.

⬢ 5. Police Reforms: Master Chronology DU CORE

— Police Act, 1861 (after 1860 Police Commission): colonial control model; s. 3 — State Government's “superintendence”.
— Fraser Police Commission: pay, training, CID; control structure retained.
— Gore Committee on police training.
National Police Commission
(Dharam Vira): 8 reports, Feb 1979–May 1981; State Security Commission, tenure security, investigation separation —
mostly unimplemented
Prakash Singh
PIL filed (ex-DGPs) seeking implementation of NPC recommendations.
Ribeiro Committee
(J.F. Ribeiro, on SC direction 25-5-1998): endorses NPC with modifications; two reports.
Padmanabhaiah Committee
(report 30-8-2000): ~240 recommendations on restructuring for the new millennium.
Malimath Committee
on CJS reforms (report April 2003): 158 recommendations incl. investigation separation, SSC, federal crimes agency.
— MHA Review Committee shortlists
49 crucial recommendations
; NIC sub-committee (29-7-2006).
Model Police Act
(30-10-2006);
Prakash Singh

judgment 22-9-2006
: 7 binding directives, compliance by 31-12-2006.
— National Security Commission mechanism set up (2-1-2007); 11-1-2007: three directives declared self-executory.
Justice K.T. Thomas Monitoring Committee
(16-5-2008); report circulated 4-10-2010.
T.P. Senkumar v. UOI
(24-4-2017): first-ever reinstatement of a removed DGP; tenure protection enforced.
— Follow-up:
(Section abridged for the compilation — full text at makelaweasy.in.)

6. National Police Commission, 1977–81 DU CORE

Constituted —15 November 1977, Chairman **Dharam Vira** (ex-Cabinet Secretary); comprehensive review of the police system at national level.

Tenure of work —**Eight reports**, February 1979 to May 1981; first report tabled in Lok Sabha 1-2-1980; remaining seven released March 1983 with Centre's directive to States to act.

Terms of reference —10 heads — incl. role of police, political interference, accountability, investigation, personnel, training, community relations, modernisation.

Landmark recommendations (examination favourites)

1. **State Security Commission (SSC)** in every State — to lay down policy, evaluate performance, and insulate police from extraneous pressures; annual report to the legislature.
2. **Fixed tenures** for DGP and field officers (SP and above) to prevent arbitrary transfers.
3. **Separation of investigation from law-and-order** duties.
4. **Central Police Committee** and an **All-India Police Institute** for standards, research and training.
5. **Amendments to CrPC 1973** (guidelines on arrest, victim protection) — partly carried into the CrPC (Amendment) Bill, 1994 (passed 2005).
6. Recruitment, training and welfare reforms; revised IPS probationers' syllabus; augmentation of DCPW; regulation of private security agencies (later enacted as a separate Act).

(Section abridged for the compilation — full text at makelaweasy.in.)

7. Ribeiro • Padmanabhaiah • Malimath • Model Police Act DU CORE

7.1 Ribeiro Committee (1998–99)

- Constituted 25-5-1998 under **J.F. Ribeiro, IPS (Retd.)**, on the Supreme Court's direction in the pending *Prakash Singh* PIL — to review action taken on NPC recommendations and suggest implementation.
- Submitted **two reports (1998, 1999)** filed in the Supreme Court; **endorsed NPC with modifications**; on 10-2-2005 the Court sought responses of UOI, States and NHRC on Ribeiro + *Vineet Narain* directions.

7.2 Padmanabhaiah Committee (2000)

- Set up January 2000 under **K. Padmanabhaiah** (ex-Union Home Secretary) for structural changes for the new millennium; report **30-8-2000** with **~240 recommendations**.
- **23 rejected** by MHA (e.g., direct IPS charge of districts, IAS/IPS as judicial magistrates, entry age 24, federal offences list).
- **154 implementable without structural change** (recruitment, training, beat system revival, highway patrolling, police-station design, SP-level postings, public involvement in crime prevention).

7.3 Malimath Committee (2000–03)

- Under **Dr. Justice V.S. Malimath** (ex-CJ, Karnataka & Kerala HCs), report **April 2003**: **158 recommendations** for revamping the whole criminal justice system.
- Police-relevant: **separate investigation wing** in police stations; more investigative posts; **State Security Commission**; central law-enforcement agency for federal crimes; stronger FSLs/fingerprint infrastructure; new Police Act.

7.5 Model Police Act, 2006 (Expert Committee, Sept 2005 → draft 30-10-2006)

(Section abridged for the compilation — full text at makelaweasy.in.)

8. Case 25: Prakash Singh v. Union of India , (2006) 8 SCC 1 DU CORE

Citation —W.P. (C) No. 310 of 1996, decided **22 September 2006** — (2006) 8 SCC 1. Bench: **Y.K. Sabharwal, C.J., C.K. Thakker & P.K. Balasubramanyan, JJ.** Jurisdiction: **Art. 32 r/w Art. 142**.

Petitioners —**Prakash Singh** (former DGP, Assam & U.P.; ex-DG, BSF) and other retired police officers — a PIL filed in **1996**.

8.1 Facts & background

- Petitioners sought implementation of the **NPC recommendations (1979–81)**, which had gathered dust for 15+ years despite repeated assurances.
- During pendency the Court directed constitution of the **Ribeiro Committee (1998)**; its two reports endorsed NPC with modifications. Pleadings also invoked the ***Vineet Narain v. UOI* (1998) 1 SCC 226** model — where the Court had issued CBI/SVC reform directions to fill a legislative vacuum.
- UOI, States/UTs and NHRC filed responses (per order dated 10-2-2005); Sorabjee Committee inputs were also before the Court.

8.2 Issues before the Court

1. Whether the Supreme Court can issue binding directions to reform police organisation where the legislature/executive has failed to act for decades?
2. What institutional framework (commissions, tenures, boards, complaints authorities) is necessary to secure professional, politically-neutral policing?

▸ 8.3 Arguments

Petitioners / supporting intervenors:
NPC–Ribeiro recommendations enjoy expert consensus; police politicisation violates Arts. 14 & 21 (fair investigation is part of the right to life);
Vineet Narain
sanctions judge-made frameworks till legislation; directions under Art. 142 can fill the vacuum.
States / Union (resistance):
“Police” is a
State subject
— a uniform judicial scheme offends federalism; ground conditions vary (insurgency, UTs without legislatures); financial/administrative burden; separation of powers — reform is for legislatures. (The Court recorded but overruled these objections given decades of inaction.)

▸ 8.4 Decision: the SEVEN directives (para 31) — learn verbatim structure

Compliance timetable:
all mechanisms to be set up by
31 December 2006
; affidavits of compliance by
3 January 2007
. Directions to operate
“till appropriate legislations are framed”
— i.e., they fill the legislative vacuum under Art. 142.

▸ 8.5 The Bhushan coda (often missed — DU material includes it)

Counsel Prashant Bhushan suggested a specialised central investigation agency for inter-state/terror offences; the Court did **not** rule on it but directed **NHRC, Sorabjee Committee inputs, BPR&D and the Centre to file views within 4 months**, with monitoring through NHRC/Police Bureau machinery — the seed that later matured into the **NIA Act, 2008** debate. **Real example:** the NIA was in fact created after 26/11 (Dec 2008).

▸ 8.6 Ratio & principles evolved

1. **Judicial-legislation doctrine extended:** where executive apathy perpetuates violation of Arts. 14/21 (politicised, unaccountable policing), the Court may issue **continuing-mandamus-style structural directions** under Arts. 32/142 — *Vineet Narain* applied to State police.
2. **Insulation + accountability twin:** functional autonomy (tenures, SSC, PEB, NSC) must pair with external accountability (PCAs) — autonomy without accountability breeds impunity and vice versa.
3. **Binding till legislation:** directives operate as law until States enact their own Police Acts — several States' subsequent Acts were tested against this template.

▸ 8.7 Critical evaluation (for 15-mark answers)

- **Achievements:** first uniform national template; tenure litigation (e.g., *Senkumar*) now anchored to it; ~15+ States enacted new Police Acts; separation of investigation begun in Delhi, Puducherry, Chandigarh.
- **Shortfalls:** selective/cometic compliance — SSCs packed with officials, PCAs starved of staff or given recommendatory status, tenures circumvented via “acting” arrangements (struck down in 2018); UT difficulties (no legislature/DGP); Centre's own NSC compliance initially found unsatisfactory.
- **Standard concluding line:** “*Prakash Singh* supplied the skeleton of police reform; the flesh — political will, resources and genuine complaints redress — is still awaited.”

⬢ 9. T.P. Senkumar v. Union of India & Ors. (2017) DU CORE (starred)

Citation —Decided **24 April 2017** — AIR 2017 SC 2628. Bench: **Madan B. Lokur & Deepak Gupta, JJ.**
Appellant —**T.P. Senkumar, IPS** — State Police Chief (DGP), Kerala.

▸ 9.1 Facts

- Senkumar became DGP/State Police Chief, Kerala; in **May 2016** the newly-elected LDF Government **removed him mid-tenure**, citing (a) the **Puttingal temple-fire tragedy** (Kollam, April 2016 — 100+ deaths) and (b) alleged mishandling of the **Jisha murder case** investigation — invoking **s. 97(2)(e), Kerala Police Act, 2011** (removal on Government's “serious dissatisfaction”).
- He challenged removal before the **Central Administrative Tribunal** (lost) and the **Kerala High Court** (lost), then appealed by SLP to the Supreme Court.

▸ 9.2 Issues

1. Can a State Government remove its DGP mid-tenure on subjective “dissatisfaction” without objective, verifiable material?
2. Does *Prakash Singh*'s two-year tenure protection bind States even where a State Police Act (Kerala, 2011) provides a removal clause?

▸ 9.3 Arguments

Senkumar (appellant):
removal was
political and punitive
— a new Government sweeping out the police chief; no inquiry, no charge, no hearing; neither tragedy was attributable to him personally;
Prakash Singh
tenure + Kerala Act's own scheme protect him; police chiefs cannot be made
scapegoats
for every tragedy.
State of Kerala:

9.4 Decision & principle evolved

(Section abridged for the compilation — full text at makelaweasy.in.)

⬢ 10. Follow-up Orders & Implementation Status VALUE-ADD

10.1 Monitoring timeline after 22-9-2006

- **11-1-2007:** Court holds Directives **(2) DGP tenure, (3) field-officer tenure, (5) PEB** to be **self-executory** — comply within 4 weeks; time till **31-3-2007** for (1) SSC, (4) separation, (6) PCA.
- **2-1-2007:** Centre sets up Committee on National Security & Central Police Personnel Welfare (HM-Chair; NSA, Cabinet Secy, Home Secy, IB Director) — Court initially **unsatisfied**; UOI's modification plea (12-2-2007) lingered.
- **16-5-2008: Justice K.T. Thomas Monitoring Committee** (2-year term) to audit affidavits against ground realities; report circulated to States/UTs **4-10-2010**.
- **16-10-2012:** fresh status reports ordered (due 4-12-2012); MHA filed affidavit **26-2-2013**.

10.2 The two decisive follow-ups on DGP appointments

1. **Order dated 3-7-2018 — end of "acting DGPs":** States barred from appointing **acting/interim DGPs**; DGP must be chosen from a **UPSC-empanelled panel**; proposal to be sent to UPSC **3 months before the incumbent's retirement** — killing the practice of bypassing tenure through officiating arrangements.
2. **Order dated 13-3-2019 (CJI Ranjan Gogoi bench):** on Prakash Singh's own application (alleging misuse in U.P.), clarified that the appointee must have a **minimum residual tenure of 6 months** and appointment must be **strictly on merit** from the panel — tenure protection given teeth against last-month appointments.

10.3 Ground-level compliance snapshot (from the MHA Status Note)

(Section abridged for the compilation — full text at makelaweasy.in.)

⬢ 11. MHA Status Note on Police Reforms DU CORE (starred PDF)

Document — **"Status Note on Police Reforms in India"**, Ministry of Home Affairs (mha.gov.in — *PoliceReforms(E)181013.pdf*), the Government's own stock-taking cited in the DU syllabus.

Opening diagnosis — Reforms on agenda since independence, yet police seen as **"selectively efficient, unsympathetic to the under-privileged"**, accused of **politicisation and criminalisation**; the 1861 framework is obsolete for modern expectations, human rights and new crime forms.

Structure of the Note (learn the heads)

(Section abridged for the compilation — full text at makelaweasy.in.)

⬢ 13. Diagrams & Flowcharts

13.2 DGP appointment flowchart (Directive 2 + 2018/19 orders)

13.3 Complaints Authority tree (Directive 6)

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PYQ Bank — Unit 6 (questions only)

Q1 1 DU 2017
Discuss the police reforms directed by the Supreme Court in Prakash Singh v. Union of India .

◆ **Refer makelaweasy.in for detailed notes**, full model answers to every question below, additional case briefs, diagrams and revision material on this unit.

Q2 Best model answer (15-mark structure — introduction → 7 directives → enforcement → critique → conclusion)

Q3 The 1861 police framework is obsolete." Discuss the role of police in modern India.

Q4 Trace the reform-committee journey from NPC to Prakash Singh .

Q5 Discuss T.P. Senkumar v. UOI and its contribution to tenure security.

Q6 Custodial violence: causes, judicial response and safeguards.

Q7 Short notes: (a) SSC (b) PCA (c) PEB (d) NSC (e) Ribeiro Committee.

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UNIT 8

The Indian Prison System

◆ SYLLABUS COVERAGE

Reforms in the prison system — evolution, problems of administration, undertrials, Paranjape's fourteen suggestions · judicial mandates on prisoners' rights · open prisons · clemency, parole, probation and furlough.

◆ STATUTES & PROVISIONS

Prisons Act, 1894 · Model Prison Manual · MHA Advisory 10-1-2022 (transgender prisoners) · BNSS bail, remission and clemency provisions · Arts. 21, 72, 161

◆ PRESCRIBED CASE MATERIAL

Rama Murthy v. State of Karnataka, AIR 1997 SC 1739 · Re: Inhuman Conditions in 1382 Prisons (2017) · Sukanya Shantha v. Union of India (2024)

⬢ 2. Evolution of Prisons: USA, UK, Russia & the UN DU CORE

▸ 2.1 Why prisons? — the four objectives (Paranjape)

Imprisonment is a "curious combination" of objectives: **(1) deterrence**, **(2) retribution/vengeance**, **(3) prevention** (incapacitation + elimination of criminals from society), and **(4) reformation/rehabilitation**. Society's attitude decides the prison regime — punitive if retributive, therapeutic if reformative. Modern penology treats crime as a **social disease**, favouring non-penal methods (probation, parole, open jails).

▸ 2.2 The American prison system

- **Medieval colonies:** barbarism — death, branding, whipping, pillory; prisons only for undertrials/political/religious offenders.
- **Penn's Charter of 1682** (printed "1862" in text — chronological context shows the Quaker reform charter): bail for prisoners; double compensation for wrongful imprisonment; choice of food/lodging; abolition of the pillory.
- **Quaker movement (1775):** remodelled Philadelphia prison — classification into **incorrigibles** (solitary, no labour) and **corrigibles** (congregate rooms + day work); separate quarters for women/vagrants; principles: **day-work + humanitarian treatment**.

System	Features	Fate / critique
Pennsylvanian (separate) system — Walnut Street, Philadelphia, 1790	Complete isolation day & night; food in cells; hoods during movement; wheel-spoke cell design; prayers/sermons; later labour *inside* cells	Deaths, madness from monotony; no productive labour; overcrowding; abandoned by late 19th century for Auburn
Auburn (silent/congregate) system — Auburn, New York, 1818–19; system settled 1823	Separate cells at night + **congregate silent labour in shops by day**; flogging for breaking silence; no family visits	Gillin: "**discipline by repression and labour under fear**"; prevented contamination but brutal, no reformative impact. **Taft: Pennsylvania = "separate system", Auburn = "silent system"**
Elmira Reformatory (New York, post-1870)	**Indeterminate sentence + parole + probation**; classification of hardened vs corrigible; prisons as industrial training places (dual purpose: rehabilitation + engagement)	c. 1930: **individualisation** — grading by needs/rehabilitation chances, not age/sex/dangerousness
Illinois Reception Centre (1933)	Airy cells, sanitation, schooling, recreation, common mess, family visits; **solitary confinement abolished**; minimise gap between prison and free life	Beginning of the reformative era — yet US prisons remain overcrowded; Ramsey Clark: half return; Radzinowicz on prison violence; courts moved from "forfeiture" theory to honoured constitutional rights

▸ 2.4 Russian prisons & the UN Congresses

(Section abridged for the compilation — full text at makelaweasy.in.)

⬢ 3. Prisons in India: Ancient → 1894 Act → Mulla DU CORE

— Brihaspati favoured closed prisons;
Manu opposed
; Kautilya (
Arthashastra
): fortresses as prisons, preferably
road-side
to reduce monotony; solitary confinement for self-introspection; spiritual/penance model.
— deterrent object: death, mutilation, flogging, branding, starvation; prisons as places of
terror and torture
First Prison Enquiry Committee
: abolish road-work by prisoners; curb staff corruption.
— First
Inspector-General of Prisons
appointed (chief administrator; discipline).
— 2nd, 3rd Jail Committees: insanitation deaths, food/clothing/medical care.
Prisons Act, 1894
: uniformity; provincial rules;
classification of prisoners; whipping abolished
; improved medical/women amenities — but policy still
deterrent
— Juveniles segregated; reformatories &
Borstal institutions

on British pattern.
Indian Jail Reforms Committee (Sir Alexander Cardew)
: visited Burma, Japan, Philippines, Hong Kong, Britain; prisons must
deter + reform
; no corporal punishment; productive work;
after-care
; fixed intake capacity; Bombay abolished solitary cells, others followed.
Pakwasa Committee
: prisoners as road labour without intensive supervision;
wages for inmates introduced
; good-time laws. Model Jail, Lucknow (handlooms); first women's jail, Yerwada (Maharashtra).
— Constitution:
"Jails" in State List

3.1 Snapshot of Indian prisons — NCRB 31-12-2007 (Paranjape)

Head	Figures
Jails (total **1276**)	Central 113 • District 309 • Sub-jails 769 • Open 28 • Special 29 (terrorism/organised crime/habituals) • Women 16 • Others 41
Capacity (**2,77,304**)	Central 1,23,079 (44.4%) • District 1,03,853 (37.5%) • Sub 37,532 (13.5%) • Women 3,047 • Open 3,076 • Others 6,717
Inmates (**3,76,396**; M 3,60,995)	Convicts 1,20,115 • **Undertrials 2,50,727 (~67%)** • Detenues 7,649 • Others 16,039 • Women 9,463 • Foreigners 4,550 • Mentally ill 368
Sentences	Death 308 (6 women) • Life 63,828 • Recidivists 13,904 (4.7% of convicts)

(Section abridged for the compilation — full text at makelaweasy.in.)

4. Problems of Prison Administration DU CORE

4.1 Overcrowding

- **Tihar 1995:** 8,500 inmates vs 2,500 capacity. Baneful effects: no segregation (hardened influence others); juveniles mixed with professionals become professionals.
- **Law Commission, 78th Report (1979):** liberalise bail, release categories of undertrials; plus fine, civil commitment, probation, **parole**, remission/leave/premature release (Mulla Ch. 20).

4.2 Prison discipline & riots

- Taft: prisons = "**unpleasant compulsory isolation**" — rigid discipline, bare necessities, strict security, monotonous routine, untrained staff.
- **Riot causes:** political instigation, crude discipline, monotony, family separation, staff differences, step-motherly treatment.

4.3 Prisoners' health — Prisons Act ss. 37, 39-A to 39-C; Anil Kumar v. State of M.P. (30-11-1999)

Entry-time health enquiry (TB, AIDS); segregation + cure duty. 7 TB-spread factors: (1) delayed diagnosis/poor services; (2) failure to refer/treat; (3) transfers of infectious cases; (4) overcrowding + prolonged cell confinement; (5) no segregation; (6) sub-standard treatment; (7) poor ventilation/nutrition. Remedy: trained inmate nursing volunteers + self-help.

4.5 Self-government in prisons

4.6 Prison labour — State of Gujarat v. High Court of Gujarat , AIR 1998 SC 3164

- Hague Conference (1950, XIIth): **work = best alternative** — fitness, self-confidence, family support from wages, remunerative to State; conditions at par with free workers; compensation for injuries.
- **SC:** compulsory labour protected by **Art. 23** (reformative policy); **minimum wages after deducting maintenance**; unpaid labour = **slavery/ begar**; rates fair, equitable, standardised (not nominal); States may deduct food/clothes cost; States should legislate to divert **part of wages as victim compensation**. Mulla: work = rehabilitation, not additional punishment.

4.8 Rights of prisoners

(Section abridged for the compilation — full text at makelaweasy.in.)

5. Undertrial Prisoners & Bail Jurisprudence DU CORE

5.1 The crisis

- Thousands languish **longer than their potential sentence**; causes: court backlog, prolonged investigation, harsh bail system, no legal aid. Poor suffer most — cannot furnish sureties/bonds; family/morale/economic ruin. Krishna Iyer on grave consequences of pre-trial detention.
- ***Hussainara Khatoon v. Home Secretary, Bihar*, AIR 1979 SC 1360:** incarceration beyond sentence-period = illegal, violates Art. 21; **speedy trial is a constitutional mandate** — State cannot plead financial/administrative inability. Result: **18,000 undertrials released in Bihar (1981)**; other States followed. Yet >1 lakh still languish; ss. 167/436–437 + legal aid + bail liberalisation insufficient.

5.3 Section 436-A CrPC → Section 479 BNSS VALUE-ADD

Feature	s. 436-A CrPC (2005)	s. 479 BNSS (2023)
Rule	Release on personal bond after **½ of maximum term** undergone (except death-punishable offences)	Same ½ rule, but **excludes death AND life-imprisonment offences**
First-time offenders	No special threshold	**Release on bond after ⅓ of maximum term**
Multiple offences/ cases	Silent	**Express bar** on release (criticised — most FIRs carry multiple charges)
Initiative	Accused/lawyer applies	**Jail Superintendent has statutory duty to apply**
Ceiling	Never beyond the maximum term; delay caused by accused excluded; extension only after hearing PP + written reasons	

5.4 Handcuffing & solitary confinement

(Section abridged for the compilation — full text at makelaweasy.in.)

6. Paranjape's 14 Reform Suggestions + Rama Murthy Link DU CORE

(Section abridged for the compilation — full text at makelaweasy.in.)

7. Custodial Torture, Women & Spiritual Experiments DU CORE

7.1 The case chain (writ remedy for Art. 21)

Case	Holding
Prabhakar Pandurang v. Maharashtra, AIR 1966 SC 424	Detention ≠ deprivation of fundamental rights (read/write books in jail)
D.B.M. Patnaik v. A.P., AIR 1971/74 SC 2092	Mere detention no ground to suspend rights (live-wire walls OK; oppressive quarantine of Naxalites not)
Sunil Batra v. Delhi Admn. (1978)	Prisoners entitled to all FRs consistent with incarceration
Sunil Batra-II (1980) 3 SCC 488	**"FRs do not flee the person as he enters prison"**; infliction = solitary cell, amenity denial, distant transfer, degrading labour, tough gangs — every abridgment = infraction of life/liberty; implement UN Torture Declaration Arts. 8–9
Hussainara Khatoon (1979)	No legal aid = unjust procedure; release of long-languishing undertrials
Sheela Barse v. Maharashtra, AIR 1983 SC 378	Legal assistance at State cost for women victims of custodial violence
Sanjay Suri v. Delhi Admn. (1988)	Change attitude; protect human rights

7.2 Yoga, Vipassana & Bhajans

- **Justice Ram Pal Singh (MP HC)**: body = temple of Atma/Parmatma; yoga-sadhna → healthy, crime-free society. Gujarat, Maharashtra, MP made yoga + discourses compulsory.
- **Vipassana in Tihar (1993–94)** — Tarsem Kumar, *Freedom Behind Bars*: radical change (cited in *Rama Murthy*).
- **Gujarat (Sabarmati, Vadodara, Nadiad 2001)** — Brahma Kumaris 2-month programme: yoga, bhakti sangeet, loknritya, moral awakening (B.K. Niranjana: crime from anger/hatred/revenge; devotion builds inner strength).
- **Plea of financial constraints by States = invalid excuse** against constitutional/human rights (Paranjape).

7.3 Mulla on police lock-ups + Sheela Barse's 4 directives for women

- **Mulla (March 1983):** lock-ups: insufficient accommodation; no lavatories/light/water/ventilation; no diet/bedding scales; no visiting committees; time-limits flouted — "need urgent improvement."
- ***Sheela Barse v. Maharashtra* directives:** (1) women guarded by **female guards/constables**, separate wards; (2) interrogation in presence of women officials; (3) immediate intimation to relatives; (4) immediate information to nearest Legal Aid Committee.

8. Judicial Mandates: 18 Prisoners' Rights + 15 Admin Directives DU CORE

9. Rehabilitation, After-care & Repatriation DU CORE

9.1 Eight obstacles to rehabilitative prisons (Chaturvedi)

1. No infrastructure/scientific classification; (2) don't aggravate inherent suffering; (3) **zero custodial torture**; (4) vocational training for poor/illiterate/unskilled majority; (5) selective non-custodial dispositions (furlough/parole/remission/pardon); (6) education/vocational emphasis (IGNOU material at State cost); (7) semi-institutions (half-way houses, day centres); (8) *Sunil Batra* triad: custody ≠ non-person + human rights within limits + no aggravated suffering.

9.2 After-care history

- **1877 Indian Jail Conference:** first recognised need. **Discharged Prisoners' Aid Societies:** UP 1894, Bengal 1907, Bombay 1914 (failed — no Government/public support).
- Post-independence: **Gore Committee → Central Social Welfare Board + after-care Homes (1955–60)**; juvenile correctional institutions.
- Released prisoners: shunned by society *and* family; shattered homes; lost jobs — need Government + NGO + society + Probation Officer supervision + welfare-officer counselling/legal/financial help. After-care ≠ charity — preparation for "the unkind world outside."

9.3 The Repatriation of Prisoners Act, 2003 (w.e.f. 1-1-2004)

(Section abridged for the compilation — full text at makelaweasy.in.)

10. Case 28: Rama Murthy v. State of Karnataka , AIR 1997 SC 1739 DU CORE

Citation —AIR 1997 SC 1739 = (1997) 2 SCC 642. Bench: **Kuldip Singh, B.L. Hansaria & S.B. Majmudar, JJ.** (Order). Origin: **letter dated 12-4-1984** by Rama Murthy, prisoner, Central Jail Bangalore → treated as writ petition (epistolary jurisdiction, *Sunil Batra* lineage).

Grievances —Denial of **rightful wages** despite hard work; "**non-eatable food**"; **mental & physical torture**.

10.1 Facts & the District Judge's report

- State **denied** allegations → SC (order **26-11-1992**) directed District Judge, Bangalore to inspect (wages, accommodation, sanitation, food, medicine). Report (**28-4-1993, 300+ pages** + annexures) — Court recorded admiration.
- **12 conclusions (para 23):** general condition/treatment satisfactory; food satisfactory; wages as per rules; **sanitation unsatisfactory** (water scarcity; borewells improving); medical OK but overcrowded — 2 doctors inadequate, **no Lady Doctor/staff for women**; home visits/court production/hospital production **irregular for want of police escorts**; mental/seriously-ill stuck in jail; interview place/procedure unsatisfactory; **canteen overpricing** above market rates.
- **10 recommendations (para 24):** PWD maintenance + funds; sanitation/sewerage/borewell pumps; +2 specialist doctors, Lady MO/nurse/attendants, weekly barrack visits; regular home visits without deposit/security insistence + fixed escorts + monthly report to Principal City Civil & Sessions Judge; regular court/hospital production + monthly reports; Government hospitals/NIMHANS to admit prisoners **without referring back**; proper interview accommodation + monthly review; canteen on **"no loss no profit"** + prisoner-consulted article list; follow-up compliance machinery.
- Court widened scope: not one jail but **all 1,155 prisons; 1,96,240 prisoners (end-1993), of whom 1,37,838 undertrials**; NHRC agreed reform must be nation-wide.

10.2 Issues

1. How to protect prisoners' constitutional rights while larger public interest does not suffer (“more injury than necessary” must not be caused)?
2. How to make rehabilitation real — release a **better citizen, not a hardened criminal**?
3. What systemic directions can resolve the nine major problems of the prison system?

10.3 Arguments / positions

Petitioner (epistolary):

wages denied; inedible food; torture — systemic neglect of 1155 prisons violating Art. 21; invoked

Sunil Batra/Charles Sobraj

“beacon lights.”

State of Karnataka:

denied allegations on affidavit — conditions, food, wages as per rules; pleaded constraints (water, escorts, doctors). The District Judge's enquiry substantially vindicated several grievances (sanitation, escorts, women's medical care, interviews, canteen).

10.4 The 11-case jurisprudential resume (para 3) — Court’s own survey

1. *Maharashtra v. Prabhakar* (1966) — Art. 21 to prisoners (read/write books).
2. *Suresh Chandra; Krishan Lal* (1976) — parole to check recidivism.
3. *Bhuvan Mohan Patnaik v. A.P.* (1974) — no oppressive quarantine of Naxalites; but **no FR to escape** (live-wire walls OK).
4. *Charles Sobraj* (1978) — Court intervenes when constitutional/statutory prescriptions transgressed (incarceratory torture).
5. *Sunil Batra-I* (1978); *Kishore Singh* (1981) — solitary confinement parameters.
6. *Prem Shankar* (1980) — no leg-irons for undertrials.
7. *Sunil Batra-II* (1980) — prison vices vs Art. 21; “prisons are built with the stones of law.”
8. *Francis Coralie* (1981) — one-interview-a-month rule violative of Art. 21.
9. *Veena Sethi; Sant Bir; Sheela Barse v. UOI* (1993) — **jailing non-criminal mentally-ill unconstitutional**; Gopal Subramanium Commission (Assam, 532-page report — “story too wet for tears”; judiciary-police-administration nexus).
10. *Mohammad Giasuddin* (1977) — State must **rehabilitate, not avenge**; “re-culturalisation, not cruelty.”
11. **Speedy-trial/bail line:** *SC Legal Aid Committee v. UOI* (1994 — NDPS half-sentence release); *Shaheen Welfare Assn. v. UOI* (1996 — 4 TADA categories); *R.D. Upadhyaya v. A.P.* (1996 — Tihar); *Common Cause v. UOI* (1996 — pan-India, pending + future cases, excepted classes).

10.6 The TEN directions (para 49) + peroration

1. Law Commission 78th Report Ch. 9 — decide (20A); (2) Mulla Ch. 20 — remission/premature release (23); (3) UTP production by prison staff (27); (4) **new Prison Act replacing 1894 Act** — NHRC outline + 1995 conference; States to harmonise (31); (5) **model All-India Jail Manual** (31); (6) Mulla Ch. 29 — medical/hygiene (35–36); (7) **complaint boxes** (37); (8) liberalised communication (40); (9) streamlined visits (42); (10) **open-air prisons at District HQs** (48).

Principles evolved:

(1) the

9-problem diagnostic framework

— still the template for every prison-reform answer; (2)

overcrowding: not per se unconstitutional, but actionable for health/hygiene

; (3)

pragmatic balance

— no more injury than necessary + public interest intact; (4)

institutional remedies

(new Act, model Manual, complaint boxes, open prisons at district HQs) via continuing mandamus.

⬢ 11. Case 29*: Re: Inhuman Conditions in 1382 Prisons , 2017 SCC OnLine SC 1109 DU CORE (starred)

Citation —W.P. (C) No. 406 of 2013; Social Justice Bench (**Madan B. Lokur** & R.K. Agrawal JJ.); landmark order **5-2-2016** (reported 2017 SCC OnLine SC 1109); amicus + NALSA nodal officer (Rajesh Kumar Goel).

Origin —Letter by former CJI **Justice R.C. Lahoti** flagging overcrowding, unnatural deaths, staff shortage, poor training across **1,382 prisons** → treated as PIL under Art. 32.

11.1 Facts & journey

- Two decades after *Rama Murthy*, compliance was patchy; Court monitored via status reports (2013–16): **UTRCs** ordered in every district (meet ~30-6-2015); **7-8-2015:** DLSA Secretary added as 4th member (MHA circular 14-8-2015); 16-10-2015: UTRCs “in every district”; prison-management software (4 kinds) + Project Management Consultant; Maharashtra: 503/797 bailed; UP: 530 in custody **only for poverty**; clarification 24-4-2015: **no automatic release** in multiple-offence cases — UTRC/competent authority decides per law.

11.2 Issues & positions

1. Whether systemic directions are needed to enforce ss. 436/436-A CrPC, Probation of Offenders Act, and humane living conditions?
2. What permanent institutional machinery (UTRCs, legal aid, funds, Manual) will secure dignity?

Amicus/NALSA:

UTRCs + empanelled lawyers + Model Prison Manual 2016 + software + R&D wings; poverty must not jail; compoundable cases should compound.

UOI/States (ASG N.K. Kaul):

compliance underway — UTRCs set up, MHA advisories issued, software commissioned, Maharashtra releases shown; sought time-bound, practical directions.

11.3 Decision — the 8 positive directions (5-2-2016)

1. **UTRCs meet quarterly** (first by 31-3-2016); DLSA Secretary attends + follows up releases of eligible undertrials **and convicts who served sentence/earned remission**.

2. UTRCs to enforce **ss. 436 & 436-A CrPC** (release at earliest; poverty ≠ jail) + **Probation of Offenders Act for first-timers**.
3. SLSA Member Secretaries + DLSA Secretaries: **adequate competent empanelled lawyers** for undertrials/convicts, especially poor.
4. DLSA Secretary: pursue **release in compoundable offences** — explore compounding over trial.
5. **DGP/IG (Prisons): proper fund utilisation** — living conditions commensurate with **human dignity** (health, hygiene).
6. Effective implementation of the **Model Prison Manual, 2016**.
7. Manual to be **reviewed annually**, not shelved for decades.
8. UTRCs to cover Manual issues incl. **regular jail visits**.

Principle evolved:

Prisoners, like all human beings, deserve to be treated with dignity

" — dignity is the underpinning of prison-culture transformation; plus the

UTRC as permanent district-level decongestion machinery

(District Judge-Chair + DM + SP + DLSA Secretary) and the

duty of annual Manual review

2022 PYQ link:

the solved answer cites this case for UTRC + ss. 436/436-A + Model Prison Manual 2016 + High-Powered Committees (COVID

Re: Contagion

, 2020 — release up to 7-year sentences). Pair with

Rama Murthy

for "extent of implementation" critique: occupancy 118.4%, ~64% undertrials, State-subject fr ...

⬢ 12. Case 30*: Sukanya Shantha v. UOI , 2024 INSC 753 DU CORE (starred)

Citation —W.P. (C) No. 1404 of 2023, decided **3-10-2024**. Bench: **D.Y. Chandrachud, CJI; J.B. Pardiwala & Manoj Misra JJ.** Petitioner: journalist **Sukanya Shantha** (Art. 32).

Trigger —Article **"From Segregation to Labour, Manu's Caste Law Governs the Indian Prison System"** exposing caste-coded State prison manuals.

▸ 12.1 Facts — the challenged provisions

- State manuals assigned **duties by caste**: degrading tasks to lower castes; **caste bars on night-guard/overseer roles**; caste-governed **cooking/serving** (high-caste prisoners eating only same-caste-cooked food); **sweeping reserved to specific castes**; **barrack segregation**; "habitual offender" definitions weaponised against **denotified tribes**; caste columns in registers.
- MHA advisories against caste/religion discrimination existed but were **unenforced** — systemic practice continued.

▸ 12.2 Issues

1. Do caste-based prison-manual provisions violate Arts. 14, 15, 17, 21, 23?
2. Do "habitual offender" references targeting denotified tribes violate the Constitution?
3. Does the Model Prison Manual 2016 / Model Prisons Act 2023 address caste discrimination?

▸ 12.3 Arguments

Petitioner:

manuals =

direct discrimination

(caste-assigned labour/segregation) +

indirect discrimination

(neutral "menial work" burdening marginalised castes); no rational nexus with security/rehabilitation; "habit/custom/natural escape tendency" vague; denial of supervisory roles to denotified tribes ≈

untouchability

; choiceless degrading labour =

forced labour

; sought repeal + mandatory manual revision.

UOI (ASG):

MHA guidelines already prohibit caste/religion discrimination; States advised; no need for striking down — advisories + gradual reform suffice.

▸ 12.4 Decision & reasoning

- **Discriminatory provisions declared unconstitutional** — violating **Arts. 14 (no reasonable classification/nexus; manifest arbitrariness), 15 (caste discrimination), 17 (untouchability), 21 (dignity), 23 (forced labour)**. Relied on *State of Punjab v. Davinder Singh; Indian Young Lawyers Assn. v. Kerala*: laws read with social-historical context; Constitution as **document of emancipation**; colonial philosophies must yield to contemporary equality.
- **Directions:** (1) States/UTs **revise manuals in 3 months** + compliance reports; (2) UOI to amend **Model Prison Manual 2016 & Model Prisons and Correctional Services Act 2023** (explicit anti-caste-discrimination clause; narrow "habitual offender" definition); (3) **remove "caste" column** from prisoner records; (4) "habitual offender" strictly per State legislation, else amend; (5) **DLSAs + Boards of Visitors: regular inspections** + compliance reporting; (6) **suo-motu petition registered** on prison discrimination — review in 3 months.

Principles evolved:

caste-based prison administration is per se unconstitutional

; (2) direct + indirect discrimination test inside prisons; (3)

classification needs legitimate purpose + rational nexus

— caste has none with prison management; (4) denial of equal reformation opportunities violates Art. 21 dignity.

13. Cases 31–32*: Transgender Persons in Prisons — MHA Advisory 10-1-2022 DU CORE (starred)

Document — **MHA Advisory on Treatment and Care of Transgender Persons in Prisons (10-1-2022)** to Chief Secretaries, UT Administrators, DGPs — aligning jails with the **Transgender Persons (Protection of Rights) Act, 2019** + Rules (self-perceived identity, non-discrimination, welfare).

13.1 Advisory contents (head-wise)

(Section abridged for the compilation — full text at makelaweasy.in.)

14. Open Prisons DU CORE

14.1 Definition & philosophy

- **UN Congress, Geneva 1955:** "An open institution is characterised by the **absence of material and physical precautions** against escape (walls, locks, bars, armed guards) and by a system based on **self-discipline and innate responsibility** towards the group." = **minimum-security** device; in India called **open jails** (also: open-air camps, parole-camps).
- **Sir Lionel Fox:** "of all methods... the open prison appears the most effective" for self-respect, self-responsibility, rational life.
- **Dr. C.P. Tandon (IG Prisons, UP, 1959):** (a) freedom from physical precautions + (b) regime of self-discipline/group responsibility → self-respect, preparation for freedom; discipline easier, punishment rare, tensions relaxed, life near-normal.
- **4 founding assumptions (Patterson, UK):** (1) sent **as** punishment, not **for** punishment; (2) no training for freedom without relaxed restraints; (3) minimise institutional/free-life gap; (4) **trust begets trust**. → led to UK hostel system; India followed.
- **B. Chandra** (cited in *Rama Murthy*): individualisation for social readjustment; wage system, parole, home leave, training; **cheaper than closed prisons; camps pay for themselves**.

14.2 Origin & world experience

Country	Model
Netherlands	Roermond (1957), Hoorn (1959), Wamsveld (1962) — pre-release transition; ≤25 inmates; Central Selection Committee (monthly); recidivists post-closed-term; ≤5 months; town locations → private wage-work (30% saved, 10% pocket); free mingling, unsupervised visits, own clothes
France	Casabianca (open), Oermingen (semi-open) — unsupervised free-worker days, return evenings; limited expansion (traditional system already allows supervised outside work)
Norway & Sweden	Open prisons + drug/habitual/drunkenness units + "Educational Centres" for young; trust/honour-based
Hungary	**Educative reformatory work** (≤5-year terms): no prison — work-site re-education under fellow workers; "clandestine fine in instalments"; no liberty loss
Belgium	Open institutions for juveniles — education + post-release jobs = socialisation
Australia	First camp Victoria **1939** → integral; recidivists post-closed-term; negligible escapes
Thailand	UN SMR-based from **1960** (decongestion + economy); chaplains/teachers; public mixing; inmate–community games; scout camps; job placement; bridge/road work; **compulsory temple visits twice weekly in final pre-parole month** — "social climate" vs prison culture
Middle East	Israel (no juvenile handcuffs/photos/fingerprints), Iran, Iraq — anti-handcuffing, freedom from physical control

14.4 Thirteen characteristics + six advantages (Paranjape)

14.5 State-wise open prisons (Paranjape's table; 28 operating)

State	Open prison(s) & year
Andhra Pradesh	Mauli Ali Colony (1954); Anantpur Agricultural Colony (1965)
Assam	Bagbheta (Jorhat) Agricultural-cum-Industrial Colony (1964)
Gujarat	Amreli (1968); Ahmedabad (1972)
Himachal Pradesh	Bilaspur (1962)
Kerala	Nettuketheri (1962)
Madhya Pradesh	Hoshangabad (2011)
Maharashtra	Yerwada (1955); Paithan (1968); Amraoti (1971)
Mysore (Karnataka)	Soundatti (1968)
Punjab	Nabha Agricultural Prison (1970)
Rajasthan (highest — 10)	Durgapur Research Farm camp (1955); Sanganer Sampurnanand Shivir, Jaipur (1963); Suratgarh Mechanised Farm camp (1964)
Tamil Nadu	Singanallur (1956); Salem (1966)
Uttaranchal	Sitarganj Sampurnanand Camp, Nainital (1960)
Uttar Pradesh	Lucknow Model Prison camp (1949); Chakia, Varanasi (1952); Ghurma, Mirzapur (1956)

14.7 Judicial seal + critical appreciation

14.8 The Vibhute reading (prescribed) — key takeaways DU CORE

(Section abridged for the compilation — full text at makelaweasy.in.)

15. Executive Clemency, Good-Time Laws & Indeterminate Sentence DU CORE

15.1 Pardoning power — Arts. 72 & 161

- **Art. 72 (President):** pardon, reprieve, respite, remission; suspend/remit/commute — (a) court-martial, (b) Union-executive-power offences, (c) **death sentences**. **Art. 161 (Governor):** same for State-power offences. Pardon = act of mercy wiping guilt (absolute/conditional — breach revives unexhausted sentence). Rationale: correct miscarriage; incentivise prison discipline; historic decongestion in wars; "better to free the guilty than jail the innocent." Abuse risk: influence, pardon-seeking over reform.
- **Comparative:** USA (President — federal only; pardon by fraud void); UK (monarch on ministerial advice); Germany/Italy/Russia/France (President); Canada (National Parole Board). Taft, CJ (*Ex parte Grossman*): clemency cures "undue harshness or evident mistake." Roots: royal prerogative; **Hammurabi's Code (~4000 years)**.

Case	Principle
Maru Ram v. UOI, AIR 1980 SC 2147	Art. 72 exercised **on Government advice which binds** the President
Dhananjoy Chatterjee v. W.B. (2004)	Reiterates *Maru Ram*; general orders must identify group + show application of mind; mercy rejected 4-8-2004; review declined 12-8-2004; hanged 14-8-2004, Alipore
Kuljeet Singh (Ranga Billa) v. UOI, AIR 1980 SC 898	Pardon = **entirely discretionary; need not be reasoned**

Kehar Singh v. UOI, AIR 1989 SC 653	**Act of grace, not right; administrative, not justiciable** (as then held); President may differ on guilt/sentence but can't alter judicial record; **no oral hearing**. Holmes (in *Biddle v. Perovich*): pardon = constitutional determination that **public welfare is better served by less than the judgment fixed**
K.M. Nanavati v. Maharashtra, AIR 1962 SC 605	Governor's Art. 161 suspension **cannot operate while appeal pending in SC** (Art. 145 rules — custody mandatory)
Swaran Singh v. U.P. (1998) 4 SCC 75	Governor's remission to MLA-murderer interdicted — arbitrary/mala fide/"disregard of finer canons of constitutionalism" → **judicial hand stretched**
Epuru Sudhakar v. A.P. (Gowru Venkata), AIR 2006 SC 3385 (Pasayat & Kapadia JJ.)	7-year remission quashed ("good Congress worker" irrelevant; Sorabjee amicus — reasons desirable). **Clemency is not for the convict alone** — victims' family, society, precedent matter. **5 challenge grounds:** (1) non-application of mind; (2) mala fide; (3) extraneous/ irrelevant considerations; (4) relevant material ignored; (5) arbitrariness. Afzal Guru mercy debate backdrop (12-10-2006: **caste/religion/ political loyalty barred as grounds**). Art. 74(2) no bar to scrutinising satisfaction-material (*S.R. Bommai*)
Purulia arms-drop (Peter Bleach, 1995)	Diplomatic-pressure pardon — compassionate, not merits
Gentela Vijayvardhanrao v. A.P.	Bus-burning (23 dead) death sentences commuted to life by President — opacity criticised (reasons would guide future; Cabinet-advice = political-risk)

 Paranjape data: death sentences 2001–33, 2002–23, 2005–77, 2006–40, 2007–100 (Amnesty 2009); 29+ mercy petitions pending (Oct 2010); India voted
against
UN abolition resolution (Dec 2007); Kasab sentenced 6-5-2010, confirmed 21-2-2011. Suggestion:
parole-conditioned pardon via Parole Boards
(as in som ...

▸ 15.3 Indeterminate sentence

(Section abridged for the compilation — full text at makelaweasy.in.)

⬢ 16. Parole, Probation & Furlough DU CORE

▸ 16.1 Concept & definitions

- **Rustomji (NPC tour-note):** personality disintegrates behind bars; overcrowding + torture flout UN SMR. **London 1960:** latter part of sentence on parole/open institutions with families. Parole = most effective/popular; wider scope than open prisons; **dual purpose: protect society + rehabilitate**.
- **Military origin:** prisoner-of-war release on promise to return. **Gillin:** release under correctional control to test fitness for unsupervised free life — **last stage** of correctional scheme (probation = first). **Taft:** post-part-sentence release, still in custody, returnable on violation. **Sutherland:** liberation revivable on condition-breach; after **⅓ served**, before discharge. **Cross:** long-term release under continuous State custody. ***Poonam Lata v. Wadhawan*, AIR 1987 SC 1383:** partial liberty; **status unchanged**. Fixed terms >18 months → release on licence; **act of grace, not right**; provisional release deemed part of imprisonment; reformative process.
- **Parole vs indeterminate sentence:** parole needs indeterminate sentence but ≠ identical — indeterminate = uncertainty (itself punishment); parole = pre-intimation of nearing discharge; parolee always starts with a **definite term**. Grant = **quasi-judicial** (Parole Board: abode + job + pre-parole orientation).

▸ 16.2 Parole vs probation (6) & parole vs furlough

#	Parole	Probation
(i) Origin	c. 1900	John Augustus, Boston, c. 1841
(ii) Sentence	After **part served** (initial committal + conditional release)	**No sentence / unexecuted** — suspension, substitute for punishment
(iii) Status (Sutherland)	**In custody** (punishment + treatment; threat = return)	**Under treatment** (threat = punishment)
(iv) Nature	**Quasi-judicial** (Parole Board, pre-expiry release)	**Judicial** (court release + supervision)
(v) Stage (Gillin)	Last stage	First stage
(vi) Stigma	**Stigmatised as convicted criminal**	**No stigma/disqualification** (s. 12, PO Act 1958)

▸ 16.4 Parole in India — structure, conditions, judicial trend

Case	Holding
Hiralal Mallick v. Bihar, AIR 1977 SC 2236 (12-yr-old, s. 326, 8→4 yrs)	Periodic parole for reasonable spells + safeguards — prevent beastialisation/snapped ties
Dharamvir v. U.P. (lifer)	**2 weeks' parole yearly** throughout imprisonment if well-behaved
Suresh Chandra v. Gujarat (1976) 1 SCC 654; *Krishanlal v. Delhi* (1976)	Liberal parole = anti-recidivism + anti-overcrowding (economic necessity ≠ sentence-reduction ground)
Babulal Das v. W.B. (Krishna Iyer)	Untried embittered detenues deserve parole chance (s. 15, MISA)
Samir Chatterjee v. W.B., AIR 1975 SC 1165	HC's MISA parole + "detention counter-productive" view — set aside/disfavoured
Poonam Lata (1987) → *Sunil Fulchand Shah v. UOI*	Overruled: COFEPOSA parole (s. 12) = **administrative**; courts can't grant (s. 12(6) bar; Arts. 226/32/136/142 intact); detention runs from **actual detention**; parole = **continued detention in different mode — period counts**
Gurdeep Bagga (1987)	Lenient: annual leave for lifers to preserve family unity
Veerumchanni Rao v. A.P. (1985)	Parole + suspension during SC appeal **ultra vires** (ss. 432(5), 389 CrPC); AP Rules struck down
Kesar Singh Guleria v. H.P.	**Poverty ≠ denial** — waive surety bonds considering family-ties/roots
Haryana v. Hasmat (ss. 302/307/148/149, lifer)	3 clean paroles ≠ bail ground; s. 389 needs **written reasons**; murder bail only exceptionally (*Vijay Kumar; Ramji Prasad*)
M.P. v. Kusum (woman lifer; MP Release on Probation Act 1954)	No indefeasible release right (*Arvind Yadav* — 14 cases, gruesome); pending-appeal circular valid; re-application after 2 years; Board = Home Secretary + IG/DIG + member
Rama Murthy (1997)	Parole = conditional post-part-sentence release → decongestion; Mulla: premature release = incentive + reformation

▸ 16.5 Violation, 7 essentials & objects

(Section abridged for the compilation — full text at makelaweasy.in.)

⬢ 17. Related Statutes, Manuals & BNSS Map VALUE-ADD

▸ 17.1 Prisons Act, 1894 — key provisions

Section	Content

s. 3	Definitions — "prison" incl. any place notified by Government (basis of open-prison notifications)
ss. 27–33	Separation of prisoners (male/female, civil/criminal, convict/undertrial); associated wards
s. 30	Death-sentence prisoners — separation (litigated in *Sunil Batra*)
ss. 34–35	Employment of civil/criminal prisoners; labour control
ss. 37, 39-A–39-D	Sick prisoners; health examination (TB/AIDS), segregation, treatment
ss. 46–48	Prison offences & punishments (incl. flogging-era residue — Art. 21-read-down; Datir critique in *Rama Murthy*)
s. 48-A	Parole/furlough/remission-condition breach = prison offence
s. 59	State rule-making (furlough/parole rules — *Darvekar*)
s. 61	Handbook/bulletin powers (cited in directive 8.2(4))

17.2 Model Prison Manual 2016 + Model Prisons Act 2023

- **Model Prison Manual, 2016** (MHA; judicially enforceable via *1382 Prisons*): 32 chapters — rights-based custody, segregation, health/hygiene, food/clothing, education/vocation, wages, interviews/communication, parole/furlough/remission, women/children (Bangkok Rules spirit), **legal aid + UTRC + jail visits**, staff training, after-care, **annual review**.
- **Model Prisons and Correctional Services Act, 2023** (MHA, May 2023 — replaces 1894 philosophy): shift from "retributive deterrence" to **reform & rehabilitation**; technology (biometrics/CCTV/video-conferencing); **parole/furlough/remission/premature release** codified; **open + semi-open + high-security jails**; security assessment & segregation; **individual sentence planning**; grievance redressal; Prison Development Board; prohibited articles (mobiles) — punishment for prisoners *and* staff; legal aid; **special provisions for women/transgender inmates**; protection from hardened/habitual criminals. (*Sukanya Shantha* ordered explicit anti-caste-discrimination clause + narrowed "habitual offender.")

17.3 CrPC → BNSS map for prison topics

CrPC	BNSS	Subject
s. 167	**s. 187**	Remand; production before Magistrate (non-production issue — *Rama Murthy* para 27)
s. 389	**s. 430**	Suspension of sentence pending appeal (*Hasmat*)
ss. 432–435	**ss. 473–477**	Suspension/remission/commutation; s. 433-A → s. 475 (14-yr lifers bar)
s. 436	**s. 484**	Bail in bailable offences
s. 436-A	**s. 479**	Undertrial release at ½ term (⅓ for first-timers; death/life excluded; multi-case bar; Superintendent's duty)
s. 437 / 439	**ss. 485 / 483**	Non-bailable bail; special bail powers

◆ 19. Diagrams & Flowcharts

19.2 The Rama Murthy 9-problem wheel → 10-direction fix

19.4 Closed → Open prison ladder (Vibhute/Paranjape)

19.5 Parole vs Probation vs Furlough (one glance)

	Parole	Probation	Furlough
When	After part served	Instead of sentence	Periodically during term
Reason	Sufficient cause + recorded reasons	Court's suspension order	No reason needed
Right?	Grace, not right	Judicial order	Near-right (deniable)
Sentence count	Not remission	Suspension	Counts as remission

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PYQ Bank — Unit 7 (questions only)

Q1 1 DU 2022
To what extent have Rama Murthy recommendations been applied? Critically evaluate.

◆ **Refer makelaweasy.in for detailed notes**, full model answers to every question below, additional case briefs, diagrams and revision material on this unit.

Q2 Best model answer (15-mark structure)

Q3 2 DU 2017
Prisons serve reformation but suffer problems needing immediate attention, else breeding grounds of delinquency

Q4 Discuss the rights of prisoners under Art. 21 with case law.

Q5 Open prisons: meaning, advantages, Indian experience, critique.

Q6 Parole vs probation vs furlough; parole jurisprudence.

Q7 Undertrial crisis: causes + legal remedies.

Q8 Short notes: (a) UTRC (b) Good-time laws (c) Indeterminate sentence (d) s. 48-A (e) Repatriation Act (f) Mulla Committee.

Q9 Caste / gender vulnerability inside prisons.